

Subject to Jurisdiction: A Comprehensive Assessment of the Citizenship Predicate

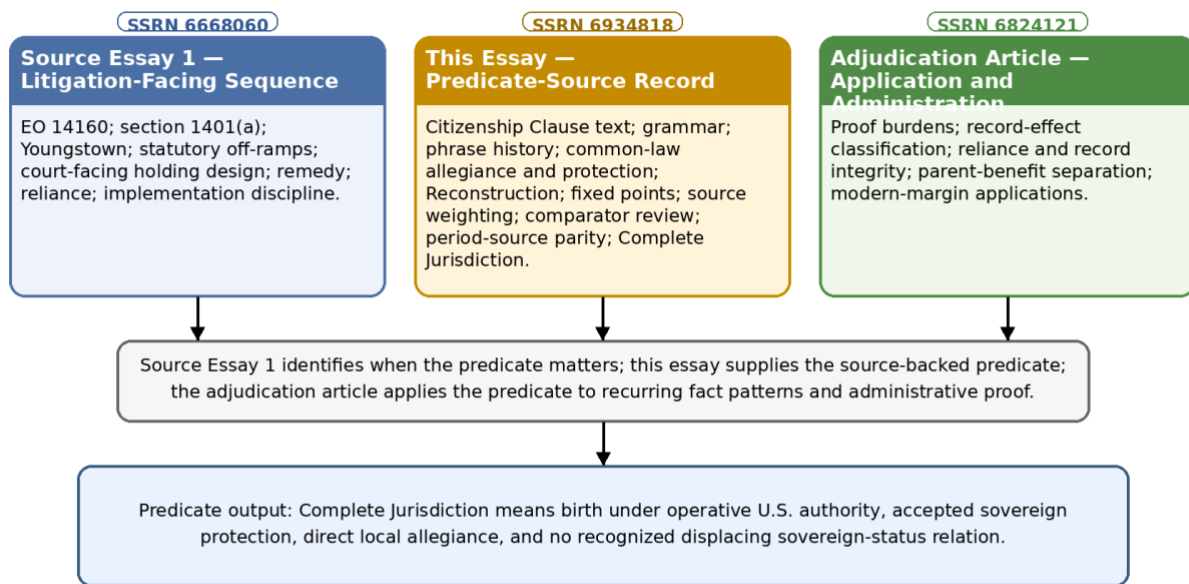
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Pre-Trump v. Barbara source version. This Article is current through June 28, 2026. It was submitted or revised on SSRN after the Supreme Court's June 30, 2026 release in Trump v. Barbara, but the text was not revised in response to that decision and contains no post-decision analysis. A separate post-Barbara article will address the Court's opinion.

Project Architecture Note. This Article is Source Essay 2 in a three-paper birthright-citizenship project. Source Essay 1, Birthright Citizenship and Complete Jurisdiction, supplies the litigation-facing sequence: Executive Order 14160, section 1401(a), Youngstown, statutory off-ramps, court-facing holding design, remedy, reliance, and implementation discipline. This Article supplies the predicate-level source record: text, grammar, common-law background, Reconstruction, fixed points, source weighting, comparator review, and period-source parity. Adjudication and Administration of Birthright Citizenship Under Complete Jurisdiction supplies the adjudication-and-administration model: proof burdens, record-effect classification, reliance, parent-benefit separation, and modern-margin applications.

Figure 1A. Three-Paper Source Architecture: Source Essay 2's Predicate-Source Role



Customized project-architecture figure for Source Essay 2. This essay supplies the predicate-source record; companion papers handle litigation sequencing and adjudication/administration.

Figure 1A. Three-paper source architecture from the perspective of Source Essay 2. This essay supplies the predicate-level source record for the meaning of “subject to the jurisdiction thereof.” Source Essay 1 supplies the litigation-facing sequence. The adjudication article applies the predicate through proof burdens, record-effect classification, reliance protection, parent-benefit separation, and modern-margin applications.

This figure identifies the function of this essay within the project. Source Essay 2 is not the litigation-sequencing paper and not the application matrix. It supplies the source-weighted predicate: text, grammar, common-law background,

Reconstruction, fixed points, comparator review, period-source parity, falsification, and the Complete Jurisdiction relation. Later papers may apply that predicate, but the predicate-source record is developed here.

Citation and Cross-Paper Note. Cite this Article for the Citizenship Clause predicate analysis, source-weighted fixed-point synthesis, and administration of the phrase “subject to the jurisdiction thereof.” Cite Source Essay 1, Birthright Citizenship and Complete Jurisdiction, for Executive Order 14160, section 1401(a), Youngstown, statutory sequencing, court-facing holding design, remedy, reliance, and implementation discipline. Cite Adjudication and Administration of Birthright Citizenship Under Complete Jurisdiction for proof burdens, record-effect classification, reliance and record integrity, parent-benefit separation, and modern-margin applications.

Abstract

This Article asks what “subject to the jurisdiction thereof” means as a citizenship-conferring predicate when the recognized Citizenship Clause fixed points are counted. It concludes that the best constrained synthesis is complete jurisdiction: birth under operative U.S. authority, accepted sovereign protection, direct local allegiance, and no recognized displacing sovereign-status relation. Soil remains the ordinary proof path, but not the whole constitutional predicate.

The Article’s method is genealogical fixed-point completeness, understood as source-weighted legal synthesis rather than mathematical proof. It begins with the Clause’s English grammar, then moves through phrase history, drafting choices, common-law background, category genealogy, property extraction, holdings, implementation practice, comparator theories, and modern status incidents. It does not begin by asserting complete jurisdiction. It asks whether complete jurisdiction best explains the source-backed fixed points presently processed, subject to revision if a controlling counterexample is produced.

Archival scope and source parity. This Article does not claim that every available period source is reproduced in the body. Its method is source-weighted synthesis: each source is assigned a legal function before it is used. Common-law materials supply the allegiance-and-protection background; Reconstruction materials supply the enacted constitutional settlement; holdings supply binding boundaries; administrative materials supply proof discipline; and modern legal incidents supply implementation facts at the margins. The Article therefore accepts the central common-law insight emphasized by Ramsey and Whittington, while asking a different synthesis question: how do the common-law baseline, the Citizenship Clause’s enacted jurisdictional predicate, the settled exclusions, *Elk*, *Wong*, Reconstruction, foundlings, and modern record incidents fit together without making any one source category the whole rule?

Scope of the no-contrary-exercise thesis. The no-contrary-exercise thesis is a person-specific Citizenship Clause thesis. It is complete as to the recognized person-specific fixed points processed in the source record, but it does not purport to resolve every territorial-status question. Unincorporated territories, military bases abroad, embassies, vessels, aircraft, border zones, and comparable settings may first require a territorial-source package to determine whether the birth occurred “in the United States” before the person-specific jurisdictional predicate is reached.

This formulation makes two comparative commitments explicit. First, it treats Schuck and Smith’s consent theory as identifying a real membership concern, but relocates the valid consent insight into objective birth-time legal incidents rather than subjective political will or inherited nonconsent. Second, it treats Ramsey-style common-law originalism as a source constraint: common-law allegiance and protection remain central, but the fixed-point record best supports a relational synthesis rather than a geography-only reduction.

The argument is that the Clause contains a broad subject, two qualifying conditions, and a citizenship consequence. Common-law *jus soli* supplies background concepts of allegiance and protection, but it does not erase the enacted constitutional predicate. Diplomatic birth, hostile occupation, tribal political relation, foundlings, *Elk*, and *Wong Kim Ark* are not random exceptions. Their origins, functions, and holdings disclose recurring properties of the citizenship-producing relation. *Wong* fixes the resident-alien core and forecloses alienage, foreign nationality, and parentage alone as disqualifying facts; *Elk*, diplomacy, hostile occupation, and historical tribal political relation show that geography and ordinary legal amenability do not always establish membership-conferring jurisdiction.

The Article also explains how complete jurisdiction can be administered without converting citizenship into an immigration-status code. A timely U.S. birth record creates *prima facie* citizenship. Further inquiry requires an objective, legally material, record-based trigger. Modern statuses such as TPS, parole, deferred action, pending adjustment, birth tourism, and bare unlawful entry must be evaluated by birth-time legal incidents, not labels. Parentage and equivalent sovereign-status facts may be evidence of the child’s birth-time sovereign relation, but they are not bloodline, caste, inherited blame, or a parental-status rule. The unlawful-presence discussion is separated into two registers: the constitutional predicate governing the child’s birth-time sovereign relation, and the statutory/administrative consequences

governing later immigration benefits for parents or family members. Later I-130, adjustment, inadmissibility, waiver, and discretion rules may answer parent-incentive questions; they do not define the child's Citizenship Clause status.

The proof architecture also calibrates different governmental actions. Ordinary birth-record administration, triggered inquiry, merits defeat of a U.S.-birth presumption, and disturbance of prior formal federal recognition are distinct governmental actions. The burden rises with the destabilizing effect of the action. Duration, renewal, and reliance are treated as record-incident amplifiers rather than independent citizenship rules; derivative parent benefits remain statutory questions outside the child-centered constitutional determination.

This Article is Source Essay 2 in the three-paper SSRN birthright-citizenship architecture. Source Essay 1, Birthright Citizenship and Complete Jurisdiction (28 June 2026), SSRN Abstract No. 6668060, develops the litigation-facing architecture: institutional sequencing, Executive Order 14160, 8 U.S.C. § 1401(a), Youngstown, statutory off-ramps, remedial posture, and implementation discipline. This Article independently develops the predicate-level source record, body-level aggregation, and appendix supporting record. The Adjudication and Administration of Birthright Citizenship Under Complete Jurisdiction applies the architecture to recurring fact patterns.

Predicate Orientation and Source-Route Summary

Orientation Note. This section provides a compressed map of the Article's predicate argument. It is included for reader orientation only and does not replace the Article's source record, footnotes, appendices, comparator review, or full fixed-point dossiers. For litigation or scholarship, cite the Article for the predicate-level source treatment and Source Essay 1 for Executive Order 14160, section 1401(a), Youngstown sequencing, statutory off-ramps, remedy, and holding options.

Scope. The Article asks one question: what does "subject to the jurisdiction thereof" mean as a citizenship-conferring predicate? It does not begin with Executive Order 14160, section 1401(a), Youngstown, or remedy. Those issues belong principally to Source Essay 1. This Article supplies the interpretive predicate: the birth-time sovereign relation that makes domestic birth citizenship-producing.

Bottom line. Soil remains the ordinary proof path and will usually resolve ordinary domestic-birth cases. But the citizenship-producing relation is complete jurisdiction: birth under operative U.S. authority, accepted sovereign protection, direct local allegiance, and no recognized displacing sovereign-status relation. That relation is not mere geography, ordinary legal amenability, subjective loyalty, parental virtue, inherited allegiance, or an immigration label.

Table PO-1. Disposition Snapshot

Question	Orientation answer
What is the question?	What does "subject to the jurisdiction thereof" mean as a citizenship-conferring predicate?
What is the answer?	Complete jurisdiction: operative U.S. authority, accepted sovereign protection, direct local allegiance, and no recognized displacing sovereign-status relation.
What does soil do?	Soil supplies the territorial predicate and ordinary proof path. It does not erase the second predicate.
What does Wong secure?	The resident-alien core and the rule that alienage, foreign nationality, and parentage alone do not defeat citizenship.
What does Elk show?	Geography and partial legal subjection do not always establish membership-conferring jurisdiction where a recognized political relation blocks direct local allegiance.
What is excluded?	Diplomatic birth, hostile occupation, historical tribal political relation before statutory supersession, and legally equivalent sovereign-status displacements.
What is barred?	Race, ancestry, caste, parent worth, inherited blame, and bloodline transmission of nonmembership.
What is the administrative rule?	A timely U.S. birth record creates prima facie citizenship; further inquiry requires an objective, legally material, record-based trigger; the government bears the burden to defeat the presumption.
What does the period-source parity supplement do?	It treats Ramsey, Whittington, and related archival accounts as source-strengthening comparators, classifies period sources by legal function, and preserves foundlings as proof discipline unless a stronger period-source rule is independently verified.

Argument in one page. The Article begins with grammar. The Citizenship Clause does not say that every person born in the United States is a citizen. It says that all persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens. "All persons" does anti-caste work; it does not erase the two predicates that precede the citizenship consequence.

The Article then turns to phrase history and common-law background. Nineteenth-century jurisdiction language often referred to governing authority and protection. That supports the broad-side point that persons present in the United States are ordinarily subject to U.S. authority and law. But ordinary legal amenability is not the same thing as membership-conferring jurisdiction. Due Process and Equal Protection protect persons governed by law; the Citizenship Clause confers national and state membership at birth.

The settled categories are treated as data rather than as random exceptions. Freedmen and their children disclose the affirmative Reconstruction case. Diplomatic birth and hostile occupation disclose limits on soil. Historical tribal political relation discloses how geography and some legal subjection may still fail where a recognized political relation prevents direct local allegiance. Foundlings disclose proof discipline under uncertainty. Wong and Elk supply holding-level boundaries.

The synthesis is complete jurisdiction. It is narrower than ordinary governability and broader than preexisting citizenship or parental allegiance. It preserves Wong, Elk, Reconstruction, diplomacy, hostile occupation, tribal status, foundlings, and modern administrative practice without making any one fact the whole rule.

Consent and original meaning. Complete jurisdiction does not ignore consent. It rejects subjective, discretionary, or hereditary consent as the citizenship rule. The constitutionally relevant consent is institutional and legal: the United States accepts the birth-time relation through operative authority, protection-bearing legal incidents, direct local allegiance, and the absence of a recognized sovereign-status displacement. This also explains how the common-law allegiance-and-protection background remains essential without reducing the Clause to geography alone.

Archival scope. The period-source record is used by legal function, not by citation volume. Common-law sources supply the ordinary allegiance-and-protection baseline; Reconstruction sources supply the enacted anti-caste settlement and jurisdictional phrase; holdings supply boundaries; and implementation materials supply proof discipline. Ramsey and Whittington are therefore treated as archive-forcing comparators whose common-law materials strengthen the ordinary included core while leaving the clause-specific question: what kind of jurisdiction is citizenship-conferring?

No-contrary-exercise scope. The no-contrary-exercise thesis is bounded. It means that no recognized person-specific Citizenship Clause fixed point processed in this Article requires exercising the Clause contrary to Complete Jurisdiction. It does not claim to resolve every territorial-status question. Some cases test the first predicate - whether the birth occurred "in the United States" - before the second predicate - whether the person was "subject to the jurisdiction thereof" - is reached. Those questions require a separate territorial-source package and are routed to the Adjudication and Administration of Birthright Citizenship Under Complete Jurisdiction's Appendix T.

Table PO-2. Fixed Points and Their Lessons

Fixed point	Function	Lesson
Freedmen and their children	Affirmative Reconstruction case.	Domestic birth under U.S. authority and protection could no longer be denied through race, caste, ancestry, or inherited civil degradation.
Diplomatic birth	Settled exclusion.	Physical birth in U.S. territory is not citizenship-producing when diplomatic status routes the birth-time relation through another sovereign.
Hostile occupation	Settled exclusion.	Nominal geography is insufficient when operative U.S. authority, protection, and allegiance are displaced.
Historical tribal political relation	Pre-statutory boundary.	Geographic birth and some U.S. legal power did not settle citizenship where a recognized separate political relation prevented direct local allegiance.
Foundlings	Proof discipline.	Nationality law uses presumption under uncertainty when birth and parentage facts are unavailable and no displacing sovereign-status record appears. This is proof discipline, not soil-only finality or an independently verified foundling rule.
Wong Kim Ark	Included core.	Resident-alien birth in the United States under local protection and no diplomatic status is citizenship-producing; alienage and parentage alone do not defeat citizenship.
Elk v. Wilkins	Negative boundary.	Geography alone and partial legal subjection do not establish the predicate when a recognized political relation prevents immediate local allegiance.

Rule statement. Complete jurisdiction exists when a person is born within the relevant territorial predicate under operative U.S. authority, accepted sovereign protection, and direct local allegiance, with no recognized displacing sovereign-status relation. The term names the relation disclosed by the fixed points; it does not replace the sources.

Wong and Elk. Wong Kim Ark fixes the affirmative resident-alien core and forecloses alienage, foreign nationality, and parentage alone as disqualifying facts. Elk supplies the negative boundary, but not an immigrant-exclusion template: it shows that birth within territory does not settle the predicate where a recognized distinct political relation prevents direct local allegiance from attaching.

Table PO-3. Complete Jurisdiction in Four Parts

Element	Meaning	Principal pressure
Operative U.S. authority	The United States governs the place of birth in the relevant constitutional sense.	Hostile occupation shows the limit of nominal geography.
Accepted sovereign protection	U.S. law supplies protection-bearing legal incidents at birth, more than ordinary coercive power and less than political membership.	Wong and common-law allegiance/protection supply the core; modern statuses are assessed by incidents.
Direct local allegiance	The newborn's birth-time legal relation runs directly to the United States rather than through another sovereign or separate political community.	Diplomacy, hostile occupation, and tribal relation show where the relation is routed away.
No recognized displacing sovereign-status relation	No diplomacy, hostile occupation, historical tribal political relation, or legally equivalent sovereign-status shield blocks the local bond.	Closed by kind; not an open-ended foreign-allegiance test.

Accepted sovereign protection. Accepted sovereign protection exists when, at the moment of birth, an official U.S. legal record shows that U.S. law affirmatively recognized the child, parent, or family unit under a protection-bearing or residence-like legal incident: permission to remain, protection from removal or return, refuge, lawful residence, durable parole or comparable protection, work authorization tied to permission or protection, pending regularization with an official removal shield, or another legally cognizable protection-bearing incident. It does not include mere physical presence, ordinary police protection, due process protection, public benefits, emergency aid, civil or criminal amenability, detention, border-processing custody, temporary sufferance, event-specific admission, revocable non-enforcement, or enforcement tolerance. The core administrative question is what the birth-time legal record supplied or withheld: permission, protection, residence-like recognition, refuge, a removal shield, parole, pending regularization, work authorization tied to permission or protection, or the absence of those incidents. Mere physical presence means mere physical presence, not legally recognized presence; "comparable" means comparable by legal incident, not by sympathy, executive characterization, or policy intuition.

Direct local allegiance. Direct local allegiance is a legal-direction term. It is not psychological allegiance, subjective loyalty, personal consent, ideology, assimilation, race, ancestry, parent worth, political belief, or inherited allegiance. For a newborn, the question is where the child's legal relation ran at birth. In ordinary domestic cases, it runs directly to the United States. In displaced-sovereign cases, it is routed away by diplomacy, hostile occupation, historical tribal political relation, or a legally equivalent sovereign-status shield.

Parentage. Parent-linked facts may be unavoidable because newborns cannot personally express domicile, allegiance, consent, immunity, or legal status. But parentage is evidentiary only. It may help identify the child's birth-time sovereign relation; it cannot become bloodline, caste, inherited blame, parental worth, or a citizenship-denial rule. This is why the Article does not revive Fuller's dissent in Wong: the relevant evidence must relate to the child's own legal relation, not inherited parental allegiance.

Table PO-4. Modern Statuses as Record-Effect Categories

Status / incident	Likely significance	Limiting caution
LPR / settled lawful domicile	Strong included-core evidence.	Still evidence of relation, not label magic.
Refugee / asylee	Strong protection-bearing, adjacent-core evidence.	Affirmative federal refuge or protection matters, but this is not a wholesale holding on every humanitarian edge case.
TPS	Strong or moderate evidence depending on valid birth-time incidents, removal shield, work authorization, duration, continuity, and effective termination date.	Post-Doe, TPS designation, extension, and termination decisions are broadly insulated from non-constitutional judicial review; the predicate question is whether a valid individual TPS incident existed at birth.
Humanitarian or durable parole	Stronger when durable, humanitarian, family-unity-based, U.S.-side, or protection-bearing.	Post-Al Otro Lado, a Mexican-side appointment, queue, metering event, or blocked attempted entry is not arrival, parole, or domestic accepted protection.
Deferred action	Weak-to-moderate depending on grant, duration,	Not lawful status by label alone.

	renewal, work authorization, humanitarian grounds, or pending regularization.	
Tourist / visa waiver / birth tourism	Weak or adverse evidence of accepted protection.	Pregnancy, nationality, hospital, language, surname, or poverty cannot be categorical triggers.
Bare unlawful entry	Materially adverse evidence against accepted protection absent further recognition.	Not a displacing sovereign-status relation.

Modern-margin caveat. Describing a status as strong, moderate, weak, or adverse evidence does not resolve the category constitutionally. Unless the status falls within the preserved included core or the settled excluded core, it remains an unresolved modern-margin category for court-facing purposes. Refugee and asylee protection are strong protection-bearing cases adjacent to the preserved included core, but the precise constitutional classification of any disputed humanitarian edge case should occur through categorical, record-based adjudication.

Definitions and duplicate labels. Several modern labels describe the same legal object at different levels of precision. Parole and parolee refer to the same legal relation; durable humanitarian parole is a stronger subtype. Deferred action and deferred-action recipient likewise refer to the same relation from different angles. Tourist and short-term visitor substantially overlap, while a Visa Waiver entrant is a short-term visitor admitted through a special statutory mechanism. Work authorization, renewal, and domestic formation are not standalone statuses; they are legal incidents or evidentiary facts. Admission is an entry event, not a status. Overstay without inspection should be separated into entry without inspection and overstay after lawful admission.

Administration. Ordinary cases begin and end with the birth record. Further inquiry requires an objective, official, legally material, record-based trigger. Categories must be classified before individual proof is demanded. Applicant-specific proof follows only after categorical record-effect analysis leaves a genuine factual issue. The government must identify the trigger and prove the absence of complete jurisdiction by clear and convincing evidence before defeating the U.S.-birth presumption.

Burden hierarchy. The trigger opens inquiry, not a transfer of the ultimate burden. The government must identify the official record that triggers review and must carry the burden appropriate to the action it seeks: a specific trigger to open inquiry, clear and convincing evidence to defeat prima facie citizenship in an unresolved modern-margin case, and the highest burden when it seeks to disturb prior formal federal recognition.

Duration and parent-benefit caveat. A temporary label does not automatically become permanent because it has been renewed, but repeated formal renewal, birth-time validity, removal protection, work authorization tied to protection or permission, and documented local reliance may give the status residence-like evidentiary weight. A child-citizenship determination does not decide downstream parent benefits; removal, admissibility, adjustment, waivers, cancellation, parole, petitions, and discretion remain statutory questions.

Modern margins as stress tests. Modern categories do not control by label, but they test whether a theory can remain administrable without collapsing into soil-only finality, parent-status exclusion, executive-label control, or hereditary caste. The Article therefore treats TPS, parole, deferred action, pending adjustment, birth tourism, and bare unlawful entry as record-effect categories and theoretical stress tests at the same time.

Table PO-5. Presumption-Plus-Trigger Administration

Step	Function
1. Timely U.S. birth record	Prima facie citizenship; ordinary cases end here.
2. Objective record trigger?	No trigger means no further citizenship-status inquiry.
3. Category and birth-time legal record	Identify whether the implicated category is legally material.
4. Categorical classification first	Ask what the record conferred, withheld, recognized, protected, authorized, shielded, or displaced.
5. Applicant-specific proof only if needed	Individual proof follows only after categorical record-effect analysis leaves a genuine factual issue.
6. Government burden	Government produces the triggering record and proves absence of complete jurisdiction by clear and convincing evidence.
7. Reasoned decision and review	Notice, access to records, response opportunity, written reasons, administrative review, and judicial review.

Falsification and limits. The account is source-weighted legal synthesis, not mathematical proof. A controlling holding, settled inclusion, settled exclusion, drafting choice, or implementation practice that cannot be reconciled with complete jurisdiction would require revision. The no-contrary-exercise thesis is bounded: it means that no recognized person-

specific Citizenship Clause fixed point processed in this Article requires exercising the Clause contrary to Complete Jurisdiction. It does not purport to resolve every territorial-status question. Some cases test the first predicate - whether the birth occurred "in the United States" - before the second predicate - whether the person was "subject to the jurisdiction thereof" - is reached. Those questions require a separate territorial-source package and are routed to territorial-status analysis rather than treated as person-specific fixed-point counterexamples.

Table PO-6. Rival Accounts and Source Fit

Account	Core problem or strength
Soil-only	Preserves ordinary domestic birth, but struggles with diplomacy, hostile occupation, Elk, and the text's second predicate.
Parentage/allegiance-only	Fails Wong and Reconstruction; risks hereditary nonmembership.
Residence-only	Captures a strong evidentiary marker, but cannot become the national citizenship predicate.
Governability-only	Captures ordinary legal jurisdiction but collapses rights-bearing jurisdiction into membership.
Complete jurisdiction	Preserves the retained properties across text, holdings, settled categories, modern record effects, and administration.

Orientation takeaway. The Article rejects three shortcuts: geography-only sufficiency, alienage-only exclusion, and bloodline. It treats soil as the ordinary proof path, parentage and modern statuses as evidence only when tied to birth-time legal incidents, and complete jurisdiction as the citizenship-producing relation. The Article itself supplies the source record; this orientation section supplies the source-route summary.

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I. Method: No Theory Before Facts

The first discipline of this paper is methodological: no theory before facts. A theory of the Citizenship Clause's jurisdictional predicate is adequate only if it accounts for all recognized fixed points without treating one category's rationale as the whole constitutional rule. The paper therefore begins with a fixed-point inventory, a source-weight hierarchy, and a proof-unit method. It does not begin with "complete jurisdiction" as a preferred compromise and then arrange evidence around it.

This Article is standalone in two senses. First, its synthesis does not depend on accepting Source Essay 1's institutional or statutory conclusions. Second, it does not use Source Essay 1 as a premise for complete jurisdiction. Source Essay 1 is broader and litigation-facing; this Article is predicate-facing and source-weighted. References to Source Essay 1 identify the same-author project from which this narrower inquiry grew, not an external authority that supplies the result. The analysis here stands or falls on the fixed-point record assembled in this Article: text, grammar, phrase history, drafting choices, category genealogy, holdings, implementation practice, comparator testing, and falsification.

This method is necessary because the Citizenship Clause has been read through competing abstractions. Some accounts begin with geography. Some begin with ordinary legal amenability. Others begin with allegiance, residence, domicile, parental status, consent, or a closed list of historical exceptions. Each of those starting points captures something real. Domestic birth is ordinarily powerful evidence. Governing authority matters. Allegiance and protection matter. Residence and sojourner status may matter. Parent-linked facts are often unavoidable because newborns cannot personally manifest domicile, immunity, allegiance, or residence. But no single datum can be allowed to carry the whole Clause before it is tested against every fixed point.

A fixed point, for purposes of this paper, is a source-backed application or constraint that any theory of "subject to the jurisdiction thereof" must preserve or expressly explain. The relevant fixed points include the Clause's grammar; the "all persons" universal subject; the Civil Rights Act formula; the final Citizenship Clause text; the Doolittle proposal; Reconstruction's anti-caste command; freedmen and their children; diplomatic birth; hostile occupation; historical tribal political relation; foundlings; *Elk v. Wilkins*; *United States v. Wong Kim Ark*; *Yick Wo* and *Plyler* as rights-bearing cases; ordinary birth-record practice; modern record-based status incidents; and the residence challenge pressed by Thomas Lee. The theory may ultimately classify some materials as non-controlling, but it may not pretend they do not exist.

Fixed-point selection is source-constrained, not author-controlled. A point enters the inventory only if it is tied to constitutional text, enacted statutory formula, drafting choice, category genealogy, controlling or high-weight holding, implementation practice, or comparator conflict. A point changes weight only through source-weight analysis, not because it is convenient or inconvenient to the proposed synthesis. The method therefore does not make the Article unfalsifiable; it identifies the record that would have to be preserved, distinguished, or allowed to revise the account.

A territorial-source package is a source record directed to the first Citizenship Clause predicate: whether a birth legally occurred "in the United States" for Fourteenth Amendment purposes or under a statutory citizenship or nationality provision. It is separate from the person-specific inquiry into whether a child born within that territorial predicate was "subject to the jurisdiction thereof." Unincorporated territories, military bases abroad, embassies, vessels, aircraft, border zones, and similar settings require that package before they can be used for or against the person-specific Complete Jurisdiction rule.

Source weight is a legal judgment, not an arithmetic score. The hierarchy can be disputed, but any competing hierarchy must still preserve the same fixed points or explain why a source should be excluded from the constitutional account.

Period-source audit rule. The Article uses period sources according to legal function, not rhetorical usefulness. A source may supply enacted text, drafting context, common-law background, implementation practice, proof discipline, holding-level authority, or comparator pressure. No single source category is permitted to control the constitutional predicate unless its legal function warrants that weight. Common-law sources supply allegiance-and-protection vocabulary and the ordinary birth rule; Reconstruction sources supply the enacted constitutional settlement; holdings supply binding boundaries; administrative materials supply proof discipline. Complete jurisdiction is the synthesis of those functions, not a claim that any one source independently supplies the whole rule.

The historical record is not seamless, and the Thirty-Ninth Congress did not enact a pre-set formula. Constitutional materials often reflect compromise, incomplete theorizing, and category-specific judgments. The claim here is narrower: once text, holdings, settled inclusions, settled exclusions, drafting choices, and implementation practices exist, a constitutional rule must preserve their legal force without generalizing forbidden facts. Complete jurisdiction is a coherence judgment imposed by legal interpretation, not a claim that every source reflects one historical theory.

The Article's claim is legal synthesis, not mathematical certainty. Its terminology does not substitute for the sources. "Accepted sovereign protection," "direct local allegiance," and "complete jurisdiction" name properties drawn from source-backed materials. They remain valid only so long as they preserve the recognized fixed points better than competing accounts and remain subject to revision if a controlling counterexample is produced.

The contested step is the synthesis step: whether the retained fixed-point properties are better explained as complete jurisdiction or as a broad territorial rule with narrow exceptions. This Article defends the former as the better account of the processed record, not as a premise built into the method.

I.A. Direct Local Allegiance: Definition and Use

Direct local allegiance is used in this Article as a legal-direction term, not as a psychological, ideological, racial, or consent-based concept. It asks to whom the newborn's birth-time legal relation ran. Operative U.S. authority asks whether the United States governed the place of birth. Accepted sovereign protection asks what protection-bearing legal incidents U.S. law supplied at birth. Direct local allegiance asks whether those authority-and-protection incidents attached to the child as an immediate local legal bond to the United States, or whether the child's relation was routed away by a recognized sovereign-status displacement such as diplomacy, hostile occupation, historical tribal political relation, or a legally equivalent sovereign-status shield. It does not mean subjective loyalty, personal consent, political belief, cultural assimilation, race, ancestry, parent worth, parental blame, foreign nationality, or inherited allegiance.

The term has three legal functions. First, it confirms that ordinary domestic birth normally creates an immediate local legal bond because U.S. authority and protection attach directly to the child. Second, it explains why diplomacy, hostile occupation, historical tribal political relation, and legally equivalent sovereign-status shields prevent that bond from attaching. Third, it bars inquiries into subjective loyalty, parental virtue, cultural assimilation, inherited allegiance, or bloodline. The inquiry is not whether the parents or child feel allegiance; it is where the child's legal relation ran at birth.

The same separation controls unlawful-presence cases. Constitutionally, unlawful presence is relevant only insofar as it bears on the child's birth-time relation to U.S. authority, accepted protection, and direct local allegiance. Statutorily and administratively, the parent's violation may produce removal, inadmissibility, adjustment barriers, evidentiary triggers, or later family-immigration consequences. Those statutory consequences may be severe and may be adjusted by Congress. They do not convert the child's constitutional predicate into inherited blame, and they do not make unlawfulness irrelevant to the affirmative elements.

The sequence matters. Grammar and phrase history come first; drafting paths and category genealogy follow; property extraction, holdings, administration, and falsification then test the result. Complete jurisdiction is not the premise. It is the name given to the relation that remains after the relevant sources have been identified, each fixed point has been reconstructed, non-generalizable facts have been filtered, and rival readings have been tested.

The account remains falsifiable. A recognized holding, settled inclusion, settled exclusion, drafting choice, or implementation practice that cannot be reconciled with complete jurisdiction would require revision. The claim is not that complete jurisdiction is attractive in isolation. The claim is that the present record points to that relation when each fixed point is preserved.

II. Grammar and Conditional Structure

The Citizenship Clause provides: "All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside." As English, the sentence has a broad subject, two qualifying predicates, a legal consequence, and a dual national/state citizenship consequence. The grammar does not itself resolve every historical application, but it does establish the textual floor: citizenship follows only after the sentence's predicates have been satisfied.

Table II-1. Citizenship Clause Grammar and Conditional Structure

Table II-1. Citizenship Clause Grammar and Conditional Structure		
Clause component	Function	Textual inference
“All persons”	Broad subject class	Identifies the class eligible to claim the guarantee; it is universal in the anti-caste sense but does not erase the predicates.
“born or naturalized in the United States”	First qualifying condition	Requires a birth or naturalization connection to the United States; it does not supply the whole rule.
“and subject to the jurisdiction thereof”	Second qualifying condition	Adds a cumulative jurisdictional predicate before the consequence attaches.
“are citizens”	Legal consequence	Citizenship follows after the qualifying conditions have been satisfied.
“of the United States and of the State wherein they reside”	Dual citizenship consequence	Confers national citizenship and state citizenship; the residence phrase requires separate analysis.

The phrase “all persons” is the subject, not the operative rule standing alone. It matters because it defeats caste and hereditary exclusion. It prevents the Citizenship Clause from being limited by race, ancestry, parent worth, bloodline, or the inherited civil degradation that Dred Scott embodied. But grammatical universality does not mean every predicate attached to the subject disappears. The sentence does not say “All persons born in the United States are citizens.” It says “All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens.”

II.A. “All Persons” and the Predicate Problem

The strongest universalist objection begins with the Clause’s opening words. Because the sentence begins with “All persons,” the argument goes, any rule that asks whether the jurisdictional predicate is satisfied risks converting a universal birthright guarantee into a status-by-status inquiry. That objection identifies a real fixed point: the Citizenship Clause speaks in universal terms and repudiates caste, race, inherited civil degradation, and parent-worth limitations.

But the universal subject is not the operative rule standing alone. As grammar, “all persons” identifies the class capable of taking the citizenship consequence; it does not erase the two predicates that precede the verb “are.” The sentence does not say that all persons born in the United States are citizens. It says that all persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens. The universal phrase therefore does anti-caste work, not predicate-erasing work.

This distinction preserves Reconstruction’s central purpose. Universality prevents race, ancestry, enslaved status, parental worth, or inherited civil degradation from limiting the class protected by the Clause. It does not make every qualifying phrase automatic. This Article’s account therefore keeps the universal guarantee and the jurisdictional predicate together: every person may claim the Clause without caste limitation, but citizenship attaches only when both textual predicates are satisfied.

The resulting proof proposition is straightforward: universality identifies the protected class; the predicates identify the citizenship-producing conditions. A theory that lets the predicates swallow universality would recreate caste. A theory that lets universality erase the predicates would rewrite the sentence. The fixed-point method preserves both: no person is excluded by race, ancestry, bloodline, parent worth, or inherited degradation, but the Clause still requires birth or naturalization in the United States and subjection to the jurisdiction thereof.

The first predicate—birth or naturalization in the United States—does essential work. It supplies the territorial or naturalization connection. In ordinary domestic-birth cases, that fact will usually carry almost all of the evidentiary burden. A timely U.S. birth record ordinarily establishes *prima facie* citizenship because, in ordinary circumstances, U.S. birth occurs under U.S. authority, protection, and local allegiance. But ordinary evidentiary force is not textual identity. The first predicate does not delete the second.

The second predicate—“and subject to the jurisdiction thereof”—is cumulative. The conjunction “and” joins the two predicates before the verb “are.” The phrase is not detachable surplusage. Nor is it merely a stylistic aside. It identifies the sovereign relation that makes birth or naturalization citizenship-producing. A soil-only rule must therefore supply an inference the sentence itself does not supply: that territorial birth always and necessarily satisfies the jurisdictional

predicate. That inference may be sound in ordinary cases as a presumption. It cannot be the Clause's grammatical meaning.

The word "thereof" refers back to the United States. This matters. The Clause does not ask merely whether a newborn is within some state's police power, or whether the child may be protected by state law, or whether state-law parentage records exist. The citizenship predicate is national. It asks whether the person is born or naturalized in the United States and subject to the jurisdiction of the United States. State residence appears later, in the state-citizenship consequence, and should not be converted into the entire national citizenship rule without additional proof.

Constitutional grammar elsewhere follows the same pattern. Broad class language is frequently narrowed by conditions before a legal consequence attaches. Article I provides that "No Person shall be a Representative" without satisfying age, citizenship, and inhabitancy qualifications. The Senate Qualifications Clause does the same. Article II restricts presidential eligibility through a "natural born Citizen" requirement. The Treason Clause forbids conviction unless evidentiary conditions are met. The Fourth Amendment makes warrants depend on probable cause and particularity. The Thirteenth Amendment prohibits slavery "within the United States, or any place subject to their jurisdiction," using jurisdiction over places in a way distinct from the Fourteenth Amendment's jurisdiction over persons. These examples do not decide the citizenship question, but they confirm a basic interpretive discipline: the reader does not erase limiting conditions because the opening class language is broad.

The grammar thus supports the paper's first substantive proposition: geography is necessary but not self-sufficient. Birth in the United States identifies the ordinary proof path. Subjection to jurisdiction identifies the citizenship-producing relation. A theory that collapses the two may produce a simple rule, but it does not derive that rule from the English of the Clause.¹

III. Phrase History

The phrase-history question is not whether "jurisdiction" had an ordinary legal meaning. It did. The stronger broad-side accounts correctly emphasize that nineteenth-century legal usage often tied jurisdiction to the sovereign's authority to make, decide, and enforce law. Heilpern and Whittington argue that "subject to the jurisdiction" was a conventional legal term of art requiring inquiry into whether the person was born subject to the "governing authority and protection of the political sovereign." Ho likewise treats persons present in the United States as ordinarily subject to U.S. authority and required to obey U.S. law.

This Article's account does not deny that evidence. It incorporates it at the correct level of function. Ordinary legal amenability is a real form of jurisdiction. A person present in the United States is ordinarily within U.S. power to prescribe law, enforce law, arrest, tax, subpoena, and protect. The question is whether that ordinary legal jurisdiction is identical to the Citizenship Clause's membership-conferring jurisdiction. The answer cannot be assumed. It must be proven.

The problem with making ordinary legal amenability the whole rule is functional collapse. The Citizenship Clause is not a general law-enforcement provision. The Due Process and Equal Protection Clauses protect persons governed by law. The Citizenship Clause confers national and state membership at birth or naturalization. A theory may treat ordinary legal amenability as necessary to citizenship-conferring jurisdiction, but it still must explain why some persons physically present in U.S. territory and subject to some legal power were historically excluded from birthright citizenship: children of diplomats, children born under hostile occupation, and tribal-status cases before statutory supersession.

Ablavsky and Berger strengthen rather than weaken this point when properly filtered. They argue that, at the time of the Fourteenth Amendment, jurisdiction ordinarily meant power to make, decide, and enforce law, and that Native nations' anomalous quasi-foreign status created a distinctive jurisdictional problem. This Article accepts both propositions. Jurisdiction in ordinary legal usage involved lawmaking and enforcement authority; tribal political relation created an exceptional sovereign-status displacement. The implication is not that tribal status can be analogized to ordinary

1 U.S. Const. amend. XIV, § 1; id. art. I, § 2, cl. 2; id. art. I, § 3, cl. 3; id. art. II, § 1, cl. 5; id. art. III, § 3, cl. 1; id. amend. IV; id. amend. XIII, § 1; see Orin France, *Citizenship and Jurisdiction: Reclaiming the Constitutional Line 1–4* (2026) (unpublished manuscript) (on file with author); James A. Heilpern & Keith E. Whittington, "Subject to the Jurisdiction" as Legal Text, *Harv. J.L. & Pub. Pol'y*: Per Curiam No. 08, Spring 2026, at 1–3.

immigrant parentage. It is that ordinary jurisdictional vocabulary must be read in the Citizenship Clause's specific membership-conferring function.

Phrase history therefore has two limits. It rejects a dictionary-only or ordinary-governability-only account as incomplete. It also rejects a parental-allegiance account that turns "subject to the jurisdiction" into inherited loyalty or bloodline. The better phrase-history conclusion is narrower: "subject to the jurisdiction thereof" uses legal vocabulary of sovereign authority, allegiance, and protection, but the Citizenship Clause applies that vocabulary to the relation that makes birth citizenship-producing.

IV. Drafting Paths Not Taken

Drafting history cannot be used as isolated quotation mining. It must be arranged chronologically, weighted by authority, and tied to the adopted text. The relevant drafting history shows that Congress knew multiple formulations and selected a general jurisdictional predicate rather than pure soil, hereditary parentage, or a static exception list.

The Civil Rights Act of 1866 used the formula "All persons born in the United States and not subject to any foreign power, excluding Indians not taxed." That statutory language matters because it shows an earlier legal formulation: birth plus a negative foreign-power / Indian-exclusion formulation. It does not control the later constitutional text. The Fourteenth Amendment did not simply copy it. Instead, the adopted constitutional language used "born or naturalized in the United States, and subject to the jurisdiction thereof," a general jurisdictional predicate with national and state citizenship consequences.

The Doolittle proposal is a critical negative drafting path. Doolittle proposed inserting an express "excluding Indians not taxed" phrase into the constitutional sentence. The proposal was not adopted. That fact should not be overread to mean that the Senate intended no tribal-status exclusion at all; the debates indicate that several senators believed the existing jurisdictional language already addressed the tribal-status problem. But the rejection does show that the adopted text did not constitutionalize an express list of exclusions. It selected a general jurisdictional phrase.

Howard's introduction of the Clause and his comments on foreign ministers and tribal Indians frame the adopted language as both inclusive and jurisdictionally limited. He presented a universal citizenship guarantee while recognizing that certain sovereign-status relations prevented full subjection to U.S. jurisdiction. Trumbull's statements—especially that the phrase meant "subject to the complete jurisdiction thereof" and "not owing allegiance to anybody else"—must likewise be read with source discipline. They are not free-standing constitutional text. They are contextual evidence that the jurisdictional phrase had independent force. Johnson's "better language" context matters because it confirms that drafters were refining formulation, not merely restating a slogan. Bates matters as presumption: his 1862 opinion supports birth as *prima facie* citizenship, not necessarily birth as conclusive against every legally material jurisdictional displacement.

The drafting-history analysis therefore supports a bounded proposition. It does not by itself prove complete jurisdiction. It does show that Congress did not enact a pure territorial sentence, did not simply freeze the 1866 statutory wording, did not make parentage dispositive, and did not adopt an express closed list of exceptions. The adopted phrase requires a sovereign-relation inquiry that must be derived from the full fixed-point set.²

Table IV-1. Drafting Paths and Limiting Uses

Table IV-1. Drafting Paths and Limiting Uses		
Drafting item	Proper use	Limiting caution
Civil Rights Act of 1866	Shows birth plus negative foreign-power / Indian-exclusion formula.	Does not override later constitutional text.
Final Citizenship Clause	Controls grammar and predicates.	Does not by itself decide every category.
Doolittle proposal	Shows express Indian-exclusion language was considered and rejected.	Does not erase tribal-status exclusion if existing jurisdictional language covered it.
Howard	Introduces inclusive guarantee and sovereign-status limits.	Individual statements must be tied to text and context.

² Civil Rights Act of 1866, ch. 31, § 1, 14 Stat. 27, 27; U.S. Const. amend. XIV, § 1; Cong. Globe, 39th Cong., 1st Sess. 498, 1291, 2890, 2892–97 (1866); Citizenship, 10 Op. Att'y Gen. 382, 394–99 (1862).

Table IV-1. Drafting Paths and Limiting Uses

Drafting item	Proper use	Limiting caution
Trumbull	Supports independent jurisdictional force.	Cannot be converted into an open-ended bloodline rule.
Bates	Supports birth as prima facie citizenship.	Does not prove geography-only finality.

V. Jus Soli and Common-Law Background

The common-law background is indispensable, but it must be used at the correct level of generality. “Jus soli” often operates as shorthand for birthright citizenship. But shorthand is not the constitutional test. The common-law materials repeatedly link territory with allegiance and protection, and the recognized exceptions cannot be explained by soil alone. A child of a diplomat is born on the soil. A child born under hostile occupation may be born within nominal territory. Tribal-status cases involved birth within U.S. geographic limits. These categories show that common-law nativity was not bare geography detached from sovereign relation.

This point does not require rejecting the broad common-law tradition. It requires translating that tradition through the enacted constitutional text. The Fourteenth Amendment did not say “all persons born in the United States are citizens.” It said “All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens.” The common law supplies vocabulary—allegiance, protection, locality, sovereign authority, and recognized exclusions. The constitutional text supplies the predicate that must be satisfied.

Wurman’s protection critique is useful to this Article at the level of diagnosis. Wurman argues that the common-law rule, precisely stated, was not mere birth on soil but birth on sovereign soil to parents under the sovereign’s protection. This Article does not need to adopt Wurman’s full permission-based consequences to accept that common-law soil was not bare location. Lash’s prima facie citizenship model is likewise useful because it treats birth in the United States as creating a presumption rather than conclusively resolving every jurisdictional question. Lee’s residence theory is useful because it shows that residence and sojourner status are real pressure points. The synthesis retains these insights as evidence but does not make any one of them the entire constitutional rule.

The common-law analysis thus performs a filtering function. It retains allegiance and protection. It filters out monarchical subjectship as such. It retains soil as ordinary proof. It filters out soil-only finality. It retains recognized exceptions. It filters out general foreign parentage or hereditary exclusion. The reconstructed common-law background therefore supports this Article’s central methodological claim: the Clause is better understood through the relation that makes birth citizenship-producing than through one-word slogans.³

VI. Category Genealogy

The fixed points did not originate as examples of complete jurisdiction. They came from different legal domains and solved different legal problems. That is why this Article cannot move directly from “exception” to “principle.” It must first reconstruct origin and function. Only after genealogy can the paper ask whether the categories converge on a common property.

Table VI-1. Category Genealogy and Property Pressure

Table VI-1. Category Genealogy and Property Pressure			
Fixed point	Origin / source domain	Original legal function	Property pressure
Freedmen and children	Reconstruction; Civil Rights Act; anti-Dred Scott settlement	End caste, race exclusion, and inherited degradation.	Anti-caste; no bloodline or inherited blame.

3 1 William Blackstone, Commentaries *354–63; Calvin’s Case (1608) 77 Eng. Rep. 377 (K.B.); 7 Co. Rep. 1a; United States v. Wong Kim Ark, 169 U.S. 649, 654–93 (1898); Ilan Wurman, Jurisdiction and Citizenship, 49 Harv. J.L. & Pub. Pol’y 315, 319–24, 366–83 (2026); Ilan Wurman, Jurisdiction and Citizenship: A Reply (Feb. 24, 2026) (unpublished manuscript), SSRN No. 6300038; Kurt T. Lash, Prima Facie Citizenship: Birth, Allegiance, and the Fourteenth Amendment’s Citizenship Clause, 101 Notre Dame L. Rev. 101, 101–08 (2026); Thomas H. Lee, The Citizenship Clause’s Residence Requirement 1–3 (Mar. 2026) (unpublished manuscript), SSRN No. 6468663; Ho, *supra* note 3; Heilpern & Whittington, *supra* note 2.

Table VI-1. Category Genealogy and Property Pressure

Fixed point	Origin / source domain	Original legal function	Property pressure
Diplomatic birth	Law of nations; diplomatic immunity	Protect foreign sovereign representatives from local coercion.	Recognized sovereign-status immunity can prevent direct local allegiance from attaching.
Hostile occupation / invading army	Law of war; operative sovereignty; enemy-force relation.	The fixed point is composite. Nominal U.S. soil may lack operative U.S. authority and protection when hostile enemy control displaces local sovereignty, and parent-linked enemy-force status may identify the child's birth-time hostile-sovereign relation. The parent-linked fact is evidentiary and relational; it is not hereditary exclusion, enemy ancestry, enemy nationality, parental disloyalty, or generalized foreign-parent status.	Property extracted: composite sovereign displacement - operative U.S. authority and protection must exist at the place and time of birth; parent-linked enemy-force facts may identify hostile-sovereign displacement, but they do not create a bloodline, ancestry, or parental-blame rule.
Tribal political relation	Federal Indian law; treaty/quasi-foreign political community	Preserve separate political communities.	Separate political relation can displace citizenship-conferring relation.
Foundlings	U.S. nationality statutes; administrative proof practice; common-law background only.	Avoid impossible proof demands under uncertainty.	Statutory/admin presumption absent contrary record.
Elk	Tribal political relation and voluntary severance	Decide whether unilateral severance created citizenship.	Geography plus partial legal subjection can be insufficient.
Wong Kim Ark	Common law; resident-alien core	Decide child of resident, domiciled, non-diplomatic alien parents.	Alienage and foreign parentage alone do not defeat citizenship.

This genealogy matters because each rival theory tends to select one source domain and elevate it. A broad territorial account may start with ordinary birth and common-law nativity. A restrictive account may start with allegiance or parental status. A residence account may start with domicile or sojourner status. An Indian-law account may correctly identify the unique tribal context. But the fixed points were not generated by one source. They were generated by Reconstruction anti-caste law, law-of-nations immunity, law of war, federal Indian law, statutory and administrative proof practice, and Supreme Court holdings. The principle, if one exists, must emerge from their convergence.

The genealogy stage also protects against forbidden generalization. Diplomatic birth cannot be generalized into a rule against all foreign parents because diplomacy is an immunity relation, not ordinary alienage. Tribal political relation cannot be generalized into an immigrant-status rule because tribal status rested on separate political community, not race or ordinary foreignness. Foundlings cannot be generalized into universal uncertainty because the point is presumption under unknown parentage, not indifference to facts. Wong cannot be generalized into “parents never matter” because the Court considered parent-linked facts; nor can it be generalized into “parentage controls” because the holding rejected alienage and foreign parentage as disqualifying.

The category genealogy supplies an evidentiary bridge: different origins, different functions, but recurring sovereign-relation properties. The next section identifies how this Article extracts those properties without cherry-picking.⁴

VII. Property Extraction

Property extraction guards against selective citation. Each fixed point contains more facts than the synthesis can carry forward. Some facts are legally operative. Some are historically contingent. Some are irrelevant to the Citizenship Clause. Some would be unconstitutional if generalized. The extraction method identifies which facts are retained, which are filtered out, and why.

The interpretive criteria are straightforward. Holding over dicta: retain facts necessary to the legal result and treat broad language as reasoning unless necessary to the holding. Function over label: retain the sovereign-relation function, not the historical label by itself. No forbidden generalization: do not generalize race, ancestry, bloodline, parental blame, moral worth, or political disfavor. Recognized sovereign-status exclusion: do not extend diplomats, hostile occupation, or tribal political relation beyond equivalent sovereign-status displacement. Presumption where proof is impossible: if the category turns on unknown facts, carry forward the presumption principle rather than an impossible proof demand. Modern translation by legal incident: translate modern statuses by what the birth-time record did, not by political label. Falsification check: if a retained or filtered fact changes the result, revise the extraction.

Applied across the fixed points, the retained properties are recurring. Freedmen and their children retain anti-caste inclusion: no race, ancestry, bloodline, inherited civil degradation, or parental blame. Diplomatic birth retains recognized sovereign-status displacement. Hostile occupation retains the need for operative U.S. authority. Tribal political relation retains separate political-community displacement closed by kind. Foundlings retain implementation/proof-discipline presumption under uncertainty. Elk retains the proposition that geography plus some legal subjection can be insufficient where a separate political relation persists. Wong retains the resident-alien core and the rule that alienage, foreign nationality, and foreign parentage alone do not defeat citizenship.

VII.A. Foundlings and Presumption Under Uncertainty

The foundling implementation/proof-discipline fixed point should now be stated more carefully. It is not used here as an independently verified English or American common-law foundling-citizenship presumption. Its strongest collected support is statutory and administrative: Congress adopted a foundling presumption in the Nationality Act of 1940, and current federal law preserves that logic in 8 U.S.C. § 1401(f). Those sources show that U.S. nationality law does not convert unknown parentage into exclusion. It treats unknown-parentage discovery in the United States as a presumption of U.S. birth/citizenship unless contrary evidence establishes foreign birth within the statutory period.⁵

That statutory rule is reinforced by implementation practice. The relevant State Department guidance is 8 FAM 301.1-8: it applies the INA § 301(f) foundling presumption to children of unknown parents found in the United States while under age five and explains the age-twenty-one limitation for proof of foreign birth. USCIS likewise identifies unknown parentage as an acquisition-at-birth category where the child is found in the United States while under age five.⁶

4 Robert Louis Coia, Jr., *Birtright Citizenship and Complete Jurisdiction* 22–30 (28 June 2026), SSRN No. 6668060; Civil Rights Act of 1866, ch. 31, § 1, 14 Stat. 27, 27; *Dred Scott v. Sandford*, 60 U.S. (19 How.) 393 (1857), superseded by U.S. Const. amend. XIV; *Elk v. Wilkins*, 112 U.S. 94, 101–09 (1884); *Wong*, 169 U.S. at 652–53, 693, 704–05; *Ablavsky & Berger*, *supra* note 3, at 201–02, 226–34; 8 U.S.C. § 1401(f).

5 8 U.S.C. § 1401(f) (providing that a person of unknown parentage found in the United States while under age five is a national and citizen at birth until shown, before age twenty-one, not to have been born in the United States); Nationality Act of 1940, ch. 876, § 201(f), 54 Stat. 1137, 1138 (providing that a child of unknown parentage found in the United States is a citizen until shown not to have been born in the United States).

6 U.S. Dep’t of State, 8 Foreign Affairs Manual § 301.1-8 (explaining that under INA § 301(f), 8 U.S.C. § 1401(f), a child of unknown parents found in the United States when under age five is presumed to be a U.S. citizen unless foreign birth is established before age twenty-one, and that under § 201(f) of the Nationality Act of 1940 a child of unknown parents found in the United States was presumed a U.S. citizen at birth until shown not to have been born in the United States); U.S. Citizenship & Immigr. Servs., Policy Manual, vol. 12, pt. H, ch. 1 (listing unknown parentage as an acquisition-at-birth category where the child is found in the United States while under age five).

Common-law materials should therefore be used only as background, not as a foundling-specific rule. Blackstone, Calvin's Case, and Wong supply the broader common-law vocabulary of birth, allegiance, protection, and recognized exceptions. Bates supplies the American proof idea that birth in the country operates at least *prima facie*. International anti-statelessness materials, including the 1961 Convention on the Reduction of Statelessness and the International Law Commission's 1952 work, provide analogous proof-under-uncertainty logic. None of these materials, as presently verified, establishes a separate pre-ratification common-law foundling-citizenship presumption. The foundling proof point therefore rests on U.S. nationality statutes and modern administrative practice.⁷

Foundlings are used here as an implementation and evidentiary fixed point, not as proof of a verified common-law foundling-citizenship rule. The point is narrower: when birth and parentage facts are unavailable and no displacing sovereign-status record appears, nationality law has long used presumption rather than impossible proof. Foundlings therefore do not prove soil-only finality, do not eliminate the jurisdictional predicate, and do not decide any modern status label. They prove proof discipline: when parentage and birth circumstances are unknown, and no recognized displacing sovereign-status record appears, law uses presumption rather than impossible proof demands. That supports presumption-plus-trigger as proof discipline; it is not an original-common-law fixed point.

For that reason, foundlings are not a constitutional-meaning fixed point in the same sense as the Clause's grammar, Wong, Elk, diplomatic birth, hostile occupation, or historical tribal political relation. They are an implementation and proof-discipline fixed point. They show how nationality law treats uncertainty once no displacing sovereign-status record appears; they do not independently supply the original semantic content of "subject to the jurisdiction thereof."

The extraction method produces a narrow but powerful inference: the Citizenship Clause's jurisdictional predicate is not a list of exceptions and not a parental-status rule. It is a membership-conferring relation. Soil ordinarily proves that relation. Certain recognized sovereign-status displacements can defeat it. Parentage and equivalent status facts may be evidence of it. The rule itself is the birth-time relation between the child and the sovereign.⁸

Table VII-1. Property Extraction Summary

Table VII-1. Property Extraction Summary			
Fixed point	Fact retained	Limitation	Extracted property
Freedmen	Domestic birth cannot be denied by race/caste.	Race, ancestry, inherited worth as citizenship limits.	Anti-caste inclusion.
Diplomats	Immunity can displace local allegiance.	Foreign parentage generally.	Displacing sovereign-status relation.

⁷See 8 U.S.C. § 1401(f); Nationality Act of 1940, ch. 876, § 201(f), 54 Stat. 1137, 1138; U.S. Dep't of State, 8 Foreign Affairs Manual § 301.1-8; cf. 1 William Blackstone, Commentaries *357–62; Convention on the Reduction of Statelessness art. 2, Aug. 30, 1961, 989 U.N.T.S. 175; Int'l Law Comm'n, Report on Nationality, Including Statelessness, U.N. Doc. A/CN.4/50 (1952); Citizenship, 10 Op. Att'y Gen. 382, 394 (1862) (Bates presumption, by analogy). These materials verify the statutory and administrative foundling presumption and provide common-law or international background; they do not verify a separate pre-ratification common-law foundling-citizenship presumption.

⁸Coia, *supra* note 6, at 22–30, 47–50, 55–63; Wong, 169 U.S. at 652–53, 693, 704–05; Elk, 112 U.S. at 101–09; Dred Scott, 60 U.S. (19 How.) 393; Civil Rights Act of 1866, ch. 31, § 1, 14 Stat. 27, 27; 8 C.F.R. § 1101.3; *Moncada v. Rubio*, 153 F.4th 733 (9th Cir. 2025); 8 U.S.C. § 1401(f); 22 C.F.R. §§ 51.40, 51.42–51.45.

Table VII-1. Property Extraction Summary

Fixed point	Fact retained	Limitation	Extracted property
Hostile occupation	Retained: the Citizenship Clause is not satisfied by nominal geography where hostile enemy control displaces operative U.S. authority, accepted protection, and local allegiance. Retained also: parent-linked enemy-force status may matter only as evidence identifying the child's hostile-sovereign birth-time relation.	Filtered out: enemy ancestry, enemy nationality, political dissent, parental disloyalty, ordinary unlawful presence, and any broad analogy from wartime occupation to ordinary immigration status.	Extracted property: complete jurisdiction requires operative U.S. authority and protection; a recognized hostile-sovereign displacement prevents membership-conferring jurisdiction only when actual hostile control and the relevant enemy-sovereign relation are shown.
Tribal relation / Elk	Separate political community may persist.	Race or immigrant analogy.	Closed sovereign-status displacement.
Foundlings	Unknown parentage triggers statutory/admin presumption, not denial.	Impossible proof demands; unverified common-law foundling-specific claims as controlling historical proof.	Presumption absent contrary record.
Wong	Resident, domiciled, non-diplomatic alien-parent birth included.	Soil-alone finality; parentage as rule.	Accepted protection and direct local allegiance despite alienage.

VIII. Wong and Elk as Boundaries

Wong Kim Ark and Elk v. Wilkins are the boundary holdings. Neither can be made to swallow the other. Wong secures the affirmative resident-alien core. Elk secures the negative boundary that geography plus partial legal subjection can be insufficient where a separate tribal political relation persists. Complete jurisdiction must preserve both.

Wong itself proceeded by synthesis. Justice Gray did not decide the case by geography alone. He canvassed the common-law rule, recognized exclusions, American authorities, the Civil Rights Act and Fourteenth Amendment background, Elk, and the stipulated status facts of Wong's parents. The holding followed from that aggregation: a child born in the United States to resident, domiciled, non-diplomatic alien parents was born within the Clause. What Wong did implicitly for the resident-alien core, this paper makes explicit for the Citizenship Clause's jurisdictional predicate.

But Wong cannot be overread. Its holding secures the resident-alien core and rejects alienage, foreign parentage, and parentage alone as disqualifying. Its exposition may support broader applications, but the case did not decide whether every modern form of territorial presence—tourist birth, TPS, parole, deferred action, pending adjustment, or bare unlawful entry—supplies membership-conferring jurisdiction. Those categories require the same fixed-point discipline applied to their birth-time legal incidents.

Wong does more than resolve a single fact pattern, but it does not do everything. It fixes the resident-alien core and forecloses alienage, foreign nationality, and parentage alone as disqualifying facts; it does not convert every later birth-time legal incident into a constitutional nullity or decide statuses not presented by its record.

Elk likewise cannot be overread. Elk did not hold that ancestry or race defeated citizenship. It involved a person born into a tribal political relation and later attempting unilateral severance. The Court treated tribal status as a distinct political relation, not as ordinary alienage. Ablavsky and Berger's Indian-law account is important because it confirms that Native nations' status was anomalous and quasi-foreign and that Wong rejected using Elk as a general analogy against children of noncitizen immigrant parents. The synthesis retains that limitation: tribal status supplies a recognized sovereign-status boundary, not an immigrant-parentage rule.

Elk is not treated as a free-standing model for immigrant exclusion. Its role is narrower: it confirms that birth within U.S. territory does not itself settle the predicate where a recognized, distinct political relation prevents direct local allegiance from attaching.

Table VIII-1. Wong and Elk Boundary Classifications

Table VIII-1. Wong and Elk Boundary Classifications			
Material	Classification	Use in this Article	Not used for
Wong birth in San Francisco	Holding fact	Territorial predicate.	Not a soil-only rule.
Wong parents resident/domiciled	Ratio support	Accepted protection / local allegiance.	Not a domicile-only test.
Wong parents not diplomatic	Holding context	No displacing sovereign-status relation.	Not a parentage rule.
Wong common-law exposition	Reasoning	Allegiance/protection background.	Not all modern cases.
Diplomat/invasion exclusions	Limiting principles	Soil not conclusive.	Not foreign-parent rule.
Tribal-status discussion	Boundary reasoning	Tribal relation closed by kind.	Not immigrant analogy.
Fuller dissent	Rejected alternative	Anti-bloodline warning.	Not source of this Article's rule.

IX. The No-Soil-Only Thesis

This Article states the no-soil-only thesis carefully. The claim is not that soil is irrelevant. Soil is central. Domestic birth supplies the ordinary proof path, and ordinary birth-record administration depends on that fact. The claim is that no recognized holding, settled exclusion, settled inclusion, or ordinary implementation practice has treated soil as the exclusive gatekeeper of citizenship once a legally material jurisdictional fact is present.

Diplomatic birth proves the point at the clearest level. Physical U.S. birth may exist, but diplomatic immunity supplies a recognized sovereign-status shield that prevents direct local allegiance from attaching. Hostile occupation proves the point from another direction: nominal geography cannot substitute for operative sovereign authority. Tribal political relation and Elk prove that geography plus some legal subjection can be insufficient when a separate political community relation persists. Foundlings prove that the law administers uncertainty through presumption, not through impossible proof or automatic denial. Wong proves that resident, domiciled, non-diplomatic alien-parent birth satisfies the Clause, and that alienage or foreign parentage alone does not defeat citizenship.

These fixed points do not all come from one source. That is why they are powerful. Diplomacy comes from law-of-nations immunity. Hostile occupation comes from law of war and operative sovereignty. Tribal political relation comes from federal Indian law. Foundlings, as used here, come from U.S. nationality statutes and administrative proof rules under uncertainty, with common-law birth/allegiance/protection materials serving only as background. Wong comes from common-law allegiance/protection and Supreme Court application. Their convergence shows that soil does ordinary evidentiary work, but the constitutional predicate is the sovereign relation under which birth occurs.

A geography-only account therefore sees a true fact but overgeneralizes it. Birth in the United States ordinarily proves citizenship because ordinary domestic birth occurs under U.S. authority, protection, and local allegiance. But geography does not explain why diplomatic birth, hostile occupation, and historical tribal political relation do not produce citizenship. The proper inference is not anti-birthright restriction. It is that the Clause treats soil as the ordinary proof path and jurisdiction as the citizenship-conferring relation.⁹

X. The No-Contrary-Exercise Thesis for Person-Specific Fixed Points

The no-contrary-exercise thesis is this Article's strongest synthetic claim, but it is a bounded person-specific Citizenship Clause thesis. It is tested rather than assumed. The claim is that no recognized person-specific holding, settled inclusion, settled exclusion, or ordinary implementation practice processed in this Article has required exercising the Citizenship Clause contrary to the complete-jurisdiction relation. Included person-specific categories involve birth under operative U.S. authority, accepted sovereign protection, direct local allegiance, and no recognized displacing sovereign-status relation. Excluded person-specific categories involve diplomacy, hostile occupation, or historically recognized separate political-community relation that displaces one of those elements.

⁹ See Wong, 169 U.S. at 652–53, 675–82, 693, 704–05; Elk, 112 U.S. at 101–09; 8 C.F.R. § 1101.3; Moncada, 153 F.4th 733; 8 U.S.C. § 1401(f); Coia, *supra* note 6, at 22–30, 55–63.

Freedmen and their children fit the affirmative core. They were born under U.S. authority, and Reconstruction bars race, caste, ancestry, bloodline, inherited degradation, and parental blame as citizenship limits. Wong fits the resident-alien core. The parents' alienage and foreign nationality did not displace the child's birth-time relation; their residence, domicile, business presence, and non-diplomatic status supported inclusion. Foundlings fit the proof core: in the absence of displacing proof, the law presumes rather than denies citizenship.

Diplomats, hostile occupation, and historical tribal political relation fit the negative limit. Diplomats are not ordinary alien parents; they carry a recognized sovereign-status immunity. Hostile occupation is not ordinary geography; operative U.S. sovereign authority is displaced. Tribal political relation is not race, ancestry, or immigrant parentage; it is a separate political-community relation closed by kind. Elk fits the same boundary. Wong's rejection of using Elk against Chinese noncitizen parents confirms the limit.

If a contrary person-specific fixed point exists, the theory must revise. But the current inventory does not reveal one. Broad soil, parental allegiance, residence, ordinary governability, and closed-exception accounts each explain some fixed points but not all. Complete jurisdiction is not proven by elegance. It is proven, if at all, by this absence of contrary exercise across the recognized person-specific fixed-point set processed in the source record.

X.A. Scope of the No-Contrary-Exercise Thesis

The no-contrary-exercise thesis is a person-specific Citizenship Clause thesis. It claims that no recognized person-specific fixed point processed in this Article requires exercising the Citizenship Clause contrary to Complete Jurisdiction. It does not claim that every territorial-status question has been resolved. Some cases ask a different first-order question: whether the birth occurred "in the United States" for Fourteenth Amendment purposes at all. Those cases include unincorporated territories, military bases abroad, embassies, vessels, aircraft, border zones, and other territorial-status settings.

That distinction matters because Complete Jurisdiction ordinarily assumes that the domestic territorial predicate has been satisfied. Once that predicate is satisfied, the question is whether the child's birth-time relation supplied operative U.S. authority, accepted sovereign protection, direct local allegiance, and no recognized displacing sovereign-status relation. But when the legal location of birth is itself disputed, the first question is territorial or statutory rather than person-specific.

The thesis is therefore strong but bounded: no contrary person-specific fixed point presently defeats Complete Jurisdiction; territorial-status cases remain boundary-source issues unless a complete territorial-source package establishes that they alter the person-specific rule. A territorial-source package is a separately collected body of constitutional text, statute, holding, administrative practice, and source-weighted historical material addressing whether a place of birth counts as "in the United States" before the person-specific jurisdictional predicate is reached. Appendix G classifies person-specific fixed points, proof-discipline fixed points, territorial-status boundary questions, and statutory citizenship routes. The Adjudication and Administration of Birthright Citizenship Under Complete Jurisdiction's Appendix T routes unincorporated territories, military bases abroad, embassies, vessels, aircraft, border zones, and in-transit births to the territorial-predicate track.

XI. The Lee Residence Challenge

Thomas Lee's residence theory is the strongest middle-position competitor because it presses the text at the point where This Article's account is most vulnerable: the Clause joins persons "born or naturalized" in a single sentence and ends by assigning state citizenship to the State "wherein they reside." Lee's cleanest argument is not merely that residence matters. It is that the grammar treats birth and naturalization as parallel pathways; naturalization historically required residence; the final state-citizenship phrase presupposes residence; and a newborn's residence must be derived from the legally recognized parents. On that chain, Lee would make parental residence the dispositive constitutional line between resident-alien births and temporary-sojourner births.

That argument should be answered directly. This Article concedes the central insight: residence is often powerful evidence of accepted sovereign protection and direct local allegiance. It rejects the final inference: residence is not the national citizenship predicate. The Clause creates two alternative gateways to citizenship, birth and naturalization, and attaches a shared jurisdictional condition before the citizenship consequence. But alternative gateways to a common consequence are not identical prerequisite sets. Naturalization is a statutory legal process; domestic birth is a

constitutional birth event. Statutory residence requirements for naturalization do not migrate backward into the birth branch unless the constitutional sentence says so. It does not.

XI.A. Lee's Argument in Its Strongest Form

Lee's argument should be stated in its strongest form before it is answered. First, the Clause refers to persons "born or naturalized in the United States" without separating the two classes into different sentences. Second, federal naturalization has historically required residence, making residence central to one of the Clause's two routes. Third, the sentence confers state citizenship "of the State wherein they reside," which appears to presuppose that covered persons reside somewhere in the United States. Fourth, infants cannot independently establish residence, so Lee treats parental residence as the relevant birth-time fact. Fifth, that reading supplies a clean rule: children of resident alien parents are citizens; children of temporary sojourners are not.

Table XI-1. Lee Naturalization-Residence Inference and Complete-Jurisdiction Response

Table XI-1. Lee Naturalization-Residence Inference and Complete-Jurisdiction Response			
Lee premise	What this Article concedes	Why the inference does not follow	Result for complete jurisdiction
Birth and naturalization are joined by "or" in one citizenship sentence.	The two routes share a citizenship consequence and the jurisdictional predicate.	The conjunction makes alternative gateways, not identical preconditions. Birth is a constitutional event; naturalization is a statutory process.	The parallel does not import statutory naturalization residence rules into domestic birth.
Naturalization historically required residence.	Residence is central to statutory naturalization and relevant to allegiance/protection.	Congress may change naturalization residence periods; those statutory rules cannot amend the Fourteenth Amendment birth branch.	Residence remains evidence of accepted protection, not a controlling birth predicate.
"Wherein they reside" gives residence textual work.	The phrase has real work in assigning state citizenship.	It appears after "are citizens" and allocates state citizenship after national citizenship attaches; it does not become an unstated third condition for national citizenship.	The phrase supports state-citizenship allocation, not residence-only national citizenship.
Infants reside where parents reside.	Parent-linked residence may be highly probative for newborns.	Parent-linked facts are evidentiary conduits, not hereditary rules. They identify the child's birth-time sovereign relation; they do not replace it.	Parental residence is strong evidence within complete jurisdiction, not the rule itself.
Residence cleanly distinguishes temporary sojourners.	Residence often sorts tourist/birth-tourism cases better than geography alone.	A clean rule can still be incomplete: residence cannot explain diplomacy, hostile occupation, tribal political relation, foundlings, coercion/protection statuses, or displacing sovereign immunity.	Complete jurisdiction retains residence as one powerful incident while preserving all fixed points.

XI.B. Why the Naturalization Parallel Does Not Import Residence Into Birth

The naturalization parallel proves common consequence, not identical prerequisites. The words "born or naturalized" identify two ways a person may satisfy the first constitutional condition. "Born" is satisfied by the birth event occurring in the United States. "Naturalized" is satisfied by a lawful act of admission into citizenship under Congress's naturalization power. The two routes are parallel because both lead to the same consequence once the person is also "subject to the jurisdiction" of the United States. They are not parallel because every statutory condition attached to naturalization must also be read into domestic birth.

The contrary inference would make the Fourteenth Amendment birth rule unstable. Naturalization residence requirements are statutory. Congress has altered naturalization requirements over time and may continue to alter them under Article I. If those requirements silently migrated into the birth branch, Congress could indirectly change the constitutional rule for

domestic birth by revising naturalization residence periods or procedural criteria. That cannot be the right grammar of a constitutional citizenship guarantee. The Clause constitutionalizes birth citizenship; it does not make birth citizenship parasitic on the shifting statutory law of naturalization.

The parallel also fails as a matter of clause design. Birth and naturalization are parallel gateways to the same legal consequence; they are not mirror-image factual events. Naturalization is a statutory process by which Congress admits a foreign-born person into citizenship. Domestic birth is a constitutional event that may itself create citizenship when the jurisdictional predicate is satisfied. Lee is right that naturalization law historically used residence to regulate one gateway. But that does not make residence an unstated condition for the other gateway unless the Citizenship Clause itself imports it. The text does not do so.

Nor does the parallel solve the fixed-point problem. A residence rule explains the resident-alien core and many temporary-sojourner cases. But it does not explain diplomatic birth, because a diplomat may reside or remain in the United States while sovereign immunity displaces local allegiance. It does not explain hostile occupation, because operative sovereign authority, not residence, is the relevant displacement. It does not explain tribal political relation, because the issue is separate political community, not ordinary residence. It does not explain foundlings, because the law must presume rather than demand proof of parental residence. Residence is therefore a powerful datum; it is not the whole constitutional relation.

XI.C. “Wherein They Reside” and the State-Citizenship Function

The final phrase “of the State wherein they reside” should not be minimized. It gives residence textual work. It assigns state citizenship by residence after the national citizenship predicate has been satisfied. It also confirms that citizenship has a state-law consequence and that residence can matter to the civil location of the citizen. But its position in the sentence matters. The Clause first identifies the covered persons: those born or naturalized in the United States and subject to the jurisdiction thereof. It then states the consequence: they are citizens of the United States and of the State wherein they reside. A phrase that allocates state citizenship after “are citizens” does not move backward to become an additional national-citizenship predicate.

That reading also avoids treating the state-citizenship phrase as doing work it cannot consistently perform. National citizenship and state citizenship are related but not identical. The Slaughter-House Cases recognized the distinction between citizenship of the United States and citizenship of a State. The phrase “wherein they reside” identifies the State of citizenship where state residence exists; it does not imply that the absence or contestability of state residence destroys national citizenship. A newborn’s parental residence may help identify the child’s birth-time sovereign relation, but it does not replace the national jurisdictional inquiry.

The phrase ‘wherein they reside’ is therefore best read as a distribution rule for state citizenship, not a threshold rule for national citizenship. It answers the state-citizenship question after the national-citizenship predicate has been satisfied: of which State is the national citizen also a citizen? It does not answer the antecedent question whether a child born in the United States was subject to the jurisdiction of the United States at birth. That antecedent question remains governed by the national predicate, not by a back-projected state-residence requirement.

The state-residence phrase also performs an anti-evasion function. Once national citizenship attaches, the Clause prevents a State from withholding state citizenship from a citizen who resides there.¹⁰ “Wherein they reside” therefore does not disappear; it performs downstream work. It links national citizenship to state citizenship and disables state-law efforts to deny the state-citizenship consequences of residence. For newborns, that function does not require adult volition or independent domicile. Residence may be supplied through ordinary dependent-residence principles, household location,

¹⁰U.S. Const. amend. XIV, § 1; The Slaughter-House Cases, 83 U.S. (16 Wall.) 36, 73–74, 79–80 (1873) (distinguishing citizenship of the United States from citizenship of a State and identifying as a privilege of U.S. citizenship the ability to become a citizen of any State by bona fide residence therein, with the same rights as other citizens of that State); Saenz v. Roe, 526 U.S. 489, 502–07 (1999) (holding that newly arrived state citizens must be treated like other citizens of the State and relying on the Citizenship Clause and Privileges or Immunities Clause); Zobel v. Williams, 457 U.S. 55, 69 (1982) (rejecting degrees of citizenship based on length of residence); Civil Rights Act of 1866, ch. 31, § 1, 14 Stat. 27, 27 (guaranteeing equal civil rights in every State and Territory notwithstanding contrary law, custom, or regulation).

custody, or local legal placement.¹¹ What the State may not do is convert infancy, race, caste, parentage, ancestry, parental fault, or disfavored household status into a reason to deny the state-citizenship status that follows once national citizenship and residence are present.

The absence of residence from the national-citizenship branch means residence cannot be a constitutional element or threshold condition for national citizenship. It does not require courts to disregard residence when residence is probative of the separate jurisdictional phrase that the national branch does contain. Evidence is not an element: residence may help prove accepted sovereign protection or direct local allegiance without becoming the rule of decision.

XI.D. Residence as Evidence, Not the Predicate

This is why residence remains evidentiary after it is rejected as an element.

Complete jurisdiction absorbs Lee's strongest insight by treating residence as evidence rather than as the rule. Residence, domicile, duration, family settlement, parental household residence for a newborn, work authorization, removal shields, and residence-like federal recognition all bear on accepted sovereign protection and direct local allegiance. Wong's facts included residence and domicile; that matters. But those facts supplied evidence that the resident-alien core satisfied the Clause. They did not transform domicile or residence into an exclusive constitutional test.

Residence is not downgraded to irrelevance. It is among the strongest ordinary evidentiary markers of accepted protection and direct local allegiance; the point is only that the Clause does not make residence the national citizenship predicate itself.

The bounded conclusion is this: Lee identifies a serious textual and practical datum, and the paper should retain it. Residence is often the best evidence of accepted sovereign protection and local allegiance. But the naturalization parallel does not import statutory naturalization residence requirements into the birth branch; the state-citizenship phrase allocates state citizenship after national citizenship attaches; and residence cannot explain all settled inclusions, settled exclusions, and proof practices. Complete jurisdiction therefore preserves Lee's insight without allowing residence to erase the other fixed points.

XII. Yick Wo, Plyler, and Rights-Bearing Jurisdiction

Broad-side accounts often invoke Yick Wo and Plyler to argue that persons physically present in the United States, including noncitizens and undocumented persons, are subject to U.S. jurisdiction. That is correct for the constitutional function those cases performed. Yick Wo and Plyler are rights-bearing cases. They stand for the proposition that persons governed by U.S. law are protected by constitutional guarantees such as Due Process and Equal Protection. This Article does not deny that point.

The Citizenship Clause performs a different function. It does not merely protect persons from unlawful state action. It confers national and state membership. Rights-bearing jurisdiction must be broader than membership-conferring jurisdiction because constitutional protections apply to many persons who are not citizens: tourists, nonimmigrants, undocumented persons, prisoners, and aliens subject to removal. If rights-bearing jurisdiction and membership-conferring jurisdiction were identical, the Citizenship Clause's jurisdictional predicate would be flattened into a general personhood protection rule.

Plyler's footnote concerning Fourteenth Amendment jurisdiction must therefore be handled carefully. It may confirm that legal and illegal aliens are within the reach and protection of U.S. law for Equal Protection purposes. It does not decide whether every child born to every form of territorial presence is born under the sovereign relation that makes citizenship attach. This distinction allows this Article to preserve the full force of Yick Wo and Plyler without letting rights-bearing jurisdiction answer a membership-conferring question they did not decide.

The contrary reading would prove too much. If Plyler's Equal Protection usage of jurisdiction supplied the Citizenship Clause rule, then every person whom the United States may govern or must protect as a person would be within the

¹¹See *Mississippi Band of Choctaw Indians v. Holyfield*, 490 U.S. 30, 43–48 (1989) (applying common-law domicile principles to newborn children and treating infant domicile as dependent rather than independently volitional); Restatement (Second) of Conflict of Laws § 22 (Am. L. Inst. 1971) (domicile of minor children).

citizenship-producing relation. That would collapse tourists, temporary visitors, unlawfully present persons, prisoners, and removable aliens into the same constitutional category for birth-citizenship purposes. Plyler prevents government from denying persons equal protection; it does not decide when birth creates national membership.

Jurisdiction performs three constitutional functions: ordinary legal amenability, rights-bearing jurisdiction, and membership-conferring jurisdiction. These functions are nested, but they are not coextensive. Ordinary legal amenability supplies the broadest jurisdictional floor: whether a person may be governed. Rights-bearing jurisdiction identifies the constitutional protections owed to persons governed by law. Membership-conferring jurisdiction is the most specific relation: whether birth under U.S. authority creates national membership. A broader register cannot, by itself, prove the narrower Citizenship Clause relation.

This distinction is functional, not textual. It does not claim that every use of the word "jurisdiction" contains three textual elements. It shows that jurisdiction performs different constitutional jobs. Ordinary legal amenability identifies the sovereign's power to govern. Rights-bearing jurisdiction identifies the protection owed to persons governed by law. Membership-conferring jurisdiction identifies the narrower Citizenship Clause relation that makes birth create national and state citizenship. The phrase "subject to the jurisdiction thereof" uses jurisdiction in this third function. The inner function is then specified by complete jurisdiction: operative U.S. territorial authority, accepted sovereign protection, direct local allegiance, and no recognized displacing sovereign-status relation.

Concept	What has parts
Three functions of jurisdiction	Ordinary governability, rights protection, and citizenship membership.
Complete jurisdiction	Operative U.S. authority, accepted sovereign protection, direct local allegiance, plus no recognized displacing sovereign-status relation.

Table XII-1. Three functions of jurisdiction are distinct from the four-part complete-jurisdiction relation.

XIII. Comparator Review

The comparator review does not proceed from disagreement to dismissal. Each comparator is treated as identifying a true fact. The question is whether that fact can bear the whole constitutional load. If it cannot, the insight is retained as evidence and relocated within the complete-jurisdiction synthesis.

Comparator review is a check on explanatory completeness, not the source of the rule. The rule must be derived from text, holdings, drafting history, settled categories, and implementation practice; comparator accounts test whether that derivation loses a source-backed fact that a rival account preserves.

Table XIII-1. Comparator Review: Rival Theories and Fixed-Point Risks

Table XIII-1. Comparator Review: Rival Theories and Fixed-Point Risks			
Comparator	True fact selected	Fixed point at risk if made whole rule	Complete-jurisdiction adjustment
Ho / broad territorial rule	Persons present are ordinarily subject to U.S. authority and law.	Diplomats, hostile occupation, Elk, and the independent predicate.	Governability is Level 1; citizenship requires membership-conferring relation.
Heilpern / Whittington	"Subject to jurisdiction" had conventional legal-authority meaning.	Membership-conferring function of the Citizenship Clause.	Accept ordinary governability but ask what it does in this sentence.
Lash	Birth creates prima facie citizenship; jurisdiction does independent work.	Anti-caste and Wong if counter-allegiance becomes hereditary.	Keep presumption; limit rebuttal to objective sovereign-status displacement.
Wurman	Protection matters; common law was not bare soil.	Modern label manipulation and overstrict permission rule.	Use legal incidents, not labels, to identify accepted protection.
Lee	Residence, state-citizenship allocation, and the naturalization parallel matter.	National citizenship predicate; fixed points not reducible to residence; statutory naturalization preconditions.	Residence is strong evidence inside complete jurisdiction; birth and naturalization are parallel gateways, not identical prerequisite sets.

Table XIII-1. Comparator Review: Rival Theories and Fixed-Point Risks

Comparator	True fact selected	Fixed point at risk if made whole rule	Complete-jurisdiction adjustment
Ablavsky / Berger	Tribal status is anomalous and not an immigrant analogy.	Membership-conferring function if ordinary jurisdiction alone controls.	Treat tribal status as closed sovereign-status displacement.
Bernick / Gowder / Kreis	Allegiance theories risk denationalization by parental conduct.	Independent jurisdictional predicate.	Reject bloodline while giving jurisdiction work.
Donahue	Time and duration matter.	Legal relation may dissolve into temporal balancing.	Treat duration as record evidence, not standalone test.
France	The Clause has two conditions and jurisdiction is under-read.	Implementation and fixed-point closure.	Supply property map and administrable rule.

The review shows why complete jurisdiction should not be described as merely “middle ground.” A compromise splits differences. A fixed-point synthesis relocates true facts. Geography remains proof path. Governability remains ordinary jurisdiction. Allegiance and protection remain source concepts. Residence remains evidence. Tribal status remains closed by kind. Anti-bloodline remains a constitutional limit. No comparator is treated as useless; each is tested for whether its selected fact can explain all fixed points without remainder.¹²

XIII.A. Applied Aggregation of the Fixed-Point Record

The appendices collect the source record behind the argument. They identify the fixed points, state the source weights, reconstruct each category, show which properties carry forward, and explain why some facts remain local to their settings. This section states the same assessment in the body. It explains what the appendices found and how those findings produce a result before the next section names the rule.

The body carries the argument. Appendix L preserves the supporting record: source weights, retained properties, rejected overgeneralizations, and falsification checks.

This section follows the comparator discussion because the negative testing has already shown that each rival theory captures a true fact but overgeneralizes it. The analysis aggregates the retained properties, explains why each is retained, states which overgeneralizations are excluded, and identifies the rule that follows from their combination. The conclusion can then discuss the result rather than carry the derivation.

XIII.A.1. What the Appendix Record Establishes

Appendices A and G identify the relevant sources. Appendix A organizes the Reconstruction and drafting materials by chronology, proof function, and limiting use. Appendix G supplies the fixed-point inventory and source-weight rules. Together, they show that the adopted Citizenship Clause cannot be read as pure soil, inherited allegiance, or a static exception list. The Civil Rights Act formula, the final Clause, the Doolittle proposal, Howard, Trumbull, Bingham, Johnson, and Bates all matter, but they do not carry the same weight or serve the same function. The body therefore treats the constitutional text and controlling holdings as the highest-weight materials; it treats drafting statements as contextual

12 See Ho, *supra* note 3; Heilpern & Whittington, *supra* note 2; Lash, *supra* note 5; Wurman, *supra* note 5; Lee, *supra* note 5; Ablavsky & Berger, *supra* note 3; Evan D. Bernick, Paul Gowder & Anthony Michael Kreis, *Birtheright Citizenship and the Dunning School of Unoriginal Meanings*, 111 Cornell L. Rev. Online 101 (2025); Joseph J. Donahue, *Trump v. Barbara: Temporal Territorial Bubbles* (2026) (unpublished manuscript) (on file with author); France, *supra* note 2; Gerard N. Magliocca, *Without Domicile or Allegiance: Gypsies and Birtheright Citizenship*, 49 Harv. J.L. & Pub. Pol’y 539 (2026); Peter H. Schuck & Rogers M. Smith, *Citizenship Without Consent: Illegal Aliens in the American Polity* (1985); John C. Eastman, *The Significance of “Domicile” in Wong Kim Ark*, 22 Chap. L. Rev. 301 (2019); Stephen P. Halbrook, *Birtheright Citizenship Requires Parental Allegiance to the United States: The Meaning of “Subject to Its Jurisdiction” in the Fourteenth Amendment* (Oct. 27, 2025), SSRN No. 5666850; Andrew T. Hyman, *Originalism, Illegal Immigration, and the Citizenship Clause*, 15 Br. J. Am. Legal Stud. (2025); Samuel Estreicher & Rudra Reddy, *Revisiting the Scope of Constitutional Birtheright Citizenship*, 24 Geo. J.L. & Pub. Pol’y (forthcoming Summer 2026), SSRN No. 5223361.

evidence; and it treats Bates and administrative materials as proof-discipline evidence rather than conclusive semantic rules.

Appendices B and C establish the fixed-point properties. Appendix B reconstructs the dossiers category by category. Appendix C extracts the recurring properties. Freedmen and their children supply the anti-caste affirmative core. Diplomatic birth supplies sovereign-status displacement. Hostile occupation supplies the need for operative U.S. authority. Historical tribal political relation supplies a closed separate-political-community displacement. Foundlings supply presumption under uncertainty as a statutory and administrative proof rule. Elk supplies the boundary that geography plus some legal subjection may be insufficient. Wong supplies the affirmative resident-alien core and rejects alienage, foreign nationality, and foreign parentage alone as disqualifying. The body carries forward those properties, not every historical fact surrounding them.

Appendix H supplies the holding discipline for Wong. It separates holding facts, ratio support, reasoning, limiting principles, dicta risk, and rejected dissent. That matters because Wong can be overread in two opposite directions. A geography-only account turns Wong into soil-alone finality. A restrictive parentage account turns parent-linked evidence into inherited foreignness. Appendix H rejects both moves. The body therefore uses Wong for the resident, domiciled, non-diplomatic alien-parent core, for the relevance of allegiance and protection, and for the rejection of alienage and foreign parentage as disqualifying. It does not use Wong to decide every modern status label in advance, and it does not use Fuller's dissent as the source of the rule.

Appendices D and L.5 supply the rival interpretive-rule testing. They show that rival theories usually fail because they generalize a correct datum. Soil-only theories correctly identify the ordinary proof path but cannot explain the jurisdictional predicate or the settled exclusions. Ordinary-governability theories correctly identify legal amenability but collapse membership-conferring jurisdiction into rights-bearing jurisdiction. Parentage and inherited-allegiance theories correctly notice that newborn cases use parent-linked facts, but they convert evidence into bloodline. Residence theories correctly identify a powerful Wong fact and a serious temporary-sojourner pressure point, but they cannot explain diplomacy, hostile occupation, tribal relation, foundlings, or the state-citizenship function. Closed-exception theories preserve exclusions but underexplain their common principle. The body must therefore retain the true fact in each comparator and reject the overclaim.

Appendices E and J apply the analysis to modern status incidents. They do not claim that TPS, parole, deferred action, pending adjustment, birth tourism, tourist entry, or bare unlawful entry were decided in 1868. They ask what the birth-time record conferred, withheld, recognized, protected, authorized, shielded, or displaced. The body therefore treats modern status as record-effect evidence, not as a constitutional label. Favorable labels alone cannot create Fourteenth Amendment citizenship, and unfavorable labels alone cannot defeat it.

Appendices F, K, and L.8 supply falsification and adversarial review. They identify pressure points rather than burying them: broad language in Wong, Plyler's footnote, Lee's residence argument, Confederate and rebel births, unlawful-importation and anti-coolie analogues, foundling presumptions, modern diplomatic practice, birth tourism, TPS, parole, bare unlawful entry, territories, embassies, vessels, military bases, and residual source caveats. The finding is not that every margin is finally adjudicated. The finding is that no controlling fixed point presently requires a rule contrary to the retained properties. Unresolved margins remain applications to be classified by source weight and birth-time legal incident.

Appendix L.1-L.9 preserves the supporting record: fixed-point assembly, authority weight, source classification, fixed-point applications, rival interpretive-rule testing, synthesis of retained constitutional properties, administrative implementation, counterexample review, and derived conclusion. The body-level assessment states the same result in prose before Complete Jurisdiction is named.

XIII.A.2. Retained Properties and Filters

Table XIII.A-1 gives the retained properties in compressed form. The paragraphs following the table assess each property, identify the excluded overgeneralization, and show how the combined record produces the derived rule.

Table XIII.A-1. Applied Aggregation of the Fixed-Point Record

Table XIII.A-1. Applied Aggregation of the Fixed-Point Record				
Retained property	Highest-weight sources / fixed points	What is filtered out	Candidate-rule consequence	Carry-forward result
Birth / territorial predicate	Clause grammar; ordinary birth-record practice; Wong	Soil-only finality	Geography is necessary but not self-sufficient	Soil is ordinary proof path
Operative U.S. authority	Hostile occupation; law-of-war materials; Inglis / occupation logic	Nominal map geography	Geography-only fails when operative authority is displaced	First affirmative element
Accepted sovereign protection	Common-law allegiance/protection; Wong resident-alien core; modern incident matrix	Bare arrest power, emergency aid, transient sufferance, labels	Governability-only and label-based theories fail	Second affirmative element
Direct local allegiance	Wong; diplomatic birth; tribal political relation; hostile occupation	Subjective loyalty, inherited allegiance, parental virtue	Parentage/allegiance theories overread parent-linked evidence	Third affirmative element
Displacing sovereign-status relation	Diplomacy; hostile occupation; historical tribal relation; Elk	Alienage, foreign nationality, unlawful presence, temporary status alone	Closed-exception theory preserves exclusions but underexplains their principle	Recognized sovereign-status exclusion
Anti-caste / anti-bloodline constraint	Reconstruction; freedmen; anti-Dred Scott settlement; Wong	Race, ancestry, inherited degradation, parental blame	Fuller-style parentage rule fails	Constraint on all elements
Presumption / proof discipline	Birth records; foundlings as statutory/admin proof rule; Bates; documentation practice	Universal screening; irrebuttable geography-only finality	Administration follows meaning; it does not create meaning	Presumption-plus-trigger rule

Birth / territorial predicate. The highest-weight sources are Clause grammar, ordinary birth-record practice, and Wong. The retained fact is that birth in the United States is indispensable for the birth branch and ordinarily supplies the proof path. The filtered overgeneralization is soil-only finality. Candidate-rule consequence: geography is necessary but not self-sufficient. Carry-forward result: soil remains the ordinary proof path.

Operative U.S. authority. The highest-weight sources are hostile occupation, law-of-war materials, and *Inglis v. Trustees of Sailor's Snug Harbour*, 28 U.S. (3 Pet.) 99 (1830). The retained fact is that nominal map geography can fail when operative sovereign authority is displaced. The filtered overgeneralization is nominal geography as conclusive. Candidate-rule consequence: geography-only fails when operative authority is displaced. Carry-forward result: operative U.S. authority is the first affirmative element.

Accepted sovereign protection. The highest-weight sources are common-law allegiance/protection, the Wong resident-alien core, and the modern incident matrix. The retained fact is that protection matters as an objective legal relation, not as mere enforcement power. The filtered overgeneralizations are bare arrest power, emergency aid, transient sufferance, and labels. Candidate-rule consequence: governability-only and label-based theories fail. Carry-forward result: accepted sovereign protection is the second affirmative element.

Direct local allegiance. The highest-weight sources are Wong, diplomatic birth, tribal political relation, and hostile occupation. The retained fact is that citizenship-producing birth involves the child's own objective legal bond to the United States. The filtered overgeneralizations are subjective loyalty, inherited allegiance, parental virtue, ideology, assimilation, or parent worth. Candidate-rule consequence: parentage and allegiance theories overread parent-linked evidence. Carry-forward result: direct local allegiance is the third affirmative element.

Displacing sovereign-status relation. The highest-weight sources are diplomacy, hostile occupation, historical tribal relation, and Elk. The retained fact is that some recognized sovereign-status relations prevent the ordinary birth-time relation from becoming membership-conferring. The filtered overgeneralizations are alienage, foreign nationality,

unlawful presence, temporary status, removability, or ordinary foreign parentage alone. Candidate-rule consequence: closed-exception theory preserves exclusions but underexplains their principle unless the common feature is named. Carry-forward result: displacing sovereign-status relation is the recognized sovereign-status exclusion.

Anti-caste / anti-bloodline constraint. The highest-weight sources are Reconstruction, freedmen, the anti-Dred Scott settlement, and Wong. The retained fact is that citizenship may not be denied through race, ancestry, caste, inherited degradation, parent worth, parental blame, or generalized foreignness. The filtered overgeneralizations are Fuller-style parentage, hereditary exclusion, and moralized parent-status rules. Candidate-rule consequence: bloodline and parent-blame theories fail. Carry-forward result: the anti-caste constraint governs all elements.

Presumption / proof discipline. The highest-weight sources are birth records, foundlings as a statutory and administrative proof rule, Bates, FAM/passport practice, and documentation systems. The retained fact is that administration begins with ordinary proof and uses presumptions under uncertainty. The filtered overgeneralizations are universal screening and irrebuttable geography-only finality. Candidate-rule consequence: administration follows meaning; it does not create meaning. Carry-forward result: the presumption-plus-trigger rule administers the derived relation.

The Article does not choose among soil, allegiance, residence, protection, parentage, or closed exceptions as freestanding theories. It retains the correct fact in each and rejects the overgeneralization. Soil remains the ordinary proof path. Ordinary governability remains legally relevant but not membership-conferring by itself. Allegiance and protection remain source concepts, but they become objective legal incidents rather than subjective loyalty. Residence remains powerful evidence, but not the constitutional predicate. Parent-linked facts remain evidentiary conduits, but not bloodline. The settled exclusions remain closed by kind, but their common feature is sovereign-status displacement. Once those retained properties are aggregated and forbidden generalizations are excluded, the best constrained synthesis is complete jurisdiction.

XIII.A.3. Candidate-Rule Assessment

The final step before derivation is candidate-rule assessment. Soil-only finality fails because it preserves the ordinary proof path at the cost of the independent jurisdictional predicate and the settled negative categories. It cannot explain why diplomatic birth, hostile occupation, and historical tribal political relation do not produce citizenship without treating them as unexplained add-ons.

Ordinary-governability and rights-bearing jurisdiction fail because they correctly identify a floor but not the citizenship rule. Yick Wo and Plyler show that persons governed by U.S. law are protected by constitutional guarantees. They do not show that every person within ordinary legal amenability supplies the birth-time relation that creates national and state membership. If rights-bearing jurisdiction were enough, membership-conferring jurisdiction would collapse into police power and personhood protection.

Parentage or inherited-allegiance theories fail because they mistake evidence for exclusion. Newborn cases necessarily use parent-linked or equivalent sovereign-status facts because a newborn cannot personally manifest domicile, immunity, tribal political relation, residence, or allegiance. But Reconstruction and Wong forbid turning those evidentiary conduits into race, ancestry, caste, foreignness, parental blame, or bloodline. Parentage can reveal the child's birth-time sovereign relation; it cannot supply a hereditary rule of nonmembership.

Residence and domicile theories are stronger because they explain much of Wong and identify a serious temporary-sojourner problem. The appendix assessment therefore retains residence as powerful evidence. But residence cannot become the constitutional predicate. It does not explain diplomatic immunity, hostile occupation, tribal political relation, foundlings, or the state-citizenship function. It also risks importing statutory naturalization prerequisites into the birth branch. Residence therefore remains evidence of accepted protection and direct local allegiance, not the rule itself.

Closed-exception theory is also stronger than soil-only finality because it preserves diplomats, hostile occupation, and historical tribal relation. But a closed list of labels underexplains why those exclusions exist and offers no principled way to classify modern margins. The appendix assessment therefore retains the exclusions but names their shared property: sovereign-status displacement. That preserves the negative categories without opening a general foreign-parentage or temporary-status exclusion.

Complete jurisdiction is the candidate that best preserves all of the retained findings at once. It keeps soil as the ordinary proof path, gives operative effect to the jurisdictional predicate, preserves Wong's resident-alien core, explains Elk and the settled exclusions, rejects bloodline and parent-blame rules, separates rights-bearing from membership-conferring

jurisdiction, translates modern labels into legal incidents, and administers the result through presumption plus trigger. It succeeds not because it is rhetorically moderate, but because it best preserves the record after the appendix filters are applied.

XIII.A.4. The Result Produced by Aggregation

The record produces a result before it produces a label. For a domestic birth to be citizenship-producing, the birth must occur under operative U.S. territorial authority, accepted sovereign protection, and direct local allegiance, and no recognized displacing sovereign-status relation may prevent that relation from attaching. The anti-caste constraint governs every element. The presumption-plus-trigger rule governs proof of the relation in administration.

The three affirmative elements are derived from the record, not selected for policy reasons. Operative U.S. authority is required because hostile occupation and occupation logic show that nominal geography can fail. Accepted sovereign protection is required because the common-law materials and Wong show that citizenship-producing birth occurs within a protective sovereign relation, not merely within coercive reach. Direct local allegiance is required because the Clause speaks of jurisdiction over persons and because Wong, diplomacy, tribal political relation, and hostile occupation all turn on whether the child's birth-time legal bond runs directly to the United States or is displaced by another sovereign-status relation.

The negative element is closed by kind. Diplomacy, hostile occupation, and historical tribal political relation do not authorize an open-ended inquiry into foreignness, alienage, unlawful presence, temporary status, parental conduct, subjective allegiance, ideology, or assimilation. They identify a narrow class of sovereign-status displacements. That is why the same aggregation that gives the jurisdictional predicate real force also protects the Wong core and the Reconstruction settlement from inherited-status rules.

The proof rule also follows from the aggregation. Because soil is the ordinary proof path, the ordinary case ends with a timely U.S. birth record. Because jurisdiction remains an independent predicate, a legally material official record can trigger inquiry. Because Reconstruction forbids caste and parent-blame citizenship, the trigger cannot be demographic suspicion, universal parental-status screening, or generalized foreignness. Because administration follows meaning rather than creating it, the inquiry must ask what the birth-time record conferred, withheld, recognized, protected, or displaced.

The counterexample review supplies the final check. The present appendix record identifies no controlling fixed point that requires citizenship where one of the affirmative elements is absent because operative U.S. authority, accepted protection, or direct local allegiance is displaced. It also identifies no controlling fixed point that permits denial where all three affirmative elements are present and no closed sovereign-status displacement exists. The remaining modern margins are applications that require categorical, record-based classification under the derived rule; they are not reasons to abandon the rule.

The analysis can now move from aggregation to derivation without asking the reader to infer the rule from the appendices alone. Appendix L.1-L.9 preserves the supporting record: fixed-point assembly, authority weight, source classification, fixed-point applications, rival interpretive-rule testing, synthesis of retained constitutional properties, administrative implementation, counterexample review, and derived conclusion. Section XIII.A gives the body-level assessment of those results. The next section names the relation that the assessment has already produced.

XIII.B. Consensual Sovereignty and Accepted Sovereign Protection

Schuck and Smith identify a serious problem for any purely territorial account of citizenship: citizenship is membership, and membership ordinarily presupposes some relation between the person and the political community. This Article accepts that insight. It does not treat citizenship as mere geography or as ordinary exposure to police power. But it rejects the next step in consent theory: the suggestion that subjective political consent, generalized nonconsent to a parent, or a parent's lack of admission can control the child's constitutional status after the Fourteenth Amendment has fixed an anti-caste birthright rule.

Complete jurisdiction therefore reconciles consent rather than dismissing it. It rejects subjective, discretionary, or hereditary consent as the citizenship rule. The constitutionally relevant consent is institutional and legal: the United States has accepted the birth-time relation through operative authority, protection-bearing legal incidents, direct local allegiance, and the absence of a recognized sovereign-status displacement. Consent appears as objective sovereign action in the legal

record, not as a free-floating political judgment about whether the polity would have preferred a different parent or a different entry history.

This formulation preserves the valid membership concern without converting citizenship into a discretionary admission regime. Congress and the Executive may regulate entry, admission, removal, adjustment, waiver eligibility, work authorization, parole, protection, and later immigration benefits. Those statutes and administrative records may create legal incidents that matter at birth. But once the birth-time relation satisfies the constitutional predicate, later political nonconsent to the parent cannot be used to transmit nonmembership to the child. Consent is therefore constitutionalized through legal relation, not inherited through bloodline or supplied by subjective political preference.

The result is more objective than a political-will model and less reductive than a soil-only model. A court need not ask whether the polity psychologically consented to a particular family. It asks what the law actually did at the birth: whether U.S. authority operated, whether U.S. law supplied protection-bearing or residence-like legal incidents, whether the child's legal relation ran directly to the United States, and whether any recognized sovereign-status relation displaced that local bond.

XIII.C. Ramsey, Common-Law Nativity, and the Relational Completion of Original Meaning

Ramsey-style originalist analysis supplies an important methodological benchmark. The common-law background of birth, allegiance, and protection cannot be ignored. Nor can the original public meaning inquiry be replaced by modern administrative convenience. This Article accepts the core common-law insight: birth under sovereign authority and protection ordinarily creates a local bond of allegiance, and that background helps explain why domestic birth usually resolves the case.

The Article's addition is relational completion. The fixed-point record includes more than the ordinary common-law case. It includes diplomatic birth, hostile occupation, historical tribal political relation, foundlings, Elk, Wong, Reconstruction's anti-caste settlement, implementation practice, and modern legal incidents. Those sources show that allegiance and protection are indispensable, but they also show that the Citizenship Clause performs a membership-conferring function that cannot be reduced to the inside/outside geography of birth alone.

The original public meaning, read through the fixed-point record, best supports a relational test rather than a geography-only reduction. That phrasing is deliberate. The Article does not claim mathematical proof or immunity from counterexample. It claims source-weighted synthesis: if a controlling holding, settled inclusion, settled exclusion, drafting choice, or implementation practice cannot be reconciled with complete jurisdiction, the account must be revised. Until such a counterexample appears, the relational synthesis best explains why Wong, Elk, diplomacy, hostile occupation, tribal political relation, and the anti-caste Reconstruction settlement can coexist.

Methodological parity therefore requires two moves. First, common-law nativity remains the ordinary background and proof path; it explains why ordinary domestic birth generally ends the inquiry. Second, common-law allegiance and protection must be filtered through the enacted constitutional predicate and the fixed points that define its limits. Complete jurisdiction does that filtering work by distinguishing ordinary legal amenability from rights-bearing jurisdiction and from the membership-conferring jurisdiction that creates national and state citizenship at birth.

XIII.D. Period-Source Parity and Archival Scope

The Article does not compete by source volume alone. It competes by source discipline. Every period source is assigned legal function, authority weight, and constitutional relevance before it is permitted to do work in the synthesis. That posture preserves the Article's falsifiability claim: if a controlling period source, holding, drafting choice, settled inclusion, settled exclusion, or implementation practice cannot be reconciled with complete jurisdiction, the rule must be revised. But citation volume alone does not decide the constitutional predicate.

Ramsey comparator note. Ramsey's archival contribution establishes the broad common-law and original-public-meaning baseline. This Article accepts that baseline as the ordinary rule: territorial birth under sovereign authority and protection

ordinarily creates the citizenship-producing relation. The Article's separate contribution is not to deny the baseline, but to explain how that baseline interacts with the enacted jurisdictional predicate, settled exclusions, Elk, Wong, Reconstruction's anti-caste command, foundlings as proof discipline, and modern legal incidents.

Whittington comparator note. Whittington's common-law incorporation account strengthens the ordinary included core. This Article accepts that ordinary core. Its disagreement is not with the proposition that common-law birthright citizenship is central. The disagreement is with treating the common-law rule, abstracted from the enacted jurisdictional predicate and the fixed points, as the entire constitutional architecture. Complete jurisdiction preserves the common-law rule's allegiance-and-protection logic while also accounting for diplomacy, hostile occupation, tribal political relation, Elk, Wong, Reconstruction, foundlings as proof discipline, and modern record incidents.

Common-law baseline and relational completion. The Article accepts the broad common-law baseline: birth under sovereign authority and protection ordinarily creates the local bond from which birth citizenship follows. Complete jurisdiction does not reject that baseline. It completes it through the enacted constitutional predicate and the fixed points. Common-law protection maps to accepted sovereign protection. Common-law allegiance maps to direct local allegiance. Diplomatic birth, hostile occupation, and historical tribal political relation map to displacing sovereign-status relations. Wong preserves the resident-alien core. Elk prevents geography alone from swallowing the jurisdictional phrase. Reconstruction bars bloodline, caste, inherited degradation, and parent blame.

The upshot is division of labor. Ramsey, Whittington, and related archival accounts thicken the common-law and legal-text baseline. This Article uses that baseline as source input, then performs a different task: it integrates period sources, holdings, settled exceptions, Reconstruction, proof practice, and modern record incidents into a citizenship-conferring rule that remains administrable without becoming geography-only, parent-status-only, or executive-label-driven.

XIV. Complete Jurisdiction as Derived Principle

Only after grammar, phrase history, drafting choices, common law, category genealogy, property extraction, Wong, Elk, the no-soil-only thesis, the no-contrary-exercise thesis, residence, rights-bearing jurisdiction, comparator review, and the applied aggregation in Section XIII.A does the paper name the derived principle: complete jurisdiction. Section XIII.A has already assessed the appendix findings to a result. This section gives that result its doctrinal form.

The phrase "complete jurisdiction" is a shorthand for the relation produced by the retained properties. It is not a preexisting doctrinal label and does no work apart from the sources that produced it.

Complete jurisdiction exists when, at the moment of birth, the child is born under operative U.S. territorial authority, accepted sovereign protection, and direct local allegiance, and no recognized displacing sovereign-status relation prevents that birth from being membership-conferring. Each element is extracted from a fixed point. Operative territorial authority is disclosed by hostile occupation. Accepted sovereign protection is disclosed by common-law allegiance/protection and the resident-alien core of Wong. Direct local allegiance is disclosed by the ordinary relation created by domestic birth under U.S. authority and protection, but filtered to exclude subjective loyalty, ideology, assimilation, or parent worth. The recognized sovereign-status exclusion is disclosed by diplomacy, hostile occupation, and historical tribal political relation. The Article does not deny that diplomacy, hostile occupation, and tribal political relation can be described as exceptions under a broad territorial account; it argues that their repeated legal structure is better explained as a retained jurisdictional property than as unrelated carveouts.

XIV.A. Accepted Sovereign Protection Defined

Accepted sovereign protection means more than ordinary legal amenability and less than full political membership. It is an objective birth-time legal-incident relation, not a moral judgment, welfare benefit, or mere exposure to U.S. coercive power. It exists when U.S. law, at the moment of birth, affirmatively recognizes the child or family unit as present under a protection-bearing, residence-like, settlement, refuge, removal-shield, parole, or comparable legal incident that makes the child's local allegiance direct rather than merely coercive. "Comparable" means comparable by legal incident, not by policy intuition, sympathy, label, or executive characterization. A legal relation is comparable only when the birth-time record shows an affirmative federal undertaking that does more than expose the parent to ordinary coercive law:

permission to remain, protection from removal or return, residence-like recognition, durable authorization, parole or protection with legally operative duration, work authorization tied to permission or protection, pending regularization with an official removal shield, or another legally cognizable protection-bearing incident. A relation is not comparable if it consists only of revocable non-enforcement, ordinary civil or criminal amenability, emergency aid, temporary sufferance, event-specific admission, border-processing custody, or enforcement tolerance.

Post-Mullin v. Doe TPS note. TPS remains a record-incident category. A valid individual TPS grant at the child's birth may strongly or moderately support accepted sovereign protection because it carries affirmative federal recognition, protection from removal during the protected period, permission to remain, and often work authorization. But Mullin v. Doe confirms that TPS designation, extension, and termination decisions are subject to a broad judicial-review bar for non-constitutional claims under 8 U.S.C. § 1254a(b)(5)(A), including procedural APA theories and challenges to the process leading to termination. Courts should not treat TPS as citizenship, permanent residence, admission, or an automatic constitutional category; nor should they treat later TPS termination as retroactively defeating citizenship if the birth-time predicate was satisfied. If TPS termination was validly effective before a later child's birth, however, the TPS legal incident may no longer be available for that later birth. The decisive question remains what legal incidents existed at the child's birth.

Post-Mullin v. Al Otro Lado border-arrival note. Attempted entry, metering, presence in Mexico at a port threshold, a CBP appointment or queue, or an encounter with U.S. officials before crossing the border does not itself constitute arrival "in the United States" under INA §§ 1158(a)(1) and 1225(a)(1). Such facts should not be treated as domestic presence, inspection entitlement, asylum access, parole, accepted sovereign protection, or a domestic birth-time legal incident. Durable parole, formal protection, pending regularization with a stay, or other official U.S.-side legal incidents remain analytically distinct.

These are statutory-administration refinements, not new Citizenship Clause fixed points. They help classify modern birth-time legal incidents without replacing the fixed-point synthesis.

The Article therefore supplies default classifications, not a free-form balancing test. Lawful permanent residence, settled lawful domicile, refugee protection, and asylee protection are strong accepted-protection cases. Valid TPS, durable humanitarian parole, parole-in-place, and pending protection or adjustment accompanied by work authorization or a removal shield are strong or moderate evidence depending on the incident's duration, purpose, and legal effect. Deferred action standing alone is weaker because it is closer to non-enforcement, but deferred action paired with work authorization, renewal, humanitarian grounds, or pending regularization is materially stronger than bare unlawful presence. Brief tourist or visa-waiver admission, organized birth tourism, emergency birth during a short visit, and bare unlawful entry without further recognition are weak or adverse evidence. These classifications remain record-effect classifications; they do not turn immigration labels into constitutional labels.

Unlawful presence requires separate treatment within accepted sovereign protection. Constitutionally, bare unlawful entry is materially adverse evidence because it negates entry permission, residence-like recognition, and settlement under law. But it is not itself a recognized sovereign-status displacement. It does not place the child under diplomatic immunity, hostile sovereign control, historical tribal political relation, or any equivalent sovereign-status shield. If the birth-time record shows only bare unlawful entry and no affirmative federal undertaking, permission, removal shield, durable protection, residence-like recognition, or comparable legal incident, complete jurisdiction will ordinarily be absent because the affirmative accepted-protection element is not proven, not because the child is punished for the parent's offense.

Operative U.S. territorial authority means the United States was the functioning sovereign authority over the place of birth; it is not mere map geography. A recognized displacing sovereign-status relation means a birth-time legal relation, recognized by U.S. law or controlling law-of-nations principles, equivalent in kind to diplomacy, hostile occupation, or historical tribal political relation. Direct local allegiance has the meaning stated at the outset and applied in Section XIV.B.

The administrative version of the rule is therefore short: ordinary cases begin and end with a timely U.S. birth record; if an objective, legally material, record-based trigger appears, the agency asks what the record conferred, withheld, recognized, protected, authorized, shielded, or displaced at birth.

The negative limit remains necessary but incomplete. Ordinary alienage, foreign nationality, temporary presence, or removability is not enough by itself to create a displacing sovereign-status relation, so those facts cannot automatically defeat citizenship. But they may still matter, if at all, as objective birth-time evidence bearing on accepted sovereign protection or direct local allegiance. The full constitutional question is whether complete jurisdiction existed at birth.

Tightened definition. Accepted sovereign protection exists when, at the moment of birth, an official U.S. legal record shows that U.S. law affirmatively recognized the child, parent, or family unit under a protection-bearing or residence-like legal incident: permission to remain, protection from removal or return, refuge, lawful residence, durable parole or comparable protection, work authorization tied to permission or protection, pending regularization with an official removal shield, or another legally cognizable protection-bearing incident. It does not include mere physical presence, ordinary police protection, due process protection, public benefits, emergency aid, civil or criminal amenability, detention, border-processing custody, temporary sufferance, event-specific admission, revocable non-enforcement, or enforcement tolerance.

Accepted sovereign protection should be administered as a record-incident test. The front-end question is not whether a label sounds lawful, unlawful, temporary, permanent, sympathetic, or suspicious. The question is what the official birth-time legal record showed that U.S. law conferred, withheld, recognized, protected, authorized, shielded, or displaced.

XIV.A.1. Accepted Sovereign Protection as a Record-Incident Test

Accepted sovereign protection is administered through legal incidents, not labels. The inquiry begins with the birth-time record and asks what U.S. law actually supplied: permission, protection from removal or return, lawful residence, refuge, durable parole, work authorization tied to permission or protection, pending regularization with an official shield, or another comparable protection-bearing incident. The inquiry does not ask whether a status sounds sympathetic, suspicious, temporary, permanent, lawful, or unlawful as a matter of political rhetoric.

The schedule below is not an immigration-status code and does not decide unresolved modern margins by label. It states the record effects that can satisfy, strongly support, materially support, weaken, or undermine accepted sovereign protection when valid at the moment of birth and tied to the child, parent, or family unit. A listed incident matters only by legal effect. A document that merely proves filing, processing, identity, or administrative contact does not by itself supply protection unless the underlying legal regime carried protection-bearing consequences at birth.

The schedule separates two questions that are easy to collapse. A recognized displacement defeats the closed negative element. A weak or adverse record incident bears only on the affirmative elements. Bare unlawful entry belongs in the second category. It may weaken a showing of accepted sovereign protection or direct local allegiance, but it does not itself establish a diplomatic, tribal, hostile-occupation, or equivalent sovereign-status displacement.

After Doe, TPS should be coded by individual birth-time legal incidents: valid grant, removal shield, permission to remain, EAD, renewal posture, continuity, and effective termination date. After Al Otro Lado, border-access facts should be coded by U.S.-side legal effect. A Mexican-side queue, appointment, metering event, or blocked approach is not arrival, admission, parole, asylum access, or accepted sovereign protection.

XIV.A.2. Schedule of Affirmative Legal Incidents

Table XIV.A-2. Schedule of Affirmative Legal Incidents for Accepted Sovereign Protection

Record incident	Record-effect treatment
LPR or settled lawful domicile	Strong evidence of accepted protection and direct local allegiance; still evidence of relation, not label magic.
Refugee or asylee status	Strong protection-bearing evidence because federal law supplies refuge or protection from return; validity at birth still matters.
TPS valid at birth	Strong or moderate accepted-protection evidence when an individual TPS grant was valid at the child's birth and carried a removal shield, permission to remain, EAD eligibility or actual EAD, continuity, or renewal posture. Post-Doe caution: do not use citizenship adjudication to relitigate TPS designation, extension, or termination through non-constitutional APA theories; verify the birth-time legal

	incident and effective dates.
Durable humanitarian parole or parole-in-place	Material or strong evidence when durable, humanitarian, family-unity-based, or protection-bearing; brief processing custody is weaker.
EAD or work authorization	Supports accepted protection only when tied to permission, protection, pending regularization, parole, TPS, deferred action, or a removal shield; a bare work card is insufficient.
Pending adjustment, asylum, or regularization	Relevant when paired with stay, parole, EAD, statutory shield, or official forbearance; a bare receipt notice, including Form I-797, proves filing but not necessarily protection.
Withholding, CAT, T, U, or continued presence	Protection-bearing when valid at birth and tied to protection from return, coercion, victim status, or continued presence.
Deferred action or DACA	Weak-to-moderate depending on grant dates, renewal, EAD, humanitarian or family-unity grounds, or pending regularization; not lawful status by label.
Tourist, visa waiver, or birth tourism	Weak or adverse evidence of accepted protection because the record usually shows limited purpose and transience; no demographic or pregnancy trigger may substitute.
Bare unlawful entry	Adverse evidence because permission and residence-like recognition are absent; not sovereign-status displacement and not inherited blame.
Outside-border attempted access / Mexican-side metering	Nonqualifying by itself. Not domestic presence, arrival, inspection entitlement, asylum access, parole, or accepted protection.

The asymmetry is intentional. The settled exclusions defeat citizenship by showing recognized displacement: diplomatic immunity, hostile occupation, historical tribal political relation before statutory supersession, or a legally equivalent sovereign-status relation. Bare unlawful entry does not supply that kind of displacement. It is not diplomacy, enemy occupation, tribal political relation, or a foreign sovereign shield. Its relevance, if any, lies only in the affirmative elements: whether the birth-time record shows accepted sovereign protection and direct local allegiance. Unlawful presence is therefore adverse evidence, not automatic exclusion. The government must still identify objective birth-time records showing failure of an affirmative element or recognized displacement; unlawfulness, moral blame, parent incentive, or later immigration consequences cannot carry the constitutional burden.

XIV.B. Direct Local Allegiance Applied

The early definition controls the rest of the Article. At the level of synthesis, direct local allegiance does bounded doctrinal work: it identifies the direction of the newborn's birth-time legal relation while excluding subjective loyalty, consent, race, ancestry, assimilation, parent worth, parental blame, foreign nationality, or inherited allegiance from the inquiry.

Direct local allegiance is analytically distinct from accepted sovereign protection because it answers a different question. Accepted protection asks what U.S. law supplied: permission, protection, residence-like recognition, removal shield, durable authorization, or comparable legal incident. Direct local allegiance asks where the child's immediate legal relation was directed. In ordinary domestic cases, the answer is the United States because the child is born into the ordinary local legal order under U.S. authority and protection. In displaced-sovereign cases, the answer is different: diplomacy routes the relation through the sending sovereign; hostile occupation displaces operative U.S. authority; historical tribal political relation routed the relation through a separate political community. The element therefore does independent work. It identifies the direction of the child's birth-time legal bond; it is not a synonym for territorial authority, accepted protection, or the final conclusion.

The fixed points show both sides of that boundary. Wong shows that direct local allegiance can exist despite alienage, foreign nationality, and foreign parentage. Diplomatic birth shows that it can be displaced by sovereign immunity. Historical tribal political relation shows that it can be displaced by a separate political-community relation. Foundlings show that, when no displacing relation appears and proof is unavailable, law carries forward a presumption rather than demanding impossible proof.

The term therefore identifies an objective birth-time legal bond, not a moral or political judgment. It supplies no license to investigate subjective belief, parental virtue, cultural assimilation, inherited loyalty, or bloodline. It asks only whether the child's birth occurred under the local sovereign relation that the Citizenship Clause makes membership-conferring.

The negative definition is as important as the affirmative definition. Foreign nationality alone is not displacement. Alienage alone is not displacement. Foreign parentage alone is not displacement. Temporary status alone is not displacement. Ordinary removability, criminal exposure, civil amenability, or rights-bearing jurisdiction is not

displacement. Unlawful presence requires a separate formulation: it is materially adverse evidence of no accepted sovereign protection and may bear on direct local allegiance, but it is not itself the recognized sovereign-status category that routes the child's relation to a foreign sovereign or separate political community. The government may use unlawful-entry records as evidence bearing on the affirmative elements; it may not convert the parent's violation into hereditary nonmembership, parental blame, or automatic exclusion by label. The recognized sovereign-status exclusion prevents both geography-only surplusage and open-ended foreign-allegiance exclusion.

Complete jurisdiction is therefore derived, not invented. It is not a policy compromise. It is the best constrained synthesis after every retained property is aggregated and every forbidden generalization is filtered out.

XV. Parentage as Evidentiary Conduit

The newborn problem is unavoidable. A newborn cannot personally manifest domicile, legal residence, subjective allegiance, political consent, diplomatic immunity, tribal political relation, or hostile occupation. Every historical exclusion and inclusion that turns on birth-time sovereign relation necessarily uses parent-linked or equivalent sovereign-status facts. That is not a defect in the analysis. It is a legal feature of birth citizenship.

The question is whether parent-linked facts are used as evidence or as rule. Fuller's dissent treated foreign allegiance and parentage as citizenship-defeating in a way that threatened bloodline logic. This Article rejects that path. Parentage is not the rule. Parentage is an evidentiary conduit. The constitutional subject remains the child. Parent-linked facts matter only insofar as they reveal the child's birth-time relation to the sovereign.

A parent-linked fact may therefore open an inquiry only when it is objective, legally material, record-based, and tied to a complete-jurisdiction element. It may not decide the case merely because it is parental. The government must still show how the fact bears on the child's own birth-time relation: operative authority, accepted protection, direct local allegiance, or a recognized displacing sovereign-status relation. If the parent-linked fact does no more than identify foreignness, alienage, unlawful conduct, temporary classification, poverty, national origin, or moral blame, it is constitutionally inert.

Diplomatic birth illustrates the distinction. The child is not excluded because the parent is foreign or morally blameworthy. The child is excluded because the parent's diplomatic immunity creates a recognized sovereign-status relation that displaces direct local allegiance. Tribal political relation operates similarly: the relevant fact is separate political community, not ancestry. Wong confirms the affirmative side: the Court considered parental residence, domicile, business presence, and non-diplomatic status, but those facts did not become a bloodline rule. They supplied evidence that the child was born within the Clause.

Reconstruction supplies the anti-caste filter. Parentage may not transmit race, ancestry, inherited worth, disloyalty, blame, caste, or civil degradation. It may identify objective birth-time legal facts only when those facts are material to the child's sovereign relation. That distinction allows the model to solve the newborn problem without reviving hereditary exclusion.¹³

XV.A. Why This Is Not Fuller's Dissent

A broad-side reader may object that using parent-linked facts revives Chief Justice Fuller's dissent in *Wong Kim Ark*. That objection must be answered directly. Fuller treated foreign allegiance and parentage as citizenship-defeating in a manner that threatened to make inherited foreignness decisive. This Article's account rejects that path. Parentage and equivalent sovereign-status facts are evidence of the child's own birth-time legal relation to the United States; they are not a hereditary rule of exclusion.

The difference is decisive. On this account, foreign parentage, alienage, foreign nationality, dual nationality, temporary classification, removability, unlawful presence, or parental blame is not itself a displacing sovereign-status relation. Those facts cannot transmit nonmembership by bloodline. Some of those facts, especially unlawful presence, may be material evidence bearing on accepted sovereign protection or direct local allegiance. But that evidentiary use is different from making the parent's status the source of the child's exclusion.

¹³ Wong, 169 U.S. at 652–53, 693, 704–05; id. at 707–32 (Fuller, C.J., dissenting); Bernick, Gowder & Kreis, *supra* note 15, at 101–08; *Dred Scott*, 60 U.S. (19 How.) 393; Civil Rights Act of 1866, ch. 31, § 1, 14 Stat. 27, 27; U.S. Const. amend. XIV, § 1.

This treatment preserves the Wong majority rather than the Fuller dissent. Wong remains the affirmative resident-alien core: a U.S.-born child of resident, domiciled, non-diplomatic alien parents is inside the Clause. Parent-linked facts are used only in the way Wong itself used them: as record facts showing whether the child's birth occurred under the local sovereign relation, not as a hereditary rule of exclusion.

This Article's treatment of unlawful presence follows the same anti-Fuller discipline. It does not treat the parent's violation as hereditary foreignness or as a moral defect transmitted to the child. It treats the violation as a legally material record fact bearing on the affirmative elements. If the record shows only bare unlawful entry, no permission, no removal shield, no durable protection, and no residence-like recognition, the child's claim fails because complete jurisdiction has not been affirmatively shown. If the record contains countervailing federal recognition or protection-bearing incidents, those incidents must be classified. In neither direction does the parent's status become bloodline.

The controlling distinction is between source of evidence and source of exclusion. Fuller made parental foreign allegiance the source of exclusion. This Article treats parent-linked or equivalent sovereign-status facts only as possible evidence of the child's own birth-time relation. Ordinary foreign parentage, alienage, dual nationality, temporary classification, removability, and unlawful presence do not defeat citizenship by themselves. Failure, if any, must arise from the child's own birth-time relation: either the affirmative complete-jurisdiction elements are not proven, or a legally recognized sovereign-status displacement exists. The source of exclusion is never bloodline or inherited foreignness.

This Article's use of parent-linked evidence is not Fuller's dissent in new form. Fuller treated foreign allegiance and parentage as citizenship-defeating in a way that would have made the parents' political relation dispositive of the child's status. This Article does not do that. It accepts Wong's resident-alien core and treats alienage, foreign nationality, unlawful presence, and foreign parentage as insufficient by themselves to defeat citizenship. Parent-linked facts matter only when they reveal a recognized birth-time sovereign-status displacement, such as diplomacy, hostile occupation, or a closed-by-kind equivalent, or when they supply record evidence that an affirmative element of complete jurisdiction is absent. That is why the Article narrows Wong by holding and record without adopting Fuller's rejected bloodline logic.

XVI. Administration and Modern Margins

Table XVI-1. Modern Status Incidents and Preliminary Proof Significance

Table XVI-1. Modern Status Incidents and Preliminary Proof Significance		
Status / incident	Likely proof significance	Caution
LPR / settled lawful domicile	Strong included-core evidence.	Still evidence of relation, not label magic.
Refugee / asylee protection	Strong accepted-protection evidence.	Granted vs pending status must be distinguished.
TPS / parole / deferred action	Record-effect margin.	Ask what legal incidents existed at birth.
Tourist visa / visa waiver	Weak accepted-protection evidence.	Do not equate every temporary admission with displacement.
Birth tourism	Strong transience evidence.	Still requires record-based trigger and proof.
Bare unlawful entry	Weakest accepted-protection evidence; materially adverse absent contemporaneous or later federal recognition tied to birth-time incidents.	Unlawfulness alone is not displacing status; it may trigger a record-effect inquiry into the affirmative elements.
Diplomatic immunity	Settled exclusion.	Different in kind from ordinary alienage.
Hostile occupation	Settled exclusion.	Turns on operative U.S. authority and protection joined to a recognized hostile-sovereign relation; not enemy ancestry or ordinary unlawful presence.
Historical tribal relation	Settled exclusion before statutory supersession.	Closed by kind; not immigrant analogy.

Administration must preserve ordinary citizenship documentation while allowing the jurisdictional predicate to matter when legally material records exist. The theory therefore begins with ordinary proof rather than adjudication. A timely official U.S. birth record creates prima facie citizenship; the government may not open a jurisdictional inquiry through universal screening, demographic suspicion, or generalized parental-status review.

The proof follows from the fixed-point implementation rule. Ordinary cases end with the birth record. Further inquiry requires an objective, official, legally material, record-based trigger connected to one of the complete-jurisdiction elements. Even after such a trigger, adjudication proceeds categorically first and turns to applicant-specific proof only when the category and record make individualized evidence necessary.

The source basis is implementation practice rather than original semantic content. The Citizenship Clause supplies the predicate: birth in the United States and subjection to the jurisdiction thereof. Administration supplies proof mechanics. Birth records, diplomatic-birth treatment, passport and nationality procedures, and modern documentation systems show how law often begins with a presumptive record while permitting later adjudication when a legally material fact appears.

The rival administrability objection is that a relation-based account will produce mass adjudication or an immigration-status code. That objection correctly identifies a risk, but the risk arises only if the theory begins with universal screening or label-based classification. Complete jurisdiction does neither. It begins with the birth record, requires a lawful trigger, and refuses to let modern labels decide constitutional meaning by themselves.

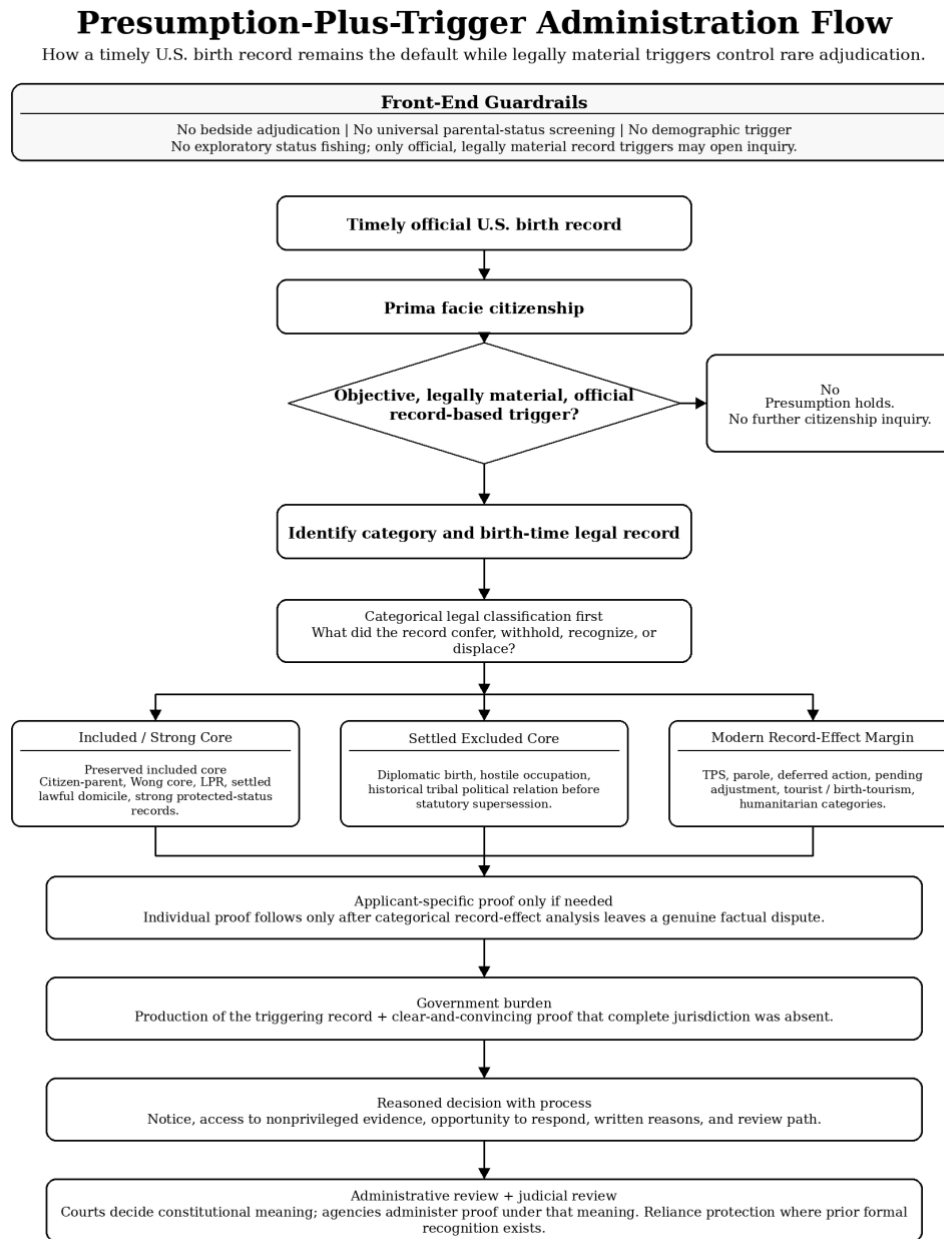
The complete-jurisdiction adjustment is the presumption-plus-trigger rule. If the government seeks to defeat a timely U.S.-birth presumption, it bears both a burden of production and a burden of persuasion. It must identify an objective record-based trigger, produce the records on which the challenge rests, and prove the absence of complete jurisdiction by clear and convincing evidence. That burden is implementation discipline, not a claim that the original public meaning itself specified a named evidentiary standard.

The bounded conclusion is narrow. The administration model does not adjudicate every U.S. birth, classify every modern status in advance, or authorize agency discretion to deny citizenship by label. It preserves the ordinary birth-record presumption while giving legal effect to the jurisdictional predicate when a source-backed, legally material record makes that predicate genuinely contested.

XVI.A. Administration Flow

The administrative sequence runs in one direction: birth record; prima facie citizenship; objective record trigger; categorical legal classification; applicant-specific proof only if needed; government burden; reasoned decision; review. That sequence prevents modern immigration labels from becoming constitutional rules, prevents discretionary balancing, and keeps the burden on the government when the government seeks to defeat a timely U.S.-birth presumption.

Figure XVI-A. Presumption-Plus-Trigger Administration



XVI.A.1. Procedural Due-Process Checklist

The presumption-plus-trigger flow also requires procedural discipline. Because the government is seeking to defeat a timely U.S.-birth presumption, the person must receive process before the presumption can be displaced. The minimum checklist is not a new merits test. It is the procedure that keeps the implementation rule from becoming discretionary denial by agency label.

- Notice of the specific jurisdictional trigger and the complete-jurisdiction element it allegedly implicates.
- Access to the records on which the government relies, subject to ordinary lawful redactions or protective orders.
- Categorical legal classification before applicant-specific proof, so that agencies do not convert status labels into constitutional rules.
- A meaningful opportunity to respond with birth-time records, legal-status records, family or custody records, and other legally material evidence.

- A reasoned written decision identifying the trigger, the category, the birth-time incidents, and the complete-jurisdiction element found absent.
- Administrative review by an officer or body not responsible for the initial denial.
- Judicial review sufficient to ensure that the agency applied the constitutional predicate rather than an immigration label or discretionary policy preference.

This checklist operates with the burden rule already stated in the Article. A birth record opens with *prima facie* citizenship; an objective trigger opens only a legally bounded inquiry; the government bears production and persuasion; and review tests whether the decision applies the constitutional predicate rather than an immigration label.

The trigger does not shift the ultimate burden to the individual. It opens only a bounded inquiry into the identified complete-jurisdiction element. The government must produce the official record that creates the trigger and must prove why that record defeats the birth-time relation. Missing parental records, unavailable witnesses, administrative silence, or the passage of time may not be treated as conclusive against citizenship unless the government first supplies objective evidence that complete jurisdiction was absent.

A parental-status record is not a citizenship-denial rule. At most, it is a possible trigger for categorical classification. Denial requires proof that the child's own birth-time complete-jurisdiction relation was absent; it cannot rest on the parental label alone.

A parental-status record may trigger inquiry only when it is objective, legally material, record-based, and tied to a complete-jurisdiction element; it cannot itself decide the child's citizenship by parental label.

The checklist is deliberately procedural rather than substantive. It does not decide the citizenship question. It prevents the government from transforming a proof inquiry into an unreviewable administrative classification. A person whose timely U.S.-birth record establishes *prima facie* citizenship is entitled to know the trigger, see the record, contest the category, receive reasons, and obtain review before that presumption is displaced.

XVI.A.2. Rebuttal Scope Protocol After an Objective Trigger

An objective trigger permits inquiry; it does not shift the ultimate burden to the applicant. The government still bears the burden to produce the triggering record and to prove the absence of complete jurisdiction if it seeks to defeat the U.S.-birth presumption. The individual receives a bounded response opportunity, not an open-ended obligation to prove worth, assimilation, loyalty, or subjective intent.

The response phase is confined to localized, birth-time, and immediately adjacent records. It may not become a general investigation into parental psychology, cultural assimilation, language, surname, race, poverty, religion, political belief, social worth, family planning, or long-term subjective intent. The inquiry remains legal and record-based: what the birth-time record conferred, withheld, recognized, protected, authorized, shielded, or displaced.

Table XVI.A-2. Applicant Response Evidence After an Objective Record Trigger

Response evidence	Use and limit
Timely U.S. birth record	Establishes <i>prima facie</i> domestic birth and ordinary proof path; does not by itself answer every legally material trigger.
Hospital, birth, and medical records	Show place, timing, medical necessity, emergency birth, unexpected labor, or non-planned delivery; medical care alone is not accepted protection.
Status records valid at birth	Admission, parole, TPS, DACA/deferred action, EAD, asylum, refugee, stay, removal shield, or pending-status records identify legal incidents; labels do not control.
Immediate local footprint records	Discharge address, pediatric care, early state records, lease, utility, insurance, school, or similar records may illuminate local relation and reliance; they cannot retroactively create a missing predicate.
Early federal recognition records	Passport, Social Security, tax, certificate, or other federal records support proof, reliance, and settled recognition; recognition is not the original source of citizenship.
Records negating displacement	No diplomacy, hostile occupation, tribal-political relation, or equivalent sovereign-status shield helps exclude the closed negative categories; it does not alone prove accepted protection.
Barred inquiries	Race, language, surname, poverty, nationality, parent worth, ideology, cultural assimilation, or subjective loyalty have no proper use as trigger or rebuttal evidence.

The exit ramp is therefore narrow and administrable. If the government cannot connect the trigger to a complete-jurisdiction element, the inquiry ends. If the applicant supplies records showing that the birth-time incident did not have the legal effect asserted by the government, the inquiry ends. If a genuine categorical or factual issue remains, the decision

must identify the trigger, classify the legal incident, apply the clear-and-convincing burden, give written reasons, and preserve review.

XVI.A.3. Burden Hierarchy and Recognition-Disturbance Standard

The presumption-plus-trigger model is incomplete unless it distinguishes the type of governmental action being taken. A request for ordinary proof, the opening of a triggered inquiry, a decision defeating prima facie citizenship, and a later disturbance of prior federal recognition are not the same action and should not use the same proof threshold.

The trigger permits inquiry; it does not shift the ultimate burden to the applicant. The government must identify the specific official or comparably reliable record that makes the jurisdictional predicate genuinely disputed. If the government seeks to defeat prima facie citizenship in an unresolved modern-margin case, it must prove by clear and convincing evidence that complete jurisdiction was absent at the child's own birth.

TPS review limitation. For TPS, ordinary APA review is sharply limited by § 1254a(b)(5)(A). Citizenship adjudication remains reviewable through its own statutory and constitutional channels, but a court generally may not use a citizenship case to relitigate the validity of the Secretary's TPS designation, extension, or termination decision through non-constitutional APA theories. The citizenship question is whether a valid TPS-related legal incident existed at the child's birth, not whether the TPS designation or termination should have been made.

Where the government seeks not merely to request additional proof, but to disturb prior formal federal recognition of citizenship, the burden should be at its highest: clear, unequivocal, and convincing evidence of fraud, material identity error, forged record, illegal or erroneous issuance, or the absence of citizenship at the person's own birth. That action also requires individualized process, access to the relied-on records, written reasons, and meaningful review. Fraud and material error may be corrected; later categorical reclassification may not substitute for individualized proof.

Table XVI.A-3. Burden Hierarchy for Citizenship-Predicate Administration

Government action	Required showing
Ordinary birth-record administration	Timely U.S. birth record ends the case absent an objective, legally material trigger.
Opening a triggered inquiry	Government must identify a specific official or comparably reliable record trigger tied to a complete-jurisdiction element.
Defeating prima facie citizenship in an unresolved modern-margin case	Clear and convincing evidence that complete jurisdiction was absent at the child's own birth.
Disturbing prior formal federal recognition, such as a passport or certificate	Clear, unequivocal, and convincing evidence, plus individualized process, written reasons, and review.
Correcting fraud, forged record, identity error, or illegally or erroneously issued document	Individualized proof of the specific defect; no categorical retroactive reclassification.

XVI.B. Modern Margins and Record-Effect Adjudication

Modern statuses did not exist in 1868. The original-meaning inquiry therefore cannot proceed by asking whether the Reconstruction Congress listed TPS, parole, deferred action, pending adjustment, birth tourism, humanitarian parole, or bare unlawful entry. The administrable inquiry is record-effect classification: what legal incidents existed at the moment of birth, and what constitutional property did those incidents bear on?

XVI.B.1. Political-Branch Incidents and Constitutional Significance

The record-effect method requires a separation between incident creation and constitutional significance. Congress and the Executive may create immigration categories, attach legal incidents, define duration, authorize work, create removal shields, or supply residence-like recognition. But political branches do not control the Citizenship Clause's meaning by choosing a label. Courts decide the constitutional significance of the birth-time incidents that the political branches created.

The relevant incident is the incident legally operative at birth. Later relabeling, rescission, policy reversal, enforcement priority, or agency characterization cannot retroactively create or destroy the child's birth-time constitutional relation. Later records may be evidence only insofar as they confirm, clarify, or legally relate back to the birth-time incident.

The rule does not eliminate litigation at the margins. It confines litigation to a legally bounded question: whether the birth-time record supplied, withheld, recognized, protected, authorized, shielded, or displaced the incidents that complete jurisdiction requires. A status whose incidents are mixed, conditional, revocable, or partly post-birth remains a hard case. That hard case must be resolved through legal classification of birth-time incidents, not through agency label, suspicion, or discretionary balancing.

This separation prevents both forms of manipulation. Congress or the Executive cannot defeat citizenship by attaching a disfavored label to a status whose legal incidents show accepted protection and direct local allegiance. Nor can they create Fourteenth Amendment citizenship by assigning a favorable label to a status whose incidents do not show the constitutional relation. Political branches create incidents; courts assign constitutional significance to those incidents under the Citizenship Clause.

That principle cuts both ways. A favorable label alone cannot create Fourteenth Amendment citizenship if the birth-time incidents do not show operative authority, accepted protection, direct local allegiance, and no displacement. An unfavorable label alone cannot defeat citizenship if the legal incidents show the membership-conferring relation. The inquiry is therefore neither plenary-power formalism nor judicial balancing. It is legal classification of record effects against the fixed-point-derived predicate.

Durable authorization to remain, settled lawful domicile, refugee or asylee protection, work authorization, removal shields, access to ordinary civil process, and residence-like federal recognition are evidence of accepted sovereign protection. Brief tourist admission, visa-waiver entry, organized birth tourism, and bare unlawful entry without further federal recognition are weak evidence. Diplomatic immunity, hostile occupation, and historical tribal political relation are different in kind: they are not weak protection cases but possible displacing sovereign-status relations.

XVI.B.2. Tourist, Birth-Tourism, and Emergency-Birth Records

Tourist and birth-tourism cases should be treated with precision. A brief tourist admission or visa-waiver entry usually supplies lawful presence for a limited purpose and ordinary civil amenability, but it is weak evidence of residence-like protection or durable local allegiance. Organized birth tourism adds evidence of transience; it does not create a parent-blame rule. Emergency birth during a short visit is different from organized birth tourism because the record may show no planned use of a transient status for birth, but it still ordinarily lacks the durable incidents associated with residence-like protection. In each case, the label does not decide; the birth-time legal record does.

The point is categorical, not punitive. A tourist record usually shows limited admission, limited duration, and no residence-like settlement. Organized birth tourism may strengthen the transience inference because the record is structured around temporary presence for delivery rather than local settlement. Emergency birth during a short visit may point in the opposite direction on intent but still requires legal-incident analysis. None of these labels automatically creates or defeats citizenship; each supplies record evidence to be classified under complete jurisdiction.

Record-effect adjudication is deliberately preliminary. It does not constitutionalize an immigration-status code. It sorts modern categories by birth-time incidents so that courts can adjudicate categorically first and turn to applicant-specific proof only if a lawful, objective, record-based trigger makes the jurisdictional predicate legally material.

XVI.B.3. Unlawful Presence, Parent Incentives, and Statutory Consequences

Unlawful presence presents two different questions that must be kept separate. The constitutional question is whether birth occurred under operative U.S. authority, accepted sovereign protection, direct local allegiance, and no recognized displacing sovereign-status relation. The statutory and administrative question is what immigration consequences follow for the parents or family after the child is treated as a citizen or noncitizen under existing law. The latter cannot define the former.

Congress has broad authority over the admission, exclusion, removal, adjustment, and waiver eligibility of noncitizen parents, but that statutory authority does not include power to redefine the self-executing citizenship boundary fixed by the Fourteenth Amendment for a child born within its terms. The parent's downstream immigration penalties or benefits remain statutory consequences; they do not retroactively dissolve the child's birth-time constitutional predicate.

The incentive objection belongs principally in the statutory and administrative register. If a U.S.-born child is a constitutional citizen, current family-immigration law may later allow that citizen, at age twenty-one, to petition for a

parent. But a petition is not automatic admission, adjustment, or waiver. A parent still must satisfy the statutory path: immigrant-petition eligibility; visa availability where applicable; inspection and admission or parole, or another statutory adjustment pathway; admissibility or waiver eligibility; and favorable discretion. Unlawful presence and entry-related violations may generate inadmissibility or adjustment barriers, including the three- and ten-year unlawful-presence bars triggered after departure or removal. Those consequences are Congress's tools for addressing parent incentives; they are not elements of the child's Citizenship Clause predicate. See 8 U.S.C. §§ 1151(b)(2)(A)(i), 1154(a)(1)(A)(i), 1182(a)(9)(B), 1255(a); U.S. Citizenship & Immigr. Servs., Policy Manual, vol. 6, pt. B, ch. 2; id. vol. 7, pt. B, ch. 2; id. vol. 8, pt. O, ch. 6.

This distinction answers the moral-hazard concern without converting the Citizenship Clause into a parent-punishment rule. Congress may regulate, delay, condition, or deny parental immigration benefits within constitutional limits; agencies may enforce those statutes; courts may review statutory eligibility. But the child's constitutional citizenship cannot be subtracted merely because later statutes may make the child a potential petitioner. Conversely, the child's citizenship does not constitutionally entitle the parent to admission, adjustment, waiver, or discretionary relief.

The Article therefore does not deny that a child's citizenship may have statutory consequences for the parent or may create incentives at the margin. It denies only that those downstream statutory consequences define the child's birth-time constitutional status. Parent-through-child petitions, adjustment barriers, inadmissibility rules, waivers, removal rules, discretion, and any future congressional limits are tools of immigration law; they are not elements of "subject to the jurisdiction thereof."

Birth tourism and unlawful entry therefore occupy related but distinct record-effect positions. Birth tourism may involve facially lawful temporary admission but strong transience evidence. Bare unlawful entry is worse on accepted protection because it lacks initial lawful permission. Neither category is decided by label alone. Both require categorical record-effect classification before applicant-specific proof, and neither supplies a hereditary blame rule.

XVI.B.3.a. Derivative Parent Benefits and the No-Amnesty Firewall

Derivative parent benefits are outside the child-citizenship determination. A judicial or administrative determination that a U.S.-born child is a constitutional citizen does not decide whether a parent is removable, inadmissible, eligible for adjustment, eligible for a waiver, eligible for parole, eligible for cancellation, eligible for a family petition, or entitled to discretionary relief. Those questions remain governed by Congress's immigration statutes and valid agency administration.

The constitutional subject is the child. The statutory-benefit subject is the parent. The child's citizenship cannot be denied to punish, deter, or disable the parent, and the parent's immigration benefit cannot be assumed merely because the child is a citizen. This is the same register separation stated in the unlawful-presence discussion: no hereditary citizenship taint and no automatic immigration amnesty.

XVI.B.4. Statutory Mechanics at the Modern Margins

The hard modern categories require prose treatment because the legal incidents matter more than the label. TPS, parole, deferred action, DACA, pending adjustment, pending asylum, and related categories are not constitutional terms. They are statutory or administrative constructions that may carry permission, protection from removal, work authorization, continued presence, or other legal effects. The constitutional question is whether those effects were operative at birth and whether they bear on accepted sovereign protection or direct local allegiance.

Post-Mullin v. Doe TPS note. TPS remains a record-incident category. A valid individual TPS grant at the child's birth may strongly or moderately support accepted sovereign protection because it carries affirmative federal recognition, protection from removal during the protected period, permission to remain, and often work authorization. But Mullin v. Doe confirms that TPS designation, extension, and termination decisions are subject to a broad judicial-review bar for non-constitutional claims under 8 U.S.C. § 1254a(b)(5)(A), including procedural APA theories and challenges to the process leading to termination. Courts should not treat TPS as citizenship, permanent residence, admission, or an automatic constitutional category; nor should they treat later TPS termination as retroactively defeating citizenship if the birth-time predicate was satisfied. If TPS termination was validly effective before a later child's birth, however, the TPS

legal incident may no longer be available for that later birth. The decisive question remains what legal incidents existed at the child's birth.

Parole requires the same incident-level analysis. Durable humanitarian parole, family-unity parole, parole-in-place, or parole connected to protection may supply materially stronger evidence of accepted protection than brief inspection processing, custody-related parole, or event-specific entry. The word "parole" therefore does not decide the case. The legal effect of the parole record does.

Post-Mullin v. Al Otro Lado border-arrival note. Attempted entry, metering, presence in Mexico at a port threshold, a CBP appointment or queue, or an encounter with U.S. officials before crossing the border does not itself constitute arrival "in the United States" under INA §§ 1158(a)(1) and 1225(a)(1). Such facts should not be treated as domestic presence, inspection entitlement, asylum access, parole, accepted sovereign protection, or a domestic birth-time legal incident. Durable parole, formal protection, pending regularization with a stay, or other official U.S.-side legal incidents remain analytically distinct.

Deferred action, including DACA, is weaker than TPS or asylum by label because it is generally a revocable non-enforcement posture rather than lawful status. But recorded deferred action may still matter when paired with valid grant dates, renewal, work authorization, humanitarian or family-unity grounds, or pending regularization. A childhood-arrival label or Dreamer label does no independent constitutional work; the grant and its incidents do.

Pending adjustment, pending asylum, and pending regularization also require separation between filing and legal effect. A receipt notice proves that a filing exists; it does not necessarily prove accepted protection. The pending track becomes materially relevant when the record also shows a stay, parole, work authorization, statutory protection, removal shield, official forbearance, or comparable legally operative incident at birth.

Pending-asylum caveat after Al Otro Lado. For a parent outside the United States, attempted access to asylum, metering, a port appointment, a queue, or presence at the border threshold is not a protection-bearing incident. For a parent already inside the United States, a pending asylum application may matter only if tied to an official U.S.-side legal incident such as an EAD, stay, parole, credible-fear or protection screening with a removal shield, or a non-removal order. The distinction is outside-the-border attempted access versus inside-the-country legal incident.

Table XVI.B-4. Statutory Mechanics and Birth-Time Legal Incidents at the Modern Margins

Category	Record-effect treatment
TPS	Grant, removal shield, duration, renewal posture, EAD, and continuity matter; the label alone does not decide.
Parole	Durability, humanitarian or family-unity purpose, parole-in-place, permission period, and protection connection matter; brief custody/event-specific parole is weaker.
Deferred action / DACA	Grant dates, renewal, EAD, humanitarian or family-unity grounds, and pending regularization matter; revocability and lack of lawful-status label limit weight.
Pending adjustment, asylum, or regularization	Stay, parole, EAD, statutory shield, official forbearance, or protection from return matter; a bare filing or receipt notice does not necessarily supply protection.
Birth tourism or tourist entry	Limited purpose, duration, travel record, medical necessity, and emergency/planned-delivery evidence matter; lawful temporary entry is not residence-like protection.
Bare unlawful entry	Absence or later presence of recognition, protection, parole, shield, or regularization controls; unlawful entry is adverse evidence, not hereditary blame.

XVI.B.5. Modern Margins as Theoretical Exhaustion Tests

The modern margins are not merely applied coverage. They are theoretical exhaustion tests. A constitutional account of birthright citizenship is incomplete unless it can resolve modern categories without becoming geography-only, parent-status-only, executive-label-driven, or caste-producing.

A geography-only rule becomes unstable because it cannot explain why the original exclusions are legally coherent rather than arbitrary. A parent-status rule becomes unstable because it risks making foreignness, unlawful presence, temporary status, or parental fault hereditary. An executive-label rule becomes unstable because it allows the political branches to define constitutional citizenship by status names or document practices. A discretionary balancing rule becomes unstable because it invites profiling and private-life inquiry.

Complete jurisdiction is designed to survive that stress test. It asks the same question across categories: what did the birth-time record do as a matter of law? The answer may be strong inclusion, strong exclusion, weak or adverse evidence, or unresolved-margin classification. But the method remains constant: no label magic, no bloodline, no parent punishment, no document-refusal citizenship code, and no open-ended foreign-allegiance inquiry.

The resolution architecture therefore extends this Article rather than replacing it. This Article supplies the predicate and the record-effect method. The applied resolution categories test whether the method remains coherent when the facts involve TPS, parole, deferred action, DACA, pending status, birth tourism, unlawful entry, prior recognition, fraud, parentage, tribal relation, diplomacy, hostile occupation, territorial predicate disputes, and proof problems. The value of the categories is not mere comprehensiveness; it is theoretical exhaustion under administrable legal constraints.

Administrative proof postures remain downstream. This Article identifies the constitutional elements and the record-incident method. Administrative proof postures for modern-margin categories are supplied in Adjudication and Administration of Birthright Citizenship Under Complete Jurisdiction, including Appendix X. Those postures do not convert unresolved categories into automatic constitutional outcomes; they identify provisional evidentiary postures and burden consequences pending fuller adjudication.

XVI.B.6. Duration, Renewal, and Reliance as Record-Incident Amplifiers

Temporary status remains temporary as a statutory label. Complete jurisdiction does not turn a temporary label into permanent residence merely because the status has been renewed. But duration and reliance can alter the evidentiary weight of the birth-time legal incident. Repeated formal renewal, birth-time validity, removal protection, work authorization tied to permission or protection, and documented local reliance may show that the sovereign was not merely tolerating physical presence but had supplied a residence-like, protection-bearing legal relation.

Duration and reliance are therefore record-incident amplifiers, not independent citizenship rules. They can strengthen ASP-RES, ASP-PROT, ASP-PAR, ASP-WORK, or ASP-REG coding when the underlying record already contains permission, protection, stay, parole, work authorization tied to permission or protection, or a pending track with legal consequences. They cannot transform mere non-enforcement, informal tolerance, custody, emergency aid, or event-specific admission into accepted sovereign protection by themselves.

Table XVI.B-6. Duration and Reliance as Record-Incident Amplifiers

Factor	Effect on coding
One-time, short-term, event-specific admission	Usually weak or adverse; often transitory.
Formal permission valid at birth	Supports ASP-PERM or related accepted-protection coding.
Removal shield valid at birth	Supports ASP-PROT.
Work authorization tied to protection or permission	Supports ASP-WORK; not standalone magic.
Continuous renewals before birth	Increases durability and may support ASP-RES-like evidentiary weight.
Pending regularization plus stay, parole, EAD, or official shield	Supports ASP-REG.
Durable humanitarian parole or parole-in-place	Supports ASP-PAR, potentially strong.
Mere non-enforcement or informal tolerance	NON-ASP.

XVII. Falsification

The final test is falsification. Complete jurisdiction should not be insulated from counterexamples. If a recognized person-specific fixed point cannot be explained by the four-part relation, the theory must adjust. Potential person-specific counterexamples include broad language in Wong; Plyler's footnote; Lee's residence argument; Confederate/rebel births; unlawful importation and anti-coolie contexts; foundling presumptions; modern diplomatic-birth practice; birth tourism; TPS; parole; and bare unlawful entry. Territorial-status examples - unincorporated territories, embassies, vessels, aircraft, military bases abroad, border zones, and similar boundary questions - are included only as boundary-source controls, not as person-specific jurisdictional fixed points. They require a separate territorial-source package before they can be used as affirmative proof because they may test the first textual predicate - birth "in the United States" - rather than the person-specific jurisdictional predicate.

A contrary source would falsify the account if it showed a recognized birth within the Fourteenth Amendment's territorial predicate, under operative U.S. authority, accepted sovereign protection, direct local allegiance, and no recognized displacing sovereign-status relation, yet denied constitutional birth citizenship on the ground that the jurisdictional predicate was absent.

Territorial edge cases therefore falsify this Article only if they produce a controlling source satisfying two conditions: first, the source must establish that the birth occurred within the Fourteenth Amendment's territorial predicate; second, it must show that citizenship was granted or denied contrary to the person-specific Complete Jurisdiction relation. If the dispute is only whether the place of birth counts as "in the United States," the case tests the territorial predicate and requires a separate territorial-source package.

Source-disposition controls how these counterexamples enter the proof. Foundlings are statutory/admin presumption evidence only; Bingham, Bates, and the Congressional Globe sequence are contextual drafting materials with source-weight limits; hostile occupation supports operative authority and protection; unlawful importation / anti-coolie contexts are pressure-point analogues for the proposition that unlawfulness is not itself sovereign-status displacement; and territorial edge cases remain future research unless separately sourced through a complete territorial-source package. The downstream parent-benefit objection is different. It is a statutory and administrative consequence question, not a Citizenship Clause fixed point: later petition, adjustment, inadmissibility, waiver, and discretion rules may address incentives without converting the child's constitutional predicate into a sanction for parental misconduct.

Each counterexample must be classified. Some may be controlling holdings. Some may be dicta. Some may be drafting evidence. Some may be implementation practice. Some may be modern status incidents. Some may be non-fixed points. The source-weight hierarchy prevents the paper from treating all sources as equal. Constitutional text and Supreme Court holdings have controlling weight. Contemporaneous enacted statutes and drafting history have high but contextual weight. Common law and law of nations provide background. Administrative practice supplies proof mechanics. Scholarship supplies comparator pressure.

XVIII. Conclusion: Complete Jurisdiction as Constrained Legal Synthesis

Section XIII.A performs the body-level aggregation; Appendix L.1-L.9 supplies the supporting record. This Conclusion therefore does not ask the reader to infer the rule from appendices alone. The synthesis has already been assessed in the body. What remains is to state what the result means for the Citizenship Clause, for Wong and Elk, for administration, and for modern margins.

Complete Jurisdiction's no-contrary-exercise thesis is complete as to the recognized person-specific Citizenship Clause fixed points processed in the source record; it does not purport to decide every territorial-status question without a separate territorial-source package. That boundary is methodological discipline, not a concession: the theory is complete within its defined domain and candid about what belongs to a separate territorial inquiry.

The first meaning is textual. The Clause contains a birth or naturalization predicate and a jurisdictional predicate. The result gives both predicates work. Birth in the United States remains indispensable and ordinarily decisive as proof. Jurisdiction remains the citizenship-producing relation, not surplusage. The Article therefore rejects a geography-only rule without diminishing the ordinary force of domestic birth.

The second meaning is historical. Reconstruction's settlement remains the controlling constraint. Complete jurisdiction cannot become a caste device, a bloodline rule, a parent-worth inquiry, or a mechanism for inherited civil degradation. The rule that emerges from the fixed-point record protects the freedmen core and the Wong resident-alien core while recognizing the narrow sovereign-status displacements that the historical record itself preserves.

The third meaning is doctrinal. Wong and Elk are not opposing slogans. Wong secures the included resident, domiciled, non-diplomatic alien-parent core and rejects alienage, foreign nationality, and foreign parentage alone as disqualifying. Elk preserves the proposition that geography plus some legal subjection can be insufficient where a separate political relation persists. Complete jurisdiction makes those holdings coexist: it preserves the affirmative core and the recognized sovereign-status exclusion.

The fourth meaning is methodological. Competing theories are not wrong because they identify false facts. They are incomplete because they generalize one true fact into the whole rule. Soil, ordinary governability, allegiance, protection,

residence, parent-linked evidence, and closed exceptions all remain in the account. None is allowed to overrun the others. That is why complete jurisdiction is a derived principle rather than a compromise position.

The fifth meaning is administrative. A timely U.S. birth record remains the ordinary endpoint. The government cannot convert the jurisdictional predicate into bedside adjudication, universal parental-status screening, demographic suspicion, or an immigration-status code. Further inquiry requires an objective, legally material, official record-based trigger tied to one of the derived elements. Modern categories are evaluated by birth-time legal incidents, not by favorable or unfavorable labels.

The sixth meaning is institutional. Courts, not executive officers acting by document refusal, decide constitutional meaning. Congress may create statutory citizenship, proof rules, humanitarian statuses, and immigration incidents within constitutional bounds. Agencies administer proof under those rules. But neither administrative habit nor executive nonrecognition supplies the meaning of “subject to the jurisdiction thereof.”

The seventh meaning is statutory and administrative. Incentive concerns about later parent benefits belong to immigration statutes and agency implementation, not to the constitutional predicate itself. A citizen child’s later ability to file a family petition does not create automatic parent status, and unlawful presence may carry separate inadmissibility, adjustment, waiver, and discretion consequences. Those consequences may be tightened or administered by Congress and agencies within constitutional bounds. They do not justify turning the child’s birth-time status into inherited punishment, and they do not make later parent benefits part of the meaning of “subject to the jurisdiction thereof.” Nor is the Article claiming that citizenship is consequence-free for parents; it is claiming that those consequences are statutory consequences to be regulated by Congress and administered by agencies, not constitutional predicates to be read backward into the child’s birth-time status.

The eighth meaning is comparative and operational. Complete jurisdiction absorbs the valid consent insight in Schuck and Smith without allowing subjective political nonconsent to become hereditary exclusion. It incorporates the common-law allegiance-and-protection insight associated with Ramsey-style originalism without reducing the enacted constitutional predicate to geography alone. It treats the modern categories as theoretical exhaustion tests rather than as mere coverage. And it converts accepted protection and rebuttal administration into record-incident protocols so that courts and agencies can apply the rule without bureaucratic drift, profiling, or label control.

The claim is not mathematical certainty. It is legal synthesis under constraint. The historical materials are not perfectly ordered, and modern administration is not frictionless. But constitutional interpretation often requires a rule that preserves text, settled holdings, recognized inclusions, recognized exclusions, implementation practice, and anti-caste limits without allowing any one datum to swallow the rest. Complete jurisdiction is the rule that best serves that function on the present fixed-point record, subject to revision if a controlling counterexample is produced.

The final meaning is falsifiability. The rule remains open to revision if a controlling person-specific fixed point requires a contrary exercise. The present record does not identify one. On the fixed-point record presently processed, complete jurisdiction best explains the ordinary force of domestic birth and the recognized exclusions: domestic birth ordinarily proves citizenship because it ordinarily occurs under operative U.S. authority, accepted sovereign protection, and direct local allegiance; citizenship is defeated only when a recognized displacing sovereign-status relation prevents that birth-time relation from attaching. Complete Jurisdiction’s no-contrary-exercise thesis is complete as to the recognized person-specific Citizenship Clause fixed points processed in the source record; it does not purport to decide every territorial-status question without a separate territorial-source package. Complete jurisdiction is therefore the best constrained synthesis of the record within its defined domain, not a claim of canonical closure.

Appendices

The appendices document the Article's fixed-point method. They preserve the distinction between source, fixed point, property, principle, and administration.

Appendix Inventory. Complete Listing of Appendices and Tables

The following inventory lists the complete appendix sequence and the table, matrix, figure, and flow-diagram inventory preserved in this manuscript. It is organizational only; it does not alter the proof architecture or the source-weight rules used in the body and appendices.

Appendices and Addenda

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Table AG-1. Appendices and Addenda	
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3	Appendix B. Fixed-Point Extraction Dossiers
4	Appendix C. Fixed-Point Properties and Legal Inferences
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9	Appendix G. Fixed-Point Inventory and Source Treatment
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12	Appendix J. Humanitarian, Coercion, and Protection Categories
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25	Appendix M.1A. Burden Hierarchy, Duration/Reliance Amplifiers, and Parent-Benefit Firewall
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Tables, Matrices, Figures, and Flow Diagrams

This inventory lists every titled table, matrix, figure, and flow diagram presented in the Article. Continuation labels are layout aids only: the inventory lists each titled object once, and a continuation prefix appears only at the top of a continued page.

Table AG-2. Tables, Matrices, Figures, and Flow Diagrams Inventory

The following inventory uses the same object type, enumeration, and title that appear with each table, matrix, figure, or flow diagram in the Article. Where an object spans multiple pages, the continuation label is not separately inventoried.

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2	IV. Drafting Paths Not Taken	Table IV-1. Drafting Paths and Limiting Uses
3	VI. Category Genealogy	Table VI-1. Category Genealogy and Property Pressure
4	VII.A. Foundlings and Presumption Under Uncertainty	Table VII-1. Property Extraction Summary
5	VIII. Wong and Elk as Boundaries	Table VIII-1. Wong and Elk Boundary Classifications
6	XI.A. Lee's Argument in Its Strongest Form	Table XI-1. Lee Naturalization-Residence Inference and Complete-Jurisdiction Response
7	XIII. Comparator Review	Table XIII-1. Comparator Review: Rival Theories and Fixed-Point Risks
8	XIII.A.2. Retained Properties and Filters	Table XIII.A-1. Applied Aggregation of the Fixed-Point Record
9	XVI. Administration and Modern Margins	Table XVI-1. Modern Status Incidents and Preliminary Proof Significance
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16	B-2. Diplomatic Birth	Table B-2. Fixed-Point Dossier: Diplomatic Birth
17	B-3. Hostile Occupation	Table B-3. Fixed-Point Dossier: Hostile Occupation
18	B-4. Historical Tribal Political Relation	Table B-4. Fixed-Point Dossier: Historical Tribal Political Relation
19	B-5. Foundlings	Table B-5. Fixed-Point Dossier: Foundlings
20	B-6. Elk v. Wilkins	Table B-6. Fixed-Point Dossier: Elk v. Wilkins
21	B-7. United States v. Wong Kim Ark	Table B-7. Fixed-Point Dossier: United States v. Wong Kim Ark
22	B-8. Implementation Practice: Birth Records, Diplomatic Status, Passports, and Later Adjudication	Table B-8. Fixed-Point Dossier: Implementation Practice
23	B-9. Confederate/Rebel Births and Reconstruction Inclusion	Table B-9. Fixed-Point Dossier: Confederate/Rebel Births and Reconstruction Inclusion
24	B-10. Unlawful Importation / Anti-Coolie Contexts	Table B-10. Fixed-Point Dossier: Unlawful Importation / Anti-Coolie Contexts
25	Appendix C. Fixed-Point Properties and Legal Inferences	Table C-1. Fixed-Point Properties and Legal Inferences
26	Appendix D. Comparator Completeness Review	Table D-1. Comparator Completeness Review - Compact Integration Table
27	D-2. Ho	Table D-2. Comparator Review: Ho
28	D-3. Heilpern / Whittington	Table D-3. Comparator Review: Heilpern / Whittington
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33	D-8. Bernick / Gowder / Kreis	Table D-8. Comparator Review: Bernick / Gowder / Kreis
34	D-9. Donahue	Table D-9. Comparator Review: Donahue
35	D-10. France	Table D-10. Comparator Review: France
36	D-11. Magliocca	Table D-11. Comparator Review: Magliocca
37	D-12. Schuck / Smith	Table D-12. Comparator Review: Schuck / Smith
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42	F.3A. Counterexample Review - Minimum Counterexamples (Part 1)	Table F-3A. Counterexample Review - Minimum Counterexamples (Part 1)
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44	F.3C. Extended Pressure Points	Table F-3C. Extended Pressure Points
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49	G.3. Non-Fixed-Point Inventory	Table G-3. Non-Fixed-Point Inventory
50	G.4A. Master Fixed-Point Inventory - Text, Grammar, and Drafting	Table G-4A. Master Fixed-Point Inventory - Text, Grammar, and Drafting
51	G.4B. Master Fixed-Point Inventory - Reconstruction, Categories, and Holdings	Table G-4B. Master Fixed-Point Inventory - Reconstruction, Categories, and Holdings
52	G.4C. Master Fixed-Point Inventory - Rights, Implementation, Modern Incidents, and Comparators	Table G-4C. Master Fixed-Point Inventory - Rights, Implementation, Modern Incidents, and Comparators
53	G.4D. Master Fixed-Point Inventory - Counterexamples and Boundary Pressure Points	Table G-4D. Master Fixed-Point Inventory - Counterexamples and Boundary Pressure Points
54	G.5. Falsification Consequence Taxonomy	Table G-5. Falsification Consequence Taxonomy
55	Appendix H. Wong: Holding, Reasoning, and Dicta	Table H-1. Wong Material Classification
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58	Appendix I. Citation Treatment and Source Limits	Table I-1. Citation Treatment and Source Limits

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77	Appendix L.6. Synthesis of Retained Constitutional Properties	Table L.6. Synthesis of Retained Constitutional Properties
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79	Appendix L.8. Counterexample Review and Source Limits	Table L.8. Counterexample Review and Source Limits

Appendix A. Reconstruction and Drafting Source Table

This appendix collects the principal drafting-history sources and assigns each source a proof function and limiting use.

Table A-1. Drafting-History Chronology and Proof Function

Table A-1. Drafting-History Chronology and Proof Function					
Seq.	Source / event	Pin cite(s)	Core source point	Function / limiting use	Source treatment
1	Civil Rights Act of 1866 enacted formula	Civil Rights Act of 1866, ch. 31, § 1, 14 Stat. 27, 27.	“All persons born in the United States and not subject to any foreign power, excluding Indians not taxed...”	Statutory comparison point. Shows Congress knew how to write a negative foreign-power / Indian-exclusion formulation; it does not override the later constitutional text.	Verified primary text; retain Statutes at Large pin.
2	Citizenship Clause final text	U.S. Const. amend. XIV, § 1; Cong. Globe, 39th Cong., 1st Sess. 2890, 2892, 2897 (1866).	“All persons born or naturalized in the United States, and subject to the jurisdiction thereof...”	Constitutional formulation. Replaces statutory negative formulation with a general jurisdictional predicate and adds state-citizenship consequence.	Official constitutional text verified; debate correction checked.
3	Doolittle proposal	Cong. Globe, 39th Cong., 1st Sess. 2890, 2897 (1866).	Proposed inserting “excluding Indians not taxed” after “thereof”; rejected 10–30.	Negative drafting path. Rejection cannot be overread, but shows Senate considered and declined express Indian-exclusion text.	Primary source verified.
4	Howard introduction and tribal-status explanation	Cong. Globe, 39th Cong., 1st Sess. 2890, 2895 (1866).	Introduced Clause, identified foreign-minister exception, opposed Doolittle, and described tribal Indians as quasi-foreign and not fully subject.	Introduces Clause and fixed tribal-status problem. Supports inclusion while preserving sovereign-status limits.	Verified primary text; cite introduction and response lines.
5	Trumbull statements: “complete jurisdiction” and “not owing allegiance”	Cong. Globe, 39th Cong., 1st Sess. 2893–94 (1866).	“Subject to the jurisdiction” meant “subject to the complete jurisdiction” and “not owing allegiance to anybody else.”	Central phrase-history source. Use for legal completeness and sovereign relation, not subjective loyalty or hereditary parentage.	Verified primary text; use full context.
6	Bingham statements: parentage, allegiance, anti-caste	Cong. Globe, 39th Cong., 1st Sess. 1291 (1866).	Civil Rights Act language described as declaratory of birth within U.S. jurisdiction by parents not owing foreign allegiance; also birthright anti-denial language.	Contextual drafting-history evidence. Supports evidentiary relevance of parent-linked sovereign facts only when filtered through the adopted text and Reconstruction anti-caste commitments; it does not override the final Clause or create bloodline.	Primary source verified; use only with surrounding context.

Table A-1. Drafting-History Chronology and Proof Function

Seq.	Source / event	Pin cite(s)	Core source point	Function / limiting use	Source treatment
7	Johnson / Trumbull “better language” colloquy	Cong. Globe, 39th Cong., 1st Sess. 2893–94 (1866).	Johnson sought clarity; Trumbull called the Clause “better than the language in the civil rights bill” while pursuing same object.	Explains movement from statutory formula to constitutional phrase. Shows reconfiguration, not pure soil or frozen Civil Rights Act language.	Verified primary text; label as Johnson/Trumbull colloquy.
8	Attorney General Bates, Citizenship opinion	Citizenship, 10 Op. Att’y Gen. 382, 394, 397 (1862).	Every person born in the country is, at birth, prima facie a citizen; challenger bears burden to prove exclusion.	Use for prima facie citizenship/presumption background, not soil-only finality.	Primary source verified; use only for presumption logic.

A.2. Functional Explanation of Chronology Items

1. Civil Rights Act of 1866. The Civil Rights Act is the statutory starting point. It proves that Congress had already used a negative formulation—born in the United States, not subject to any foreign power, excluding Indians not taxed—and that this formulation was tied to Reconstruction’s anti-caste project. In this Article’s method, the Act is not the final constitutional rule. It is the comparison point that shows what the Thirty-Ninth Congress knew how to say before it adopted a different constitutional formulation.
2. Citizenship Clause final text. The final Citizenship Clause turns the statutory formulation into a constitutional sentence with a broad subject, two predicates, and a national/state citizenship consequence. The change matters because the Constitution does not say merely “all persons born in the United States are citizens,” nor does it reproduce the Civil Rights Act’s full negative formula. It adopts birth or naturalization plus subjection to U.S. jurisdiction. That is the textual anchor for the new paper.
3. Doolittle proposal. Doolittle’s proposed insertion of “excluding Indians not taxed” is essential because it marks a drafting path not taken. Its rejection cannot be overread. Howard and Trumbull opposed the insertion not because tribal relations were irrelevant, but because they understood tribal political relations already to fall outside the jurisdictional predicate. The proposal therefore supports fixed-point completeness: rejected text remains evidence, but not controlling text.
4. Howard introduction. Howard supplies the introduced text, the declaratory-law framing, the diplomatic/foreign-minister exclusion, and the tribal-status explanation. His statement is most useful when read as a whole. The broad inclusion language protects the anti-caste birthright principle; the diplomatic and tribal limits show that geography was not treated as self-sufficient when a legally recognized sovereign-status relation displaced membership-conferring jurisdiction.
5. Trumbull. Trumbull supplies the strongest language for “complete jurisdiction,” but his statement must remain contextualized. He was responding to Doolittle and Johnson on tribal political relation, treaties, partial allegiance, and whether ordinary legal or military control equaled Citizenship Clause jurisdiction. This Article uses Trumbull to define the level of jurisdictional completeness, not to create a subjective loyalty test or hereditary parentage rule.
6. Bingham. Bingham is important because he links birth, jurisdiction, and parent-linked foreign allegiance. That supports the claim that parent-linked facts can be legally relevant evidence. But Bingham cannot be generalized into bloodline. The same Reconstruction project rejected race, inherited civil degradation, and parental worth as citizenship limits. This Article therefore carries forward the evidentiary use of parent-linked sovereign facts while filtering out hereditary exclusion. For source-weight purposes, Bingham is treated as contextual drafting-history evidence: it may help identify the evidentiary relevance of parent-linked sovereign facts, but it cannot override the adopted constitutional text or function as an isolated controlling rule.
7. Johnson / Trumbull “better language” colloquy. The Johnson/Trumbull exchange explains why chronology matters. Johnson pressed the relationship between the amendment and the Civil Rights Act and argued for unambiguous language. Trumbull responded that “excluding Indians not taxed” was uncertain in the first section and that the constitutional language was better while reaching the same object. This supports this Article’s argument that the final Clause was neither pure soil nor a frozen Civil Rights Act formula; it was a general jurisdictional predicate intended to do the work more cleanly.
8. Bates. Bates supplies the presumption logic. Birth in the country was prima facie citizenship, and the challenger bore the burden to prove a strong defeating condition. That is not soil-only finality. It is an evidentiary structure: birth does ordinary proof work unless a legally material jurisdictional fact appears. The presumption-plus-trigger administration develops that logic without letting Bates become a complete constitutional taxonomy. Bates is therefore used for prima facie citizenship and proof allocation only; it is not used as proof of conclusive soil-only citizenship or as a complete taxonomy of the Citizenship Clause.

A.3. Preliminary Synthesis

Preliminary synthesis. The drafting history does not support starting with a preferred abstraction. The Civil Rights Act supplies a statutory negative formula. The Citizenship Clause supplies a constitutional two-predicate formula. Doolittle shows an express-exclusion path not taken. Howard and Trumbull show that diplomacy and tribal political relation were understood as jurisdictional limits. Bingham shows that parent-linked sovereign facts can be evidentiary without becoming bloodline. Johnson and Trumbull together show that the final constitutional language was chosen to avoid uncertainty while preserving the object of citizenship definition. Bates supplies the proof presumption. Read together, the drafting materials support the paper's order of operations: text, chronology, source weight, then principle.

Appendix B. Fixed-Point Extraction Dossiers

This appendix documents the process by which the paper moves from settled categories and holdings to properties used in the complete-jurisdiction synthesis.

B.0. Interpretive Criteria

Table B-0. Interpretive Criteria

Table B-0. Interpretive Criteria	
Interpretive criterion	Legal meaning
Holding over dicta	Retain facts necessary to the legal result; treat broad language as reasoning unless necessary to the holding.
Function over label	Retain the sovereign-relation function, not the historical label by itself.
No forbidden generalization	Do not generalize race, ancestry, bloodline, parental blame, moral worth, or political disfavor.
Recognized sovereign-status exclusion	Do not extend diplomats, hostile occupation, or tribal political relation beyond equivalent sovereign-status displacement.
Presumption where proof is impossible	If the category turns on unknown facts, carry forward the presumption principle rather than an impossible proof demand.
Modern translation by legal incident	Translate modern statuses by what the birth-time legal record did, not by political label.
Falsification check	If a retained or filtered fact changes the result, revise the property extraction rather than protect the theory by assertion.

B-1. Freedmen and Their Children

Table B-1. Fixed-Point Dossier: Freedmen and Their Children

Table B-1. Fixed-Point Dossier: Freedmen and Their Children	
Fixed point	Freedmen and their children as the affirmative Reconstruction birth-citizenship case.
Source domain	Reconstruction; Civil Rights Act of 1866; Fourteenth Amendment; repudiation of Dred Scott; anti-caste constitutional settlement.
Original legal objective	End race-based exclusion from national citizenship, reject inherited civil degradation, and constitutionalize a birth-citizenship rule that former slave states could not defeat by ancestry, caste, or parental status.
Citizenship relevance	Supplies the affirmative inclusion paradigm: persons born within the domestic sovereign community could not be denied citizenship by race, descent, caste, inherited condition, or parental worth.
Facts considered	Persons of African descent; formerly enslaved persons and their children; domestic birth; prior state and federal denial of citizenship; Reconstruction response to Dred Scott; Civil Rights Act formula; Fourteenth Amendment text; state and national citizenship consequences.
Facts retained	Domestic birth under U.S. authority; Reconstruction anti-caste purpose; constitutional rejection of race, ancestry, caste, bloodline, inherited civil degradation, and parental blame as citizenship limits.
Facts filtered out	Any inference that parentage, ancestry, prior enslavement, perceived social worth, race, or inherited civil condition can operate as a citizenship-disqualifying status.

Table B-1. Fixed-Point Dossier: Freedmen and Their Children

Fixed point	Freedmen and their children as the affirmative Reconstruction birth-citizenship case.
Reason for filtering	The Reconstruction settlement was designed to abolish hereditary civil degradation, not to create new hereditary exclusions. Parent-linked facts may be evidence in some categories, but this fixed point forbids their use as bloodline or caste.
Property extracted	Anti-caste inclusion; no hereditary transmission of nonmembership; no race/ancestry/bloodline/parental-blame rule.
Wrong inference blocked	“If parent-linked facts sometimes matter, parentage can itself determine birth citizenship.”
Corrected inference	Parent-linked facts may be evidence of the child’s birth-time sovereign relation, and parent-linked status is a possible trigger for categorical classification, not a citizenship-denial rule. Reconstruction forbids parentage from becoming a hereditary citizenship rule.
Role in complete jurisdiction	Supplies the anti-caste filter governing all later property extraction. Any negative limit must be closed by kind and cannot rest on inherited blame, race, ancestry, or generalized parental status.
Sources to cite	U.S. Const. amend. XIV, § 1; Civil Rights Act of 1866, ch. 31, § 1, 14 Stat. 27, 27; Dred Scott v. Sandford, 60 U.S. (19 How.) 393 (1857), superseded by U.S. Const. amend. XIV; Slaughter-House Cases, 83 U.S. (16 Wall.) 36, 71–73 (1873); Cong. Globe, 39th Cong., 1st Sess. 2890–94 (1866); companion essay Table 1A.
Confidence	High. The fixed point and property are central and stable; public use is limited to the cited propositions.

B-2. Diplomatic Birth

Table B-2. Fixed-Point Dossier: Diplomatic Birth

Table B-2. Fixed-Point Dossier: Diplomatic Birth	
Fixed point	Diplomatic birth: child born in the United States to a parent with recognized diplomatic immunity or equivalent foreign-sovereign representative status.
Source domain	Law of nations; diplomatic immunity; sovereign representation; common-law and constitutional discussions of foreign ministers and ambassadors.
Original legal objective	Preserve foreign sovereign representation from ordinary local coercive authority and prevent the host sovereign from exercising full local jurisdiction over diplomatic agents.
Citizenship relevance	Shows that physical birth within U.S. geography does not produce citizenship when a recognized sovereign-status shield prevents the child’s birth from occurring under direct local allegiance and accepted U.S. protection.
Facts considered	U.S. geography; foreign official parent; diplomatic status recognized by U.S. law/law of nations; immunity from ordinary local process; allegiance/protection routed through sending sovereign; parent’s presence is official, not ordinary residence or immigration status.
Facts retained	Physical U.S. birth can be present; ordinary geography is not conclusive; recognized diplomatic immunity can create sovereign-status displacement; the exclusion turns on legal immunity and foreign sovereign representation.

Table B-2. Fixed-Point Dossier: Diplomatic Birth

Fixed point	Diplomatic birth: child born in the United States to a parent with recognized diplomatic immunity or equivalent foreign-sovereign representative status.
Facts filtered out	Foreign nationality generally; alienage generally; foreign parentage generally; ordinary immigration status; parental blame; race or national-origin disfavor; any open-ended foreign-allegiance rule.
Reason for filtering	Diplomatic status is a legally recognized sovereign-immunity relation, not ordinary foreignness. Generalizing the category to all foreign parents would transform a narrow law-of-nations immunity into an anti-immigrant parentage rule.
Property extracted	Recognized displacing sovereign-status relation; recognized sovereign-status exclusion; geography is not conclusive where legal immunity displaces local allegiance.
Wrong inference blocked	“Diplomats prove that all foreign parents or foreign nationals defeat citizenship.”
Corrected inference	Diplomatic birth proves only that a legally recognized sovereign-status shield can defeat membership-conferring jurisdiction despite physical birth in the United States.
Role in complete jurisdiction	Supplies the clearest example of the fourth element: no recognized displacing sovereign-status relation. It also helps define what counts as displacement by kind.
Sources to cite	United States v. Wong Kim Ark, 169 U.S. 649, 682, 693 (1898); The Schooner Exchange v. McFaddon, 11 U.S. (7 Cranch) 116 (1812); 1 William Blackstone, Commentaries *361-62; State Department and passport materials cited only for retained implementation propositions.
Confidence	High for property; public use is limited to cited diplomatic-birth practice sources and cited regulatory provisions.

B-3. Hostile Occupation

Table B-3. Fixed-Point Dossier: Hostile Occupation

Table B-3. Fixed-Point Dossier: Hostile Occupation	
Fixed point	Hostile occupation / invading army: birth in territory where hostile force displaces operative U.S. sovereign authority or where a parent is part of an invading enemy force.
Source domain	Law of war; common-law invader exception; operative sovereignty; allegiance and protection during occupation or invasion.
Original legal objective	Account for situations where nominal territorial location does not reflect actual sovereign authority, protection, or allegiance because enemy power controls the relevant relation.
Citizenship relevance	Shows that geography alone is insufficient when operative U.S. authority and accepted U.S. protection are displaced by hostile sovereign control.
Facts considered	Nominal U.S. territory or physical presence; hostile military control or enemy occupation; allegiance/protection tied to hostile sovereign; lack of ordinary U.S. protection; absence or displacement of effective U.S. civil authority; possibility of enemy soldiers' children.

Table B-3. Fixed-Point Dossier: Hostile Occupation

Fixed point	Hostile occupation / invading army: birth in territory where hostile force displaces operative U.S. sovereign authority or where a parent is part of an invading enemy force.
Facts retained	Operative sovereign authority matters; nominal geography does not itself answer the citizenship predicate; hostile control can displace U.S. authority, protection, and local allegiance.
Facts filtered out	Any general claim that wartime, conflict, political dissent, or parental disloyalty alone defeats citizenship; any broad analogy from enemy occupation to ordinary undocumented presence or temporary admission.
Reason for filtering	The relevant feature is displacement of operative sovereign authority by hostile sovereign control, not subjective disloyalty or legal wrong by a parent.
Property extracted	Composite sovereign displacement. Birth must occur under operative U.S. territorial authority and accepted U.S. protection. Hostile occupation negates that condition only when hostile sovereign control displaces local U.S. authority and protection at the place of birth. Parent-linked enemy-force facts may identify the child's hostile-sovereign birth-time relation, but only as evidentiary conduits; they do not create hereditary enemy nonmembership, enemy ancestry, parental disloyalty, or ordinary foreign-parentage exclusion.
Wrong inference blocked	"Hostile occupation proves that any hostile or unlawful parental attitude defeats citizenship."
Corrected inference	Hostile occupation proves that operative sovereign authority and protection are necessary; it does not create a subjective-loyalty or parental-blame rule.
Role in complete jurisdiction	Supplies the operative-authority element and clarifies the closed negative limit. The category shows that nominal geography is not enough when hostile sovereign control displaces U.S. authority, protection, and local allegiance. It also shows that parent-linked facts may matter when they identify a recognized competing-sovereign relation, but may not be generalized into bloodline, ancestry, ordinary alienage, or parental-blame exclusion.
Sources to cite	United States v. Wong Kim Ark, 169 U.S. 649, 682, 693 (1898); Inglis v. Trs. of Sailor's Snug Harbour, 28 U.S. (3 Pet.) 99, 155–65 (1830); 1 William Blackstone, Commentaries *361–62; law-of-war sources as background. Use for operative authority and protection, not ordinary alienage or parental disloyalty.
Confidence	High for the extracted property that operative U.S. authority and protection are necessary; public use is limited to cited Inglis and Blackstone sources.

B-4. Historical Tribal Political Relation

Table B-4. Fixed-Point Dossier: Historical Tribal Political Relation

Table B-4. Fixed-Point Dossier: Historical Tribal Political Relation	
Fixed point	Historical tribal political relation before statutory supersession, including the Reconstruction-era “Indians not taxed” problem and tribal political-community status.
Source domain	Federal Indian law; treaty relations; quasi-foreign political community; Congressional debates over Native status; later statutory citizenship.
Original legal objective	Preserve separate political communities within U.S. borders that were not fully absorbed into ordinary U.S. political jurisdiction, while managing the boundary between federal authority and tribal internal self-government.
Citizenship relevance	Shows that U.S. geography and some legal subjection may be insufficient where a separate, recognized political-community relation persists.
Facts considered	Birth within U.S. geographic boundaries; tribal membership; treaty relations; quasi-foreign political community; partial federal authority; disputed congressional jurisdiction; “Indians not taxed”; Doolittle proposal; Howard/Trumbull explanations; Elk holding; later Indian Citizenship Act.
Facts retained	Separate tribal political relation can displace membership-conferring jurisdiction; ordinary legal authority may be partial; tribal-status history supplies a recognized sovereign-status boundary.
Facts filtered out	Race; ancestry; ordinary alienage; ordinary immigrant parentage; undocumented status analogy; general foreignness; parental blame.
Reason for filtering	The exclusion rests on political relation and quasi-foreign tribal status, not ancestry or foreignness as such. Wong itself rejected using Elk against ordinary noncitizen immigrant-parent births.
Property extracted	Recognized displacing sovereign-status relation; separate political-community relation; partial legal subjection is not always complete jurisdiction.
Wrong inference blocked	“Tribal status supports excluding ordinary immigrant children or children of unlawfully present parents.”
Corrected inference	Tribal status is closed by kind. It proves political-community displacement, not ordinary immigration-status exclusion.
Role in complete jurisdiction	Supplies a negative boundary and helps define the fourth element, while also demonstrating why partial legal subjection and geography do not exhaust the citizenship predicate.
Sources to cite	Elk v. Wilkins, 112 U.S. 94, 99–103 (1884); United States v. Wong Kim Ark, 169 U.S. 649, 680–82, 693 (1898); Civil Rights Act of 1866, ch. 31, § 1, 14 Stat. 27, 27; Cong. Globe, 39th Cong., 1st Sess. 2890, 2893–94, 2897 (1866); Indian Citizenship Act of 1924, ch. 233, 43 Stat. 253; 8 U.S.C. § 1401(b); Gregory Ablavsky & Bethany Berger, “Subject to the Jurisdiction Thereof”: The Indian Law Context, 100 N.Y.U. L. Rev. 201 (2025).
Confidence	High for property and wrong-inference block; public use relies on primary sources and Ablavsky/Berger for Indian-law context.

B-5. Foundlings

Table B-5. Fixed-Point Dossier: Foundlings

Table B-5. Fixed-Point Dossier: Foundlings	
Fixed point	Foundlings and unknown-parentage cases.
Source domain	U.S. statutory nationality law; State Department and USCIS administrative proof practice; international anti-statelessness analogue; common-law birth/allegiance/protection background only.
Original legal objective	Resolve citizenship status when parentage and birth circumstances cannot be proven without imposing impossible proof burdens on the child.
Citizenship relevance	Shows that U.S. nationality law uses a presumption, rather than exclusion, when parentage and birth circumstances are unknown and no displacing sovereign-status record appears.
Facts considered	Child found in the United States; unknown parentage; unknown foreign or domestic parent status; no record of diplomatic immunity, hostile occupation, or tribal political relation; statutory presumption under the Nationality Act of 1940 and 8 U.S.C. § 1401(f); State Department and USCIS administrative treatment of unknown-parentage cases; international anti-statelessness analogue; no verified English or American common-law foundling-citizenship presumption.
Facts retained	Statutory and administrative presumption under uncertainty; birth/presence record can satisfy the ordinary proof path; unknown parentage is not a disqualifying status; a contrary record must show foreign birth or another legally material displacement before the presumption is defeated.
Facts filtered out	Any demand that the child affirmatively prove qualifying parental status; any inference that unknown parentage creates suspicion; any demographic or ancestry-based inquiry.
Reason for filtering	The foundling rule avoids impossible proof and protects children from status uncertainty not caused by them. It carries forward a proof principle, not a parental-status rule. Because no specific English or American common-law foundling-citizenship presumption has been verified, the category should not be overclaimed as an original-common-law fixed point.
Property extracted	Presumption absent concrete displacing status; proof path and trigger discipline.
Wrong inference blocked	“Citizenship requires affirmative proof of parentage or parental status in every case.”
Corrected inference	Where parentage and birth circumstances are unknown and no displacing sovereign-status relation appears, U.S. nationality statutes and administrative practice presume U.S. birth/citizenship rather than demanding impossible proof.
Role in complete jurisdiction	Supplies the presumption-plus-trigger structure and supports the rule that the birth record does ordinary evidentiary work until a legally material record trigger appears.
Sources to cite	8 U.S.C. § 1401(f); Nationality Act of 1940, ch. 876, § 201(f), 54 Stat. 1137, 1138; 8 FAM 301.1-8; USCIS Policy Manual, Vol. 12, Pt. H, Ch. 1; cf. 1 William Blackstone, Commentaries *357–62; Convention on the Reduction of Statelessness art. 2, Aug. 30, 1961, 989 U.N.T.S. 175; Int’l Law Comm’n, Report on Nationality, Including Statelessness, U.N. Doc. A/CN.4/50 (1952); Citizenship, 10 Op. Att’y Gen. 382, 394 (1862) (Bates presumption, by analogy).
Confidence	High for statutory and administrative foundling presumption; high for international anti-statelessness analogy as analogy; medium for general common-law background; no verified common-law foundling-specific citizenship presumption located.

B-6. Elk v. Wilkins

Table B-6. Fixed-Point Dossier: Elk v. Wilkins

Table B-6. Fixed-Point Dossier: Elk v. Wilkins	
Fixed point	Elk v. Wilkins as a Supreme Court negative-boundary holding.
Source domain	Supreme Court holding; federal Indian law; tribal political relation; voluntary severance and naturalization problem.
Original legal objective	Decide whether a person born a member of a tribal political community became a Fourteenth Amendment citizen by leaving the tribe and residing among U.S. citizens without federal naturalization or statutory incorporation.
Citizenship relevance	Shows that birth within U.S. geography plus some subjection to U.S. authority is not always enough when a recognized separate political relation persists.
Facts considered	Birth within U.S. territorial boundaries; tribal membership at birth; separate political community; later voluntary departure; residence among U.S. citizens; lack of naturalization or statutory citizenship; Supreme Court treatment of “subject to the jurisdiction” as more than partial legal subjection.
Facts retained	Separate tribal political relation displaced complete jurisdiction at birth; partial subjection to U.S. law did not equal Citizenship Clause jurisdiction; voluntary unilateral severance was not enough.
Facts filtered out	Race; ancestry; Native status as biological category; ordinary alienage; ordinary immigrant parentage; general unlawfulness; any analogy to undocumented persons absent a recognized quasi-foreign political community.
Reason for filtering	Elk’s legal force comes from political-community relation and statutory/naturalization boundary, not ancestry. Wong later limited Elk to the tribal context.
Property extracted	Geography plus partial legal subjection can be insufficient; displacing political-community relation prevents membership-conferring jurisdiction.
Wrong inference blocked	“Elk means children of noncitizen or foreign parents are outside the Clause.”
Corrected inference	Elk means only that a recognized tribal political relation can prevent complete jurisdiction; it does not authorize a general foreign-parentage or immigration-status exclusion.
Role in complete jurisdiction	Supplies the strongest Supreme Court negative boundary and confirms that the second predicate has independent work beyond geography.
Sources to cite	Elk v. Wilkins, 112 U.S. 94, 99–103 (1884); United States v. Wong Kim Ark, 169 U.S. 649, 680–82, 693 (1898); Gregory Ablavsky & Bethany Berger, “Subject to the Jurisdiction Thereof”: The Indian Law Context, 100 N.Y.U. L. Rev. 201 (2025); Indian Citizenship Act of 1924, ch. 233, 43 Stat. 253; companion essay Table 1A.
Confidence	High. The Article separates Elk’s holding, tribal context, and later statutory supersession.

B-7. United States v. Wong Kim Ark

Table B-7. Fixed-Point Dossier: United States v. Wong Kim Ark

Table B-7. Fixed-Point Dossier: United States v. Wong Kim Ark	
Fixed point	United States v. Wong Kim Ark as the affirmative resident-alien core holding.
Source domain	Supreme Court holding; common-law local allegiance and protection; Fourteenth Amendment interpretation; resident-alien core; case-bound fixed-point synthesis.
Original legal objective	Decide whether a person born in San Francisco to Chinese-subject parents who were resident, domiciled, conducting business, and not diplomatic or official agents was a citizen under the Fourteenth Amendment.
Citizenship relevance	Establishes that U.S. birth to resident, domiciled, non-diplomatic alien parents satisfies the Clause and that alienage, foreign nationality, and foreign parentage alone do not defeat citizenship.
Facts considered	Child born in San Francisco; parents subjects of China; parents permanently domiciled and resident in the United States; parents conducting business; no diplomatic or official status; common-law exposition; recognized exceptions; Civil Rights Act and Fourteenth Amendment background; Elk distinguished; Fuller dissent rejected.
Facts retained	Resident/domiciled/non-diplomatic alien-parent birth satisfies the Clause; foreign parentage and alienage alone are not disqualifying; parent-linked facts can be evidence of the child's birth-time relation without becoming bloodline; exceptions are limiting categories.
Facts filtered out	Claim that Wong decided every modern category by soil alone; claim that parentage is never evidentiary; claim that foreign nationality alone is disqualifying; Fuller's bloodline/foreign-allegiance dissent; a domicile-only rule that would overread the facts.
Reason for filtering	The holding resolves the resident-alien core; broader exposition is important reasoning but does not erase the jurisdictional predicate for modern categories not before the Court. Parent facts are record facts, not a parental-status rule.
Property extracted	Accepted sovereign protection and direct local allegiance can exist despite alienage and foreign parentage; no displacing sovereign-status relation; resident-alien core is included.
Wrong inference blocked	"Wong means soil alone decides every case" and "Wong means parentage can never be evidence."
Corrected inference	Wong secures the resident, domiciled, non-diplomatic alien-parent core, rejects alienage/foreign parentage alone as disqualifying, and models case-bound fixed-point synthesis.
Role in complete jurisdiction	Supplies the affirmative inclusion boundary and demonstrates that this Article's method is systematizing a fixed-point synthesis already operating in Wong, not inventing a new technique.
Sources to cite	United States v. Wong Kim Ark, 169 U.S. 649, 652–53, 680–82, 693, 704–05 (1898); Elk v. Wilkins, 112 U.S. 94 (1884); companion essay Table 2, "What Wong Proves—and What It Does Not"; Gregory Ablavsky & Bethany Berger, 100 N.Y.U. L. Rev. 201 (2025).
Confidence	High. Appendix H separates holding facts, ratio, broad exposition, limiting principles, and rejected alternatives.

B-8. Implementation Practice: Birth Records, Diplomatic Status, Passports, and Later Adjudication

Table B-8. Fixed-Point Dossier: Implementation Practice

Table B-8. Fixed-Point Dossier: Implementation Practice	
Fixed point	Ordinary implementation practice: birth records, passport/nationality documentation, diplomatic-status exceptions, later adjudication, and reliance/proof mechanics.
Source domain	Administrative proof practice; passport law; nationality statutes; state birth records; federal documentation procedures; State Department and USCIS practice.
Original legal objective	Administer citizenship proof without adjudicating every birth while preserving the government's ability to resolve legally material status questions when a proper record trigger exists.
Citizenship relevance	Shows that citizenship has been administered through presumptions and later proof mechanisms, not universal bedside adjudication or geography-only finality. Administrative practice is proof mechanics, not constitutional meaning by itself.
Facts considered	State birth certificates; consular and passport records; certificate of citizenship/nationality procedures; diplomatic-child practice; foundling and unknown-parentage rules; passport denial/revocation processes; later federal recognition; judicial review mechanisms; reliance interests.
Facts retained	Timely U.S. birth record creates prima facie citizenship; later inquiry requires objective legally material trigger; administrative practice follows constitutional relation; documentation can be evidence; review and burden rules protect against profiling and arbitrary denial.
Facts filtered out	Agency labels as constitutional meaning; universal parental-status screening; bedside citizenship adjudication; demographic suspicion; executive power to define the predicate; state birth certificate as unreviewable constitutional finality.
Reason for filtering	Administrative materials manage proof; they do not themselves create or erase the constitutional predicate. Their proper role is implementation discipline.
Property extracted	Presumption-plus-trigger; record-based proof; categorical adjudication before applicant-specific proof; administration follows constitutional meaning.
Wrong inference blocked	"If a state birth certificate issues, citizenship is constitutionally unreviewable" and "if agencies can later inquire, every birth must be screened."
Corrected inference	Ordinary records establish prima facie citizenship. Further inquiry is exceptional and requires a legally material record trigger, due process, burdens, and review.
Role in complete jurisdiction	Supplies the administration layer: proof path, trigger discipline, burdens, and review. It connects the constitutional predicate to daily governance without converting the Clause into an immigration-status code.
Sources to cite	8 U.S.C. §§ 1401(a), 1401(f), 1452, 1503; 22 U.S.C. § 2705; 22 C.F.R. pt. 51; 8 FAM 301.1-8 (foundlings / unknown parentage); State Department passport and nationality proof materials; companion essay sections "Presumption, Trigger, and Federal Documentation," "Anti-Profiling and Record-Based Trigger Rule," and "Burdens, Standards, and Review."
Confidence	Medium-high. The core administrative principle is stable; public use is limited to cited FAM, CFR, and statutory sources.

B-9. Confederate/Rebel Births and Reconstruction Inclusion

Table B-9. Fixed-Point Dossier: Confederate/Rebel Births and Reconstruction Inclusion

Table B-9. Fixed-Point Dossier: Confederate/Rebel Births and Reconstruction Inclusion	
Fixed point	Children born in the United States to Confederate or rebel parents during or around Reconstruction as an anti-hereditary-fault pressure point.
Source domain	Reconstruction; Civil War and post-war reintegration; anti-caste citizenship; counteralliance debates; citizenship despite parental political disloyalty.
Original legal objective	Prevent parental political fault, rebellion, or disloyalty from becoming inherited civil degradation, while reconstituting national citizenship after civil war.
Citizenship relevance	Tests whether counteralliance or parental disloyalty can defeat the child's birthright citizenship. It supports the rule that parental fault alone is not a displacing sovereign-status relation.
Facts considered	Domestic birth; parents may have adhered to Confederacy; rebellion rather than recognized foreign sovereign diplomatic immunity; Reconstruction's goal of national reintegration; Civil Rights Act and Fourteenth Amendment anti-caste design; possible counteralliance claims.
Facts retained	Parent fault and political disloyalty cannot transmit nonmembership; domestic rebellion does not automatically create a diplomatic/hostile-occupation/tribal-style sovereign-status shield for children; Reconstruction inclusion matters.
Facts filtered out	Subjective loyalty; inherited political guilt; broad counteralliance; collective punishment; any rule that treats parental rebel status as bloodline.
Reason for filtering	The Fourteenth Amendment's anti-caste structure forbids hereditary civil degradation. A parent's political disloyalty is not itself a recognized displacing sovereign-status relation attached to the newborn.
Property extracted	No hereditary fault; no parental-status determinism; counteralliance must be tied to a recognized sovereign-status displacement before it can matter.
Wrong inference blocked	"If parental counteralliance matters anywhere, children of rebels can be excluded."
Corrected inference	Rebel parentage or political disloyalty cannot alone defeat citizenship; only a recognized birth-time sovereign-status displacement can defeat the relation.
Role in complete jurisdiction	Stress-tests the anti-caste filter and prevents Lash-style or Fuller-style counteralliance from expanding into inherited nonmembership.
Sources to cite	U.S. Const. amend. XIV, § 1; Civil Rights Act of 1866, ch. 31, § 1, 14 Stat. 27, 27; Texas v. White, 74 U.S. (7 Wall.) 700 (1869) (Union continuity, if used); Citizenship, 10 Op. Att'y Gen. 382 (1862); Bernick, Gowder & Kreis, Birthright Citizenship and the Dunning School of Unoriginal Meanings, 111 Cornell L. Rev. Online 101 (2025); Lash, Prima Facie Citizenship, 101 Notre Dame L. Rev. 101 (2026) (for pressure point, not adopted rule).
Confidence	Medium. This is an important pressure-point dossier; it remains a falsification and boundary-source issue rather than affirmative proof.

B-10. Unlawful Importation / Anti-Coolie Contexts

Table B-10. Fixed-Point Dossier: Unlawful Importation / Anti-Coolie Contexts

Table B-10. Fixed-Point Dossier: Unlawful Importation / Anti-Coolie Contexts	
Fixed point	Unlawfully imported enslaved persons and Chinese persons imported or entering in violation of anti-coolie laws as historical analogues showing that legal wrong does not itself displace citizenship-conferring jurisdiction.
Source domain	Anti-slave-trade statutes; anti-coolie laws; Reconstruction anti-caste citizenship; immigration/labor restrictions before modern immigration status categories.
Original legal objective	Suppress unlawful importation, coercive labor, slave trade, and coolie labor systems without converting the illegality of importation or entry into hereditary nonmembership for U.S.-born children.
Citizenship relevance	Rebuts the proposition that unlawful entry, unlawful importation, or a parent's legal wrong automatically defeats the jurisdictional predicate. The relevant question remains whether a recognized displacing sovereign-status relation existed at birth.
Facts considered	Persons imported or entering in violation of federal/state law; enslaved or coerced labor contexts; domestic birth of children; unlawful or prohibited acts by importers/parents/third parties; Reconstruction concern with caste and coercion; Chinese exclusion/coolie-law context; absence of diplomatic immunity, hostile occupation, or separate tribal political relation.
Facts retained	Unlawfulness is not itself sovereign-status displacement; legal wrong and coercion may coexist with U.S. territorial authority and protection; anti-caste logic forbids inherited penalty from unlawful importation.
Facts filtered out	Any inference that unlawfulness automatically excludes; any punishment of child for parent or third-party legal violation; any analogy between unlawful importation and diplomacy/hostile occupation/tribal political relation.
Reason for filtering	Illegality is a law-enforcement fact, not necessarily a membership-conferring jurisdiction fact. It may trigger enforcement against wrongdoers but does not by itself create a competing sovereign-status relation for the child.
Property extracted	Unlawful presence/importation is not itself a displacing sovereign-status relation; legal wrong is not inherited nonmembership.
Wrong inference blocked	"Unlawful entry or unlawful importation defeats birth citizenship because the parent or entry was illegal."
Corrected inference	Unlawfulness can be relevant evidence in a record-effect inquiry, but it is not itself a recognized sovereign-status category and does not transmit nonmembership to the child.
Role in complete jurisdiction	Strengthens the modern-margin treatment of bare unlawful entry and birth tourism by separating illegality from sovereign-status displacement and preserving the anti-caste filter.
Sources to cite	Thomas H. Lee, The Citizenship Clause's Residence Requirement 1–3 & nn.2–4 (Mar. 2026 working paper); Act of May 15, 1820, ch. 113, § 5, 3 Stat. 600, 600–01; Anti-Coolie Act of 1862, ch. 27, 12 Stat. 340, 340–41; California anti-coolie materials are used only as pressure-point context. Use as a pressure-point analogue, not as a settled Citizenship Clause holding.

Table B-10. Fixed-Point Dossier: Unlawful Importation / Anti-Coolie Contexts

Fixed point	Unlawfully imported enslaved persons and Chinese persons imported or entering in violation of anti-coolie laws as historical analogues showing that legal wrong does not itself displace citizenship-conferring jurisdiction.
Confidence	Medium-high as a narrow pressure-point analogue. Federal primary sources are located; final quoted pages should be verified if quoted. Do not use to decide modern unlawful presence categorically.

Appendix C. Fixed-Point Properties and Legal Inferences

This appendix condenses the dossiers into the properties carried forward into the synthesis.

Table C-1. Fixed-Point Properties and Legal Inferences

Table C-1. Fixed-Point Properties and Legal Inferences		
Fixed point	Property carried forward	Primary inference
Freedmen and children	Anti-caste affirmative inclusion	No race, ancestry, caste, bloodline, inherited degradation, or parental blame
Diplomatic birth	Sovereign-status displacement	Physical presence can exist without membership-conferring jurisdiction when diplomatic immunity displaces local allegiance
Hostile occupation	Operative authority requirement	Nominal geography is insufficient when actual sovereign authority and protection are displaced
Historical tribal political relation	Separate political-community displacement	Tribal status is closed by kind and cannot be generalized to ordinary immigrants
Foundlings	Presumption under uncertainty	No impossible proof demand where no concrete displacing record appears; this is carried forward as statutory/admin proof discipline, not as a verified common-law foundling rule.
Elk	Negative boundary	Geography plus partial legal subjection can be insufficient where a separate tribal relation persists
Wong Kim Ark	Affirmative resident-alien core	Resident, domiciled, non-diplomatic alien-parent birth satisfies the Clause; alienage alone does not defeat citizenship
Implementation practice	Proof mechanics	Birth record creates prima facie citizenship; later inquiry requires record-based trigger
Confederate/rebel births	Anti-hereditary fault test	Political disloyalty or parental rebellion cannot become inherited nonmembership absent recognized sovereign-status displacement
Unlawful importation / anti-coolie contexts	Illegality not displacement	Illegality of entry/importation is not itself a displacing sovereign-status relation

Appendix D. Comparator Completeness Review

The comparator review treats each comparator as identifying a real fact and asks whether that fact can bear the whole constitutional load.

Table D-1. Comparator Completeness Review - Compact Integration Table

Table D-1. Comparator Completeness Review - Compact Integration Table		
Comparator	Point accepted	Use in this Article
Ho	Ordinary legal governability.	Level 1 ordinary legal amenability; not citizenship-conferring jurisdiction.
Heilpern / Whittington	Conventional legal usage of jurisdiction as governing authority and protection.	Accepted as ordinary governability/protection, then tested in the citizenship sentence.
Lash	Birth-record presumption and independent jurisdictional work.	Presumption retained; rebuttal limited to objective birth-time jurisdictional facts.
Wurman	Protection, permission, and common-law precision.	Protection retained as legal-incident evidence, not status-label control.
Lee	Residence / temporary-sojourner distinction.	Residence retained as strong evidence, not the entire predicate.
Ablavsky / Berger	Tribal-status exceptionalism and anti-immigrant-analogy warning.	Tribal relation retained as closed displacing sovereign-status relation.
Bernick / Gowder / Kreis	Anti-bloodline and anti-denationalization constraint.	Constraint absorbed while preserving independent jurisdictional work.
Donahue	Time and duration.	Duration treated as record effect, not a standalone constitutional test.
France	Two-condition grammar and under-read jurisdiction.	Completed through property extraction and administration.
Magliocca	Roma/Gypsy inclusion pressure against domicile/allegiance exclusion.	Used as anti-overread evidence; domicile remains evidence only.
Schuck / Smith	Consent and political membership concerns.	Relocated into accepted legal protection, not free-standing political consent.
Eastman / Barnett / Hyman / Estreicher-Reddy	Independent work for jurisdiction and modern status relevance.	Preserve jurisdictional work without parentage or label determinism.

D-2. Ho

Table D-2. Comparator Review: Ho

Table D-2. Comparator Review: Ho	
Comparator position	Ho defends a broad original-understanding account of birthright citizenship. He argues that to be “subject to the jurisdiction” of the United States is to be subject to U.S. governmental authority, and that obedience to U.S. law does not turn on immigration status, national allegiance, or past compliance. He therefore treats children of undocumented persons as protected by the Fourteenth Amendment’s birthright rule.
Point accepted	Ho correctly identifies ordinary legal governability. Persons physically present in the United States are ordinarily subject to U.S. law, courts, coercive authority, and basic constitutional protection. That fact is indispensable to the argument; This Article does not deny it.
Missing fixed point	Ho’s selected fact must still account for the Citizenship Clause’s membership-conferring function and the settled cases in which physical presence and ordinary legal contact do not produce citizenship: diplomats, hostile occupation, historical tribal political relation, and Elk.
Resulting error	If ordinary legal amenability becomes the whole rule, the jurisdictional predicate risks becoming a restatement of physical governability. The exceptions then become narrow anomalies rather than source-backed evidence of the kind of sovereign relation the Clause requires.
Consequence	The account becomes strong on the broad ordinary case but less precise at the margin. It can preserve the resident-alien core but has difficulty explaining why the Clause’s second predicate does independent membership-conferring work when a legally material jurisdictional fact is present.
Complete-jurisdiction response	This Article retains Ho’s governability point at the broadest level: ordinary legal amenability. It then distinguishes the narrower rights-bearing register from the still more specific Citizenship Clause question: when does birth under U.S. authority create national and state membership? Complete jurisdiction preserves ordinary governability while refusing to make it the whole citizenship predicate.
Sources and use	Ho, Defining “American,” 9 Green Bag 2d 367, 370–71 (2006), at text discussing “subject to the authority of the U.S. government,” obedience to U.S. law, and coverage of most U.S.-born children of aliens, including illegal aliens. Used as comparator evidence for the stated proposition.

D-3. Heilpern / Whittington**Table D-3. Comparator Review: Heilpern / Whittington**

Table D-3. Comparator Review: Heilpern / Whittington	
Comparator position	Heilpern and Whittington argue that “subject to the jurisdiction” was a conventional legal term of art requiring inquiry into whether the person was born subject to the “governing authority and protection of the political sovereign.” Their legal-text account rejects translating jurisdiction into parental allegiance and supports a broad territorial rule independent of parental immigration status.
Point accepted	They correctly identify an important legal-text fact. Mid-nineteenth-century legal usage often connected jurisdiction with governing authority, legal protection, and the obligation to obey the sovereign’s law. This Article does not deny that evidence.

Table D-3. Comparator Review: Heilpern / Whittington

Comparator position	Heilpern and Whittington argue that “subject to the jurisdiction” was a conventional legal term of art requiring inquiry into whether the person was born subject to the “governing authority and protection of the political sovereign.” Their legal-text account rejects translating jurisdiction into parental allegiance and supports a broad territorial rule independent of parental immigration status.
Missing fixed point	The missing fixed point is functional: even if the phrase generally means within governing authority and protection, the Citizenship Clause uses it in a sentence that confers national and state membership at birth. The question is what kind of jurisdiction is citizenship-conferring.
Resulting error	The error is treating conventional legal usage as though it fully resolves the Clause’s function. Ordinary governability, rights-bearing jurisdiction, and membership-conferring jurisdiction are functionally ordered rather than coextensive.
Consequence	The broad legal-text account may underexplain why diplomats, hostile occupation, tribal-status history, and Elk are not simply exceptions by fiat. It may also leave modern status incidents without an administration method.
Complete-jurisdiction response	This Article accepts the legal-text evidence as a starting point. It then asks what that jurisdiction does in the citizenship sentence. Complete jurisdiction incorporates governability and protection but maps them through the settled categories before deriving the citizenship-conferring rule.
Sources and use	Heilpern & Whittington, “Subject to the Jurisdiction” as Legal Text, at Introduction and sections on conventional phrase meaning; Whittington, By Birth Alone, at common-law territorial account. Used as comparator evidence for the stated proposition.

D-4. Lash**Table D-4. Comparator Review: Lash**

Table D-4. Comparator Review: Lash	
Comparator position	Lash treats the Citizenship Clause as containing two conditions: birth in the United States and subjection to U.S. jurisdiction. He adopts a prima facie model in which birth creates a presumption of citizenship, but that presumption may be overcome by evidence of familial refused or counteralliance.
Point accepted	Lash sees two important facts. First, birth in the United States has strong presumptive force. Second, the jurisdictional phrase must do independent work and cannot be erased by soil alone.
Missing fixed point	The missing fixed point is the anti-caste and anti-bloodline limit. Familial counteralliance must not become a hereditary citizenship disability, and parent-linked facts must not become a parental-status rule inconsistent with Wong.
Resulting error	The risk is that evidence of a child’s birth-time sovereign relation becomes a rule of inherited nonmembership. That would move toward Fuller’s dissent rather than Wong’s holding.
Consequence	The theory preserves a presumption but may destabilize the resident-alien core if generalized familial allegiance displaces objective legal relation. It also risks treating parental status as constitutionally dispositive.
Complete-jurisdiction response	This Article retains Lash’s presumption but restricts rebuttal. Only objective birth-time legal facts showing lack of complete jurisdiction can defeat the presumption. Parentage and equivalent status facts may be evidence, but they cannot operate as bloodline or inherited blame.

Table D-4. Comparator Review: Lash

Comparator position	Lash treats the Citizenship Clause as containing two conditions: birth in the United States and subjection to U.S. jurisdiction. He adopts a prima facie model in which birth creates a presumption of citizenship, but that presumption may be overcome by evidence of familial refused or counterallegiance.
Sources and use	Lash, Prima Facie Citizenship, at abstract, introduction, Bates discussion, and counterallegiance sections. Used as comparator evidence for the stated proposition.

D-5. Wurman**Table D-5. Comparator Review: Wurman**

Table D-5. Comparator Review: Wurman	
Comparator position	Wurman argues that the common-law rule was never mere soil. It required birth on sovereign soil to parents under the sovereign's protection, and protection historically required some form of sovereign permission. He also distinguishes ordinary criminal jurisdiction from complete jurisdiction.
Point accepted	Wurman correctly identifies a real source-domain fact: common-law shorthand about birth on soil often assumed protection and allegiance. Diplomats and invaders expose the limits of a soil-only account. He also recognizes that ordinary criminal jurisdiction is not necessarily complete jurisdiction.
Missing fixed point	The missing fixed point is anti-label and anti-manipulation discipline. Modern immigration labels cannot define constitutional citizenship by themselves, and lawful permission cannot be made the entire proxy for accepted protection.
Resulting error	The error is status-label determinism. If protection becomes synonymous with formal lawful status or political-branch permission, then Congress or the Executive can control constitutional meaning by adjusting labels and incidents.
Consequence	That approach can overexclude record-protected persons, underread Wong's resident-alien core, and collapse constitutional meaning into immigration classification.
Complete-jurisdiction response	This Article keeps protection as a core element but defines accepted sovereign protection through birth-time legal incidents. Labels such as TPS, parole, deferred action, tourist visa, unlawful presence, or pending adjustment matter only insofar as the record shows what legal relation existed at birth.
Sources and use	Wurman, Jurisdiction and Citizenship, at abstract and sections on protection, safe-conducts, permission, and complete jurisdiction; Wurman Reply, at recapitulation. Used as comparator evidence for the stated proposition.

D-6. Lee

Table D-6. Comparator Review: Lee

Table D-6. Comparator Review: Lee	
Comparator position	Lee argues that the Citizenship Clause contains a residence requirement. His strongest formulation is a chain: the Clause treats persons “born or naturalized” in one sentence; naturalization historically required residence; the final phrase “of the State wherein they reside” presupposes residence; and infants reside where their legally recognized parents reside. From that chain, Lee treats parental residence as the operative line between resident-alien births and temporary-sojourner births.
Point accepted	Lee captures a serious textual and practical pressure point. Residence matters to naturalization, to state-citizenship allocation, to the Wong resident/domiciled core, to parental-household evidence for newborns, and to tourist/birth-tourism cases. Residence is often strong evidence of accepted sovereign protection and direct local allegiance.
Missing fixed point	The missing step is the migration from statutory naturalization residence to a constitutional residence predicate for birth. Birth and naturalization are alternative gateways to the same citizenship consequence, but they are not identical prerequisite sets. The state-citizenship phrase allocates state citizenship after the national predicate is met; it does not add a third national predicate.
Resulting error	A residence-only rule risks making mutable naturalization statutes indirectly amend the birth branch; it also makes one datum do too much work. It cannot fully account for diplomatic immunity, hostile occupation, tribal political relation, foundlings, humanitarian/coercion statuses, or cases where residence-like facts coexist with a displacing sovereign-status relation.
Consequence	Lee’s rule cleanly handles some temporary-sojourner problems, but at the cost of fixed-point completeness. It may exclude protected birth-time relations without classic domicile and may include residence-like settings where a sovereign-status displacement exists. It also risks turning state-citizenship allocation into the national citizenship predicate.
Complete-jurisdiction response	This Article retains Lee’s insight but relocates it. Residence is strong evidence of accepted sovereign protection and direct local allegiance. It is not the relation itself. Complete jurisdiction asks whether the birth occurred under operative U.S. authority, accepted protection, direct local allegiance, and no recognized displacing sovereign-status relation.
Sources and use	Lee, The Citizenship Clause’s Residence Requirement 1–3 (Mar. 2026 working paper); Naturalization Act of 1790, ch. 3, 1 Stat. 103; Naturalization Act of 1795, ch. 20, 1 Stat. 414; 8 U.S.C. §§ 1427(a), 1445(a); The Slaughter-House Cases, 83 U.S. (16 Wall.) 36, 72–74 (1873); Wong, 169 U.S. at 652–53, 693, 704–05. Used as comparator evidence for the stated proposition.

D-7. Ablavsky / Berger

Table D-7. Comparator Review: Ablavsky / Berger

Table D-7. Comparator Review: Ablavsky / Berger	
Comparator position	Ablavsky and Berger argue that much of the nineteenth-century debate over “subject to the jurisdiction” concerned Native peoples and the anomalous quasi-foreign status of Native nations. They emphasize ordinary jurisdiction as the power to make, decide, and enforce law while arguing that tribal status cannot be analogized to ordinary immigrant communities.
Point accepted	Their Indian-law corrective is essential. It blocks the restrictive move that turns tribal-status history into a general rule against immigrant children. It also shows that tribal status was politically and legally anomalous rather than simply racial, ethnic, or foreign-parental.
Missing fixed point	The missing fixed point is the Citizenship Clause’s membership-conferring function. Even if ordinary jurisdiction often meant governing authority, the Clause still asks when birth under U.S. authority creates constitutional membership.
Resulting error	The error would be to make either of two opposite moves: to overuse Elk against immigrants or to treat tribal-status history as an unexplained anomaly that need not enter the property map.
Consequence	Without integration, Elk either becomes a weapon against ordinary alien-parent births or a residual exception with no principle. Neither result is adequate for fixed-point completeness.
Complete-jurisdiction response	This Article uses Ablavsky/Berger to close the tribal analogy. Tribal political relation is a recognized displacing sovereign-status relation closed by kind. It is not an immigrant-status analogy and not evidence that race, ancestry, alienage, or parentage defeats citizenship.
Sources and use	Ablavsky & Berger, Indian Law Context, abstract, introduction, dictionary/jurisdiction discussion, Native quasi-foreign status, and Wong rejection of Elk analogy. Used as comparator evidence for the stated proposition.

D-8. Bernick / Gowder / Kreis**Table D-8. Comparator Review: Bernick / Gowder / Kreis**

Table D-8. Comparator Review: Bernick / Gowder / Kreis	
Comparator position	Bernick, Gowder, and Kreis sharply criticize allegiance-based narrowing theories. They argue that redefining jurisdiction as allegiance risks denationalization by parental conduct and relies on distorted Reconstruction history.
Point accepted	They identify a hard constraint that any complete-jurisdiction account must obey. The Fourteenth Amendment cannot be read to transmit race, caste, inherited civil degradation, parental blame, or generalized disloyalty to the child.
Missing fixed point	The missing point is that anti-bloodline critique does not erase the jurisdictional predicate. The Clause still includes “subject to the jurisdiction thereof,” and the settled exclusions still show that soil does not always produce citizenship.
Resulting error	If the anti-bloodline critique is made the whole rule, it may collapse into geography-only finality and leave the second predicate underdeveloped.
Consequence	That approach is powerful against parental-allegiance exclusion but incomplete as an account of the predicate itself. It tells courts what not to do, but not fully what jurisdiction requires.

Table D-8. Comparator Review: Bernick / Gowder / Kreis

Comparator position	Bernick, Gowder, and Kreis sharply criticize allegiance-based narrowing theories. They argue that redefining jurisdiction as allegiance risks denationalization by parental conduct and relies on distorted Reconstruction history.
Complete-jurisdiction response	This Article integrates the anti-bloodline critique as a filter. Parentage may be used only as evidence of the child's birth-time sovereign relation. It may not transmit ancestry, caste, moral blame, political disloyalty, or inherited fault.
Sources and use	Bernick, Gowder & Kreis, Dunning School, introduction and sections criticizing jurisdiction-as-allegiance and denationalization by parental conduct. Used as comparator evidence for the stated proposition.

D-9. Donahue**Table D-9. Comparator Review: Donahue**

Table D-9. Comparator Review: Donahue	
Comparator position	Donahue proposes that time and depth of territorial connection can explain modern margins. Allegiance attenuates over time; temporary visitors and long-term residents occupy different points along a temporal continuum.
Point accepted	Time and duration are real facts. Transience, settlement, continuity, and length of presence are often relevant to whether a person has a residence-like relation and whether the birth is closer to settled membership or temporary sojourn.
Missing fixed point	The missing fixed point is legal-incident classification. A duration fact matters because of legal status and sovereign relation, not simply because time has passed.
Resulting error	The error is time-only balancing. If time itself becomes the constitutional relation, courts must conduct open-ended, subjective inquiries into attenuation and intent.
Consequence	The approach risks unpredictability. It can also miss cases where a short period includes strong formal protection or where a long period lacks legally recognized protection.
Complete-jurisdiction response	This Article treats duration as a record effect. Time may be evidence of accepted protection or residence-like recognition, but only through objective birth-time legal incidents and only after a proper record trigger.
Sources and use	Donahue, Temporal Territorial Bubbles, at sections on allegiance as continuum, temporal framework, birth tourism, and long-term residence. Used as comparator evidence for the stated proposition.

D-10. France

Table D-10. Comparator Review: France

Table D-10. Comparator Review: France	
Comparator position	France argues that the Clause does not speak in a single condition. Birth or naturalization is one condition; jurisdiction is the other. He argues that modern interpretation often treats jurisdiction as already satisfied in nearly all cases of territorial birth, but that this is not compelled by the text.
Point accepted	France captures the textual pressure point. The Clause does not say “all persons born in the United States are citizens.” It includes a second condition joined to birth or naturalization before the citizenship consequence attaches.
Missing fixed point	The missing point is a complete administrable theory. A two-condition reading must still explain the finite fixed-point set, generate a property map, identify recognized sovereign-status exclusions, and supply proof mechanics for modern statuses.
Resulting error	The error is incompleteness rather than contradiction. The account identifies the textual problem but does not yet fully process every settled category into an administrable rule.
Consequence	Courts may agree that jurisdiction matters but still lack a disciplined way to decide what jurisdiction means at the citizenship-conferring level.
Complete-jurisdiction response	This Article supplies the next step: source hierarchy, category genealogy, fixed-point extraction, complete jurisdiction, presumption-plus-trigger administration, and record-effect adjudication.
Sources and use	France, Citizenship and Jurisdiction, abstract, introduction, and section on the text and the condition it refuses to give up. Used as comparator evidence for the stated proposition.

D-11. Magliocca**Table D-11. Comparator Review: Magliocca**

Table D-11. Comparator Review: Magliocca	
Comparator position	Magliocca argues that Reconstruction materials concerning Chinese persons and Roma/Gypsies create pressure against domicile or allegiance theories. The materials suggest that children of these groups born in the United States were understood as citizens even where domicile or social acceptance was contested.
Point accepted	The Roma/Gypsy materials are an important anti-domicile and anti-lawfulness pressure point. They suggest that nomadic or unlawfully present parents did not automatically prevent the birth from being citizenship-producing.
Missing fixed point	The missing point is scope. Roma/Gypsy inclusion does not decide every modern temporary visitor, tourist, or record-effect category. It blocks overbroad domicile/allegiance exclusions, but it must still be integrated with Wong, foundlings, diplomats, hostile occupation, tribal relation, and modern record effects.
Resulting error	The error would be to overread the materials into either a pure soil-only rule or a rule that makes domicile, residence, and duration irrelevant in all cases.
Consequence	Either overread would distort the fixed-point set. Roma/Gypsy inclusion is a constraint, not the entire constitutional predicate.

Table D-11. Comparator Review: Magliocca

Comparator position	Magliocca argues that Reconstruction materials concerning Chinese persons and Roma/Gypsies create pressure against domicile or allegiance theories. The materials suggest that children of these groups born in the United States were understood as citizens even where domicile or social acceptance was contested.
Complete-jurisdiction response	This Article retains Magliocca as evidence that domicile and lawful presence cannot be constitutional prerequisites. But domicile, residence, duration, and legal protection may still be evidence of accepted protection and direct local allegiance.
Sources and use	Magliocca, Without Domicile or Allegiance: Gypsies and Birthright Citizenship, at introduction and Trumbull/Johnson discussion; Magliocca, Indians and Invaders, as related background. Used as comparator evidence; older source cited as related context.

D-12. Schuck / Smith**Table D-12. Comparator Review: Schuck / Smith****Table D-12. Comparator Review: Schuck / Smith**

Comparator position	Schuck and Smith frame the birthright-citizenship problem around political community and consent. Their account asks whether birthright citizenship should extend to children of persons whose presence the political community has not consented to accept.
Point accepted	Consent and membership are real constitutional-theory concerns. Citizenship is not merely physical presence; it is membership. This Article does not treat membership as irrelevant and should not pretend that membership has no relational component.
Missing fixed point	The fixed points at risk are Reconstruction anti-caste, Wong's resident-alien core, foundlings, and the constitutionalization of domestic birth citizenship. Political consent cannot be used to make children inherit parental nonconsent.
Resulting error	The error is treating political consent as controlling after the Fourteenth Amendment restricted governmental power to deny birth citizenship by status, ancestry, or disfavored membership.
Consequence	The theory risks replacing a constitutional rule with discretionary admission logic and inherited nonmembership.
Complete-jurisdiction response	This Article relocates the consent insight into accepted sovereign protection. The relevant question is not whether the polity subjectively consented to the parents, but whether the birth-time legal relation supplied operative authority, accepted protection, direct local allegiance, and no displacing status.
Sources and use	Schuck & Smith, Citizenship Without Consent; later Schuck/Smith commentary. Use limit: treated as background comparator material through Lee, Ho, Whittington, and Bernick/Gowder/Kreis; no independent public reliance beyond those cited comparator propositions.

D-13. Eastman / Barnett / Hyman / Estreicher-Reddy

Table D-13. Comparator Review: Eastman / Barnett / Hyman / Estreicher-Reddy

Table D-13. Comparator Review: Eastman / Barnett / Hyman / Estreicher-Reddy	
Comparator position	These restrictive or consent-oriented accounts insist that the jurisdictional phrase must do independent work. They treat unlawful presence, temporary classification, domicile, allegiance, or parental status as potentially decisive or highly relevant to citizenship.
Point accepted	They correctly insist that “subject to the jurisdiction thereof” cannot be ignored. Geography-only readings risk surplusage if they never explain what the second predicate adds.
Missing fixed point	The missing fixed points are Wong’s resident-alien core, Reconstruction anti-caste, foundlings, the recognized sovereign-status exclusion, and the rule that alienage, foreign parentage, unlawfulness, or temporary labels are not themselves displacing sovereign-status relations.
Resulting error	The error is label or parentage determinism. The jurisdictional phrase starts doing work, but it does so through overbroad categorical exclusions that are not grounded in the fixed-point set.
Consequence	The approach risks destabilizing settled citizenship, expanding narrow exceptions, and making modern immigration labels constitutionally dispositive.
Complete-jurisdiction response	This Article preserves independent work for jurisdiction without accepting categorical parental-status exclusion. Parentage and status facts may be evidence, but courts must ask what the birth-time legal record did. No label controls by itself.
Sources and use	Eastman, Born in the U.S.A.; Barnett & Wurman, Trump Might Have a Case on Birthright Citizenship; Hyman, Originalism, Illegal Immigration, and the Citizenship Clause; Estreicher & Reddy, Revisiting the Scope of Constitutional Birthright Citizenship. Use limit: treated as comparator material only to the extent independently cited; reliance limited to the stated propositions and final citation treatment.

Appendix E. Modern Status Incident Table

Appendix E records modern status incidents without constitutionalizing immigration labels. The matrix records duration, permission to remain, work authorization, removal shield, residence-like recognition, civil-process access, displacing status, and preliminary treatment.

Table E-0. Interpretation Key

Table E-0. Interpretation Key	
Term	Legal meaning
Strong	The incident supplies strong evidence of accepted sovereign protection or direct local allegiance. It is not automatically dispositive unless the fixed points make the category settled.
Moderate / Varies	The incident is legally relevant but depends on duration, documentation, removal shield, work authorization, or accompanying federal recognition.
Weak	The incident shows ordinary amenability or short-term permission but little residence-like protection.
No	No incident of that kind appears from the status label alone.

Table E-0. Interpretation Key

Term	Legal meaning
Displacing status	A legally recognized sovereign-status relation that prevents birth from occurring under U.S. membership-conferring jurisdiction; not ordinary alienage, foreign nationality, unlawful presence, temporary status, or parentage alone.

Table E-1. Modern Status Incidents and Record-Effect Treatment**Table E-1. Modern Status Incidents and Record-Effect Treatment**

Status	Duration	Permission to remain	Work authorization	Removal shield	Residence-like recognition	Civil process	Displacing status?	Preliminary treatment
LPR	Indefinite/permanent unless abandoned, rescinded, or lost through removal grounds.	Yes. Lawfully admitted for permanent residence.	Yes, incident to status.	Strong but not absolute; removable only through ordinary statutory grounds.	Strong. Permanent residence is formally recorded.	Yes.	No.	Preserved included-core evidence. Strong evidence of accepted protection and direct local allegiance.
Settled lawful domicile	Durable residence at birth; not a transient visit.	Yes if tied to lawful resident status or other recognized permission.	Depends on underlying status, but often yes or otherwise lawful.	Depends on status; stronger when lawful residence limits removal.	Strong. Domicile is powerful relation evidence, not the rule itself.	Yes.	No.	Strong included-core evidence, especially when coupled with lawful status and durable residence.
Refugee/asylee granted	Status continues unless terminated; residence-like protection typically durable.	Yes. Federal protection/status recognition.	Yes, employment eligible incident to status or otherwise authorized.	Strong. Protection from return/removal to persecution context.	Strong protective/residence-like relation.	Yes.	No.	Strong included-core adjacent/candidate category. Formal protection ordinarily satisfies accepted-protection evidence.
Tourist visa	Short, fixed nonimmigrant stay; temporary visit.	Yes, but only for temporary visit and not residence.	No.	No status-based removal shield beyond authorized stay/procedure.	Weak. Requires foreign residence/no abandonment in B-visa conception.	Yes.	No.	Weak accepted-protection evidence; likely outside core absent unusual record facts.
Visa waiver	Up to 90 days; no visa; temporary business/tourism visit.	Yes, limited to VWP admission/authorization.	No.	No meaningful status-based removal shield; waiver-based limitations apply.	Very weak. Transient by design.	Yes.	No.	Weak/transient evidence; should not be collapsed into TPS/parole/refugee-style protection.

Table E-1. Modern Status Incidents and Record-Effect Treatment

Status	Duration	Permission to remain	Work authorization	Removal shield	Residence-like recognition	Civil process	Displacing status?	Preliminary treatment
Birth tourism	Typically short planned birth-related visit.	Varies; may be inconsistent with B-visa purpose if primary purpose is birth tourism.	No.	No protective shield.	Very weak. Record normally indicates transience/no residence-like tie.	Yes.	No.	Weakest temporary-admission subcategory; distinguish from emergency birth and later residence facts.
Emergency birth during short visit	Short visit; birth caused by emergency/medical facts rather than organized birth-tourism plan.	Yes if the underlying admission remained valid.	No.	No special removal shield from the birth alone.	Weak unless other records show residence-like relation.	Yes.	No.	Record-effect margin requiring factual distinction from planned birth tourism; no blame/punitive inference.
TPS	Temporary, tied to country designation and registration periods; renewable while designation remains.	Yes while valid; statutory protection from removal during TPS.	Yes, EAD authorized/available during TPS.	Strong while valid; nonremoval during TPS period.	Moderate/strong; temporary but formally protected and documented.	Yes.	No.	Unresolved modern margin; valid TPS at birth supplies strong accepted-protection evidence while valid.

(Cont.) Table E-1. Modern Status Incidents and Record-Effect Treatment**(Cont.) Table E-1. Modern Status Incidents and Record-Effect Treatment**

Status	Duration	Permission to remain	Work authorization	Removal shield	Residence-like recognition	Civil process	Displacing status?	Preliminary treatment
Parole	Case-by-case and temporary; may be brief, durable, humanitarian, family-unity, public-benefit, or processing-related.	Yes as parole into or within the United States, but parole is not admission.	Varies; may request or receive EAD depending on category.	Limited to parole terms; stronger when durable humanitarian/family/protection parole.	Varies widely; durable humanitarian parole stronger than brief inspection/processing parole.	Yes.	No.	Unresolved margin; never classify parole as a unitary constitutional category. Ask what the parole record did at birth.
Deferred action / DACA	Time-limited, often renewable; discretionary deferral.	No lawful status, but formal forbearance/deferred removal while in effect.	May be eligible/request EAD; DACA commonly includes work authorization when granted.	Discretionary removal deferral; weaker than statutory protection.	Moderate/weak; formal recognition but not status.	Yes.	No.	Unresolved margin. Evidence depends on formal exercise, duration, EAD, and whether deferral is mere tolerance or protective recognition.

(Cont.) Table E-1. Modern Status Incidents and Record-Effect Treatment

Status	Duration	Permission to remain	Work authorization	Removal shield	Residence-like recognition	Civil process	Displacing status?	Preliminary treatment
Pending adjustment	Pending until adjudication; may last months/years.	Varies. Pending I-485 may support authorized stay/period of stay, subject to underlying status and procedure.	Often possible through (c)(9) EAD.	Varies; pending application may affect enforcement posture but is not final status.	Moderate when tied to family/residence and pending immigrant pathway.	Yes.	No.	Unresolved margin; collect underlying status, I-485 filing date, EAD/AP, family/residence facts, and pending-record incidents.
Bare unlawful entry	No recognized status; duration may be short or long but not legally authorized by entry alone.	No.	No.	No status-based removal shield.	None by status; later facts may matter separately.	Yes - ordinary civil/criminal/process amenability.	No by label alone.	Weakest case. No automatic exclusion, but no label-based inclusion. Bare unlawful entry is materially adverse evidence on accepted protection; it is not a recognized displacing sovereign-status relation. If no affirmative federal undertaking, permission, removal shield, durable protection, residence-like recognition, or comparable legal incident exists, the claim ordinarily fails through the affirmative elements, not hereditary blame.
Later recognition	Post-birth recognition only.	After-the-fact only; cannot itself create birth-time relation.	Depends on later status.	Depends on later status.	May evidence/reinforce reliance but not birth-time status by itself.	Yes.	No.	Evidence/reliance/remedy category. It may confirm or relate back to birth-time facts, but cannot manufacture them by label.
T visa	Generally multi-year temporary protection for trafficking victims; may lead to adjustment if statutory requirements met.	Yes for granted T status; formal protective status.	Yes or strongly available incident to status/eligibility.	Strong protection against removal while status is valid.	Strong protective/residence-like relation because status is tied to trafficking/coercion and cooperation/protection.	Yes.	No.	Humanitarian/coercion margin with strong accepted-protection incidents if granted at birth. Pending/waitlist facts require record review.

(Cont.) Table E-1. Modern Status Incidents and Record-Effect Treatment

Status	Duration	Permission to remain	Work authorization	Removal shield	Residence-like recognition	Civil process	Displacing status?	Preliminary treatment
U visa	Generally multi-year nonimmigrant status; may lead to adjustment after statutory period.	Yes for granted U status; formal status for qualifying crime victims.	Yes or statutorily available; bona fide pending applications may receive work authorization.	Strong while status or bona fide protection is in place.	Strong protective/residence-like relation when granted; pending bona fide status may be strong evidence but not final.	Yes.	No.	Humanitarian/coercion margin; strong evidence when granted, intermediate when bona fide pending with EAD/deferred action.
SIJS	Classification may enable adjustment; classification alone may not equal lawful status.	Classification itself is not necessarily permission to remain; deferred action/pending adjustment may add incidents.	Depends on EAD/deferred action/pending adjustment policies.	Varies. Protection strongest if deferred action, pending adjustment, or other shield existed at birth.	Strong child-protection facts, but residence-like incident depends on federal record.	Yes.	No.	Humanitarian child-protection margin. Do not equate SIJS label alone with status; collect deferred action, I-485, EAD, and court/federal records.

(Cont.) Table E-1. Modern Status Incidents and Record-Effect Treatment**(Cont.) Table E-1. Modern Status Incidents and Record-Effect Treatment**

Status	Duration	Permission to remain	Work authorization	Removal shield	Residence-like recognition	Civil process	Displacing status?	Preliminary treatment
VAWA	Self-petition may lead to immigrant classification/adjustment; approved petition may support EAD/deferred action.	Varies by approval, deferred action, pending adjustment, or other recognized record.	Often available with approved self-petition/deferred action or pending adjustment.	Varies; stronger with approved petition plus deferred action or pending I-485.	Protective relation based on abuse/coercion recognition; incident strength depends on record.	Yes.	No.	Humanitarian/coercion margin. Parent/spouse abuse context should be filtered through anti-blame and legal-incident rules.
Withholding/CAT	Potentially indefinite as to barred country; CAT deferral more terminable than withholding.	No admission/permanent status; but removal to a particular country is barred or deferred.	May seek/receive EAD depending on category and grant.	Strong as to particular country; less complete than asylum and may allow removal to third country.	Moderate protective but not residence-conferring in same way as asylum/LPR.	Yes.	No.	Humanitarian protection margin. Strong removal-shield evidence, but not a settled included core without more.
Humanitarian parole	Temporary; period and terms vary by program/order.	Yes as parole, not admission; permission is record-defined.	May request/receive EAD depending on parole category and rules.	Limited to parole term; stronger if durable humanitarian/family/medical protection.	Varies; durable humanitarian parole stronger than brief event-specific parole.	Yes.	No.	Unresolved but potentially strong record-effect evidence depending on duration, purpose, EAD, and removal shield.

Appendix F. Counterexamples, Boundary Conditions, and Source Limits

This appendix stress-tests complete jurisdiction by classifying possible counterexamples and identifying whether they require revision, clarification, or source expansion.

F.1. Falsification Standard

A source falsifies or materially revises the theory only if all five conditions are satisfied:

- The source is a controlling or high-weight authority, or it identifies a settled practice that has independent evidentiary weight.
- The source concerns the Citizenship Clause predicate or a recognized fixed point bearing on that predicate.
- The source cannot be classified as dictum, rejected proposal, modern label, isolated statement, or policy preference.
- The source contradicts at least one complete-jurisdiction element rather than merely requiring factual classification.
- The contradiction cannot be resolved by reconstructing, filtering, and extracting the fixed point under the Appendix B method.

F.1A. Territorial Edge Cases and Counterexample Status

A territorial edge case is not a contrary exercise of the Citizenship Clause unless it satisfies two conditions: first, it must establish that the birth occurred within the Fourteenth Amendment territorial predicate; second, it must show that citizenship was granted or denied contrary to the person-specific Complete Jurisdiction relation. If the dispute is only whether the birth legally occurred “in the United States,” the case is a territorial-source problem, not a person-specific counterexample.

F.2. Revision Taxonomy

Table F-2. Revision Taxonomy

Table F-2. Revision Taxonomy		
Outcome	When used	Public treatment
Account retained	The counterexample fits existing complete-jurisdiction elements after classification.	Retain the account with the stated source limits.
Clarification supplied	The counterexample could be misread unless holding, dicta, source weight, or predicate function is clarified.	Clarify through body text or an appendix table.
Boundary-source issue	The account can classify the counterexample, but the present source support is incomplete.	Treat as boundary-source material, not affirmative proof.
Boundary refinement	The counterexample does not defeat the account, but it requires a more precise subcategory or incident hierarchy.	Refine definitions, table entries, or interpretive criteria.
Potential counterexample	A verified source would contradict a complete-jurisdiction element if confirmed.	Revise the account if the contradiction remains after source classification.

F.3A. Counterexample Review - Minimum Counterexamples (Part 1)

Table F-3A. Counterexample Review - Minimum Counterexamples (Part 1)

Table F-3A. Counterexample Review - Minimum Counterexamples (Part 1)				
Possible counterexample	Type	Threatened element	Current answer	Public treatment
Broad Wong language	Supreme Court reasoning / holding-scope objection	Wong as resident-alien core; soil as proof path, not exclusive rule	Wong's common-law exposition supports allegiance-and-protection reasoning, but the holding involved a child born in San Francisco to resident, domiciled, non-diplomatic alien parents. This Article uses Wong as resident-alien inclusion and separates holding, reasoning, dicta, and rejected alternatives.	Account retained; Appendix H and the body supply the holding-scope treatment.
Plyler footnote	Rights-bearing jurisdiction / Equal Protection dicta	Three distinct uses of jurisdiction; rights-bearing vs membership-conferring jurisdiction	Plyler protects persons for Equal Protection purposes. It does not decide when birth creates national and state citizenship. The footnote is relevant pressure but not controlling as a Citizenship Clause holding.	Account retained; rights-bearing and membership-conferring jurisdiction are treated separately.
Lee residence argument	Comparator / grammar-state-citizenship challenge	Accepted sovereign protection; direct local allegiance; "wherein they reside"	Lee's challenge is now answered directly. The naturalization parallel proves common consequence and shared jurisdictional condition, not identical prerequisites. Statutory residence requirements for naturalization do not migrate into domestic birth. "Wherein they reside" assigns state citizenship after national citizenship attaches. Residence remains strong evidence within complete jurisdiction.	Account retained; § XI supplies the Lee response.
Confederate/rebel children	Reconstruction hard case / counter-allegiance challenge	Anti-caste filter; parentage as evidence rather than blame; recognized sovereign-status exclusion	Rebellion or parental political disloyalty does not by itself create a recognized foreign sovereign-status shield equivalent to diplomacy, hostile occupation, or tribal political relation. Reconstruction's anti-caste settlement blocks hereditary nonmembership based on parental fault.	Boundary-source issue; not used as affirmative proof without a complete source package.
Unlawful importation / anti-coolie cases	Historical illegality analogue	Unlawfulness not equal to displacing sovereign-status relation	If persons unlawfully imported or entering in violation of anti-slave-trade or anti-coolie laws were still treated as within citizenship protection when otherwise resident, that supports this Article's rule that legal wrong or unlawful entry is not itself displacement.	Pressure-point analogue only. Federal primary sources are located, but the point remains limited: unlawfulness is not itself sovereign-status displacement, and the materials are not a settled Citizenship Clause holding.

Table F-3A. Counterexample Review - Minimum Counterexamples (Part 1)

Possible counterexample	Type	Threatened element	Current answer	Public treatment
Foundlings	Settled inclusion / evidentiary presumption under uncertainty	Birth-record presumption; no universal parental proof demand	Foundlings have verified statutory and administrative support: the 1940 Act, current 8 U.S.C. § 1401(f), and State Department/USCIS practice treat unknown-parentage discovery in the United States as a presumption of U.S. birth/citizenship unless contrary evidence establishes foreign birth within the statutory period. No separate English or American common-law foundling-citizenship presumption has been verified, so the common-law point should be described only as birth/allegiance/protection background.	Account retained; foundlings are statutory/admin proof-rule evidence, and no common-law-specific foundling-citizenship presumption is asserted.

F.3B. Counterexample Review - Minimum Counterexamples (Part 2)**Table F-3B. Counterexample Review - Minimum Counterexamples (Part 2)**

Table F-3B. Counterexample Review - Minimum Counterexamples (Part 2)				
Possible counterexample	Type	Threatened element	Current answer	Public treatment
Diplomatic-birth modern practice	Settled exclusion / implementation practice	Recognized sovereign-status exclusion and displacing sovereign-status relation	Modern diplomatic-birth practice is consistent with a narrow sovereign-status displacement rule. A state birth record may exist, but later federal adjudication can identify diplomatic immunity as preventing Fourteenth Amendment citizenship.	Account retained; modern implementation sources are used only for record-effect evidence.
Birth tourism	Modern status incident / transient-presence pressure point	Accepted sovereign protection; direct local allegiance; record-effect method	Birth tourism is not resolved by label. Short-term visitor entry is weak evidence of accepted protection and local allegiance; organized birth tourism may support a lawful trigger, but categorical exclusion cannot rest on foreign parentage alone.	Boundary refinement; not a change to the derived rule.
TPS	Modern status incident / removal-shield category	Accepted sovereign protection; record-effect hierarchy	TPS may supply duration, work authorization, and removal shield. Those incidents are evidence of accepted protection, but the label itself is not the constitutional rule. Classification must be record-effect based.	Classified by statutory/regulatory incidents.

Table F-3B. Counterexample Review - Minimum Counterexamples (Part 2)

Possible counterexample	Type	Threatened element	Current answer	Public treatment
Parole	Modern status incident / federal permission category	Accepted sovereign protection; anti-label rule	Parole varies by purpose, duration, and incidents. It can range from brief entry permission to substantial humanitarian protection. The label does not decide; the birth-time incidents do.	Classified by subtype and birth-time legal incidents.
Bare unlawful entry	Modern status incident / unlawful-presence challenge	Accepted protection; direct local allegiance; government burden	Bare unlawful entry is materially adverse evidence of no accepted protection and may bear on direct local allegiance, but it is not a recognized displacing sovereign-status relation. It cannot defeat citizenship by label alone; the government must identify a lawful trigger and prove absence of complete jurisdiction through the affirmative elements or a closed-by-kind displacement.	Body proof separates: separate constitutional predicate from downstream statutory parent-benefit consequences.
Territories / bases / vessels	Geographic predicate edge case	Operative U.S. territorial authority; “in the United States” predicate	These cases test the geographic predicate before the jurisdictional predicate and require separate territorial-authority source work. They should remain in the falsification/future-research file unless a complete source package is built.	No body proof claim now; future research/falsification only.

F.3C. Extended Pressure Points**Table F-3C. Extended Pressure Points**

Table F-3C. Extended Pressure Points				
Possible counterexample	Type	Threatened element	Current answer	Public treatment
Yick Wo	Rights-bearing jurisdiction comparator	Rights-bearing vs membership-conferring jurisdiction	Yick Wo confirms that persons governed by U.S. law receive constitutional protections. It does not decide birthright citizenship or collapse the Citizenship Clause into Equal Protection coverage.	Account retained; treated in the rights-bearing/membership-conferring section.
Naturalization / derivative citizenship	Statutory citizenship / parentage pressure point	Domestic birth predicate vs statutory citizenship by descent	Parentage may be central to statutory citizenship abroad or derivative citizenship. That does not license bloodline limits on domestic Fourteenth Amendment birth citizenship.	Account retained; parentage/descent boundary stated in the body.

Table F-3C. Extended Pressure Points

Possible counterexample	Type	Threatened element	Current answer	Public treatment
Humanitarian and coercion statuses	Modern humanitarian / coercion matrix	Accepted sovereign protection; applicant-specific proof only if needed	Trafficking, U/T visas, SIJS, VAWA, withholding, CAT, and humanitarian parole involve varied incidents. Coercion may affect legal materiality and trigger discipline, but labels remain non-dispositive.	Classified through Appendix J's humanitarian/coercion status matrix.
Political-branch incident manipulation	Anti-manipulation objection	Record-effect rule; constitutional significance of legal incidents	Congress and the Executive may create statuses and incidents, but courts decide their Citizenship Clause significance. Labels cannot defeat or create Fourteenth Amendment citizenship by themselves.	Treated in the modern-margin section.
Modern agency deference	Administrative law / deference challenge	Courts decide constitutional meaning; agencies administer proof	Agency practice may provide implementation evidence and administer documents, but constitutional meaning remains judicial. This material is proof administration, not delegation of constitutional meaning.	Treated in the administration section.

F.4. Falsification Response Map

Table F-4. Falsification Response Map

Table F-4. Falsification Response Map		
Issue	Article response	Placement / limit
Wong overread	Appendix H and the body distinguish holding, reasoning, dicta, limiting principles, and rejected alternatives.	Sections VIII and XV.A; Appendix H.
Plyler / Yick Wo	The rights-bearing jurisdiction section separates Equal Protection and Due Process coverage from citizenship-conferring jurisdiction.	Section XII.
Lee residence challenge	Section XI answers the naturalization parallel, the “wherein they reside” phrase, and residence as evidence rather than predicate.	Sections XI.A-XI.D.

Table F-4. Falsification Response Map

Issue	Article response	Placement / limit
Drafting-history pressure	The drafting chronology explains the Civil Rights Act formula, the Doolittle proposal, Howard, Trumbull, Bingham, Johnson, and Bates without treating isolated statements as controlling.	Sections IV and XVII; Appendices A and F.
Modern status margins	Appendices E and J classify TPS, parole, deferred action, pending adjustment, birth tourism, bare unlawful entry, and humanitarian categories by birth-time legal incidents.	Sections XVI.B.1-XVI.B.3; Appendices E and J.
Implementation discipline	The presumption-plus-trigger rule and due-process checklist discipline proof without universal screening.	Sections XVI.A and XVI.A.1.

F.5. Boundary Issues Outside the Present Source Record

Table F-5. Boundary Issues Outside the Present Source Record

Table F-5. Boundary Issues Outside the Present Source Record	
Topic	Boundary-source note
Foundlings	Statutory/admin sources verified: 8 U.S.C. § 1401(f), Nationality Act of 1940 § 201(f), 8 FAM 301.1-8, and USCIS unknown-parentage materials. Common-law-specific foundling citizenship presumption not verified; use only as implementation/evidentiary fixed point.
Diplomatic birth	Blackstone, law-of-nations materials, State Department/FAM practice, passport cases, modern diplomatic-child documentation.
Hostile occupation	Blackstone and Inglis located as core sources; Use for operative sovereign authority and accepted protection, not ordinary alienage, unlawful presence, or parental disloyalty.
Territorial predicate	Keep territories, embassies, military bases abroad, vessels, aircraft, and occupied-territory questions in falsification/future research unless a full primary-law package is built.
Confederate / rebel births	Reconstruction debates and sources addressing rebel status, parental political disloyalty, and citizenship of children.
Unlawful importation / anti-coolie	Federal anti-slave-trade / anti-coolie primary sources located; Use narrowly as a pressure-point analogue that unlawfulness is not itself sovereign-status displacement.

Table F-5. Boundary Issues Outside the Present Source Record

Topic	Boundary-source note
Humanitarian and coercion statuses	INA provisions and regulations for T visa, U visa, SIJS, VAWA, withholding, CAT, humanitarian parole, TPS gaps, DACA/deferred action.

The following future discoveries would require revision rather than mere clarification:

A controlling holding granting Fourteenth Amendment birth citizenship despite a verified diplomatic, hostile-occupation, or equivalent recognized displacing sovereign-status relation.

A controlling holding denying Fourteenth Amendment birth citizenship despite operative U.S. authority, accepted sovereign protection, direct local allegiance, and no recognized displacement.

A source showing that the Citizenship Clause's "wherein they reside" phrase imposes a national citizenship residence predicate rather than a state-citizenship consequence in a way that cannot be treated as evidence of the complete-jurisdiction relation.

A settled implementation practice that treats a timely U.S. birth record as legally irrelevant in ordinary cases without any objective record trigger.

A source showing that a modern label, standing alone and without birth-time legal incidents, has constitutional significance under the Citizenship Clause.

F.7. Bottom-Line Counterexample Assessment

The minimum counterexamples do not presently defeat complete jurisdiction. They sort into three categories. Wong, Plyler, and Lee are pressure points addressed in the body. Foundlings rest on statutory and administrative support, but no common-law-specific foundling-citizenship presumption is asserted; they are used as an implementation/evidentiary fixed point, not as an original-common-law fixed point. Hostile occupation is supported by Inglis and Blackstone for operative authority, allegiance, and protection. Unlawful importation and anti-coolie materials are useful only as pressure-point analogues for the proposition that unlawfulness is not itself a recognized displacing sovereign-status relation. Territorial edge cases remain boundary or counterexample items unless a complete territorial-source package is collected. Birth tourism, TPS, parole, bare unlawful entry, and humanitarian categories remain record-effect margins; they require incident classification, not label-based constitutional rules. The no-contrary-exercise thesis is correspondingly bounded: it does not claim to resolve every territorial edge case. Those edge cases include unincorporated territories, military bases abroad, embassies, vessels, aircraft, border zones, and other territorial-status questions; many test the territorial predicate - birth "in the United States" - as much as the person-specific jurisdictional predicate and remain boundary-source issues unless a complete territorial-source package changes the person-specific rule.

Appendix G. Fixed-Point Inventory and Source Treatment

Appendix G distinguishes sources from fixed points, ranks authority, and identifies non-fixed-point materials that may inform but do not control the constitutional predicate.

G.1. Definitions and Source-Treatment Key

A source is any historical, doctrinal, administrative, or scholarly material bearing on the Citizenship Clause. A fixed point is a source-backed application or constraint that any theory of "subject to the jurisdiction thereof" must preserve or expressly explain. A non-fixed point may be relevant evidence, but it does not control unless tied to text, holding, settled practice, or a recognized category.

Table G-1. Definitions and Source-Treatment Key

Table G-1. Definitions and Source-Treatment Key		
Term	Definition	Use consequence
Cited source	The cited source supports the stated proposition.	Use after pinpoints and classifications are checked.

Table G-1. Definitions and Source-Treatment Key

Term	Definition	Use consequence
Limited source	The source is identified, but the public Article does not assign it controlling weight unless the cited proposition is independently supported.	Use only as background, comparator, falsification, or source-limit material unless separately verified.
Boundary or counterexample material	The necessary primary authority has not been identified or the source does not support affirmative proof.	Treat the related proposition as a boundary-source issue, not as support for the Article's rule.
Territorial-source package	A separately collected body of constitutional text, statute, holding, administrative practice, and source-weighted historical material addressing whether a place of birth legally counts as "in the United States" for Fourteenth Amendment or statutory citizenship purposes.	Routes territorial-status questions away from person-specific fixed-point analysis until the territorial predicate is separately established.

G.1A. Person-Specific Fixed Points and Territorial-Status Boundary Questions

The no-contrary-exercise thesis depends on classifying the fixed-point set by predicate tested. Person-specific fixed points bear on "subject to the jurisdiction thereof." Territorial-status boundary questions instead ask whether the birth legally occurred "in the United States" or whether a statutory citizenship or nationality route applies. The two inquiries should not be collapsed.

Table G-1A. Person-Specific Fixed Points and Territorial-Status Boundary Questions

Category	Examples	Predicate tested	Treatment
Person-specific included fixed points	Freedmen and their children; Wong resident-alien core; ordinary U.S. birth record	"Subject to the jurisdiction thereof"	Included if Complete Jurisdiction elements are present.
Person-specific excluded fixed points	Diplomatic birth; hostile occupation; historical tribal political relation before statutory supersession	Displacing sovereign-status relation, operative authority, or direct allegiance	Excluded by recognized displacement, not by ancestry or alienage.
Proof-discipline fixed points	Foundlings; timely U.S. birth record; ordinary documentation	Administration under uncertainty	Presumption and trigger rules; not independent merits rule for every category.
Territorial-status boundary questions	Unincorporated territories; military bases abroad; embassies; vessels; aircraft; border zones	"Born in the United States" and statutory citizenship	Not affirmative proof for or against Complete Jurisdiction unless separately sourced.
Statutory citizenship or nationality routes	8 U.S.C. § 1401 categories; § 1408; citizenship abroad to U.S.-citizen parents; territorial statutes	Congressional citizenship or nationality	Separate statutory analysis; does not define the Fourteenth Amendment predicate.

G.2. Source Treatment and Authority Weight

The paper ranks evidence before extracting properties. The hierarchy prevents the analysis from treating a Supreme Court holding, an isolated debate statement, a modern administrative label, and an academic comparator as equivalent.

Table G-2. Source Treatment and Authority Weight

Table G-2. Source Treatment and Authority Weight					
Source category	Weight	Examples	How used	Cannot be used for	Citation treatment
Constitutional text	Controlling	Citizenship Clause; structural phrases such as “all persons,” “born or naturalized,” “subject to the jurisdiction thereof,” and “wherein they reside.”	Supplies binding grammar, predicates, and consequence.	Does not alone resolve every historical application or modern incident question.	Official text, punctuation, capitalization, and quoted formulation cited.
Supreme Court holding	Controlling unless overruled	Elk; Wong; Yick Wo; Plyler; Slaughter-House; Minor as relevant.	Supplies binding application, boundary, or doctrinal rule.	Dicta and background exposition must be separated from the holding.	Use official U.S. Reports pinpoints; separate holding facts from reasoning.
Contemporaneous enacted statute	High	Civil Rights Act of 1866; early naturalization and nationality statutes.	Shows legal background and drafting choices around citizenship language.	Does not override the constitutional text.	Collect Statutes at Large text and pin cites.
Drafting and ratification history	High / contextual	Doolittle proposal; Howard; Trumbull; Bingham; Johnson; congressional debates.	Shows available formulations, rejected paths, and interpretive context.	Individual statements do not control unless tied to text, practice, or recognized category.	Collect Congressional Globe context and newspaper variants.
Common law / law of nations	Interpretive background	Blackstone; Coke; Calvin’s Case; Story; diplomatic immunity; hostile occupation; safe-conduct.	Supplies vocabulary of allegiance, protection, jurisdiction, diplomatic immunity, and occupation.	Does not displace the enacted constitutional formula.	Collect primary texts and compare broad shorthand to exceptions.
Early implementation practice	Implementation evidence	Foundling presumptions; early citizenship/documentation practice if verified.	Shows ordinary proof mechanics and presumptions.	Cannot create constitutional meaning by itself.	Identify and cite primary or authoritative practice.
Later implementation practice	Implementation evidence	State birth records; passport practice; State Department/FAM diplomatic-child practice.	Shows how proof and later adjudication work administratively.	Does not independently define the constitutional predicate.	Collect current and historical FAM/passport materials.
Comparator scholarship and briefs	Comparator evidence	Ho; Heilpern/Whittington; Lash; Wurman; Lee; Ablavsky/Berger; Bernick/Gowder/Kreis; France; Donahue; Magliocca.	Identifies rival theories, facts selected by those theories, and pressure points.	Does not control legal meaning.	Extract fair statement, correct insight, missing point, and Complete-jurisdiction adjustment.
Modern status statutes and regulations	Incident evidence	LPR, TPS, parole, deferred action, asylum/refugee, U/T visa, SIJS, VAWA, withholding/CAT.	Shows birth-time legal incidents relevant to record-effect adjudication.	Labels alone do not create or defeat constitutional citizenship.	Collect statutory/regulatory incident details.
Modern administrative analogies	Limited administrability evidence	Tax audits, record-based triggers, agency proof procedures.	Shows that presumptions and triggered adjudication are normal administrative tools.	Does not prove original meaning or constitutional status.	Use cautiously and label as analogy.

G.3. Non-Fixed-Point Inventory

The following materials may matter as evidence but should not be treated as controlling fixed points unless connected to text, holding, settled practice, or a recognized category.

Table G-3. Non-Fixed-Point Inventory

Table G-3. Non-Fixed-Point Inventory			
Non-fixed point	Permissible evidentiary use	Why not controlling	Action before use
Rejected proposals	Negative evidence / drafting path not taken	Not enacted; may show what language was available and not adopted.	Tie to final text and debate context before drawing inference.
Isolated debate statements	Contextual evidence	Single speaker statements may not represent enacted meaning.	Use only with speaker role, context, and relation to text.
Broad dicta	Reasoning/background	Not necessary to the judgment.	Classify as dicta, rationale, exposition, or holding before use.
Modern immigration labels	Incident pointer	Labels such as TPS, parole, temporary, unlawful, or deferred action do not themselves decide constitutional meaning.	Translate labels into birth-time legal incidents.
Executive classifications	Administrative/political position	Executive cannot define the constitutional predicate.	Use only as object of critique or implementation background.
State birth certificate labels	Proof evidence	Birth records create prima facie proof but do not independently create constitutional citizenship.	Use as presumption/proof mechanism.
Policy preferences	Background only	Policy does not determine constitutional meaning.	Keep outside fixed-point extraction unless tied to law.
Academic theories	Comparator evidence	Scholarship is not law.	Use to identify facts, pressure points, and alternative explanations.

G.4A. Master Fixed-Point Inventory - Text, Grammar, and Drafting

Table G-4A. Master Fixed-Point Inventory - Text, Grammar, and Drafting

Table G-4A. Master Fixed-Point Inventory - Text, Grammar, and Drafting						
Fixed point	Source	Source weight	Source treatment	What it proves	What it does not prove	Risk if omitted
Clause grammar	U.S. Const. amend. XIV, § 1, Citizenship Clause; official text retained.	Controlling text	Official text cited	The sentence has a broad subject, two qualifying predicates, and a citizenship consequence. Birth/naturalization and subjection to jurisdiction both precede “are citizens.”	The grammar alone does not define every historical application or modern status incident.	Without it, the paper could appear to begin from theory rather than enacted English.
“All persons” universality	U.S. Const. amend. XIV, § 1; Reconstruction anti-caste purpose; Civil Rights Act context.	Controlling text + high historical context	Official text and contextual sources cited	Universality defeats caste, race, ancestry, and hereditary exclusion from the class eligible to claim citizenship.	It does not make the two predicates automatic or erase “subject to the jurisdiction thereof.”	Broad-side readers may accuse this Article of narrowing a universal guarantee.

Table G-4A. Master Fixed-Point Inventory - Text, Grammar, and Drafting

Fixed point	Source	Source weight	Source treatment	What it proves	What it does not prove	Risk if omitted
“Thereof” and national jurisdiction	U.S. Const. amend. XIV, § 1.	Controlling text	Official text cited	“Thereof” points back to the United States; the predicate is national, not merely state police power.	It does not by itself supply the content of membership-conferring jurisdiction.	The analysis may blur state police power, ordinary territorial law, and national citizenship.
“Wherein they reside” / state citizenship phrase	U.S. Const. amend. XIV, § 1; Slaughter-House; Lee residence thesis.	Controlling text + holding + comparator	Verified text; comparator source located	State citizenship language creates a serious residence/state-citizenship question that must be answered.	It does not necessarily make parental residence the whole national citizenship predicate.	Lee’s residence challenge remains the strongest unaddressed middle-position alternative.
Civil Rights Act formula	Civil Rights Act of 1866, ch. 31, 14 Stat. 27: “born... and not subject to any foreign power, excluding Indians not taxed.”	High contemporaneous statute	Statutes at Large citation used	Congress had a statutory citizenship formula before the Amendment; the final constitutional text used a different jurisdictional formulation.	The shift alone does not prove complete jurisdiction or reject all common-law background.	Drafting-path analysis remains underdeveloped and open to overclaim critique.
Citizenship Clause final formulation	U.S. Const. amend. XIV, § 1 final text.	Controlling text	Official text cited	The enacted constitutional formula is birth/naturalization plus subjection to jurisdiction, not pure soil, parentage, or a static exception list.	It does not identify every category without historical/legal context.	The paper may fail to show why final language matters compared with prior formulations.
Doolittle proposal	Congressional Globe materials on proposed express Indian-exclusion language.	High drafting history / negative evidence	Primary page located; quotation use limited to cited source context	An express exclusion path was considered or debated; final text did not simply constitutionalize a listed-exception formula.	Nonadoption does not alone prove Congress rejected the underlying tribal-status concern.	Tribal-status genealogy may appear conclusory or result-driven.
Trumbull / Howard / Bingham / Johnson statements	Congressional Globe and related contextual materials.	High drafting context	Primary pages located; contextual use only	Supplies phrase-history vocabulary: “subject to the complete jurisdiction thereof,” allegiance, foreign power, tribal status, and better language.	Individual statements do not control unless tied to text, enactment, or settled categories.	The paper may overuse isolated statements or fail to answer rival uses of the same debates.

G.4B. Master Fixed-Point Inventory - Reconstruction, Categories, and Holdings

Table G-4B. Master Fixed-Point Inventory - Reconstruction, Categories, and Holdings

Table G-4B. Master Fixed-Point Inventory - Reconstruction, Categories, and Holdings						
Fixed point	Source	Source weight	Source treatment	What it proves	What it does not prove	Risk if omitted
Reconstruction anti-caste / freedmen and their children	Dred Scott; Civil Rights Act; Fourteenth Amendment; Reconstruction materials.	Controlling text + high historical purpose	Supporting sources cited	Race, ancestry, caste, bloodline, inherited degradation, and parental blame cannot be citizenship-disqualifying rules.	It does not eliminate the jurisdictional predicate or every possible sovereign-status displacement.	This Article may be misread as reviving hereditary exclusion unless this fixed point is foregrounded.
Diplomatic birth	Common law/law of nations; diplomatic immunity; Wong exposition; State Department/FAM practice used only for cited propositions.	Settled exclusion / interpretive background / implementation evidence	Supporting sources cited.	Physical U.S. birth can coexist with no membership-conferring jurisdiction when a recognized sovereign-status shield displaces local allegiance.	It does not prove that ordinary foreign nationality or alienage defeats citizenship.	The recognized sovereign-status exclusion could be accused of cherry-picking without this genealogy.
Hostile occupation	Blackstone, Commentaries; Inglis v. Trustees of Sailor's Snug Harbor; law-of-war / invading-army background; Wong exposition.	Settled exclusion / interpretive background	Cited source; quotation use limited to cited source context	Nominal geography is not enough when operative U.S. authority and accepted U.S. protection are displaced by hostile sovereign control; parent-linked enemy-force status may identify the child's hostile-sovereign birth-time relation when joined to actual displacement.	It does not exclude ordinary alienage, unlawful presence, enemy ancestry, parental disloyalty, wartime suspicion, or foreign parentage alone.	The operative-authority element would lack source support if hostile occupation were treated only as a label rather than as displaced authority/protection.
Historical tribal political relation	Federal Indian law; treaties; Elk; Ablavsky/Berger.	Controlling holding + high historical context	Core sources cited	A separate political-community relation can displace membership-conferring jurisdiction despite geography and some U.S. legal power.	It does not analogize ordinary immigrants, unlawfully present aliens, or temporary visitors to tribal nations.	Restrictionist theories may overextend Elk; broad theories may underexplain it.

Table G-4B. Master Fixed-Point Inventory - Reconstruction, Categories, and Holdings

Fixed point	Source	Source weight	Source treatment	What it proves	What it does not prove	Risk if omitted
Foundlings	8 U.S.C. § 1401(f); Nationality Act of 1940 § 201(f); State Department / USCIS unknown-parentage guidance; common-law birth/allegiance/protection only as background.	Statutory text + implementation evidence + international analogue + common-law background.	Statutory/admin sources cited; no common-law-specific foundling-citizenship presumption asserted	When parentage and birth circumstances are unknown, U.S. nationality law uses presumption under uncertainty rather than impossible proof demands.	It does not prove soil-only finality and does not establish an independently verified common-law foundling-citizenship rule.	The presumption-plus-trigger rule might appear invented if foundlings were omitted or if the foundling point were overclaimed.
Elk v. Wilkins	Elk v. Wilkins, 112 U.S. 94 (1884).	Controlling Supreme Court holding	Official U.S. Reports source cited	Geography and partial legal subjection are insufficient where a separate tribal political relation persists.	It does not hold that ancestry, race, alienage, foreign parentage, or ordinary unlawfulness defeats citizenship.	Both broad and restrictive accounts can distort the negative boundary.
United States v. Wong Kim Ark	United States v. Wong Kim Ark, 169 U.S. 649 (1898).	Controlling Supreme Court holding	Official U.S. Reports source cited	The resident, domiciled, non-diplomatic alien-parent core satisfies the Clause; alienage and foreign parentage alone are not disqualifying.	It does not decide every modern category such as tourist birth, TPS, parole, deferred action, pending adjustment, or bare unlawful entry.	The paper may either overread or underread Wong without holding/exposition classification.
Yick Wo / Plyler rights-bearing jurisdiction	Yick Wo v. Hopkins; Plyler v. Doe; Mathews v. Diaz.	Controlling rights-bearing holdings	Verified official source package located	Persons subject to U.S. law receive due process/equal protection protection; ordinary legal jurisdiction is broad.	They do not decide the Citizenship Clause's membership-conferring predicate.	Broad-side critics may use Plyler to collapse rights-bearing jurisdiction into citizenship.

G.4C. Master Fixed-Point Inventory - Rights, Implementation, Modern Incidents, and Comparators**Table G-4C. Master Fixed-Point Inventory - Rights, Implementation, Modern Incidents, and Comparators**

Table G-4C. Master Fixed-Point Inventory - Rights, Implementation, Modern Incidents, and Comparators						
Fixed point	Source	Source weight	Source treatment	What it proves	What it does not prove	Risk if omitted
Ordinary birth-record practice	State vital records, passport/nationality proof rules, and FAM materials.	Implementation evidence	Not admitted as affirmative proof; boundary or counterexample material only.	A timely U.S. birth record ordinarily creates prima facie citizenship / proof of citizenship.	It does not create constitutional citizenship if a displacing status is later legally established.	Administration may be mistaken for constitutional meaning or proof rule may lack grounding.
Diplomatic-child documentation and later adjudication	State Department/FAM, passport/citizenship documentation practice, diplomatic list practice.	Implementation evidence	Not admitted as affirmative proof; boundary or counterexample material only.	Later record-triggered adjudication can identify a settled exclusion without universal birth screening.	It does not give agencies power to invent new exclusions.	Record-trigger model may seem novel rather than ordinary.

Table G-4C. Master Fixed-Point Inventory - Rights, Implementation, Modern Incidents, and Comparators

Fixed point	Source	Source weight	Source treatment	What it proves	What it does not prove	Risk if omitted
Modern status incidents	INA and regulations governing LPR, TPS, parole, deferred action, asylum/refugee, U/T visas, SIJS, VAWA, withholding/CAT.	Modern statutory/record evidence	Not admitted as affirmative proof; boundary or counterexample material only.	Modern categories must be translated into legal incidents: duration, permission, removal shield, work authorization, residence-like recognition, civil process, and displacing status.	Labels do not themselves create or defeat constitutional citizenship.	Record-effect adjudication may look underdetermined or label-driven.
Accepted sovereign protection incident hierarchy	Modern status statutes/regulations plus companion essay's record-effect method.	Implementation / legal-incident classification	Not admitted as affirmative proof; boundary or counterexample material only.	Durable authorization, LPR/domicile, refugee/asylee protection, work authorization plus removal shield, and residence-like recognition are strong evidence; brief tourism and bare entry are weak evidence.	The hierarchy does not finally decide every individual case or replace constitutional meaning.	Accepted protection may be criticized as ad hoc balancing.
Lee residence challenge	Thomas H. Lee, The Citizenship Clause's Residence Requirement.	Comparator evidence	Cited source	Residence and "wherein they reside" must be addressed; temporary sojourner difficulty is real.	Residence is not yet shown to be the entire constitutional predicate.	This Article may fail against the cleanest alternative middle-position rule.
Common-law allegiance and protection	Blackstone, Coke, Calvin's Case, Story, law-of-nations materials, Wurman.	Interpretive background	Core sources cited	Common-law nativity often operated through territory, allegiance, protection, and exceptions rather than bare geography alone.	Common-law subjectship does not override the republican Citizenship Clause.	Jus soli may be misdescribed as either pure soil or irrelevant.
Ho broad territorial governability	James C. Ho, Defining American.	Comparator evidence	Cited source	The broad territorial governability account has a strong textual and practical argument: most persons in the United States must obey U.S. law.	It does not prove ordinary legal amenability equals membership-conferring jurisdiction.	This Article must treat the broad-side insight fairly or appear selective.
Heilpern / Whittington legal-text account	James A. Heilpern & Keith E. Whittington, "Subject to the Jurisdiction" as Legal Text.	Comparator / phrase-history evidence	Cited source	The phrase has strong conventional-usage evidence meaning governing authority and protection.	It does not prove the Citizenship Clause uses jurisdiction only at the ordinary legal-amenability level.	the phrase-history section may look incomplete.
Lash / Bates prima facie citizenship	Kurt T. Lash; Attorney General Bates, Citizenship, 10 Op. Att'y Gen. 382 (1862).	Implementation / proof-presumption background	Cited source; use limited to presumption and proof-allocation background.	Use for prima facie citizenship/presumption background, not soil-only finality.	Familial counter-allegiance cannot be assumed to be hereditary exclusion without anti-caste filtering.	This Article may lose the presumption point or be accused of creating it.

G.4D. Master Fixed-Point Inventory - Counterexamples and Boundary Pressure Points**Table G-4D. Master Fixed-Point Inventory - Counterexamples and Boundary Pressure Points**

Table G-4D. Master Fixed-Point Inventory - Counterexamples and Boundary Pressure Points						
Fixed point	Source	Source weight	Source treatment	What it proves	What it does not prove	Risk if omitted
Wurman protection / permission account	Ilan Wurman, Jurisdiction and Citizenship; Wurman reply.	Comparator / common-law evidence	Cited source	Protection matters; complete jurisdiction is more than criminal jurisdiction; ambassadors and invaders expose limits of soil shorthand.	Protection cannot be reduced automatically to modern lawful-status labels.	the accepted-protection element may seem borrowed or underdefined.
Ablavsky / Berger Indian-law context	Gregory Ablavsky & Bethany Berger, "Subject to the Jurisdiction Thereof": The Indian Law Context.	High comparator / historical context	Cited source	Tribal status was anomalous and quasi-foreign; Wong rejected using Elk against children of noncitizen immigrant parents.	Indian-law context does not prove ordinary legal amenability alone resolves membership-conferring citizenship.	the account could misapply tribal status or fail to block immigrant analogies.
Bernick / Gowder / Kreis anti-bloodline critique	Evan Bernick, Paul Gowder & Anthony Michael Kreis, Birthright Citizenship and the Dunning School of Unoriginal Meanings.	Comparator / anti-caste pressure point	Cited source	Allegiance-based narrowing can become denationalization based on parental conduct.	Anti-bloodline critique does not erase the jurisdictional predicate.	This Article may be attacked as Fuller's dissent unless this critique is answered.
Confederate / rebel children	Reconstruction history; Lash; Bernick/Gowder/Kreis; additional primary-source package not included in this Article.	Falsification / hard-case fixed point	Boundary or counterexample material.	Parent fault or political disloyalty should not transmit hereditary nonmembership absent recognized sovereign-status displacement.	It does not prove all counterallegiance evidence is irrelevant in every source domain.	The anti-caste and parentage-as-evidence rule remains under-tested.
Unlawful importation / anti-coolie contexts	Thomas H. Lee paper; federal anti-slave-trade and anti-coolie statutory materials; California anti-coolie source identified, with official state scan preferred.	Historical analogue / comparator evidence	Federal primary sources cited; California source treated as background unless official page is added	Unlawfulness of entry, importation, or coerced-labor context is not itself a recognized displacing sovereign-status relation.	It does not establish that every modern unlawful-presence case has identical legal incidents or that the Citizenship Clause ignores all unlawful-entry facts.	Unlawfulness may be overread as constitutional displacement unless this history is treated as a narrow pressure-point analogue.
Magliocca / Roma / non-domiciliaries	Gerard Magliocca, Indians and Invaders / Gypsies and Birthright Citizenship; Wurman reply references.	Comparator evidence	Not admitted as affirmative proof; boundary or counterexample material only.	Roma/Gypsy and sojourner materials may identify domicile or temporary-sojourner pressure points.	It is not controlling without source weighting and genealogy.	Comparator review may miss a historically salient sojourner category.

Table G-4D. Master Fixed-Point Inventory - Counterexamples and Boundary Pressure Points

Fixed point	Source	Source weight	Source treatment	What it proves	What it does not prove	Risk if omitted
Territories, possessions, bases, vessels, embassies	Citizenship statutes, territorial cases, and State Department practice; full territorial-source package not included in this Article.	Boundary / geographic predicate evidence	Boundary or counterexample material unless a full primary-law package is built	These edge cases test the geographic predicate and territorial authority, not the jurisdictional predicate as such.	They do not supply an affirmative complete-jurisdiction proof claim in this manuscript without a separate source package.	The paper may sprawl beyond its locked scope if these edge cases are litigated without a complete source package.
Agency administration and judicial judgment	Passport procedures, nationality procedures, APA, and Loper Bright/deference materials, used only for cited propositions.	Implementation / judicial-role evidence	Not admitted as affirmative proof; boundary or counterexample material only.	Courts decide constitutional meaning; agencies administer proof under that meaning.	Administrative practice cannot create the constitutional predicate.	Record-effect adjudication could be mistaken for agency-controlled constitutional meaning.

G.5. Falsification Consequence Taxonomy

The inventory is not decorative. It drives falsification. If a fixed point cannot be explained by complete jurisdiction, the affected element must be revised, narrowed, or abandoned.

Table G-5. Falsification Consequence Taxonomy

Table G-5. Falsification Consequence Taxonomy		
Conflict type	What triggers it	Public treatment
Textual conflict	A grammatical or syntactic feature contradicts the proposed relation.	Revise the textual premise before using history or policy.
Holding conflict	A Supreme Court holding requires a different result.	Treat the holding as controlling; revise the property or limit the claim.
Genealogy conflict	A category's origin does not support the property extracted from it.	Redo the extraction dossier; filter differently or remove the property.
Comparator conflict	A rival theory identifies a true fixed point omitted by Coia.	Add the fixed point, weight the source, and test whether complete jurisdiction adjusts.
Implementation conflict	The administration model cannot preserve ordinary proof practice without over-screening or under-enforcing.	Revise the presumption-plus-trigger or record-effect rules.
Modern incident conflict	A modern status has legal incidents inconsistent with the proposed classification.	Reclassify the status as included-core, excluded-core, unresolved margin, or non-dispositive evidence.

Appendix H. Wong: Holding, Reasoning, and Dicta

Appendix H separates holding facts, ratio support, background exposition, limiting principles, boundary reasoning, and rejected alternatives in Wong Kim Ark.

Table H-1. Wong Material Classification

Table H-1. Wong Material Classification				
Material from Wong	Classification	Use in this Article	Not used for	Citation target
Child born in San Francisco	Holding fact	Satisfies the territorial predicate.	Not a soil-only rule; the case did not ask whether every U.S. birth is conclusive regardless of jurisdictional facts.	169 U.S. at 652–53.
Parents resident and domiciled in the United States	Ratio support / holding context	Supports accepted sovereign protection and direct local allegiance; identifies the resident-alien core.	Not a domicile-only test; domicile is evidence of the relation, not the whole relation.	169 U.S. at 652–53, 704–05.
Parents conducting business in San Francisco	Record context	Supports ordinary local legal relation, protection, and subjection to local sovereign order.	Not a commercial-activity requirement for citizenship.	169 U.S. at 652–53.
Parents were subjects of China and not eligible for naturalization under federal law	Alienage context	Shows alienage and foreign nationality alone did not defeat the child's citizenship.	Not proof that every modern status is irrelevant; not a rule that parent-linked facts can never be evidence.	169 U.S. at 652–53, 704–05.
Parents not employed in any diplomatic or official capacity under the Emperor of China	Holding context	Shows no recognized displacing sovereign-status relation.	Not a general parentage rule; the relevant point is absence of diplomatic or official immunity.	169 U.S. at 652–53.
Common-law exposition	Reasoning / background exposition	Supplies allegiance/protection background and explains why resident alien birth falls within the Clause.	Not a holding that all modern categories are resolved by geography alone.	169 U.S. at 655–58, 693, 704–05.
Diplomat / foreign sovereign / minister exclusions	Limiting principles	Shows physical U.S. birth is not conclusive when a sovereign-status shield displaces local allegiance.	Not a foreign-parent rule; ordinary alienage is not diplomatic immunity.	169 U.S. at 657–58, 693.
Invader / hostile occupation exclusions	Limiting principles	Shows geography can fail when operative U.S. authority and protection are displaced.	Not a rule that all foreign nationals or unlawful entrants are invaders.	169 U.S. at 657–58, 693.
Tribal-status discussion	Boundary reasoning	Shows tribal political relation is distinct and closed by kind.	Not an ordinary immigrant analogy; not a race or ancestry exclusion.	169 U.S. at 680–82, 693; Elk, 112 U.S. at 102–03.
Distinction of Elk	Boundary reasoning / anti-overread	Prevents Elk from being generalized against children of noncitizen immigrant parents.	Not proof that the jurisdictional predicate has no work beyond the resident-alien core.	169 U.S. at 680–82, 693.
Civil Rights Act and Fourteenth Amendment background	Constitutional / statutory background	Shows birth plus sovereign-relation language was part of Reconstruction citizenship settlement.	Not enough by itself to prove complete jurisdiction; must be read with holdings and categories.	169 U.S. at 675–76, 688–93; 14 Stat. 27, 27.
Fuller dissent	Rejected alternative	Serves as warning against foreign-allegiance/bloodline reasoning and parentage as dispositive rule.	Not source of this Article's rule; not authority for complete jurisdiction.	169 U.S. at 706–32 (Fuller, C.J., dissenting).

Table H-1. Wong Material Classification

Material from Wong	Classification	Use in this Article	Not used for	Citation target
Final holding / disposition	Holding	The child of resident, domiciled, non-diplomatic alien parents born in the United States was a citizen.	Not a decision on tourist birth, TPS, parole, deferred action, pending adjustment, birth tourism, or bare unlawful entry.	169 U.S. at 704-05.

Table H-2. Classification Rules

Table H-2. Classification Rules		
Classification	Definition	Use rule
Holding fact	A fact necessary to the judgment or directly framing the precise category before the Court.	Can be carried into the fixed-point set with controlling weight.
Ratio support / holding context	A fact or reasoning step that supports why the Court reached its result for the category before it.	Strong evidence for the resident-alien core, but not an automatic rule for unrelated modern categories.
Reasoning / background exposition	Historical or doctrinal analysis used by the Court to explain the rule.	Interpretive background; useful but must be separated from the holding.
Limiting principle	A category or exception used by the Court to show the boundaries of the rule.	Fixed-point evidence for negative limits; cannot be overgeneralized.
Boundary reasoning	Reasoning distinguishing another holding or source.	Prevents analogy drift and improper generalization.
Rejected alternative	A dissent or argument the Court did not adopt.	May help define what the majority rejected, but does not supply the rule.

Table H-3. Wong Proof Functions

Table H-3. Wong Proof Functions		
Proof function	How Wong contributes	Limit
Affirmative inclusion boundary	Resident, domiciled, non-diplomatic alien-parent birth satisfies the Clause.	Does not decide every modern status.
Anti-bloodline rule	Alienage, foreign nationality, and foreign parentage alone do not defeat citizenship.	Does not make parent-linked facts irrelevant as evidence.
Exception significance	Diplomats, hostile occupation, and tribal-status discussions show soil is not the sole legal criterion.	Does not create an open-ended foreign-allegiance exclusion.
Elk limitation	Tribal-status history remains a closed political-community boundary.	Does not authorize analogies to ordinary immigrant communities.
Methodological precedent	Gray used fixed-point synthesis in case-bound form.	Does not mean Gray adopted this Article's later complete-jurisdiction test.

Appendix I. Citation Treatment and Source Limits

This appendix identifies the principal source categories, citation forms, and limits on use. It does not change the Article's legal argument or supply independent authority beyond the cited materials. The entries below state how each source category is used and the limits governing that use.

Table I-1. Citation Treatment and Source Limits

Table I-1. Citation Treatment and Source Limits			
Authority / issue	Use in Article	Source treatment	Use limit
Constitutional text and Clause grammar	Textual baseline for the Citizenship Clause predicate.	Official constitutional citations used.	No URL or dynamic-source treatment is needed for law-review citation form.
Civil Rights Act and Reconstruction debates	Drafting and anti-caste context for the final Clause.	Statutes at Large and Congressional Globe citations used.	Use as contextual drafting evidence; isolated debate language does not override the adopted text.
Bates opinion	Prima facie citizenship and proof-presumption background.	Bates citation used with limited use.	Use as proof-administration evidence, not as soil-only finality.
Supreme Court holdings	Wong, Elk, Yick Wo, Plyler, and related cases supply holding boundaries and rights/citizenship distinctions.	Standard reporter citations used.	Use each case according to the holding/reasoning/dicta classification stated in the Article.
Common-law and law-of-nations background	Background for allegiance, protection, diplomacy, hostile occupation, and sovereign immunity.	Edition and page citations used where directly quoted.	Use only for the verified proposition cited; do not convert background materials into the whole rule.
Diplomatic-birth practice	Settled exclusion and modern record-effect practice.	8 C.F.R. § 1101.3 and Moncada citation used.	Use as sovereign-status displacement and record-effect evidence; do not analogize ordinary alienage to diplomacy.
FAM / passport / nationality-proof materials	Administrative proof practice, foundlings, birth records, and documentation rules.	Current FAM/CFR materials cited.	Use as implementation and proof discipline, not as original constitutional meaning.

Table I-1. Citation Treatment and Source Limits

Authority / issue	Use in Article	Source treatment	Use limit
Modern-status statutes and regulations	Record-effect evidence for TPS, parole, deferred action, pending adjustment, humanitarian statuses, withholding/CAT, and related categories.	Current statutory/regulatory materials cited.	Labels are non-dispositive; the Article uses birth-time legal incidents only.
Comparator scholarship	Comparator pressure and rival-theory testing.	Publication status should be checked before release; manuscript/SSRN/forthcoming forms may be cited where final pages are unavailable.	Use as comparator evidence and adversarial framing, not as independent authority for this Article's rule.
Foundlings	Presumption under uncertainty.	Statutory and administrative sources verified; no common-law-specific foundling citizenship presumption is asserted.	Use as implementation/proof-discipline evidence only.
Territorial edge cases	Falsification and boundary-source pressure points.	Not treated as affirmative proof without a complete territorial-source package.	Use only to define the limits of the present record unless later sources require revision.

I.1. Citation Treatment and Use Limits

The citation table treats body propositions as supported only where the cited source, source weight, and limit on use are stated in the Article. Materials used only for background, comparator pressure, counterexample analysis, or source limits do not expand the Article's substantive rule.

Appendix J. Humanitarian, Coercion, and Protection Categories

Appendix J expands humanitarian, coercion, and protection categories because those categories may present different birth-time legal incidents even when labels appear similar.

Table J-1. Humanitarian, Coercion, and Protection Categories

Table J-1. Humanitarian, Coercion, and Protection Categories					
Humanitarian / coercion category	Birth-time record	Protection signal	Status incident risk	Wrong inference blocked	Preliminary treatment
Refugee granted	Admission/classification record; refugee travel/admission records; employment eligibility; termination history.	Formal status, federal protection from return, and work eligibility signal accepted sovereign protection.	Do not ignore possible termination/security bars; status must exist at birth.	Refugee status is not mere tolerance.	Strong included-core adjacent/candidate if granted at birth.
Asylee granted	Asylum grant; I-94/asylum approval; employment eligibility; derivative records; termination history.	Formal protection from persecution and indefinite work authorization signal accepted protection and local allegiance.	Do not treat pending asylum as the same as granted asylum.	Asylee protection is not ordinary temporary presence.	Strong included-core adjacent/candidate if granted at birth.
Pending asylum	I-589 filing date; pending status; EAD eligibility/waiting period; removal proceedings; parole/release records.	Pending claim may show protection-seeking and some process protection; EAD or stay facts matter.	Filing alone may not confer status; record must show actual incident at birth.	Pending application alone cannot automatically create citizenship-producing relation.	Unresolved humanitarian margin; categorical record-effect review required.
T visa granted	T-status approval; duration; EAD; cooperation/exemption record; derivative records; adjustment eligibility.	Strong coercion/protection signal; federal law recognizes victim status and allows remaining/work.	Do not let moral sympathy substitute for legal incidents; status must be legally operative at birth.	Trafficking victim protection is not a discretionary-label-only case.	Strong humanitarian/coercion record-effect evidence if granted at birth.
T visa pending / bona fide / continued presence	I-914 filing; bona fide determination; continued presence; deferred action; EAD; law-enforcement certification/cooperation records.	Intermediate/strong if formal interim protection or continued presence exists.	Pending without protection may be weak; distinguish application, bona fide finding, and granted status.	Application filing alone is not the constitutional relation.	Unresolved; collect exact birth-time federal incidents.
U visa granted	U-status approval; duration; EAD; law-enforcement certification; derivative records; adjustment eligibility.	Formal victim-protection status and work authorization strongly evidence accepted protection.	Status must be granted or protective incident fixed at birth.	Crime-victim status is not ordinary unlawful presence.	Strong humanitarian/coercion evidence if granted at birth.
U visa bona fide / pending	I-918 filing; bona fide determination; EAD; deferred action; certification; waitlist record.	Potentially strong if bona fide determination supplies EAD/deferred action/removal protection.	Pending petition alone less strong than statutory/granted protection.	Do not collapse all pending U applications into granted U status.	Unresolved; classify by formal interim incidents.
SIJS classification	State juvenile court findings; I-360 approval; visa availability; I-485 filing; deferred action; EAD.	Child-protection classification may be important, but federal incidents determine record effect.	Classification alone may not provide lawful status or work authorization.	Do not constitutionalize state parentage/juvenile labels by themselves.	Unresolved child-protection margin; strong if coupled with deferred action/I-485/EAD.
VAWA self-petition	I-360 filing/approval; prima facie determination; deferred action; EAD category; I-485 filing.	Domestic-violence/coercion recognition may supply protective incidents if federally operative.	Approved petition, deferred action, and pending adjustment must be separated.	Abuse/coercion evidence is not parental blame or bloodline.	Unresolved; classify by approval and accompanying incidents.

Table J-1. Humanitarian, Coercion, and Protection Categories

Humanitarian / coercion category	Birth-time record	Protection signal	Status incident risk	Wrong inference blocked	Preliminary treatment
Withholding of removal	Immigration judge/BIA grant; country-specific order; EAD; removal proceedings; third-country removability.	Strong shield against removal to a specific country, but less residence-like than asylum.	Does not create LPR/asylum status or family derivatives; may not bar removal to third country.	Removal shield is not identical to full lawful residence.	Unresolved humanitarian protection; strong removal-shield evidence but not settled core.

(Cont.) Table J-1. Humanitarian, Coercion, and Protection Categories**(Cont.) Table J-1. Humanitarian, Coercion, and Protection Categories**

Humanitarian / coercion category	Birth-time record	Protection signal	Status incident risk	Wrong inference blocked	Preliminary treatment
CAT withholding or deferral	CAT order; type of protection; detention/review status; EAD; termination risk.	Protection from torture-based removal is a strong humanitarian shield.	Deferral may be more temporary/terminable; detention may continue.	CAT protection is not ordinary tolerance but also not residence by label.	Unresolved; classify by strength and durability of protection at birth.
Humanitarian parole - medical/family/emergency	Parole document; duration; purpose; EAD; renewal history; sponsor/family records.	Durable emergency/medical/family parole can show accepted protection beyond bare admission.	Brief, event-specific parole may be much weaker.	Parole is not one constitutional category.	Unresolved; durable humanitarian parole may be strong evidence.
Humanitarian parole - mass or programmatic	Program authority; parole term; EAD; termination/renewal policy; re-parole; sponsor records.	A multi-year authorized stay plus EAD can signal accepted protection, but program terms govern.	Program label cannot control constitutional meaning; terminations/gaps matter.	Political-branch program name cannot create/destroy citizenship by itself.	Unresolved; analyze incidents at birth.
TPS gap periods	Designation dates; registration/re-registration; automatic EAD extension; late filing; termination/stay orders.	Valid TPS is strong; gap periods require precise record review.	A gap may reduce protection unless automatic extension or litigation stay applies.	TPS label alone is insufficient; valid birth-time incidents control.	Unresolved; strong if valid/extended at birth, weaker during unprotected gaps.
Deferred action / DACA	Grant notice; expiration; EAD; renewal filing; rescission/termination history; unlawful-presence effects.	Formal forbearance and EAD can be meaningful but not lawful status.	Deferred action is discretionary and does not itself create lawful status.	Formal deferral is not bare unlawful presence, but it is not LPR/asylum either.	Unresolved; intermediate evidence depending on duration and EAD.
Trafficking/coercion without formal status	Police/court records; agency contacts; pending T/U/VAWA/SIJS filings; protective orders; parole/release records.	Facts may explain lack of voluntary allegiance or legal footprint, but federal legal incident is key.	Pure hardship facts without legal recognition do not supply status incidents by themselves.	Coercion facts cannot become a policy balancing test.	Trigger for later record inquiry; not categorical status absent federal record.
Emergency birth during short visit	Medical records; admission record; travel plan; insurance/payment; lack of planned birth-tourism evidence.	May negate manipulation/blame but not necessarily supply residence-like protection.	Emergency facts cannot alone create durable protection.	Emergency birth is not organized birth tourism.	Weak but distinct temporary category; requires careful fact filtering.

Appendix K. Counterarguments and Responses

Appendix K collects principal counterarguments and the Article's responses from broad-side, restrictive, residence, anti-bloodline, and administrability perspectives.

Table K-0. Response Treatment

Table K-0. Response Treatment		
Treatment	Meaning	Public treatment
Answered	The Article already answers the objection through body text or appendices.	Retain in the Article with the cited source limits.
Clarified	The answer is present but should be stated more directly in body text.	Clarified in body text.
Integrated	The point has been integrated in body text or table treatment where retained.	Integrated in body or table treatment where retained.

K-1. Broad-Side Counterarguments

Table K-1. Broad-Side Counterarguments

Table K-1. Broad-Side Counterarguments				
Objection	Issue	Existing support	Response	Public treatment
"This is just geography plus exceptions. Ho and Heilpern/Whittington already show ordinary jurisdiction means governing authority."	Attacks the independent need for complete jurisdiction.	Grammar section: two cumulative predicates. Phrase-history section: ordinary governability is real. Comparator review: Ho and Heilpern/Whittington capture a true fact but cannot make it the whole rule. Fixed-point dossiers: diplomats, hostile occupation, tribal relation, foundlings, Elk, Wong.	This Article accepts the broad-side fact that persons present in U.S. territory are ordinarily governed by U.S. law. The correction is functional: ordinary legal amenability is Level 1; rights-bearing jurisdiction is Level 2; membership-conferring jurisdiction is Level 3. The Citizenship Clause performs the third function.	Addressed: Section XII distinguishes the three uses of jurisdiction and reinforced in the broad-side response; citations listed in Appendix I.
"The Clause says 'All persons.' this Article turns a universal guarantee into status adjudication."	Attacks universality and anti-caste framing.	Grammar section: "all persons" is the broad subject class, but the subject is modified by "born or naturalized" and "subject to the jurisdiction thereof" before "are citizens." Appendix G: constitutional text is controlling but does not erase all predicates.	"All persons" identifies who may claim the guarantee and defeats caste-limited citizenship. It does not eliminate the predicate that determines when the guarantee attaches. Universality defeats caste; it does not make every qualifying phrase automatic.	Addressed in Section II.A, "All Persons" and the Predicate Problem; citations listed in Appendix I.
"The historical exceptions are narrow carveouts; they do not justify a new theory."	Attacks category genealogy and property extraction.	Appendix B extraction dossiers; category genealogy; property map. Each category is reconstructed by source domain, legal function, retained facts, filtered facts, property extracted, and wrong inference blocked.	This Article does not infer from "exceptions" in the abstract. The paper reconstructs each category's origin: law of nations, law of war, federal Indian law, Reconstruction anti-caste law, evidentiary presumption, and holdings. The shared principle emerges only after aggregation.	Answered; retained with body cross-reference to Appendix B.

Table K-1. Broad-Side Counterarguments

Objection	Issue	Existing support	Response	Public treatment
“Wong already adopted a broad common-law territorial rule that resolves the modern cases.”	Attacks the case-bound reading of Wong.	Appendix H separates holding facts, ratio support, background exposition, limiting principles, boundary reasoning, and rejected alternatives. Wong is treated as case-bound fixed-point synthesis.	Wong secures the resident, domiciled, non-diplomatic alien-parent core and rejects alienage/foreign parentage alone. Its exposition supports broad inclusion but does not decide tourist birth, TPS, parole, deferred action, pending adjustment, or bare unlawful entry.	Answered; retain Appendix H and body section.
“Plyler says illegal aliens are subject to jurisdiction; that ends the case.”	Attacks the distinction between rights-bearing and membership-conferring jurisdiction.	Yick Wo/Plyler section; comparator review; falsification record. Plyler is classified as Equal Protection / rights-bearing jurisdiction, not a Citizenship Clause holding.	This Article does not place unlawfully present persons outside the law. They remain governed and protected as persons. The separate question is when birth under U.S. authority creates constitutional membership.	Addressed in Section XII: Plyler and Yick Wo remain rights-bearing cases and do not decide the citizenship-conferral predicate.
“Soil is administratively simple; this Article makes citizenship uncertain.”	Attacks administrability.	Administration flow; burden section; modern-status matrix. Birth record creates prima facie citizenship; no inquiry absent objective record trigger.	This Article preserves soil as the ordinary proof path. The administrative model does not adjudicate every birth. It allows later adjudication only when a legally material record trigger appears.	Answered; retain Figure XVI-A and presumption-plus-trigger text.

K-2. Restrictive Counterarguments

Table K-2. Restrictive Counterarguments

Objection	Issue	Existing support	Response	Public treatment
“Lash is right: birth creates a presumption, but counteralliance can rebut it.”	Attacks this Article’s rejection of familial counteralliance as an open rebuttal.	Comparator review; parentage-as-evidence section; Appendix B; anti-caste proof. Lash captures birth as a presumption and the jurisdictional phrase as real.	This Article retains the presumption but narrows rebuttal. Parent-linked facts matter only if they show a recognized sovereign-status displacement or absence of complete jurisdiction. They cannot become hereditary exclusion, familial blame, or generalized counteralliance.	Answered; retain; Lash is treated as a comparator, not a governing rule.

Table K-2. Restrictive Counterarguments

Objection	Issue	Existing support	Response	Public treatment
“Wurman is right: common law required protection and permission, not mere soil.”	Attacks accepted sovereign protection.	Jus soli/common-law section; comparator review; modern-status incident matrix. Wurman captures the protection/allegiance fact.	This Article adopts protection as an element but refuses label formalism. Accepted sovereign protection is evaluated by birth-time legal incidents, not by immigration labels alone. Permission matters, but it does not become a plenary-power citizenship switch.	Addressed in Sections XIV.A and XVI.B.1 through the accepted-protection/core-incident hierarchy; citations listed in Appendix I.
“Unauthorized entry shows refusal of allegiance and lack of sovereign protection.”	Attacks bare unlawful entry and modern-status margins.	Appendix E/J; falsification record; unlawful importation/anti-coolie dossier; Reconstruction anti-caste evidence.	Unlawfulness is not itself a displacing sovereign-status relation. It is materially adverse evidence of no accepted protection and may bear on direct local allegiance, but it is not equivalent to diplomacy, hostile occupation, or tribal political relation. The government must identify a legal incident, failure of an affirmative element, or a recognized displacement; it may not rely on moral blame or later parent-benefit incentives.	Addressed in Sections XIV.A, XIV.B, XVI.B.1, and XVI.B.3: unlawfulness is adverse evidence, not automatic displacement; parent-benefit concerns are statutory/administrative, not constitutional-predicate rules.
“The historical exclusions all looked to parents; parent status therefore controls.”	Attacks parentage-as-evidence distinction.	Parentage section; Appendix B interpretive criteria; Wong table; diplomatic and tribal dossiers.	Historical exclusions necessarily use parent-linked facts because newborns cannot personally have diplomatic immunity, tribal relation, domicile, or hostile-sovereign status. That proves evidentiary use, not hereditary rule. This Article filters out bloodline, race, ancestry, and parental blame.	Answered; retain; include the concrete diplomat example where useful.
“Temporary visitors are not under complete municipal jurisdiction.”	Attacks tourist/birth-tourism treatment.	Modern-status matrices; Lee section; Wurman review; administration flow.	This Article treats temporary admission as weak evidence of accepted protection and strong evidence of transience, but not an automatic constitutional exclusion by label. Categorical legal classification comes first; applicant-specific proof only if needed.	Addressed in Section XVI.B.2, Tourist, Birth-Tourism, and Emergency-Birth Records.

Table K-2. Restrictive Counterarguments

Objection	Issue	Existing support	Response	Public treatment
“Complete jurisdiction is just a softened restrictive rule.”	Attacks originality and derivation.	Method section; Appendix G; Appendix B; derived-not-invented proof; comparator review.	The rule is not selected to produce a middle result. It is derived after grammar, drafting history, category genealogy, holdings, property extraction, and falsification. It rejects both geography-only finality and parental-allegiance exclusion.	Answered; retain derivation order in introduction.

K-3. Lee Residence Counterarguments**Table K-3. Lee Residence Counterarguments**

Table K-3. Lee Residence Counterarguments				
Objection	Issue	Existing support	Response	Public treatment
“The phrase ‘of the State wherein they reside’ proves residence is a condition of Citizenship Clause coverage.”	Attacks the grammar and state-citizenship consequence.	Grammar section; Lee comparator review; residence section; constitutional text.	The phrase gives residence real work by assigning state citizenship after national citizenship attaches. It does not move backward to become an unstated third condition for national citizenship. § XI.C now treats the phrase as a state-citizenship allocation rule.	Addressed in § XI.C; publication-ready with citations listed in Appendix I.
“Because naturalization has always required residence, birth must also require residence.”	Attacks symmetry of “born or naturalized.”	Grammar section; statutory citizenship / naturalization section; Lee review.	Birth and naturalization are parallel gateways to the same consequence and share the jurisdictional predicate. They are not identical prerequisite sets. Naturalization residence requirements arise from Congress’s statutory naturalization power; importing them into the birth branch would let mutable statutes rewrite constitutional birth citizenship. § XI.B now answers this directly.	Addressed in § XI.B; publication-ready with citations listed in Appendix I.
“Infants reside where their parents reside; therefore parent residence should decide.”	Attacks newborn problem and evidentiary rule.	Parentage-as-evidence section; Lee review; Appendix B; anti-caste filter.	Parental residence is highly probative because newborns cannot independently establish residence. But parent-linked facts are evidentiary conduits; they identify the child’s birth-time sovereign relation and do not replace it with a residence-only or hereditary rule.	Addressed in § XI.D and parentage section.

Table K-3. Lee Residence Counterarguments

Objection	Issue	Existing support	Response	Public treatment
If “wherein they reside” gives residence textual work, residence must be a national-citizenship condition.	Confuses downstream state-citizenship allocation with the national-citizenship predicate, and confuses constitutional elements with evidence used to prove a separate constitutional phrase.	Grammar section; XI.C state-citizenship allocation; XI.D residence-as-evidence; parentage-as-evidence section.	Residence is not an element of national citizenship because the Citizenship Clause does not place residence in the national branch. But residence has downstream work: it assigns state citizenship after national citizenship attaches and prevents states from withholding state citizenship from resident U.S. citizens. Facts also need not be elements to be evidence. Residence may help prove accepted sovereign protection or direct local allegiance because those are the jurisdictional facts the national branch does require.	Add to XI.C/XI.D; pre-Barbara clarification only.
“Residence cleanly handles temporary sojourners and birth tourism.”	Attacks this Article’s record-effect approach as more complex than necessary.	Modern matrices; record-effect section; birth tourism treatment; administration flow.	Residence is useful for many temporary-sojourner cases, but it cannot explain diplomacy, hostile occupation, tribal political relation, foundlings, humanitarian/coercion statuses, or residence-like facts with displacing immunity. The record-effect matrix keeps residence as one strong incident.	Addressed in § XI.D and § XVI.B.2.
“Lee better accounts for unlawfully present but resident parents.”	Attacks this Article’s advantage over residence theory.	Unlawful importation/anti-coolie fixed point; modern-status matrix; anti-caste proof.	this Article absorbs Lee’s strongest inclusion point: resident alien parents, including those unlawfully present, may provide strong evidence of accepted protection and local allegiance. But unlawfulness and residence are both evidence; neither becomes a dispositive constitutional label.	Addressed in § XI.C and Appendix D.

Table K-3. Lee Residence Counterarguments

Objection	Issue	Existing support	Response	Public treatment
“this Article’s method leaves too many margins unresolved compared to a residence rule.”	Attacks certainty.	Administration flow; burden; matrix; counterexample review.	A cleaner rule is not necessarily a more accurate rule. Residence is one powerful incident; complete jurisdiction preserves all fixed points and uses record-effect adjudication only after an objective trigger.	Addressed in § XI and administration section.

K-4. Anti-Bloodline Counterarguments**Table K-4. Anti-Bloodline Counterarguments**

Table K-4. Anti-Bloodline Counterarguments				
Objection	Issue	Existing support	Response	Public treatment
“This is Fuller’s dissent in disguise: parentage becomes the real test.”	Attacks anti-bloodline legitimacy.	Wong Appendix H; parentage-as-evidence section; Reconstruction anti-caste materials; comparator review.	Fuller treated foreign allegiance and parentage as citizenship-defeating. This Article does the opposite: it preserves Wong’s resident-alien core, rejects foreign parentage as disqualifying, and permits parent-linked facts only as evidence of the child’s birth-time legal relation.	Addressed in Section XV.A, Why This Is Not Fuller’s Dissent; citations listed in Appendix I.
“Direct local allegiance sounds like subjective loyalty or bloodline.”	Attacks terminology.	Definitions of direct local allegiance; Wong and diplomatic dossiers; anti-caste filter.	Direct local allegiance is an objective legal relation arising from birth under U.S. operative authority and accepted protection. It is not subjective loyalty, race, ancestry, ideology, assimilation, parent worth, or political belief.	Addressed in Section I.A, Direct Local Allegiance: Definition and Use.
“Looking to parents punishes children for parental wrongdoing.”	Attacks parental blame.	Parentage section; Confederate/rebel birth dossier; unlawful importation dossier; anti-caste proof.	This Article filters out parental blame. It looks to legally operative sovereign-status facts only when they bear on the child’s birth-time relation. Confederate/rebel children and unlawfully imported persons show that wrongfulness or disloyalty is not inherited nonmembership.	Treated as anti-caste/falsification examples; affirmative proof requires a separate primary-source package.

Table K-4. Anti-Bloodline Counterarguments

Objection	Issue	Existing support	Response	Public treatment
“The model will be sex-specific or mother-centric like EO 14160.”	Attacks gender neutrality.	Parentage section; scope lock; companion essay; modern-status matrix.	The constitutional subject is the child. Parentage is used only as legally material evidence of the birth-time relation. The inquiry is gender-neutral and may use legally recognized parentage or equivalent sovereign-status facts, not maternal biology as rule.	Addressed through the parentage-as-evidence account; gender-neutrality issues do not alter the public holding.
“Anti-caste logic should mean parentage never matters.”	Attacks evidentiary conduit.	Diplomatic, tribal, Wong, foundling dossiers; property extraction method.	Every historical exclusion necessarily used parent-linked or sovereign-status facts because newborns cannot themselves hold diplomatic office, tribal membership, domicile, or residence. Anti-caste forbids generalizing those facts into bloodline; it does not forbid evidence of the child’s actual legal relation.	Answered; retain; ensure no sentence says parentage itself disqualifies.
“Foreign nationality or dual nationality is enough to show divided allegiance.”	Challenges the recognized sovereign-status exclusion.	Wong holding; anti-caste; recognized sovereign-status exclusion; comparator review.	Wong rejects foreign nationality and alienage alone as disqualifying. A displacing relation must be legal, birth-time, sovereign-status in character, and equivalent by kind to diplomacy, hostile occupation, or historical tribal political relation.	Answered; retain definition of displacing sovereign-status relation.

K-5. Administrability Counterarguments**Table K-5. Administrability Counterarguments**

Table K-5. Administrability Counterarguments				
Objection	Issue	Existing support	Response	Public treatment
“This creates mass citizenship adjudication.”	Attacks practical workability.	Administration flow; burden section; modern-status tables. Routine cases end with a timely U.S. birth record.	The administrative rule prevents mass adjudication. No universal screening, no demographic trigger, and no bedside citizenship adjudication. Inquiry opens only after an objective, legally material, official record-based trigger.	Answered; retain Figure XVI-A.

Table K-5. Administrability Counterarguments

Objection	Issue	Existing support	Response	Public treatment
“Record-effect adjudication becomes an immigration-status code.”	Attacks label formalism.	Modern-status matrices; record-effect rule; comparator review.	The matrix records legal incidents; it does not constitutionalize labels. Courts ask what the birth-time record conferred, withheld, recognized, or displaced. Labels alone neither create nor defeat citizenship.	Answered; retain status-key language.
“The burden standard is made up.”	Attacks clear-and-convincing standard.	burden section.	The clear-and-convincing standard is implementation discipline, not original meaning. The original-meaning inquiry supplies the predicate; the burden rule regulates proof when the government seeks to defeat a timely U.S.-birth presumption.	Answered; retain distinction between predicate and proof.
“Agencies or Congress can manipulate incidents to control constitutional citizenship.”	Attacks anti-manipulation rule.	Labels/incidents principle; modern matrices; administration flow.	Political branches may create immigration labels and incidents, but courts determine Citizenship Clause significance. A label alone cannot defeat citizenship, and a label alone cannot create citizenship.	Addressed in Section XVI.B.1, Political-Branch Incidents and Constitutional Significance.
“Unresolved modern margins produce chaos.”	Attacks stability.	Three-bucket model; matrices; falsification record.	The margins already existed. This Article supplies a finite adjudication method: preserved included core, settled excluded core, unresolved margin; categorical classification first; applicant-specific proof only if needed; government burden and review.	Answered; retain finite-matrix framing.
“Notice, evidence, and review are underspecified.”	Attacks procedural due process.	Burden section; administration flow; companion essay implementation discipline.	The paper requires notice, access to the records relied on, reasoned decision, administrative review where available, and judicial review. Those requirements follow from proof discipline and ordinary administrative fairness; they do not define original meaning.	Addressed in Section XVI.A.1, Procedural Due-Process Checklist.
“Modern humanitarian statuses are too varied for a single rule.”	Attacks Appendix J.	Appendix J humanitarian/coercion matrix.	That variation is precisely why This Article uses incidents rather than labels. T, U, SIJS, VAWA, withholding, CAT, DACA, TPS gaps, and humanitarian parole are assessed by duration, removal shield, work authorization, protection, and residence-like recognition.	Answered; retain Appendix J and preliminary-treatment caveat.

K-6. Public Response Summary

Table K-6. Public Response Summary

Table K-6. Public Response Summary			
Priority	Public response	Why it matters	Placement
1	“All Persons and the Predicate Problem”	Prevents broad-side universalist objection from portraying predicates as status adjudication.	§ II.A.
2	Lee residence response	Lee’s strongest naturalization-parallel argument and the “wherein they reside” phrase are now answered directly, not obliquely.	§§ XI.A–XI.D
3	“Why This Is Not Fuller’s Dissent”	Prevents anti-bloodline reader from equating evidentiary parentage with hereditary exclusion.	§ XV.A.
4	Direct local allegiance definition	Prevents confusion with subjective loyalty or political belief.	§ I.A and applied in § XIV.B.
5	Political-branch incident principle	Prevents record-effect method from becoming plenary-power determinism.	§ XVI.B.1.
6	Procedural checklist	Strengthens administrability: notice, evidence access, reasoned decision, administrative review, judicial review.	§ XVI.A.1.
7	Tourist/birth-tourism paragraph	Clarifies why temporary admission is weak evidence but not label-based automatic exclusion.	§ XVI.B.2.

Public Response Summary

The counterarguments are answered in the body. Section II.A addresses the “all persons” objection; Sections III through X preserve the phrase-history, drafting, and fixed-point limits; Sections XI through XIII compare rival accounts; Section XIII.A aggregates the retained properties; and Sections XIV through XVI state the derived rule and the administrative safeguards. Table K-6 identifies where those answers appear.

The counterarguments do not falsify complete jurisdiction. The Article preserves five propositions: grammar does real work; ordinary governability is necessary but not sufficient; parentage is evidence, not bloodline; residence is evidence, not the predicate; and administration proceeds through a birth-record presumption plus an objective trigger, not universal screening or demographic profiling.

Unlawful presence is treated in two registers. Constitutionally, bare unlawful entry is materially adverse evidence on accepted protection and direct local allegiance, but it is not the same kind of recognized sovereign-status displacement as diplomacy, hostile occupation, or historical tribal political relation. Statutorily and administratively, any later parent-benefit incentive belongs to family-petition, adjustment, inadmissibility, waiver, and discretion rules; it is not a reason to convert the child’s Citizenship Clause status into inherited punishment.

Appendix L. Fixed-Point Record and Legal Synthesis

This appendix states the fixed-point record supporting the Article's legal synthesis. It connects source materials to the stages of the argument, states the legal significance of each group of sources, and explains how the retained properties lead to the conclusion. If a source-backed fixed point cannot be admitted, weighted, reconstructed, filtered, and carried forward without distortion, the synthesis must change.

Appendix L does not assume the conclusion. Appendices L.1 through L.9 state how the sources are weighted, which facts are retained or rejected, what properties are carried forward, how candidate rules fare against the fixed-point set, and why the conclusion follows. The weighting is ordinal legal weighting, not arithmetic scoring. It ranks authority by legal force and source treatment so lower-weight materials cannot displace text, holdings, or settled fixed points.

To make the transition from source rows to synthesis auditable, Table L.6A supplies a row-level bridge from the L.4 source-reference rows and L.5 rival-rule findings into the retained-property synthesis in L.6, the administrative implementation in L.7, and the conclusion in L.9.

Figure L-1. Evidence-to-Synthesis Flow

From Source Materials to Complete Jurisdiction

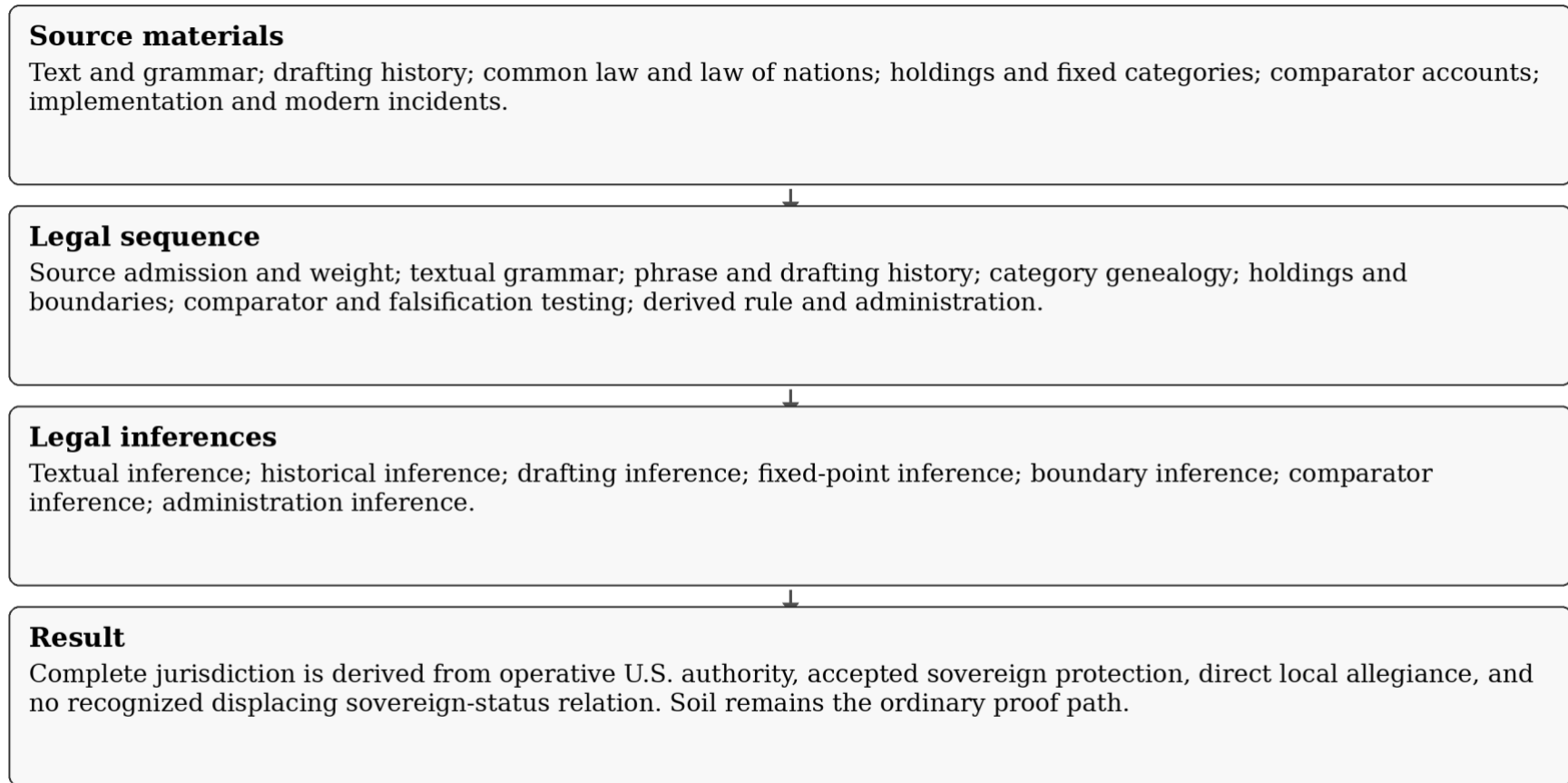


Figure L-1 summarizes the evidentiary path from source materials to the complete-jurisdiction conclusion.

Table L-1. Source-to-Argument Table

Table L-1. Source-to-Argument Table			
Argument stage	Source materials	Legal significance	Carry-forward result
1. Scope and source-weight lock	Thesis lock; fixed-point inventory; source-weight record; proof-unit packet.	The paper is limited to the Citizenship Clause predicate and cannot rely on undifferentiated source material. A source is not automatically a fixed point.	Admitted source set and source hierarchy.
2. Grammar and conditional structure	Citizenship Clause text; constitutional analogues; punctuation, conjunction, and antecedent of “thereof.”	The sentence contains a broad subject, two cumulative predicates, and a legal consequence. Universal subject language defeats caste but does not erase conditions.	Textual premise: soil is necessary proof path, not self-sufficient rule.
3. Phrase history and drafting choices	Ordinary meaning of jurisdiction; Civil Rights Act formula; Doolittle, Howard, Trumbull, Bingham, Johnson, Bates.	Jurisdiction includes ordinary governability, but the final text did not adopt pure soil, parentage, foreign-power formula, or a static exception list as the whole rule.	Historical premise: the jurisdictional predicate must do membership-conferring work.
4. Common-law and law-of-nations background	Jus soli materials; allegiance/protection; diplomats; hostile occupation; sovereign immunity.	Common-law soil language is often shorthand for territory plus allegiance and protection. Exceptions show soil alone cannot be final when a sovereign-status displacement exists.	Background premise: allegiance/protection concepts are relevant but must be republicanized by Reconstruction.
5. Category genealogy and extraction dossiers	Freedmen; diplomats; hostile occupation; tribal political relation; foundlings; Elk; Wong; implementation practice.	Each fixed point is reconstructed in full, legally operative facts are retained, forbidden generalizations are filtered, and one property is extracted.	Property set: operative authority, accepted protection, direct local allegiance, no displacing relation, presumption.
6. Holdings and boundary test	Wong holding/exposition table; Elk; Yick Wo; Plyler.	Wong secures the resident-alien core and bars alienage/foreign parentage as exclusions. Elk remains a closed tribal-political boundary. Yick Wo/Plyler protect rights-bearing jurisdiction, not citizenship-conferring jurisdiction.	Boundary rules that prevent both geography-only and parentage-only readings.
7. Comparator completeness review	Ho; Heilpern/Whittington; Lash; Wurman; Lee; Ablavsky/Berger; Bernick/Gowder/Kreis; Donahue; France; Magliocca; Schuck/Smith; Eastman/Barnett/Hyman/Estreicher-Reddy.	Each comparator captures a real fact. None can become the whole rule if it loses another source-backed fixed point.	Rival theories are not dismissed; their correct facts are relocated within complete jurisdiction.
8. Modern incidents and administration	Modern-status matrices; burden standard; administration flow; falsification record.	Modern labels are not constitutional rules. Record-effect classification asks what legal incidents existed at birth. Ordinary cases end at the birth record; triggered cases require proof and review.	Presumption-plus-trigger administration and record-effect adjudication.
9. Falsification and conclusion	Broad Wong language; Plyler footnote; Lee residence argument; rebel children; unlawful importation; foundlings; diplomatic-birth practice; birth tourism; TPS; parole; bare unlawful entry; territorial edge cases.	No minimum counterexample presently requires abandoning the derived rule; several require careful source classification and body integration.	Conclusion remains falsifiable: revise if a controlling fixed point contradicts the aggregate rule.

Figure L-2. Legal Synthesis Flow

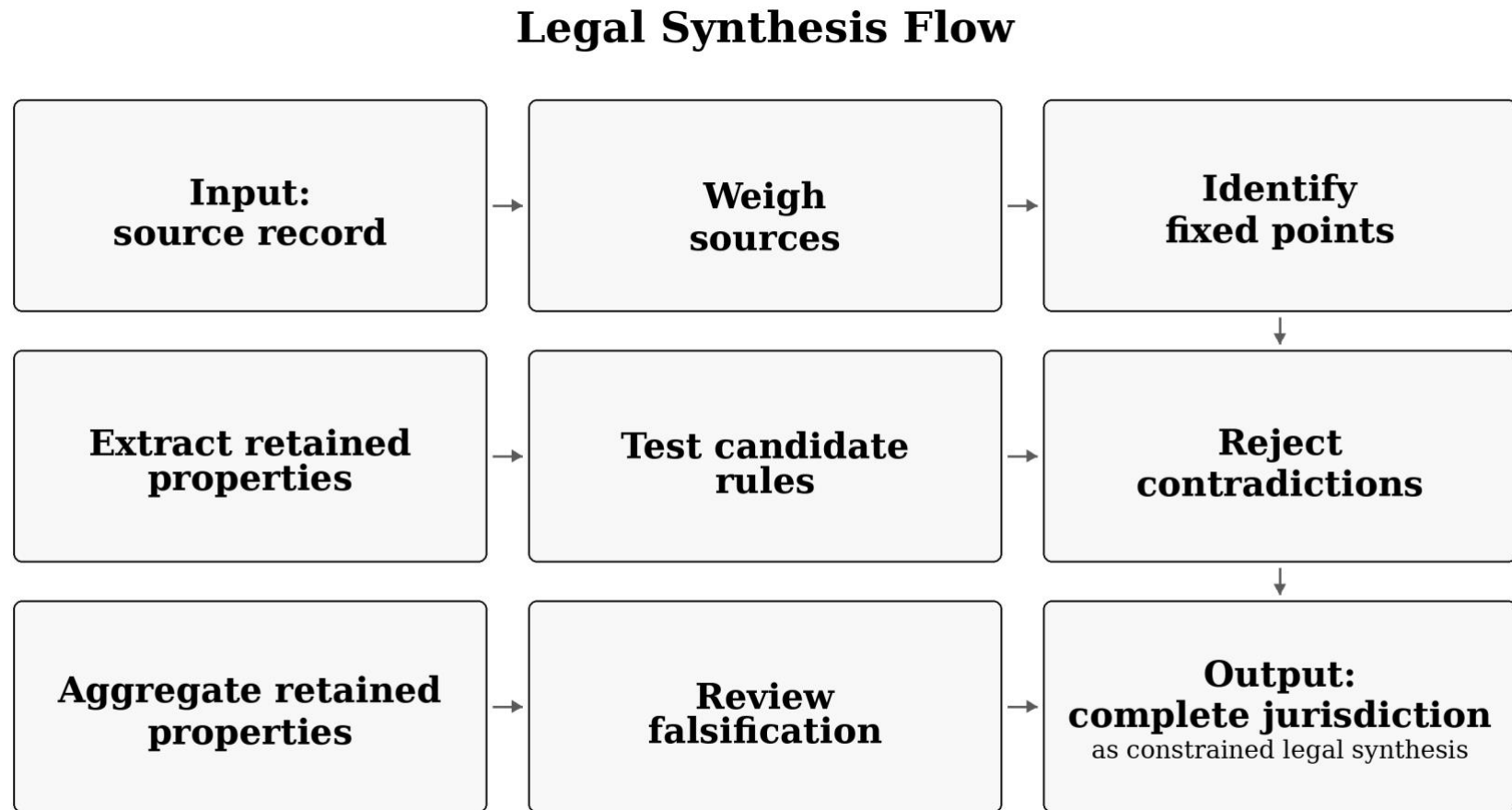


Figure L-2 summarizes how the source record is weighed, fixed points are identified, retained properties are extracted, and the resulting rule is tested.

Appendix L.1. Assembly of the Fixed-Point Record

Table L.1. Assembly of the Fixed-Point Record

Table L.1. Assembly of the Fixed-Point Record			
Interpretive stage	Legal use	Limiting principle	Result
Input	Collect text, drafting history, common-law background, law-of-nations materials, holdings, settled categories, implementation practice, comparators, modern incidents, and counterexamples.	No source is controlling merely because it exists.	Source set S.
1. Source weighting	Classify each source as controlling text, controlling holding, enacted history, ratification/drafting evidence, background law, practice, comparator, analogy, or modern incident.	A lower-weight source cannot displace a higher-weight fixed point.	Weighted source set W.
2. Fixed-point admission	Identify only source-backed applications or constraints as fixed points; classify rejected proposals, dicta, labels, and policy preferences as non-fixed unless tied to controlling materials.	No unweighted source may become a property.	Fixed-point set F.
3. Property extraction	For each fixed point, reconstruct origin and function; identify full fact field; retain operative facts; filter forbidden generalizations; extract safe property.	No direct move from exception to principle.	Property set P.
4. Rival interpretive-rule testing	Test geography-only, governability-only, parental-allegiance, residence, protection/permission, closed-exception, and complete-jurisdiction candidates against all fixed points.	Any candidate that loses a fixed point fails as the whole rule.	Surviving candidate(s).
5. Contradiction rejection	Reject rules that make “subject to jurisdiction” surplusage, turn parentage into bloodline, lose Wong or Elk, ignore settled exclusions, or constitutionalize labels.	A contradiction requires revision, not rhetorical defense.	Filtered rule space.
6. Aggregate retained properties	Aggregate the properties that survive: operative territorial authority; accepted sovereign protection; direct local allegiance; no recognized displacing sovereign-status relation.	The aggregate cannot include race, ancestry, bloodline, parental blame, or label formalism.	Complete-jurisdiction relation.
7. Administrative implementation	Translate the relation into presumption-plus-trigger administration and record-effect adjudication for modern margins.	Administration follows meaning; it does not create meaning.	Administerable proof regime.
8. Counterexample review	Test broad Wong language, Plyler footnote, Lee residence, rebel children, unlawful importation, foundlings, diplomacy practice, birth tourism, TPS, parole, bare unlawful entry, and territorial edge cases.	If a controlling fixed point contradicts the rule, revise the extraction or rule.	Falsifiable conclusion.

Appendix L.2. Authority Weight and Source Treatment

The analysis uses ordinal legal weights, not numerical scoring. Authority weight and source treatment are separate variables. A source may be legally high-weight but still require source verification or pinpoint confirmation; a fully collected source may still carry low legal weight if it is a comparator, policy label, or analogy.

Table L.2. Authority Weight and Source Treatment

Table L.2. Authority Weight and Source Treatment		
Authority category	Authority weight	Why assigned
W5	Constitutional text	Binding enacted text; supplies grammar, predicates, antecedents, and legal consequence.
W5-H	Supreme Court holding	Controlling unless overruled; fixes holdings, settled applications, and boundary rules.
W4	Enacted contemporaneous law	Formal legal enactment near adoption; high contextual value but cannot override constitutional text.
W3	Drafting / ratification evidence	Contextual evidence; individual statements do not control the adopted text.
W3-B	Common law / law of nations	Background vocabulary and inherited legal concepts; cannot erase the enacted constitutional predicate.
W2	Implementation practice	Proof mechanics and administrative settlement; cannot create constitutional meaning.
W2-M	Modern legal incidents	Record-effect evidence for modern margins; labels are not constitutional rules.
W1	Comparator scholarship / briefs	Rival theory and pressure-point evidence; useful for completeness testing.
W0	Non-fixed point	Rejected proposal, dictum, label, policy preference, or unsupported claim unless tied to higher authority.
Treatment category	Source treatment	Use consequence
Cited primary source	Official / primary source verified	May be used as final proof subject to ordinary Bluebook accuracy.
Authoritative source located	Authoritative source located; limited use to cited proposition	May support analysis subject to the stated source limit.
Partial source record	Partial source record only	Use cautiously as orientation or comparator support, not as controlling proof.
Boundary material only	Boundary or counterexample material	Do not use as affirmative proof; retain only for boundary or falsification analysis.

Appendix L.3. Source Classification and Interpretive Function

The following table organizes the legal source record by function. It is not an empirical database. Each group is classified by source weight, fixed-point admission, property extraction, rival interpretive-rule testing, administrative implementation, and counterexample review.

Short source references are used only to keep the tables readable; the legal significance of each source is stated in the accompanying source and treatment columns.

Table L.3. Source Classification and Interpretive Function

Table L.3. Source Classification and Interpretive Function		
Source group	Included materials	Function in the synthesis
Text / grammar	Clause grammar; "all persons"; "born or naturalized"; "subject to the jurisdiction thereof"; "thereof"; "wherein they reside."	Defines the enacted sentence, its predicates, and the citizenship consequence.
Drafting	Civil Rights Act formula; Doolittle; Howard; Trumbull; Bingham; Johnson; Bates.	Shows drafting choices, paths not taken, and limits on isolated debate statements.
Common law / law of nations	Blackstone; Coke / Calvin's Case; Story; Vattel; diplomats; hostile occupation; allegiance/protection.	Supplies background vocabulary while remaining subordinate to the enacted constitutional text.
Holdings	Wong; Elk; Yick Wo; Plyler; Slaughter-House; Minor.	Fixes binding applications and doctrinal boundaries.
Settled inclusions	Freedmen; resident/domiciled/non-diplomatic alien-parent births; ordinary birth-record presumption.	Supplies affirmative inclusion points that any rule must preserve.
Settled exclusions	Diplomatic birth; hostile occupation; historical tribal political relation.	Supplies negative boundaries and displacing sovereign-status categories.
Implementation practice	Foundlings; passport rules; diplomatic-child practice; birth records; documentation review.	Supplies proof mechanics, not constitutional meaning.
Comparators	Ho; Heilpern/Whittington; Lash; Wurman; Lee; Ablavsky/Berger; Bernick/Gowder/Kreis; Donahue; France; Magliocca; Schuck/Smith; Eastman/Barnett/Hyman/Estreicher-Reddy.	Identifies rival correct facts and tests whether each can carry the entire rule.
Modern incidents	LPR; TPS; parole; DACA/deferred action; pending adjustment; tourist/VWP; birth tourism; bare unlawful entry; SIJS; VAWA; T/U; withholding/CAT; humanitarian parole.	Supplies record-effect incidents for unresolved modern margins.
Counterexamples	Broad Wong language; Plyler footnote; Lee residence; rebel children; unlawful importation; foundlings; birth tourism; TPS; parole; bare unlawful entry; territorial edge cases.	Tests whether the derived rule must be revised.

Table L-1 shows how the source set bears on scope, grammar, phrase history, common law, category genealogy, holdings, comparator analysis, modern incidents, administration, falsification, and conclusion. The fixed-point application table below applies the same source set to individual source-backed rows.

Appendix L.4. Fixed-Point Applications and Legal Effect

For readability, Table L.4 is split into two linked panels. Table L.4A assigns each datum a source group, authority weight, source treatment, and fixed-point admission result. Table L.4B uses the same source reference to show facts retained, limitations, extracted properties, candidate-rule effects, and falsification consequences. Together, the panels show how the source record is applied.

Table L.4A. Fixed-Point Admission and Source Weight

Table L.4A. Fixed-Point Admission and Source Weight							
Source reference	Source / datum	Source group	Authority weight	Weight derivation	Source treatment	Fixed point admitted?	Admission reason
TXT-1	Citizenship Clause grammar	Text / grammar	W5	Constitutional text supplies binding sentence structure: subject, predicates, consequence.	Cited primary source	Yes	Controls textual baseline.
TXT-2	"All persons"	Text / grammar	W5	Universal subject is enacted text.	Cited primary source	Yes	Preserves anti-caste universality while leaving predicates operative.
TXT-3	"born or naturalized in the United States"	Text / grammar	W5	First textual predicate.	Cited primary source	Yes	Establishes territorial/naturalization gateway.
TXT-4	"and subject to the jurisdiction thereof"	Text / grammar	W5	Second textual predicate.	Cited primary source	Yes	Requires independent jurisdictional work.
TXT-5	"thereof"	Text / grammar	W5	Constitutional antecedent points to the United States.	Cited primary source	Yes	Confirms national jurisdictional relation.
TXT-6	"wherein they reside"	Text / grammar	W5	State-citizenship phrase in enacted text.	Cited primary source	Limited	Allocates state citizenship after national citizenship attaches; does not add a third national predicate.
DRF-1	Civil Rights Act of 1866 formula	Drafting	W4	Enacted contemporaneous law.	Cited primary source	Yes	Shows Congress knew the foreign-power / Indians-not-taxed formula.
DRF-2	Doolittle proposal	Drafting	W3	Rejected/unenacted proposal is contextual only.	Limited use	Limited	Shows an express tribal exclusion path not adopted as the final text.

(Cont.) Table L.4A. Fixed-Point Admission and Source Weight

(Cont.) Table L.4A. Fixed-Point Admission and Source Weight							
Source reference	Source / datum	Source group	Authority weight	Weight derivation	Source treatment	Fixed point admitted?	Admission reason
DRF-3	Howard introduction/comments	Drafting	W3	Drafting evidence.	Limited use	Limited	Shows expected exclusions and citizenship purpose, but cannot override text.

(Cont.) Table L.4A. Fixed-Point Admission and Source Weight

Source reference	Source / datum	Source group	Authority weight	Weight derivation	Source treatment	Fixed point admitted?	Admission reason
DRF-4	Trumbull "complete jurisdiction" / allegiance statements	Drafting	W3	Drafting evidence with direct phrase relevance.	Limited use	Limited	Useful for complete-jurisdiction vocabulary, but not isolated control.
DRF-5	Bingham comments	Drafting	W3	Drafting evidence; page-image verified context still important.	Limited use	Limited	Contextual parentage/allegiance evidence only.
DRF-6	Johnson "better language" context	Drafting	W3	Drafting sequence evidence.	Limited use	Limited	Supports formulation choice, not a freestanding rule.
DRF-7	Bates citizenship opinion	Implementation / antecedent legal opinion	W2	Proof/presumption background; not controlling text.	Limited use	Limited	Prima facie citizenship / presumption background only.
CML-1	Blackstone allegiance/protection	Common law / law of nations	W3-B	Common-law background.	Limited use	Yes, background	Links birth, allegiance, and protection; cannot erase Clause text.
CML-2	Coke / Calvin's Case	Common law / law of nations	W3-B	Common-law background.	Limited use	Yes, background	Supplies allegiance/protection vocabulary.
CML-3	Story / conflict-of-laws materials	Common law / law of nations	W3-B	Background source.	Limited use	Limited	Confirms legal vocabulary; does not decide Clause.

(Cont.) Table L.4A. Fixed-Point Admission and Source Weight**(Cont.) Table L.4A. Fixed-Point Admission and Source Weight**

Source reference	Source / datum	Source group	Authority weight	Weight derivation	Source treatment	Fixed point admitted?	Admission reason
CML-4	Diplomatic immunity / law of nations	Settled exclusion	W3-B	Background category recognized in doctrine and practice.	Cited primary source	Yes	Supplies sovereign-status shield displacement.
CML-5	Hostile occupation / Inglis / invader exception	Settled exclusion	W3-B / W5-H as applied in cases	Background plus holding support.	Limited use	Yes	Supplies operative-authority/protection displacement.
HLD-1	United States v. Wong Kim Ark	Holdings	W5-H	Controlling Supreme Court holding.	Cited primary source	Yes	Secures resident/domiciled/non-diplomatic alien-parent core.
HLD-2	Elk v. Wilkins	Holdings	W5-H	Controlling Supreme Court holding.	Cited primary source	Yes	Supplies closed tribal-political boundary.

(Cont.) Table L.4A. Fixed-Point Admission and Source Weight

Source reference	Source / datum	Source group	Authority weight	Weight derivation	Source treatment	Fixed point admitted?	Admission reason
HLD-3	Yick Wo / Plyler	Holdings	W5-H	Controlling in rights-bearing context.	Cited primary source	Limited	Shows rights-bearing jurisdiction, not citizenship-conferring jurisdiction.
HLD-4	Slaughter-House / Minor	Holdings	W5-H	Supreme Court background.	Cited primary source	Limited	Shows early citizenship-clause framing and dicta limits.
INC-1	Freedmen and children	Settled inclusion	W5 / W4	Core Reconstruction purpose and textual settlement.	Cited primary source	Yes	Supplies anti-caste / anti-bloodline affirmative paradigm.
EXC-1	Diplomatic birth	Settled exclusion	W5-H / W3-B / W2	Settled exclusion and current regulation.	Cited primary source	Yes	Physical soil without citizenship when sovereign-status shield exists.

(Cont.) Table L.4A. Fixed-Point Admission and Source Weight**(Cont.) Table L.4A. Fixed-Point Admission and Source Weight**

Source reference	Source / datum	Source group	Authority weight	Weight derivation	Source treatment	Fixed point admitted?	Admission reason
EXC-2	Historical tribal political relation	Settled exclusion	W5-H	Elk and Indian-law context.	Cited primary source	Yes	Separate political-community relation can displace citizenship.
PRC-1	Foundlings / unknown parentage	Implementation practice	W2	Statutory/admin proof rule; not verified common-law fixed point.	Cited primary source	Limited	Presumption under uncertainty.
PRC-2	Birth-record practice	Implementation practice	W2	Proof mechanics.	Limited use	Yes, implementation	Supports prima facie citizenship, not geography-only finality.
PRC-3	Passport/documentation review	Implementation practice	W2	Proof mechanics.	Cited primary source	Yes, implementation	Shows records can trigger review with burden and process.
CMP-1	Ho / Heilpern-Whittington	Comparators	W1	Scholarship / legal-text comparator.	Cited primary source	No, comparator	Captures ordinary governability; not admitted as whole rule.

(Cont.) Table L.4A. Fixed-Point Admission and Source Weight

Source reference	Source / datum	Source group	Authority weight	Weight derivation	Source treatment	Fixed point admitted?	Admission reason
CMP-2	Lash	Comparators	W1	Scholarship comparator.	Comparator source cited; final publication status noted	No, comparator	Captures birth presumption and independent jurisdiction; risks counterallegiance overreach.
CMP-3	Wurman	Comparators	W1	Scholarship comparator.	Published main article cited; reply treated as comparator manuscript	No, comparator	Captures protection; risks status/permission formalism.
CMP-4	Lee residence theory	Comparators	W1	Scholarship comparator.	Limited use	No, comparator	Captures residence pressure point; residence remains evidence, not rule.

(Cont.) Table L.4A. Fixed-Point Admission and Source Weight**(Cont.) Table L.4A. Fixed-Point Admission and Source Weight**

Source reference	Source / datum	Source group	Authority weight	Weight derivation	Source treatment	Fixed point admitted?	Admission reason
CMP-5	Ablavsky / Berger	Comparators	W1	Indian-law comparator.	Cited primary source	No, comparator	Captures tribal anomalous status and blocks immigrant analogy.
CMP-6	Bernick / Gowder / Kreis	Comparators	W1	Anti-bloodline comparator.	Cited primary source	No, comparator	Captures denationalization/anti-bloodline constraint.
MDR-1	LPR / settled lawful domicile	Modern incidents	W2-M	Modern record-effect evidence.	Cited primary source	Limited	Strong accepted-protection evidence.
MDR-2	TPS	Modern incidents	W2-M	Modern record-effect evidence.	Cited primary source	Limited	Removal shield/work authorization/duration evidence, not label rule.
MDR-3	Parole / humanitarian parole	Modern incidents	W2-M	Modern record-effect evidence.	Cited primary source	Limited	Temporary permission/protection evidence; not admission or automatic rule.
MDR-4	DACA / deferred action	Modern incidents	W2-M	Modern record-effect evidence.	Cited primary source	Limited	Removal forbearance/work authorization evidence; not lawful status label.

(Cont.) Table L.4A. Fixed-Point Admission and Source Weight

Source reference	Source / datum	Source group	Authority weight	Weight derivation	Source treatment	Fixed point admitted?	Admission reason
MDR-5	Pending adjustment	Modern incidents	W2-M	Modern record-effect evidence.	Cited primary source	Limited	Application posture/EAD evidence; not LPR until granted.
MDR-6	Tourist / VWP / birth tourism	Modern incidents	W2-M	Modern record-effect evidence.	Cited primary source	Limited	Transience evidence; emergency birth differs from organized birth tourism.

(Cont.) Table L.4A. Fixed-Point Admission and Source Weight**(Cont.) Table L.4A. Fixed-Point Admission and Source Weight**

Source reference	Source / datum	Source group	Authority weight	Weight derivation	Source treatment	Fixed point admitted?	Admission reason
MDR-7	Bare unlawful entry	Modern incidents	W2-M	Modern record-effect evidence.	Cited primary source	Limited	Weakest accepted-protection evidence; materially adverse absent affirmative federal recognition. Unlawfulness alone is not sovereign-status displacement.
MDR-8	SIJS / VAWA / T / U / withholding / CAT	Modern incidents	W2-M	Modern humanitarian/coercion incident evidence.	Cited primary source	Limited	Incident-specific protection/removal-shield/coercion evidence.
FAL-1	Broad Wong language	Counterexample	W5-H / dictum distinction	Holding/exposition pressure point.	Cited primary source	Limited	Tests whether Wong is overread as soil-only.
FAL-2	Plyler footnote	Counterexample	W5-H in Equal Protection context	Rights-bearing pressure point.	Cited primary source	Limited	Tests rights-bearing vs membership-conferring distinction.
FAL-3	Rebel children	Counterexample	Comparator / underdeveloped source package	Not sufficiently sourced as fixed point.	Partial source record	Not admitted / requires further source development	Tests counterallegiance and inherited blame.
FAL-4	Unlawful importation / anti-coolie	Counterexample	W2/W1 with partial primary sources	Pressure-point analogue.	Limited use	Limited	Unlawfulness alone is not sovereign-status displacement.
FAL-5	Territories / bases / vessels / aircraft	Counterexample	Territorial-source package not included in this Article	Deferred territorial-predicate issue.	Boundary or counterexample material	No / boundary item	This Article does not resolve territorial-status cases without a complete primary-law package.

Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect

Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect							
Source reference	Fact retained	Limitation	Property extracted	Effect on candidate rule	Complete-jurisdiction effect	Falsification consequence	Result
TXT-1	Broad subject + two predicates + legal consequence.	Soil-only inference that second predicate disappears.	Textual two-predicate premise.	Geography-only loses second predicate; complete jurisdiction preserves both.	Supports	If grammar is read as one predicate, revise.	Admitted controlling text.
TXT-2	Universal subject language.	Claim that "all persons" alone supplies rule.	Anti-caste universality.	Geography-only overreads universal subject; complete jurisdiction preserves universality and predicates.	Supports/limits	If universal subject nullifies predicates, revise.	Admitted constraint.
TXT-3	Domestic birth/naturalization gateway.	Claim that birth alone completes rule.	Ordinary proof path.	Geography-only overreads; complete jurisdiction treats soil as proof path.	Supports	If first predicate is exclusive, revise.	Admitted.
TXT-4	Jurisdiction is cumulative predicate.	Reduction to ordinary amenability only.	Membership-conferring predicate.	Governability-only underexplains exclusions.	Strong support	If jurisdiction is coextensive with amenability, revise.	Admitted.
TXT-5	Jurisdiction of the United States.	State police power as sole referent.	National sovereign relation.	Complete jurisdiction preserves national predicate.	Supports	If antecedent differs, revise.	Admitted.
TXT-6	State citizenship allocation phrase.	Lee inference that residence is national predicate.	State-citizenship allocation.	Residence overreads; complete jurisdiction treats residence as evidence.	Limits	If residence is third predicate, revise.	Limited admission.
DRF-1	Negative statutory formula known.	Treating 1866 formula as controlling constitutional rule.	Drafting path not taken / statutory comparison.	Closed-exception and foreign-power formula underexplain final text.	Supports	If final Clause merely copies 1866 formula, revise.	Admitted context.
DRF-2	Express exclusion proposal existed.	Treating rejection as controlling inclusion/exclusion.	General predicate chosen over list.	Closed-exception list underexplains general phrase.	Supports	If rejection proves opposite, revise.	Limited context.

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect							
Source reference	Fact retained	Limitation	Property extracted	Effect on candidate rule	Complete-jurisdiction effect	Falsification consequence	Result
DRF-3	Expected exclusions and broad inclusion.	Single-senator statement as adopted rule.	Drafting context.	Complete jurisdiction uses cumulatively, not controlling alone.	Supports/limits	If Howard controls alone, revise.	Limited.

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect

Source reference	Fact retained	Limitation	Property extracted	Effect on candidate rule	Complete-jurisdiction effect	Falsification consequence	Result
DRF-4	"Complete jurisdiction" / allegiance context.	Turning allegiance into parental bloodline.	Completeness / no competing sovereign relation.	Parentage/allegiance risks Fuller; complete jurisdiction filters.	Supports	If Trumbull compels bloodline, revise anti-caste filter.	Limited.
DRF-5	Parentage/allegiance concern.	Treating parentage as dispositive rule.	Parent-linked status is a possible trigger for categorical classification, not a citizenship-denial rule. Denial requires proof that the child's own birth-time complete-jurisdiction relation was absent.	Complete jurisdiction uses evidence not bloodline.	Limits	If adopted text incorporated parentage rule, revise.	Limited.
DRF-6	Language choice mattered.	Isolated statement as rule.	Drafting sequence.	Complete jurisdiction uses only context.	Supports	If contrary controlling context emerges, revise.	Limited.
DRF-7	Birth as prima facie citizenship.	Soil-only finality.	Presumption, not conclusive rule.	Geography-only overreads Bates; complete jurisdiction uses presumption.	Supports admin	If Bates proves finality, revise proof rule.	Limited.
CML-1	Allegiance/protection background.	Common law overrides enacted text.	Accepted protection / local allegiance background.	Protection theories useful but can overformalize.	Supports	If common law was pure soil, revise background.	Background.
CML-2	Ligeance/protection vocabulary.	Feudal subjectship imported wholesale.	Allegiance/protection background.	Complete jurisdiction republicanizes through Reconstruction.	Supports	If no relevance to Clause, reduce weight.	Background.
CML-3	Conflict-law vocabulary.	Background as controlling rule.	Contextual legal vocabulary.	Complete jurisdiction gives limited use.	Limits	If source irrelevant, omit.	Limited.

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect**(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect**

Source reference	Fact retained	Limitation	Property extracted	Effect on candidate rule	Complete-jurisdiction effect	Falsification consequence	Result
CML-4	Sovereign representative immunity displaces local relation.	All foreign parents displace citizenship.	No displacing sovereign-status relation.	Parentage/allegiance overgeneralizes; complete jurisdiction preserves closed kind.	Strong support	If diplomatic exclusion not accepted, revise negative limit.	Admitted.

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect

Source reference	Fact retained	Limitation	Property extracted	Effect on candidate rule	Complete-jurisdiction effect	Falsification consequence	Result
CML-5	Hostile occupation is a composite fixed point: nominal U.S. soil may lack operative authority/protection when hostile force displaces local sovereignty, and parent-linked enemy-force status may identify the child's birth-time hostile-sovereign relation.	Geography alone; enemy ancestry; enemy nationality; political dissent; parental disloyalty; ordinary unlawful presence; or any general foreign-parentage rule.	Composite sovereign displacement: operative U.S. authority and protection, with parent-linked enemy-force facts as evidentiary conduits rather than hereditary rules.	Geography-only accounts understate the “children of enemies” formulation; parentage-only accounts overgeneralize it.	Strong support for the operative-sovereignty and closed-displacement limits.	If hostile occupation is not a composite fixed point, revise the operative-authority and displacement treatment.	Admitted, with composite-source clarification.
HLD-1	Resident/domiciled/non-diplomatic alien-parent child included.	Wong decides every modern status or parentage never evidentiary.	Accepted protection + direct local allegiance despite alienage.	Geography-only overreads; parentage theory undercuts; complete jurisdiction preserves.	Strong support	If Wong is soil-only holding, revise scope.	Admitted.
HLD-2	Tribal political relation defeated citizenship despite U.S. geography.	Ancestry/race or immigrant analogy.	Closed displacing political-community relation.	Geography-only fails; parentage overgeneralizes; complete jurisdiction preserves.	Strong support	If Elk not citizenship fixed point, revise boundary.	Admitted.
HLD-3	Aliens/persons have rights-bearing jurisdiction.	Rights-bearing equals citizenship-conferring.	Three-use distinction.	Governability-only conflates.	Supports distinction	If Plyler controls citizenship predicate, revise.	Limited.
HLD-4	Early dicta on citizenship.	Dicta as controlling rule.	Context only.	Complete jurisdiction keeps holding hierarchy.	Limits	If controlling holding emerges, revise.	Limited.
INC-1	Freedmen included regardless race/ancestry.	Any hereditary exclusion.	Anti-caste / anti-bloodline constraint.	Parentage/allegiance theories risk contradiction; complete jurisdiction filters.	Strong constraint	If Reconstruction permits inherited blame, revise.	Admitted.

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect

Source reference	Fact retained	Limitation	Property extracted	Effect on candidate rule	Complete-jurisdiction effect	Falsification consequence	Result
EXC-1	Soil plus diplomatic parent not enough.	Foreign parentage generally.	Sovereign-status shield.	Complete jurisdiction preserves; geography-only needs unexplained exception.	Strong support	If diplomatic birth becomes mere label, revise.	Admitted.

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect**(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect**

Source reference	Fact retained	Limitation	Property extracted	Effect on candidate rule	Complete-jurisdiction effect	Falsification consequence	Result
EXC-2	Political-community relation displaces.	Ordinary immigrant analogy.	Closed sovereign-status displacement.	Complete jurisdiction preserves narrow category.	Strong support	If generalized, revise.	Admitted.
PRC-1	Unknown facts trigger presumption.	Common-law foundling rule not verified.	Presumption under uncertainty.	Complete jurisdiction uses statutory/admin proof rule only.	Supports administration	If no proof-rule relevance, reduce role.	Limited.
PRC-2	Birth record starts ordinary proof path.	Birth record as constitutional finality.	Prima facie citizenship.	Complete jurisdiction preserves proof/meaning distinction.	Supports administration	If records conclusive, revise trigger.	Admitted implementation.
PRC-3	Documentation review can consider records.	Agency labels as constitutional rule.	Record-based trigger and review.	Complete jurisdiction limits review by trigger/burden.	Supports administration	If review forbidden, revise implementation.	Admitted implementation.
CMP-1	Ordinary governability is real.	Governability bears whole rule.	Level 1 jurisdiction evidence.	Governability-only loses membership function.	Use in this Article	If governability sufficient, revise.	Comparator insight relocated.
CMP-2	Birth presumption and independent phrase.	Counteralliance becomes hereditary.	Presumption + jurisdiction work.	Complete jurisdiction keeps presumption, filters bloodline.	Use in this Article	If counteralliance controls, revise.	Comparator insight relocated.
CMP-3	Protection matters.	Permission/status labels control.	Accepted protection.	Complete jurisdiction uses incidents not labels.	Use in this Article	If permission formalism controls, revise.	Comparator insight relocated.
CMP-4	Residence matters.	Residence as whole predicate.	Residence as evidence.	Complete jurisdiction preserves as evidence.	Use in this Article	If Lee residence is constitutional rule, revise.	Comparator insight relocated.

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect							
Source reference	Fact retained	Limitation	Property extracted	Effect on candidate rule	Complete-jurisdiction effect	Falsification consequence	Result
CMP-5	Tribal status anomalous.	Indian-law history irrelevant or immigrant analogy.	Closed tribal-political boundary.	Complete jurisdiction adopts narrow use.	Use in this Article	If tribal analogy broadens, revise.	Comparator insight relocated.
CMP-6	Anti-denationalization/bloodline constraint.	Anti-bloodline means geography-only.	Forbidden generalization filter.	Complete jurisdiction preserves jurisdictional predicate.	Use in this Article	If anti-bloodline erases predicate, revise.	Comparator insight relocated.
MDR-1	Durable residence-like status.	Label creates citizenship.	Strong accepted-protection evidence.	Complete jurisdiction uses incidents.	Supports in margin	If LPR not evidence, revise matrix.	Record-effect.
MDR-2	Statutory removal shield/work authorization.	TPS label controls.	Record-effect protection evidence.	Complete jurisdiction treats as margin.	Tests	If TPS categorically included/excluded, refine.	Record-effect.
MDR-3	Temporary permission/parole.	Parole label controls.	Conditional protection evidence.	Complete jurisdiction requires incident analysis.	Tests	If parole treated as admission/status, refine.	Record-effect.
MDR-4	Removal forbearance/EAD.	Deferred action equals status.	Weak-to-moderate incident evidence.	Complete jurisdiction resists label formalism.	Tests	If policy changes, update.	Record-effect.
MDR-5	Pending application/EAD.	Pending means final status.	Record posture evidence.	Complete jurisdiction requires actual incidents.	Tests	If approval retroacts, refine.	Record-effect.
MDR-6	Temporary admission/transience.	Tourist label automatically excludes.	Transience evidence only.	Complete jurisdiction distinguishes emergency birth.	Tests	If birth tourism fixed rule emerges, revise.	Record-effect.

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect							
Source reference	Fact retained	Limitation	Property extracted	Effect on candidate rule	Complete-jurisdiction effect	Falsification consequence	Result
MDR-7	Unlawful entry alone.	Unlawfulness automatically excludes.	No automatic sovereign-status displacement; adverse evidence against accepted protection.	Complete jurisdiction treats as materially adverse record evidence, not a label rule or hereditary sanction.	Tests	If unlawful entry held displacing, revise.	Record-effect.
MDR-8	Humanitarian/coercion protections vary.	Humanitarian label controls.	Incident-specific protection evidence.	Complete jurisdiction requires birth-time record.	Tests	If category fixed by law, refine.	Record-effect.

(Cont.) Table L.4B. Fixed-Point Extraction and Candidate-Rule Effect

Source reference	Fact retained	Limitation	Property extracted	Effect on candidate rule	Complete-jurisdiction effect	Falsification consequence	Result
FAL-1	Broad language pressures case-bound reading.	Wong soil-only.	Holding/exposition distinction.	Complete jurisdiction relies on holding facts and limiting principles.	Tests	If controlling soil-only holding, revise.	Falsification item.
FAL-2	Plyler footnote pressure.	Equal Protection jurisdiction controls citizenship.	Rights vs membership distinction.	Complete jurisdiction separates registers.	Tests	If footnote controls Clause, revise.	Falsification item.
FAL-3	Rebel children pressure.	Counteralliance inherited.	Anti-inherited-blame constraint.	Complete jurisdiction requires a source package before this item can support proof.	Future research	If fixed point contradicts, revise.	Not admitted.
FAL-4	Unlawful importation pressure.	Illegality defeats status.	Unlawfulness not displacement.	Complete jurisdiction uses as analogue only.	Tests/limits	If primary sources contradict, revise.	Limited.
FAL-5 Territorial edge cases	Territorial-status cases may test whether the birth occurred “in the United States.”	Not person-specific fixed points unless a separate territorial-source package first establishes the territorial predicate.	Territorial predicate reserved.	Any rule that resolves territorial status through the person-specific jurisdiction predicate overclaims.	Defers; no overclaim.	If a controlling territorial case changes the person-specific relation, revise.	Future territorial-source research / boundary issue.

Appendix L.5. Rival Interpretive Rules and Source Fit

This table tests the principal candidate rules against the admitted fixed points. A candidate may preserve part of a fixed point while still failing as the whole rule. Standard outcomes: Preserves, Partially preserves, Overreads, Underexplains, Contradicts, and Not applicable.

Table L.5. Rival Interpretive Rules and Source Fit

Table L.5. Rival Interpretive Rules and Source Fit							
Fixed point	Geography-only	Governability-only	Parentage/allegiance	Residence	Protection/permission	Closed exceptions	Complete jurisdiction
Clause grammar	Contradicts second predicate	Partially preserves jurisdiction word	Over-personalizes subject	Adds residence predicate	Partially preserves	Underexplains general phrase	Preserves both predicates
"All persons"	Overreads universality	Partially preserves personhood	Risks hereditary exclusion	Partially preserves	Not decisive	Not decisive	Preserves universality and predicates
Civil Rights Act formula	Underexplains change	Underexplains formula shift	Overreads foreign power	Not decisive	Partially preserves	Overreads negative list	Preserves as drafting comparator
Doolittle proposal	Underexplains non-adoption	Partially preserves	Overreads parentage/tribal analogy	Not decisive	Not decisive	Overreads rejected list	Preserves as path not taken

Table L.5. Rival Interpretive Rules and Source Fit

Fixed point	Geography-only	Governability-only	Parentage/allegiance	Residence	Protection/permission	Closed exceptions	Complete jurisdiction
Diplomats	Needs exception	Needs exception	Overgeneralizes parentage	Not enough	Preserves displacement	Preserves category but not principle	Preserves by sovereign-status displacement
Hostile occupation	Contradicts	Underexplains operative authority	Partially captures allegiance	Not enough	Captures protection issue	Preserves category narrowly	Preserves operative authority element
Tribal relation / Elk	Contradicts or treats anomaly	Underexplains membership	Overgeneralizes to immigrants	Not enough	Partially captures	Preserves but static	Preserves closed political-community displacement
Wong	Preserves core but overreads margins	Preserves governability but underreads membership	Risks Fuller	Captures domicile facts, overreads residence	Captures protection facts	Preserves non-diplomatic exception only	Preserves resident-alien core and limits

(Cont.) Table L.5. Rival Interpretive Rules and Source Fit**(Cont.) Table L.5. Rival Interpretive Rules and Source Fit**

Fixed point	Geography-only	Governability-only	Parentage/allegiance	Residence	Protection/permission	Closed exceptions	Complete jurisdiction
Yick Wo / Plyler	Confuses rights with citizenship	Confuses rights with citizenship	Not applicable	Not applicable	Not applicable	Not applicable	Separates rights-bearing and membership-conferring jurisdiction
Foundlings	Presumption fits but overreads	Not decisive	Not applicable	Unknown	Proof rule only	Not applicable	Presumption under uncertainty
Birth records	Overreads proof as finality	Not decisive	Not applicable	Not decisive	Not decisive	Not decisive	Prima facie proof path
Lee residence challenge	Underexplains state phrase	Not decisive	Not decisive	Overreads residence	Partially preserves	Not decisive	Residence as evidence, not predicate
Modern statuses generally	Too conclusive	Too broad	Too exclusionary	Too rigid	Useful but label-risk	Too static	Record-effect adjudication
Tourist / birth tourism	Overincludes	Overincludes	May overexclude	Partially preserves transience	Captures weak protection	No category	Incident-specific treatment
TPS	Overincludes	Overincludes	May overexclude	Not enough	Captures protection but label-risk	No category	Record-effect margin
Parole	Overincludes	Overincludes	May overexclude	Not enough	Captures permission but label-risk	No category	Record-effect margin

(Cont.) Table L.5. Rival Interpretive Rules and Source Fit

(Cont.) Table L.5. Rival Interpretive Rules and Source Fit							
Fixed point	Geography-only	Governability-only	Parentage/allegiance	Residence	Protection/permission	Closed exceptions	Complete jurisdiction
Bare unlawful entry	Overincludes	Overincludes	May overexclude by fault	Not enough	Weak protection evidence	No category	Weakest evidence; may fail affirmative elements; not automatic exclusion or displacement

Bridge from L.4 and L.5 to L.6

Tables L.4A and L.4B classify and extract the source-backed rows. Table L.5 then tests whether rival interpretive rules can preserve those rows without contradiction, overreading, underexplaining, or forbidden generalization. Table L.6 states the properties that survive that process. To make the transition auditable, Table L.6A maps each L.4 source-reference group and the L.5 rival-rule findings to the retained fact, excluded overclaim, limitation, or property carried into L.6. Rows not carried forward are identified as limited, implementation-only, falsification-only, record-effect, deferred, or boundary items.

The matrix is a traceability aid. It does not add new source weight. It shows how the L.4 and L.5 rows contribute to the synthesis already stated in the body, especially Sections XIII.A, XIV, XV, XVI, and XVII.

Table L.6A. Row-to-Result Traceability Matrix - Part 1: Text, drafting, and common-law background

Table L.6A. Row-to-Result Traceability Matrix - Part 1: Text, drafting, and common-law background					
L.4 ref / source	L.4 treatment	Retained fact / limitation	L.5 candidate-rule effect	Result carried into L.6/L.7/L.9	Contribution / body cross-reference
TXT-1 - Citizenship Clause grammar	Yes; Admitted controlling text.	Retained: Broad subject + two predicates + legal consequence. Limit: Soil-only inference that second predicate disappears.	Geography-only loses second predicate; complete jurisdiction preserves both.	Textual baseline for L.6: complete jurisdiction must preserve broad subject + two predicates + consequence. Body II, XIII.A, XIV.	Property: Textual two-predicate premise. Type: Supports
TXT-2 - "All persons"	Yes; Admitted constraint.	Retained: Universal subject language. Limit: Claim that "all persons" alone supplies rule.	Geography-only overreads universal subject; complete jurisdiction preserves universality and predicates.	Anti-caste / anti-bloodline constraint in L.6; universality survives without erasing predicates. Body II.A, XIII.A, XIV.	Property: Anti-caste universality. Type: Supports/limits
TXT-3 - "born or naturalized in the United States"	Yes; Admitted.	Retained: Domestic birth/naturalization gateway. Limit: Claim that birth alone completes rule.	Geography-only overreads; complete jurisdiction treats soil as proof path.	Territorial/naturalization gateway; soil is ordinary proof path but not whole predicate. Body II, IX, XIV.	Property: Ordinary proof path. Type: Supports
TXT-4 - "and subject to the jurisdiction thereof"	Yes; Admitted.	Retained: Jurisdiction is cumulative predicate. Limit: Reduction to ordinary amenability only.	Governability-only underexplains exclusions.	Membership-conferring jurisdiction predicate; rejects governability-only and soil-only collapse. Body II, XII, XIV.	Property: Membership-conferring predicate. Type: Strong support
TXT-5 - "thereof"	Yes; Admitted.	Retained: Jurisdiction of the United States. Limit: State police power as sole referent.	Complete jurisdiction preserves national predicate.	National sovereign relation; limits state-police-power reduction. Body II.A, XIV.B.	Property: National sovereign relation. Type: Supports
TXT-6 - "wherein they reside"	Limited; Limited admission.	Retained: State citizenship allocation phrase. Limit: Lee inference that residence is national predicate.	Residence overreads; complete jurisdiction treats residence as evidence.	State-citizenship consequence; limits Lee-style residence inference. Body XI.C-XI.D.	Property: State-citizenship allocation. Type: Limits

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Table L.6A. Row-to-Result Traceability Matrix - Part 1: Text, drafting, and common-law background					
L.4 ref / source	L.4 treatment	Retained fact / limitation	L.5 candidate-rule effect	Result carried into L.6/L.7/L.9	Contribution / body cross-reference
DRF-1 - Civil Rights Act of 1866 formula	Yes; Admitted context.	Retained: Negative statutory formula known. Limit: Treating 1866 formula as controlling constitutional rule.	Closed-exception and foreign-power formula underexplain final text.	Drafting comparator; confirms prior foreign-power formula cannot override adopted jurisdiction text. Body IV, XIII.A.	Property: Drafting path not taken / statutory comparison. Type: Supports
DRF-2 - Doolittle proposal	Limited; Limited context.	Retained: Express exclusion proposal existed. Limit: Treating rejection as controlling inclusion/exclusion.	Closed-exception list underexplains general phrase.	Path not taken; rejected express exclusion does not produce soil-only finality or closed-list formalism. Body IV, VI.	Property: General predicate chosen over list. Type: Supports
DRF-3 - Howard introduction/comments	Limited; Limited.	Retained: Expected exclusions and broad inclusion. Limit: Single-senator statement as adopted rule.	Complete jurisdiction uses cumulatively, not controlling alone.	Limited drafting support for broad inclusion plus sovereign-status limits; no isolated-statement rule. Body IV, VI.	Property: Drafting context. Type: Supports/limits
DRF-4 - Trumbull "complete jurisdiction" / allegiance statements	Limited; Limited.	Retained: "Complete jurisdiction" / allegiance context. Limit: Turning allegiance into parental bloodline.	Parentage/allegiance risks Fuller; complete jurisdiction filters.	Phrase-history support for complete-jurisdiction vocabulary; filtered against bloodline. Body IV, XIV.	Property: Completeness / no competing sovereign relation. Type: Supports
DRF-5 - Bingham comments	Limited; Limited.	Retained: Parentage/allegiance concern. Limit: Treating parentage as dispositive rule.	Complete jurisdiction uses evidence not bloodline.	Limited parentage/allegiance evidence; carried only as evidentiary conduit, not rule. Body XV.	Property: Parent-linked status is a possible trigger for categorical classification, not a citizenship-denial... Type: Limits
DRF-6 - Johnson "better language" context	Limited; Limited.	Retained: Language choice mattered. Limit: Isolated statement as rule.	Complete jurisdiction uses only context.	Drafting sequence support; shows language choice mattered. Body IV.	Property: Drafting sequence. Type: Supports
DRF-7 - Bates citizenship opinion	Limited; Limited.	Retained: Birth as prima facie citizenship. Limit: Soil-only finality.	Geography-only overreads Bates; complete jurisdiction uses presumption.	Proof/presumption background; feeds L.7 administration, not L.6 substantive predicate alone. Body VII.A, XVI.	Property: Presumption, not conclusive rule. Type: Supports admin
CML-1 - Blackstone allegiance/protection	Yes, background; Background.	Retained: Allegiance/protection background. Limit: Common law overrides enacted text.	Protection theories useful but can overformalize.	Background for accepted protection and direct local allegiance; subordinate to constitutional text. Body V, XIV.A-B.	Property: Accepted protection / local allegiance background. Type: Supports
CML-2 - Coke / Calvin's Case	Yes, background; Background.	Retained: Ligeance/protection vocabulary. Limit: Feudal subjectship imported wholesale.	Complete jurisdiction republicanizes through Reconstruction.	Background vocabulary only; filters feudal subjectship. Body V.	Property: Allegiance/protection background. Type: Supports
CML-3 - Story / conflict-of-laws materials	Limited; Limited.	Retained: Conflict-law vocabulary. Limit: Background as controlling rule.	Complete jurisdiction gives limited use.	Conflict-law background; supports relational inquiry without controlling rule. Body V.	Property: Contextual legal vocabulary. Type: Limits
CML-4 - Diplomatic immunity / law of nations	Yes; Admitted.	Retained: Sovereign representative immunity displaces local relation. Limit: All foreign parents displace citizenship.	Parentage/allegiance overgeneralizes; complete jurisdiction preserves closed kind.	No recognized displacing sovereign-status relation; diplomacy as closed negative category. Body VI, XIV.B.	Property: No displacing sovereign-status relation. Type: Strong support

Table L.6A. Row-to-Result Traceability Matrix - Part 1: Text, drafting, and common-law background					
L.4 ref / source	L.4 treatment	Retained fact / limitation	L.5 candidate-rule effect	Result carried into L.6/L.7/L.9	Contribution / body cross-reference
CML-5 - Hostile occupation / Inglis / invader exception	Yes; admitted, with composite-source clarification.	Retained: hostile occupation is a composite fixed point. Nominal U.S. soil may lack operative U.S. authority and protection when hostile force displaces local sovereignty, and parent-linked enemy-force status may identify the child's birth-time hostile-sovereign relation. Limit: geography alone; enemy ancestry; enemy nationality; political dissent; parental disloyalty; ordinary unlawful presence; or any general foreign-parentage rule.	Geography-only accounts understate the “children of enemies” formulation; parentage-only accounts overgeneralize it. Complete Jurisdiction preserves the operative-sovereignty insight while filtering inherited enemy status, parental blame, and ordinary immigration-status analogies.	Composite sovereign-displacement category. Hostile occupation defeats ordinary soil-based proof only when actual enemy control displaces operative U.S. authority and protection at the place of birth and the record identifies the relevant hostile-sovereign relation.	Property: composite sovereign displacement - operative U.S. authority and protection are necessary; parent-linked enemy-force facts are evidentiary conduits, not hereditary rules. Body VI, XIV, Appendix B-3. Type: Strong support.

(Cont.) Table L.6A. Row-to-Result Traceability Matrix - Part 2: Holdings, settled inclusions/exclusions, and proof practice

(Cont.) Table L.6A. Row-to-Result Traceability Matrix - Part 2: Holdings, settled inclusions/exclusions, and proof practice					
L.4 ref / source	L.4 treatment	Retained fact / limitation	L.5 candidate-rule effect	Result carried into L.6/L.7/L.9	Contribution / body cross-reference
HLD-1 - United States v. Wong Kim Ark	Yes; Admitted.	Retained: Resident/domiciled/non-diplomatic alien-parent child included. Limit: Wong decides every modern status or parentage never evidentiary.	Geography-only overreads; parentage theory undercuts; complete jurisdiction preserves.	Wong core: accepted protection + direct local allegiance despite alienage; also anti-bloodline. Body VIII, XIV.	Property: Accepted protection + direct local allegiance despite alienage. Type: Strong support

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(Cont.) Table L.6A. Row-to-Result Traceability Matrix - Part 2: Holdings, settled inclusions/exclusions, and proof practice					
L.4 ref / source	L.4 treatment	Retained fact / limitation	L.5 candidate-rule effect	Result carried into L.6/L.7/L.9	Contribution / body cross-reference
HLD-2 - Elk v. Wilkins	Yes; Admitted.	Retained: Tribal political relation defeated citizenship despite U.S. geography. Limit: Ancestry/race or immigrant analogy.	Geography-only fails; parentage overgeneralizes; complete jurisdiction preserves.	Closed displacing political-community relation; geography alone insufficient without immigrant analogy. Body VIII, XIV.B.	Property: Closed displacing political-community relation. Type: Strong support
HLD-3 - Yick Wo / Plyler	Limited; Limited.	Retained: Aliens/persons have rights-bearing jurisdiction. Limit: Rights-bearing equals citizenship-conferring.	Governability-only conflates.	Rights-bearing vs membership-conferring jurisdiction distinction; blocks governability-only. Body XII.	Property: Three-use distinction. Type: Supports distinction
HLD-4 - Slaughter-House / Minor	Limited; Limited.	Retained: Early dicta on citizenship. Limit: Dicta as controlling rule.	Complete jurisdiction keeps holding hierarchy.	Holding hierarchy and source limits; dicta constrain but do not create rule. Body VIII, XIII.A.	Property: Context only. Type: Limits
INC-1 - Freedmen and children	Yes; Admitted.	Retained: Freedmen included regardless race/ancestry. Limit: Any hereditary exclusion.	Parentage/allegiance theories risk contradiction; complete jurisdiction filters.	Anti-caste / anti-bloodline constraint and affirmative Reconstruction inclusion. Body VI, XIII.A, XIV.	Property: Anti-caste / anti-bloodline constraint. Type: Strong constraint
EXC-1 - Diplomatic birth	Yes; Admitted.	Retained: Soil plus diplomatic parent not enough. Limit: Foreign parentage generally.	Complete jurisdiction preserves; geography-only needs unexplained exception.	Diplomatic-birth exclusion; closed sovereign-status displacement, not foreign parentage generally. Body VI, XIV.B.	Property: Sovereign-status shield. Type: Strong support
EXC-2 - Historical tribal political relation	Yes; Admitted.	Retained: Political-community relation displaces. Limit: Ordinary immigrant analogy.	Complete jurisdiction preserves narrow category.	Historical tribal political relation; closed political-community displacement, not immigrant analogy. Body VI, VIII, XIV.B.	Property: Closed sovereign-status displacement. Type: Strong support
PRC-1 - Foundlings / unknown parentage	Limited; Limited.	Retained: Unknown facts trigger presumption. Limit: Common-law foundling rule not verified.	Complete jurisdiction uses statutory/admin proof rule only.	Presumption under uncertainty; proof discipline when facts unavailable. Body VII.A, XVI.	Property: Presumption under uncertainty. Type: Supports administration
PRC-2 - Birth-record practice	Yes, implementation; Admitted implementation.	Retained: Birth record starts ordinary proof path. Limit: Birth record as constitutional finality.	Complete jurisdiction preserves proof/meaning distinction.	Birth-record presumption and ordinary proof path; feeds L.7 administration. Body XVI.	Property: Prima facie citizenship. Type: Supports administration
PRC-3 - Passport/documentation review	Yes, implementation; Admitted implementation.	Retained: Documentation review can consider records. Limit: Agency labels as constitutional rule.	Complete jurisdiction limits review by trigger/burden.	Record-based trigger and review; agencies administer proof under law. Body XVI.A.	Property: Record-based trigger and review. Type: Supports administration

(Cont.) Table L.6A. Row-to-Result Traceability Matrix - Part 3: Comparator rows and relocation of partial insights

(Cont.) Table L.6A. Row-to-Result Traceability Matrix - Part 3: Comparator rows and relocation of partial insights					
L.4 ref / source	L.4 treatment	Retained fact / limitation	L.5 candidate-rule effect	Result carried into L.6/L.7/L.9	Contribution / body cross-reference
CMP-1 - Ho / Heilpern-Whittington	No, comparator; Comparator insight relocated.	Retained: Ordinary governability is real. Limit: Governability bears whole rule.	Governability-only loses membership function.	Comparator insight relocated: ordinary governability is real but not membership-conferring. Body XII-XIII.	Property: Level 1 jurisdiction evidence. Type: Use in this Article
CMP-2 - Lash	No, comparator; Comparator insight relocated.	Retained: Birth presumption and independent phrase. Limit: Counteralliance becomes hereditary.	Complete jurisdiction keeps presumption, filters bloodline.	Comparator insight relocated: birth presumption plus jurisdiction work; filters hereditary counteralliance. Body XIII.	Property: Presumption + jurisdiction work. Type: Use in this Article
CMP-3 - Wurman	No, comparator; Comparator insight relocated.	Retained: Protection matters. Limit: Permission/status labels control.	Complete jurisdiction uses incidents not labels.	Comparator insight relocated: protection matters but cannot become label formalism. Body XIII, XIV.A.	Property: Accepted protection. Type: Use in this Article

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(Cont.) Table L.6A. Row-to-Result Traceability Matrix - Part 3: Comparator rows and relocation of partial insights					
L.4 ref / source	L.4 treatment	Retained fact / limitation	L.5 candidate-rule effect	Result carried into L.6/L.7/L.9	Contribution / body cross-reference
CMP-4 - Lee residence theory	No, comparator; Comparator insight relocated.	Retained: Residence matters. Limit: Residence as whole predicate.	Complete jurisdiction preserves as evidence.	Comparator insight relocated: residence as evidence, not predicate. Body XI, XIII.	Property: Residence as evidence. Type: Use in this Article
CMP-5 - Ablavsky / Berger	No, comparator; Comparator insight relocated.	Retained: Tribal status anomalous. Limit: Indian-law history irrelevant or immigrant analogy.	Complete jurisdiction adopts narrow use.	Comparator insight relocated: tribal anomaly is closed political-community boundary. Body VI, XIII.	Property: Closed tribal-political boundary. Type: Use in this Article
CMP-6 - Bernick / Gowder / Kreis	No, comparator; Comparator insight relocated.	Retained: Anti-denationalization/bloodline constraint. Limit: Anti-bloodline means geography-only.	Complete jurisdiction preserves jurisdictional predicate.	Comparator insight relocated: anti-bloodline constraint without erasing jurisdiction predicate. Body XIII, XV.	Property: Forbidden generalization filter. Type: Use in this Article

(Cont.) Table L.6A. Row-to-Result Traceability Matrix - Part 4: Modern record-effect rows

(Cont.) Table L.6A. Row-to-Result Traceability Matrix - Part 4: Modern record-effect rows					
L.4 ref / source	L.4 treatment	Retained fact / limitation	L.5 candidate-rule effect	Result carried into L.6/L.7/L.9	Contribution / body cross-reference
MDR-1 - LPR / settled lawful domicile	Limited; Record-effect.	Retained: Durable residence-like status. Limit: Label creates citizenship.	Complete jurisdiction uses incidents.	Modern record-effect evidence: strong accepted-protection evidence; not label magic. Body XVI.B.	Property: Strong accepted-protection evidence. Type: Supports in margin
MDR-2 - TPS	Limited; Record-effect.	Retained: Statutory removal shield/work authorization. Limit: TPS label controls.	Complete jurisdiction treats as margin.	Modern record-effect margin: TPS incidents may evidence protection; not automatic category. Body XVI.B.	Property: Record-effect protection evidence. Type: Tests
MDR-3 - Parole / humanitarian parole	Limited; Record-effect.	Retained: Temporary permission/parole. Limit: Parole label controls.	Complete jurisdiction requires incident analysis.	Modern record-effect margin: parole assessed by birth-time incidents. Body XVI.B.	Property: Conditional protection evidence. Type: Tests
MDR-4 - DACA / deferred action	Limited; Record-effect.	Retained: Removal forbearance/EAD. Limit: Deferred action equals status.	Complete jurisdiction resists label formalism.	Modern record-effect margin: deferred action/EAD may be weak-to-moderate evidence. Body XVI.B.	Property: Weak-to-moderate incident evidence. Type: Tests
MDR-5 - Pending adjustment	Limited; Record-effect.	Retained: Pending application/EAD. Limit: Pending means final status.	Complete jurisdiction requires actual incidents.	Modern record-effect margin: pending adjustment/EAD assessed by incidents. Body XVI.B.	Property: Record posture evidence. Type: Tests
MDR-6 - Tourist / VWP / birth tourism	Limited; Record-effect.	Retained: Temporary admission/transience. Limit: Tourist label automatically excludes.	Complete jurisdiction distinguishes emergency birth.	Modern record-effect margin: tourist/birth-tourism weak or adverse; no demographic trigger. Body XVI.B.2.	Property: Transience evidence only. Type: Tests
MDR-7 - Bare unlawful entry	Limited; Record-effect.	Retained: Unlawful entry alone. Limit: Unlawfulness automatically excludes.	Complete jurisdiction treats as materially adverse record evidence, not a label rule or hereditary sanction.	Modern record-effect margin: bare unlawful entry may be adverse evidence; not displacement or inherited blame. Body XVI.B.3.	Property: No automatic sovereign-status displacement; adverse evidence against accepted protection. Type: Tests
MDR-8 - SIJS / VAWA / T / U / withholding / CAT	Limited; Record-effect.	Retained: Humanitarian/coercion protections vary. Limit: Humanitarian label controls.	Complete jurisdiction requires birth-time record.	Modern record-effect margin: humanitarian/coercion categories require incident-specific records. Body XVI.B, App. J.	Property: Incident-specific protection evidence. Type: Tests

(Cont.) Table L.6A. Row-to-Result Traceability Matrix - Part 5: Falsification, excluded overclaims, and boundary items

(Cont.) Table L.6A. Row-to-Result Traceability Matrix - Part 5: Falsification, excluded overclaims, and boundary items					
L.4 ref / source	L.4 treatment	Retained fact / limitation	L.5 candidate-rule effect	Result carried into L.6/L.7/L.9	Contribution / body cross-reference
FAL-1 - Broad Wong language	Limited; Falsification item.	Retained: Broad language pressures case-bound reading. Limit: Wong soil-only.	Complete jurisdiction relies on holding facts and limiting principles.	Falsification item: if Wong is controlling soil-only holding, synthesis must revise. Body XVII, App. L.8.	Property: Holding/exposition distinction. Type: Tests
FAL-2 - Plyler footnote	Limited; Falsification item.	Retained: Plyler footnote pressure. Limit: Equal Protection jurisdiction controls citizenship.	Complete jurisdiction separates registers.	Falsification item: Plyler pressure resolved by rights/membership separation; revise only if controlling. Body XII, XVII.	Property: Rights vs membership distinction. Type: Tests
FAL-3 - Rebel children	Not admitted / requires further source development; Not admitted.	Retained: Rebel children pressure. Limit: Counterintelligence inherited.	Complete jurisdiction requires a source package before this item can support proof.	Deferred boundary/future research; not admitted absent source package. Body XVII, App. L.8.	Property: Anti-inherited-blame constraint. Type: Future research
FAL-4 - Unlawful importation / anti-coolie	Limited; Limited.	Retained: Unlawful importation pressure. Limit: Illegality defeats status.	Complete jurisdiction uses as analogue only.	Limited analogy; illegality alone not displacement. Body XVI.B.3, XVII.	Property: Unlawfulness not displacement. Type: Tests/limits
FAL-5 - Territories / bases / vessels / aircraft	No / boundary item; Future territorial-source research / boundary iss...	Retained: Territorial-status cases may test whether the birth occurred "in the United States." Limit: Not person-specific fixed points unless a separate territorial-source package first establishes the...	Any rule that resolves territorial status through the person-specific jurisdiction predicate overclaims.	Territorial-status boundary; outside person-specific predicate unless territorial predicate first established. Body XVII.	Property: Territorial predicate reserved. Type: Defers; no overclaim.

Appendix L.6. Synthesis of Retained Constitutional Properties

This table aggregates only the properties that survive source weighting, fixed-point admission, extraction, rival interpretive-rule testing, and contradiction rejection. The aggregate cannot include race, ancestry, bloodline, parental blame, or label formalism.

Table L.6. Synthesis of Retained Constitutional Properties

Table L.6. Synthesis of Retained Constitutional Properties			
Extracted property	Source rows supporting it	Forbidden generalizations blocked	Role in complete jurisdiction
Operative U.S. authority	Hostile occupation; territorial grammar; Inglis / law-of-war materials.	Geography alone; nominal soil; formal territory without operative control.	First element.
Accepted sovereign protection	Common-law allegiance/protection; Wong resident-alien core; LPR/refugee/asylee/TPS/protection incident evidence where applicable.	Mere arrest power; emergency aid; transient sufferance; label formalism.	Second element.
Direct local allegiance	Wong; diplomats; tribal relation; hostile occupation; direct birth-time relation to local sovereign.	Subjective loyalty; inherited allegiance; race; ancestry; bloodline; parental virtue or blame.	Third element.
No recognized displacing sovereign-status relation	Diplomats; hostile occupation; historical tribal political relation / Elk.	Foreign parentage; alienage; unlawful presence alone; temporary status alone.	Fourth element.
Presumption under uncertainty	Birth records; foundlings; Bates; passport/documentation practice.	Soil-only finality; impossible proof demands; universal screening.	Administration / proof rule.
Anti-caste / anti-bloodline limit	Reconstruction; freedmen; Wong core; anti-Fuller filter; Bernick/Gowder/Kreis pressure.	Race; ancestry; parental blame; inherited degradation; parental-status determinism.	Constraint on every element.

Appendix L.7. Administrative Implementation of the Derived Rule

This table applies the derived relation to proof administration. Administration follows constitutional meaning; it does not create meaning.

Table L.7. Administrative Implementation of the Derived Rule

Table L.7. Administrative Implementation of the Derived Rule			
Implementation setting	Legal use	Limiting principle	Result
Birth record	A timely official U.S. birth record supplies prima facie citizenship.	Proof presumption is not soil-only constitutional finality.	Ordinary cases end without further inquiry.
Objective record trigger	Further inquiry requires an official, legally material, record-based trigger.	No demographic trigger, bedside adjudication, or universal parental-status screening.	Gateway to further review.
Categorical legal classification	Classify the legal incident by category before applicant-specific proof.	Labels do not create constitutional rules.	Law first; facts second if needed.
Applicant-specific proof	Only after categorical classification leaves a material factual issue.	No discretionary balancing or open-ended fishing expedition.	Narrowed factual inquiry.
Government burden	Government must produce trigger records and meet clear-and-convincing implementation burden.	Burden rule is implementation discipline, not original meaning.	Protection against mistaken denials.
Reasoned decision	Decisionmaker must explain the record and legal classification.	No unreviewable label-based denial.	Procedural regularity.
Review	Administrative and judicial review preserve law/fact discipline.	Agency practice cannot amend the Constitution.	Anti-arbitrariness and correction.
Record-effect modern statuses	Ask what the birth-time legal record conferred, withheld, recognized, or displaced.	Status label does not control either inclusion or exclusion.	Modern margin method.

Appendix L.8. Counterexample Review and Source Limits

This table applies the final falsification check. A counterexample counts only if it is source-backed and bears on the Citizenship Clause predicate. If a controlling fixed point contradicts the derived rule, the extraction or rule must be revised.

Table L.8. Counterexample Review and Source Limits

Table L.8. Counterexample Review and Source Limits						
Counterexample	Weight	Source treatment	Threatened element	Current classification	Does it falsify?	Revision needed?
Broad Wong language	W5-H holding / reasoning distinction	Cited primary source	Case-bound synthesis; soil-only pressure	Broad exposition supports the core but does not decide every modern status.	No	No; maintain holding/reasoning table.
Plyler footnote	W5-H in Equal Protection context	Cited primary source	Rights-bearing vs membership-conferring distinction	Rights-bearing jurisdiction does not define citizenship-conferring jurisdiction.	No	No; maintain the distinction among the three uses of jurisdiction.
Lee residence	W1 comparator + text pressure	Limited use	Residence vs accepted protection/direct allegiance	Residence is strong evidence, not the national citizenship predicate.	No	No; keep Lee response.

Table L.8. Counterexample Review and Source Limits

Counterexample	Weight	Source treatment	Threatened element	Current classification	Does it falsify?	Revision needed?
Rebel children	Undeveloped source package	Partial source record	Counterallegiance / inherited blame	Future research and falsification item.	No current proof	Do not use as public proof unless sourced.
Unlawful importation / anti-coolie	W2/W1 pressure analogue	Limited use	Unlawfulness vs displacement	Supports narrow proposition: unlawfulness alone is not sovereign-status displacement.	No	Use only as analogue.
Foundlings	W2 statutory/admin practice	Cited primary source	Presumption under uncertainty	Implementation/evidentiary fixed point, not verified common-law rule.	No	Keep caveat.
Diplomatic-birth practice	W2 + W5-H background	Cited primary source	Displacing sovereign-status relation	Confirms soil not conclusive when diplomatic status exists.	No	No.
Birth tourism	W2-M	Cited primary source	Accepted protection / transience	Evidence of weak protection/transience; not automatic rule.	No	Incident-specific treatment.
TPS	W2-M	Cited primary source	Accepted protection at margin	Removal shield/work authorization/duration create record-effect margin.	No	Refine if statute/policy changes.
Parole	W2-M	Cited primary source	Accepted protection at margin	Temporary, conditional permission; record-effect margin.	No	Refine by parole terms.
Bare unlawful entry	W2-M	Cited primary source	Unlawfulness / protection	Materially adverse evidence; not automatic displacement or hereditary blame.	No	No automatic rule; separate constitutional predicate from statutory parent consequences.
Territorial edge cases	Territorial-source package not included in this Article	Boundary or counterexample material	Territorial predicate	Excluded from affirmative proof; treated only as boundary or counterexample material unless a complete primary-law package is developed.	No present contrary fixed point.	This Article does not resolve territorial-status cases.

Appendix L.9. Conclusion from the Fixed-Point Record

After source weighting, fixed-point admission, property extraction, rival interpretive-rule testing, contradiction rejection, and counterexample review, the retained properties point to complete jurisdiction: birth under operative U.S. authority, accepted sovereign protection, direct local allegiance, and no recognized displacing sovereign-status relation.

Geography supplies the ordinary proof path. The birth record supplies prima facie citizenship. The jurisdictional predicate supplies the citizenship-conferring relation. Modern statuses are evaluated by record effect, not label. Parentage and equivalent sovereign-status facts may serve as evidence of the child's birth-time relation, but not as bloodline, caste, inherited fault, or parental-status determinism.

The supporting record therefore does not change the Article's body conclusion. It documents the conclusion's supporting record. If a higher-weight, verified fixed point later contradicts any retained property, the extraction or rule must be revised rather than defended rhetorically.

Appendix M. Administrative Definitions of Modern Statuses and Record-Effect Categories

This appendix converts accepted sovereign protection into an administrable record-incident inquiry. It is intended to keep ordinary cases simple while giving courts and agencies a disciplined method for rare cases in which a legally material birth-time status record is triggered.

Accepted sovereign protection should be administered as a record-incident test. The front-end question is not whether a label sounds lawful, unlawful, temporary, permanent, sympathetic, or suspicious. The question is what the official birth-time legal record showed that U.S. law conferred, withheld, recognized, protected, authorized, shielded, or displaced.

Controlling administrative definition. Accepted sovereign protection exists when, at the moment of birth, an official U.S. legal record shows that U.S. law affirmatively recognized the child, parent, or family unit under a protection-bearing or residence-like legal incident: permission to remain, protection from removal or return, refuge, lawful residence, durable parole or comparable protection, work authorization tied to permission or protection, pending regularization with an official removal shield, or another legally cognizable protection-bearing incident. It does not include mere physical presence, ordinary police protection, due process protection, public benefits, emergency aid, civil or criminal amenability, detention, border-processing custody, temporary sufferance, event-specific admission, revocable non-enforcement, or enforcement tolerance.

“U.S.-side” legal incidents are required for border-arrival categories. A Mexican-side metering event, appointment, queue, or blocked attempt to enter is not a domestic protection-bearing incident.

The negative limit remains necessary but incomplete. Ordinary alienage, foreign nationality, temporary presence, or removability is not enough by itself to create a displacing sovereign-status relation, so those facts cannot automatically defeat citizenship. But they may still matter, if at all, as objective birth-time evidence bearing on accepted sovereign protection or direct local allegiance. The full constitutional question is whether complete jurisdiction existed at birth.

1. Three simplifying rules

- No universal screening. Hospitals and state birth registrars record birth facts; they do not adjudicate citizenship margins.
- No trigger, no inquiry. A timely U.S. birth record ends the case unless the government identifies an objective, legally material, record-based trigger.
- Incident, not label. If a trigger exists, the agency asks what the birth-time legal record did, not whether the immigration label is favorable or unfavorable.

2. Trigger screen

The accepted-protection inquiry should be used only after an objective record trigger appears. It should not become universal parent-status screening. A trigger must come from an official or comparable reliable record and cannot be race, surname, language, accent, poverty, hospital, neighborhood, nationality, ethnicity, appearance, or generalized suspicion.

Table M-1. Examples of Objective Record Triggers

Trigger type	Example
Displacing sovereign-status record	Parent is an accredited diplomat or otherwise covered by diplomatic immunity.
Territorial-authority issue	Birth occurred in a place where operative U.S. authority is disputed.
Status-incident issue	Official record shows the parent’s birth-time presence was bare unlawful entry, short tourist admission,

Trigger type	Example
	parole, TPS, deferred action, pending adjustment, or another unresolved modern category.
Proof-gap issue	Foundling, unknown parentage, incomplete birth facts, or inconsistent birth records.
TPS validity / termination-effective-date record	Individual TPS grant, re-registration, extension, withdrawal, or termination-effective-date record.
Border-arrival / U.S.-side legal incident record	Border-crossing, inspection, parole, stay, or other U.S.-side legal-incident record where a border/asylum-access claim is asserted.
Demographic caution	TPS-country nationality alone is not a trigger.

2A. Burden hierarchy and recognition-disturbance standard

The trigger screen should be paired with a burden hierarchy. The agency may not treat the same proof standard as sufficient for every action. Opening inquiry, defeating prima facie citizenship, and disturbing prior federal recognition are different legal events.

Table M-1A. Administrative Burden Hierarchy

Administrative action	Minimum showing
Ordinary birth-record administration	Timely U.S. birth record ends the case unless an objective, legally material, record-based trigger exists.
Opening a triggered inquiry	Specific official or comparably reliable record trigger tied to a complete-jurisdiction element.
Defeating prima facie citizenship	Clear and convincing evidence that complete jurisdiction was absent at the child's own birth.
Disturbing prior formal federal recognition	Clear, unequivocal, and convincing evidence, individualized process, written reasons, and review.
Correcting fraud or material record error	Individualized proof of fraud, forged record, identity error, illegal or erroneous issuance, or absence of citizenship at birth; no categorical retroactive reclassification.

3. Record-incident coding

Once a trigger exists, the agency should classify the implicated record before demanding individualized evidence. Each file receives a record code rather than an intuitive judgment.

Table M-2. Accepted-Protection Record Codes

Code	Birth-time incident	Administrative meaning
ASP-PERM	Permission to remain	Strong accepted-protection evidence.
ASP-PROT	Protection from removal or return	Strong accepted-protection evidence.
ASP-REF	Refugee, asylee, or comparable refuge protection	Strong protection-bearing evidence.
ASP-RES	Residence-like status or settled lawful domicile	Strong or moderate evidence depending on durability.
ASP-PAR	Durable parole or protection-bearing parole	Stronger if durable, humanitarian, family-unity-based, or protection-bearing.
ASP-WORK	Work authorization tied to permission or protection	Supporting evidence; not standalone magic.

Code	Birth-time incident	Administrative meaning
ASP-REG	Pending regularization plus official removal shield	Moderate or strong depending on legal effect.
ASP-COMP	Comparable protection-bearing incident	Must be comparable by legal incident, not policy analogy.
NON-ASP	Mere non-enforcement, custody, emergency aid, temporary sufferance, ordinary amenability	Not accepted sovereign protection.
DISP	Diplomatic immunity, hostile occupation, historical tribal political relation, or equivalent sovereign-status shield	Displacing status; separate negative category.

3A. Duration, renewal, and reliance as record-incident amplifiers

Duration and reliance are not independent citizenship rules. They are record-incident amplifiers. A nominally temporary status remains temporary as a statutory label, but repeated formal renewal, birth-time validity, removal protection, work authorization tied to protection or permission, and documented local reliance may give that status residence-like evidentiary significance under ASP-RES, ASP-PROT, ASP-PAR, ASP-WORK, or ASP-REG. The agency must code the legal incident by effect, not by label.

Table M-2A. Duration, Renewal, and Reliance Coding Matrix

Factor	Effect on coding
One-time, short-term, event-specific admission	Usually weak or adverse; often transitory.
Formal permission valid at birth	Supports ASP-PERM or related accepted-protection coding.
Removal shield valid at birth	Supports ASP-PROT.
Work authorization tied to protection or permission	Supports ASP-WORK; not standalone magic.
Continuous renewals before birth	Increases durability and may support ASP-RES-like evidentiary weight.
Pending regularization plus stay, parole, EAD, or official shield	Supports ASP-REG.
Durable humanitarian parole or parole-in-place	Supports ASP-PAR, potentially strong.
Mere non-enforcement or informal tolerance	NON-ASP.

4. Default evidentiary classifications

The classifications below are evidentiary tendencies, not final constitutional holdings for unresolved modern margins. Strong, moderate, weak, and adverse describe the usual record significance of the category, subject to categorical adjudication and the government's burden.

Table M-3. Default Evidentiary Classifications

Category	Administrative treatment
Citizen-parent birth	Included core; no accepted-protection problem.
LPR / settled lawful domicile	Strong accepted-protection evidence.
Refugee / asylee	Strong protection-bearing evidence.
Valid TPS	Valid TPS at birth remains strong or moderate evidence; post-Doe, verify birth-

Category	Administrative treatment
	time legal incidents and effective dates, but do not relitigate TPS designation or termination through non-constitutional APA claims.
Durable humanitarian parole / parole-in-place	Stronger if durable, humanitarian, family-unity-based, or protection-bearing.
Deferred action alone	Weak to moderate; closer to non-enforcement.
Deferred action plus work authorization / renewal / humanitarian ground	Stronger record-effect evidence.
Pending adjustment plus stay, work authorization, or removal shield	Moderate or strong depending on record.
Short tourist / Visa Waiver	Weak or adverse; lawful but usually transitory.
Birth tourism	Weak; presence is birth-oriented rather than residence/protection-oriented.
Bare unlawful entry with no recognition	Materially adverse on accepted protection, but not a displacing sovereign-status relation.
Diplomatic immunity	Excluded core through displacing sovereign-status relation.

5. Separate accepted protection from displacing status

Table M-4. Accepted Protection Versus Displacing Status

Question	What the agency asks
Accepted protection	Did the birth-time record show permission, protection, refuge, residence-like recognition, work authorization tied to protection, or comparable legal incident?
Displacing status	Did the birth-time record show diplomacy, hostile occupation, historical tribal political relation, or a legally equivalent sovereign-status shield?

6. Limited proof requests only after category classification

Applicant-specific proof should be requested only when the category classification leaves a genuine factual issue. If the category classification resolves the issue, the agency should stop.

Table M-5. Ambiguities and Limited Proof Requests

Ambiguity	Limited proof request
Parole record exists, but duration and purpose unclear	Request parole document or federal record showing duration, purpose, and validity on date of birth.
TPS claimed, but validity unclear	Request official approval, re-registration, extension, EAD, removal-shield, and effective termination records showing whether individual TPS was valid at birth.
Work authorization claimed	Request record showing work authorization was tied to permission, protection, pending regularization, or removal shield.
Pending adjustment claimed	Request record showing pending filing plus any stay, parole, work authorization, or other official shield.
Bare unlawful entry alleged	Government must produce official record showing absence of admission, parole, protection, removal shield, or later legally connected recognition.

Ambiguity	Limited proof request
Border/asylum-access claim asserted	Request crossing, parole, stay, non-removal, or inspection records. Do not request proof merely of Mexican-side queueing, metering, appointment, or attempted access unless tied to a U.S.-side legal incident.

7. Nonqualifying facts

These facts do not establish accepted sovereign protection by themselves because they prove ordinary legal jurisdiction, humanitarian aid, or coercive authority rather than membership-conferring protection.

Table M-6. What Does Not Count by Itself

Nonqualifying fact	Reason
Physical presence alone	Collapses the test into geography.
Police protection	Shows ordinary law, not membership-conferring protection.
Emergency medical care	Shows humanitarian aid, not a birth-time membership relation.
Due process / equal protection	Rights-bearing jurisdiction, not citizenship-conferring jurisdiction.
Public benefits	Not a constitutional membership predicate.
Arrest authority / removal authority / taxation / subpoena	Ordinary legal amenability only.
Detention or border-processing custody	Coercive control, not accepted protection.
Revocable non-enforcement alone	Tolerance is not a protection-bearing status.
Informal agency tolerance	Not enough without an independent legal incident.
Brief event-specific admission	Usually too transitory unless tied to a protection-bearing or residence-like incident.
Mexican-side metering, port appointment, queue, or blocked attempted entry before crossing	Not arrival, admission, parole, asylum access, accepted protection, or domestic presence by itself.

8. Qualifying or potentially qualifying incidents

Table M-7. What Can Count, Depending on Validity at Birth

Incident	Why it matters
Lawful permanent residence	Durable permission and residence-like legal relation.
Settled lawful domicile	Strong evidence of local protection and allegiance.
Refugee status	Federal recognition of refuge and protection.
Asylee status	Federal recognition of protection from return.
TPS	Statutory removal shield and possible work authorization, depending on validity and continuity.
Durable humanitarian parole	Stronger when protection-bearing, family-unity-based, or durable.

Incident	Why it matters
Parole-in-place	Stronger if it recognizes domestic presence and protection.
Pending adjustment with stay or work authorization	Evidence of pending regularization plus official recognition.
Work authorization tied to permission or protection	Supporting incident showing recognized legal relation.
Removal shield or stay	Shows protection from removal or return.
Comparable federally recognized protection-bearing incident	Must be comparable by legal incident, not label or sympathy.

9. Operational flow

Table M-8. Record-Incident Administrative Flow

Stage	Action	Output
1. Intake	Receive timely U.S. birth record.	Prima facie citizenship.
2. Trigger screen	Check only for objective, legally material record trigger.	No trigger = recognize citizenship.
3. Trigger classification	Identify whether trigger concerns accepted protection, direct local allegiance, displacing status, or territorial birth.	Issue type assigned.
4. Record coding	Code the birth-time incident: permission, protection, refuge, residence-like status, work authorization tied to protection, removal shield, non-enforcement, displacing status, etc.	Incident code assigned.
5. Default category	Apply default classification matrix.	Strong, moderate, weak, adverse, displacing, or unresolved.
6. Specific proof	Request limited proof only if a real factual issue remains.	Narrow evidence request.
7. Decision	Written reasoned decision using the standard template.	Approval, denial, or further review.
8. Review	Administrative and judicial review.	Record preserved for court.

10. Definitions and duplicate labels

Several modern labels describe the same legal object at different levels of precision. Parole and parolee refer to the same legal relation; durable humanitarian parole is a stronger subtype. Deferred action and deferred-action recipient likewise refer to the same relation from different angles. Tourist and short-term visitor substantially overlap, while a Visa Waiver entrant is a short-term visitor admitted through a special statutory mechanism. Work authorization, renewal, and domestic formation are not standalone statuses; they are legal incidents or evidentiary facts. Admission is an entry event, not a status. Overstay without inspection should be separated into two categories: entry without inspection, and overstay after lawful admission. The constitutional inquiry should use the precise record category because complete jurisdiction turns on birth-time legal incidents, not broad labels.

Table M-9. Definitions of Modern Statuses and Record-Effect Categories

Category	Definition	Treatment under complete jurisdiction
Citizen-parent births	A child born in the United States to at least one legally recognized U.S.-citizen parent. Parent citizenship is not a constitutional requirement in all cases; it is powerful evidence of ordinary domestic authority, accepted protection, and direct local allegiance.	Preserved included core; strongest ordinary case. Evidence of the relation, not a bloodline rule.
Lawful permanent residence / LPR	A noncitizen whom U.S. law has authorized to live permanently in the United States, usually evidenced by permanent-resident documentation.	Preserved included core / very strong evidence of durable permission, accepted protection, and local allegiance.

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Category	Definition	Treatment under complete jurisdiction
Settled lawful domicile	A lawful, settled home in the United States with residence and legal permission sufficiently durable to show local attachment.	Very strong evidence of residence-like protection and direct local allegiance; evidence, not an imported textual requirement.
Wong resident-alien core	The core protected by United States v. Wong Kim Ark: U.S. birth to non-diplomatic alien parents who were resident and domiciled here.	Preserved included core. Alienage, foreign parentage, and foreign nationality alone do not defeat citizenship.
Refugee	A person admitted under refugee protection after recognition through the refugee process.	Strong protection-bearing category adjacent to the included core.
Asylee	A person granted asylum in the United States based on statutory protection grounds.	Strong protection-bearing category adjacent to the included core; stronger than a merely pending claim.
Admission	Lawful entry after inspection and authorization. It is an entry event, not a full status by itself; parole is not admission.	Record incident whose force depends on the category admitted into.
Bare unlawful entry / entry without inspection	Entry without inspection, admission, parole, protection, authorization, or comparable federal recognition.	Adverse evidence on accepted protection, not automatic exclusion and not a displacing sovereign-status relation.
Visa overstay after admission	Remaining after a lawful admission or authorized period expires. This is distinct from entry without inspection.	Adverse or mixed depending on whether any valid status, protection, parole, deferred action, pending regularization, or comparable recognition existed at birth.
Parole / parolee	Temporary permission to enter or remain without being admitted, usually tied to case-by-case humanitarian or public-benefit grounds.	Unresolved modern margin; analyze purpose, duration, conditions, humanitarian basis, family unity, work authorization, and durability.
Durable humanitarian parole	A stronger subtype of parole granted for meaningful humanitarian, family-unity, protection, or public-benefit reasons with operative duration and documentation.	Potentially strong record-effect evidence, stronger than brief custody-related or event-specific parole.
Brief, custody-related, or event-specific parole	Parole granted for narrow operational, processing, custody, emergency logistics, or limited-event reasons.	Weak or limited evidence; may show temporary permission or control but not necessarily residence-like protection.
Deferred action / deferred-action recipient	Discretionary removal forbearance. It does not itself confer lawful status but may be paired with work authorization, renewal, humanitarian grounds, or pending regularization.	Weak-to-moderate record-effect evidence; stronger when tied to additional protection-bearing incidents.
DACA	A specific deferred-action program for certain persons who came to the United States as children and meet program criteria.	Subtype of deferred action; analyze work authorization, renewal, continuous residence, and domestic formation.
Temporary Protected Status / TPS holder	Temporary statutory protection for nationals of designated countries; may include a removal shield, documentation, employment authorization, and travel authorization while valid.	Strong or moderate evidence while valid, depending on removal shield, duration, continuity, and work authorization.
Deferred Enforced Departure / DED	A presidentially directed administrative stay of removal for covered groups, often with employment authorization but not full immigration status.	Comparable protection-bearing incident / unresolved margin; potentially relevant but weaker if purely discretionary and revocable.
Humanitarian protection	Umbrella term for legally recognized protection grounded in danger, persecution, trafficking, coercion, disaster, armed conflict, family unity, or comparable humanitarian concern.	Usually stronger than ordinary non-enforcement if federal law actually protects from removal or return, authorizes presence, allows work, or documents protection.
Pending regularization	A pending effort to obtain lawful or protected status: adjustment, asylum, TPS, U/T status, SIJ-related relief, cancellation, parole, or another recognized federal process.	Not enough by itself; stronger with work authorization, parole, prima facie eligibility, stay/removal shield, humanitarian protection, or comparable federal recognition.
Pending adjustment	A pending application to become a lawful permanent resident while inside the United States.	Record posture evidence, not final status; stronger with lawful admission/parole, EAD, advance parole, family-unity facts, or official protection.
Pending asylum or protection claim	A filed but not yet granted claim for asylum, withholding, CAT, TPS, or another protection.	Weaker than granted protection; stronger with credible-fear screening, work authorization, stay of removal, or official protection.
Comparable federal recognition	Official federal action recognizing presence, permission, protection, removal shield, or comparable legal incident.	Must be comparable by legal incident, not sympathy or policy preference; prevents underinclusion but not open-ended discretion.
Tourist / short-term visitor	Temporary nonresident permission for tourism, business, visits, medical care, or similar short purposes.	Weak evidence of residence-like protection; lawful entry matters but is transitory.
Visa Waiver entrant	Short business or tourism entry without a visa under a statutory waiver mechanism, generally for a short period.	Weak or transitory evidence; not residence-like without more.
Birth tourism	A short visit organized around giving birth in the United States rather than residence, refuge, work, study, family unity, or domestic formation.	Weak or adverse evidence, but still requires objective record trigger and proof; not a parent-blame rule.

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Category	Definition	Treatment under complete jurisdiction
Emergency birth during short visit	A birth during a short lawful visit because of unexpected medical circumstances, not because birth was the object of entry.	Distinct from birth tourism; still short-visit category but less adverse.
Multi-year or long-term worker	A nonimmigrant worker authorized to live and work in the United States for a defined period, often with employer sponsorship and possible renewals.	Middle to stronger evidence depending on duration, work authorization, renewal, residence, and family presence.
Long-term student	A nonimmigrant student authorized to study in the United States for a course of study rather than a short visit.	Middle evidence; strength depends on duration, maintenance of status, work authorization, family unity, and domestic formation.
Work authorization / EAD	Permission to work. It is a legal incident, not a standalone status.	Strongest when tied to permission, protection, TPS, parole, asylum/refugee status, pending adjustment, or deferred action.
Renewal	Renewal of status, parole, deferred action, EAD, TPS, student authorization, or worker authorization.	Durability evidence; strengthens the record but does not itself create complete jurisdiction.
Domestic formation	Life formed under U.S. law: U.S. birth, residence, school, work, family, documentation, civic records, community life, and continuous domestic legal existence.	Evidence and anti-caste cutoff; not a status and not a retroactive cure.
Trafficking or coercion context	Presence resulting from coercion, trafficking, force, abuse, or comparable lack of voluntary unlawful entry, sometimes paired with T/U protection or continued presence.	Should not be collapsed with voluntary bare unlawful entry; may supply humanitarian or federal-recognition incidents if official protection exists.
Diplomatic birth	Birth in U.S. territory to persons covered by diplomatic immunity or comparable sovereign-immunity status.	Settled excluded core: the legal relation is routed through another sovereign.
Hostile occupation	Birth in territory nominally belonging to the United States but under hostile occupying power, where operative U.S. authority and protection are displaced.	Settled excluded core: geography alone is insufficient.
Historical tribal political relation	The pre-statutory relation of members of tribal political communities whose direct allegiance was historically treated as running through a separate political relation before statutory citizenship.	Settled historical boundary; not a modern immigration template.
Foundlings	Children of unknown parentage found in the United States when birth or parentage facts are unavailable.	Proof category: presumption under uncertainty, not a freestanding soil-only rule.
Border metering / outside-border attempted access	A border-management or access-control event occurring before crossing into the United States.	Not arrival, admission, parole, asylum access, accepted protection, or domestic presence by itself.

11. Short glossary definitions

Table M-10. Short Definitions for Quick Reference

Term	Definition
Citizen-parent birth	U.S. birth to a legally recognized U.S.-citizen parent; strong evidence of complete jurisdiction, not a bloodline requirement.
LPR	A person lawfully authorized to live permanently in the United States; strong evidence of accepted protection and local allegiance.
Settled lawful domicile	A lawful, settled home in the United States; strong evidence of residence-like protection and local allegiance.
Wong core	U.S. birth to resident, domiciled, non-diplomatic alien parents; alienage and parentage alone do not defeat citizenship.
Refugee	A person admitted under refugee protection; strong federal refuge and protection evidence.
Asylee	A person granted asylum; strong federal protection evidence.
Admission	Lawful entry after inspection and authorization; an entry event, not a full status by itself.
Parole	Temporary permission without admission; assessed by purpose, duration, and protective content.

Term	Definition
Durable humanitarian parole	Parole with meaningful humanitarian, family-unity, or protection-bearing incidents; potentially strong evidence.
Deferred action	Discretionary removal forbearance; not lawful status, but may matter with EAD, renewal, or humanitarian grounds.
TPS	Temporary statutory protection for nationals of designated countries; can include removal shield, EAD, and travel authorization.
Tourist / short-term visitor	Temporary nonresident permission; weak residence-like evidence.
Visa Waiver entrant	Short business/tourism entry without visa, generally for a short period; weak residence-like evidence.
Long-term worker	Time-limited work-authorized nonimmigrant; middle evidence depending on duration and incidents.
Long-term student	Time-limited study-authorized nonimmigrant; middle evidence depending on duration, status, and work authorization.
Bare unlawful entry	Entry without inspection, admission, parole, protection, or recognition; adverse evidence but not a displacing status.
Visa overstay	Staying after authorized admission expires; distinct from entry without inspection.
Pending regularization	Pending application for status or protection; weak alone, stronger with EAD, parole, stay, or prima facie protection.
Pending adjustment	Pending LPR application; record posture evidence, not final status.
Humanitarian protection	Federal protection against danger, persecution, trafficking, disaster, or comparable harm; strength depends on legal incidents.
Comparable federal recognition	Official federal action recognizing presence, protection, permission, or removal shield comparable to listed categories.
Work authorization	Permission to work; an incident that strengthens another status when tied to permission or protection.
Renewal	Continuation of status or authorization; evidence of durability.
Domestic formation	Life formed under U.S. law; evidence against hereditary nonmembership, not a separate immigration status.
Birth tourism	Short, birth-oriented presence; weak or adverse evidence, but not parent-blame or automatic exclusion.

12. Ready-to-use administrative formulation

Accepted sovereign protection exists when, at the moment of birth, an official U.S. legal record shows that U.S. law affirmatively recognized the child, parent, or family unit under a protection-bearing or residence-like legal incident: permission to remain, protection from removal or return, refuge, lawful residence, durable parole or comparable protection, work authorization tied to permission or protection, pending regularization with an official removal shield, or another legally cognizable protection-bearing incident. It does not include mere physical presence, ordinary police protection, due process protection, public benefits, emergency aid, civil or criminal amenability, detention, border-processing custody, temporary sufferance, event-specific admission, revocable non-enforcement, or enforcement tolerance. The inquiry is categorical and record-based. It does not turn on labels, sympathy, policy preference, subjective loyalty, race, ancestry, parent worth, or general foreignness. Ordinary cases begin and end with a timely U.S. birth record unless the government identifies an objective, legally material, record-based trigger.

13. Derivative parent benefits and the no-amnesty firewall

A child-centered citizenship determination does not decide the parent's later statutory immigration benefits. If the child is a constitutional citizen, that status does not automatically make a parent admissible, removable, adjustable, parole-eligible, waiver-eligible, cancellation-eligible, petition-eligible, or entitled to discretionary relief. Those issues remain in the immigration-law register.

The administrative formulation is therefore: child citizenship is constitutionally fixed at the child's birth; parent benefits are statutory and separately regulated. The child's citizenship cannot be denied to punish or deter the parent, and the parent's future benefit cannot be assumed merely because the child is a citizen.

Appendix N. Period-Source Parity: Common Law, Reconstruction, and Proof Discipline

This appendix does not replace the body's fixed-point synthesis. It documents the period-source parity protocol used to classify common-law, Reconstruction, and early implementation materials by legal function. The point is not to claim archival supremacy over Ramsey, Whittington, or any other period-source account. The point is to make the Article's source discipline explicit: period sources matter because of the legal work they perform, not because of citation volume alone.

N.1. Purpose of the Appendix

The Article's primary claim is not that it has reproduced every available nineteenth-century source in the body. Its claim is that the fixed points presently processed are best explained by complete jurisdiction. This appendix strengthens that claim by auditing source clusters according to function: common-law background, enacted text, drafting context, holding-level authority, implementation practice, proof discipline, and comparator pressure.

The period-source audit rule is straightforward: a source may supply enacted text, drafting context, common-law background, implementation practice, proof discipline, holding-level authority, or comparator pressure. No single source category controls the constitutional predicate unless its legal function warrants that weight. Common-law sources supply allegiance-and-protection vocabulary and the ordinary birth rule; Reconstruction sources supply the enacted constitutional settlement; holdings supply binding boundaries; administrative materials supply proof discipline. Complete jurisdiction is the synthesis of those functions, not a claim that any one source independently supplies the whole rule.

N.2. Common-Law Allegiance and Protection

The common-law materials are indispensable. Calvin's Case, Blackstone, Kent, Lynch v. Clarke, and related sources supply the vocabulary of birth, protection, and allegiance. They explain why ordinary domestic birth normally ends the citizenship inquiry: a person born under the sovereign's authority and protection ordinarily owes local allegiance and receives the sovereign's protection.

But common-law nativity is background, not the whole enacted constitutional predicate. The Citizenship Clause adds the phrase "and subject to the jurisdiction thereof." Complete jurisdiction treats the common-law baseline as the ordinary proof path and then asks whether the fixed points disclose limits that a geography-only account cannot explain.

N.3. Reconstruction Drafting and Debate Context

The Reconstruction materials supply enacted constitutional context. The Civil Rights Act, the Citizenship Clause text, and the Senate debates involving Howard, Trumbull, Johnson, Doolittle, Fessenden, Bingham, and related speakers are not used as free-floating legislative history. They are used to identify the problems the adopted text had to solve: caste, inherited civil degradation, Indians not taxed, foreign diplomatic relation, and the difference between governing power and citizenship-conferring jurisdiction.

This debate context is strong but context-sensitive. Howard and Trumbull supply broad inclusion language and jurisdictional limiting language. Doolittle and Johnson press the tribal-status and foreign-power issues. Bingham connects birth, jurisdiction, and parent-linked foreign allegiance without converting parentage into bloodline. The correct use is synthesis: Reconstruction bars caste and inherited degradation while preserving a jurisdictional predicate that does actual work.

N.4. Early American Application and Implementation

Early American applications and executive-branch legal materials are used according to authority weight. Bates, Rhodes, Look Tin Sing, Wong, Elk, early administrative practice, and related materials do different things. Some supply presumption logic. Some supply resident-alien inclusion. Some supply boundary conditions. Some supply implementation practice. None is permitted to become the entire rule unless its legal authority warrants that effect.

Wong secures the resident-alien core and rejects alienage, foreign nationality, and parentage alone as defeating facts. Elk supplies a negative boundary where geography and partial legal subjection did not create immediate direct local allegiance because a recognized political relation remained operative. These holdings do more work than rhetoric; they structure the fixed-point inventory.

N.5. Exceptions, Displacements, and Foundlings

Diplomatic birth, hostile occupation, and historical tribal political relation are not random exceptions. They identify forms of sovereign-status displacement: diplomatic status routes the birth-time relation through another sovereign; hostile occupation displaces operative U.S. authority and protection; historical tribal political relation showed how a recognized separate political relation could prevent direct local allegiance before statutory supersession.

Foundlings are the category in which archival caution matters most. The Article treats foundlings as proof discipline unless a stronger period-source record establishes more. The relevant lesson is not that unknown parentage creates a separate constitutional rule. The lesson is that citizenship administration requires presumptions when birth and parentage facts are unavailable and no legally material displacing sovereign-status record appears. Foundlings therefore support the presumption-plus-trigger architecture and the anti-destabilization principle; they do not carry the merits burden for known-parentage modern-margin cases.

N.6. Source-Function Matrix

Table N-1. Period Sources by Legal Function

Source cluster	Representative sources	Legal function	Weight	How complete jurisdiction uses it
English common law	Calvin's Case; Blackstone	Allegiance/protection background	Strong background, not enacted text	Supplies vocabulary of protection and allegiance.
American common-law reception	Kent; Lynch v. Clarke; early state and federal cases	American continuation and adaptation of common-law nativity	Strong where directly birthright-focused	Supports the ordinary birth-as-proof path.
Reconstruction drafting	Civil Rights Act; Howard; Trumbull; Johnson; Bingham; Doolittle; Fessenden	Enacted phrase and exception context	Strong but context-sensitive	Shows the anti-caste settlement and the tribal/diplomatic boundary problems.
Early federal implementation	Bates; Rhodes; Look Tin Sing; early administrative practice	Implementation and construction	Moderate to strong depending on authority	Confirms broad resident-alien inclusion, presumption logic, and proof practice.
Diplomatic and occupation sources	Law of nations; Inglis; occupation and invader examples	Sovereign-status displacement	Strong as settled exclusion	Supplies the closed negative categories.
Foundling materials	Later nationality statutes and administrative presumptions	Proof under uncertainty	Limited unless supported by earlier sources	Supports proof discipline, not an independent common-law merits rule.
Comparator scholarship	Ramsey; Whittington; Heilpern/Whittington; Schuck and Smith; Ho; Wurman; Eastman; Lash and others	Comparator pressure and source testing	Variable by proposition and authority	Adopts verified source propositions and rejects unsupported inferences.

N.7. Source-Audit Checklist

Table N-2. Period-Source Audit Checklist

Audit question	Required discipline	Consequence for the synthesis
What proposition does the source verify?	Classify the source as enacted text, drafting context, common-law background, holding, implementation practice, proof discipline, or comparator pressure.	Prevents a source from doing more work than it can support.
Does the source support the ordinary case or an exclusion?	Separate common-law ordinary birth from diplomacy, occupation, tribal relation, and other displacing-status materials.	Preserves the difference between ordinary proof path and constitutional predicate.
Does the source address merits or proof?	Keep foundlings, birth records, certificates, and administrative presumptions in the proof-discipline register unless the source supports more.	Avoids making proof machinery the source of constitutional citizenship.
Does the source bear on child citizenship or adult immigration consequences?	Separate the child's birth-time predicate from later parent-benefit statutes.	Maintains the no-hereditary-taint and no-automatic-amnesty firewall.
Does a comparator source strengthen the common-law baseline?	Adopt the verified premise and then test how it interacts with the fixed points.	Treats Ramsey and Whittington as source-strengthening comparators, not foils.
Does the source create a controlling counterexample?	Require a source-backed holding, settled inclusion, settled exclusion, drafting choice, or implementation practice that cannot be reconciled with complete jurisdiction.	If yes, revise the affected element; if no, retain the relational synthesis.

N.8. Result

Complete jurisdiction is not an archival shortcut. It is the doctrinal synthesis of the period-source record, settled fixed points, holdings, proof practice, and modern legal incidents. Ramsey and Whittington supply a powerful common-law baseline. This Article accepts that baseline but performs a different task: it integrates that baseline with all fixed points and with administrable modern law.

The source-parity conclusion is therefore limited and concrete. Common-law allegiance and protection remain central. Reconstruction supplies the enacted anti-caste and jurisdictional settlement. Wong preserves the resident-alien core. Elk prevents geography alone from swallowing the jurisdictional phrase. Diplomacy, hostile occupation, and historical tribal political relation disclose sovereign-status displacement. Foundlings supply proof discipline unless a stronger period-source record independently establishes more. Modern records administer legal incidents; they do not create constitutional citizenship.